

Message 1 of 371

RE: AEW's backup

Sender	greg.krause@enron.com
Recipients	['kay.mann@enron.com']
File	mann-k/florida/44.

I think the invoice was for between \$20,000 and \$30,000, but I can't remember. AEW has the invoice. This probably will not be the final as we will need to work with them in discussions with DERM on delaying the landfill closure and in moving jurisdiction of the project from CZAB to the County Commissioners. I think Shutts & Bowen (who may get stiffed by their client if this deal blows up) and Certosa Holdings would be open to any suggestions and we need to renegotiate the option anyway. Shall I call and suggest this flat fee for retooling the option agreement to them or shall we do it together? I'm not sure I could explain to them adequately the idiosyncrasies of our accounting requirements.

-----Original Message-----

From: Mann, Kay Sent: Wednesday, May 23, 2001 2:00 PM To: Krause, Greg Subject: RE: AEW's backup

How much is it and should this be the final amount? One thought I have is that maybe we can retool the option agreement so that we pay them a flat fee, which is enough to cover the expenditures. Don't know if this works, but it is one thought. What do you think?

Kay

From: Greg Krause/ENRON@enronXgate on 05/23/2001 01:50 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: RE: AEW's backup

One more thing on the SDEC project: According to the option agreement we executed last October, we agreed to reimburse Certosa Holdings for actual third party costs that they incurred in support of our necessary applications, submittals and in seeking local approval. Several weeks ago, we recieved an invoice from Shutts & Bowen, attorney for Certosa Holdings requesting reimbursement pursuant to the contract. I forwarded this invoice on th Ann Elizabeth not necessarily to pay for but to review considering this whole soft cost hard cost discussion. I recieved another call this morning from Shutts & Bowen asking about the invoice. What should I do? -----Original Message----- From: Mann, Kay Sent: Wednesday, May 23, 2001 11:03 AM To: Krause, Greg Subject: RE: AEW's backup

Greg,

You can call me on whatever you have, including Midway, SDEC and Medley Dunn. If I have a problem getting to something, I'll find help.

Kay

From: Greg Krause/ENRON@enronXgate on 05/23/2001 10:50 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: RE: AEW's backup

Kay,

Ann Elizabeth did not provide a designated hitter for the South Dade Energy Center (Dade Development Company LLC is Optionee, Certosa Holdings is Optionor) nor did she provide one for tne Medley Dunn project. I have been told that the Dunns are considering backing off their ultimatums that they gave Ann Elizabeth and I regarding taxes to the town and assumption of enviromental liability. Who do I talk to about the Dunn contract while Ann Elizabeth is out? -----Original Message----- From: White, Ann Elizabeth Sent: Tuesday, May 22, 2001 10:33 PM To: gkrause@enron.com; Krinsky, Steven; Ben Jacoby/HOU/ECT@ENRON; Carnahan, Kathleen Cc: Milligan, Taffy Subject: AEW's backup

Kay Mann is the designated hitter for the Pompano and Deerfied projects while I'm on vacation. I've given her a down load of the status of Greg and Steve's projects. Chris Boehler at A&K will be the designated hitter for Midway. I'm not going to check my voice mail while I'm gone but, if necessary, here are the contact numbers while I'm gone.

Walter and Marlena Schilling 011-49-8218-89351 schilling.jun@freenet.de

Monika and Bernhard Steinacher 011-49-8232-8932 m.steinacher@schwabmuenchen.de

If you call, Walter and Bernhard and Bernhard's daughter, Susanne, speak very good English. Monika's isn't bad. Marlena may get flustered and hang up on you.

Best of luck at Deerfield and hope to see Pompano on track when I get back in the office on June 11th. Kay is planning on going to Florida on June 12 for the moratorium hearing and the rezoning hearing.

Message 2 of 371

RE: AEW's backup

Sender	kay.mann@enron.com
Recipients	[greg.krause@enron.com]
File	mann-k/all_documents/5949.

Could you email me the option agreement?

From: Greg Krause/ENRON@enronXgate on 05/23/2001 02:19 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: RE: AEW's backup

I think the invoice was for between \$20,000 and \$30,000, but I can't remember. AEW has the invoice. This probably will not be the final as we will need to work with them in discussions with DERM on delaying the landfill closure and in moving jurisdiction of the project from CZAB to the County Commissioners. I think Shutts & Bowen (who may get stiffed by their client if this deal blows up) and Certosa Holdings would be open to any suggestions and we need to renegotiate the option anyway. Shall I call and suggest this flat fee for retooling the option agreement to them or shall we do it together? I,m not sure I could explain to them acequately the idiosyncrasies of our accounting requirements.

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Message 3 of 371

RE: Delta docs

Sender	kay.mann@enron.com
Recipients	['roseann.engeldorf@enron.com', 'Roseann', 'Stephen Thome/HOU/ECT@ECT', 'Jake Thomas/HOU/ECT@ECT']
File	mann-k/all_documents/5128.

Can you tell me to whom we send the originals?

Kay ----- Forwarded by Kay Mann/Corp/Enron on 04/26/2001 07:53 AM ----- From: Catherine Clark/ENRON@enronXgate on 04/25/2001 05:36 PM To: Kay Mann/Corp/Enron@Enron cc: Stephen Thome/HOU/ECT@ECT, Jake Thomas/HOU/ECT@ECT, Roseann Engeldorf/ENRON@enronXgate

Subject: RE: Delta docs

Kay, The deal team needs to sign and send out the notices (for Fountain Valley they had V&E do all that). The notice needs to be faxed to: Elizabeth Burnett (phone 212-325-9943, fax 212-325-8304) - she is replacing Shazia Sarker who (we just found out) is leaving CSFB on Friday. Shazia's name and number need to be changed throughout the documents. V&E also faxed copies of the notices to: Karl Wiemer at Milbank (phone 212-530-5209, fax 212-822-5209), Lisa, Rose and myself.

The Assignment and Assumption Agreement needs to be signed by the deal team for ENA, then sent to Karl Wiemer, Ann Roberts, Jose Mercado and Doneene Damon for execution by E-Next Generation LLC (see addresses below). The Bill of Sale also needs to be sent to Karl, Ann, Jose, and Doneene for execution by E-Next.

The second notice is called the "Prepayment Notice" and includes the amount to be funded 2 days later. I took the V&E form used for Fountain Valley and removed names and amounts, however I believe Rose had some additional comments, so let me talk to her before attaching a sample Prepayment Notice. I'll get back to you shortly. Thanks. -Catherine x3-9943

Ann Roberts Wilmington Trust 520 Madison Ave. 33rd Floor New York, NY 10022 Phone: 212-415-0545 Fax: 212-415-0513 aroberts@wilmingtontrust.com

Doneene Damon Richards, Layton & Finger, P.A. One Rodney Square 920 King Street Wilmington, DE 19801 Phone: 302-651-7526 Fax: 302-658-6548 damon@rlf.com

Jose Mercado Wilmington Trust Company Rodney Square North 1100 North Market Street Wilmington, DE 19890 Phone: 302-651-8631 Fax: 302-651-8882 jmercado@wilmingtontrust.com

-----Original Message-----

From: Mann, Kay Sent: Wednesday, April 25, 2001 4:52 PM To: Clark, Catherine Cc: Thome, Stephen; Thomas, Jake; Engeldorf, Roseann Subject: Delta docs

Hi Catherine,

I don't remember who actually gives the notice, but in anticipation of the funding of the escrow tomorrow, here are the docs.

<< File: Final Delta Turbine Sale Turbopark Notice of Purchase.doc >> << File: Final Delta Turbine Sale Turbopark Assignment & Assumption Agmt with GE ack.DOC >> << File: Final Delta Turbine Sale Turbopark Bill of Sale.DOC >>

I understand there is also a two day notice. I don't believe I've seen a form for that one yet.

Who should send this out tomorrow after we get the fed ref?

Thanks,

Kay

Message 4 of 371

RE: Delta docs

Sender	kay.mann@enron.com
Recipients	['Stephen Thome/HOU/ECT@ECT', 'Roseann', 'catherine.clark@enron.com', 'Jake Thomas/HOU/ECT@ECT']
File	mann-k/sent/3862.

When sending out the assignment and assumption agreement, are we sending originals to all four people listed in the second paragraph? Do you remember how many originals are required?

Thanks,

Kay

From: Catherine Clark/ENRON@enronXgate on 04/25/2001 05:36 PM To: Kay Mann/Corp/Enron@Enron cc: Stephen Thome/HOU/ECT@ECT, Jake Thomas/HOU/ECT@ECT, Roseann Engeldorf/ENRON@enronXgate

Subject: RE: Delta docs

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Who should send this out tomorrow after we get the fed ref?

Thanks,

Kay

Message 5 of 371

Addresses for Delta Closing

Sender	catherine.clark@enron.com
Recipients	['jan.king@enron.com', 'kay.mann@enron.com', 'stephen.thome@enron.com']
File	mann-k/discussion_threads/3576.

Re: Delta turbine purchase out of E-Next

Please send executed signature pages to: Karl Wiemer Milbank, Tweed, Hadley & McCloy LLP 1 Chase Manhattan Plaza New York, NY 10005-1413

Wilmington Trust will sign for E-Next Generation LLC, however, this must be done in the state of Delaware, so please send the signature pages to Jose Mercado. Ann Roberts and Doneene Damon both get copies of the documents to review, but not sign.

Ann Roberts Wilmington Trust 520 Madison Ave. 33rd Floor New York, NY 10022 Phone: 212-415-0545 Fax: 212-415-0513 aroberts@wilmingtontrust.com

Doneene Damon Richards, Layton & Finger, P.A. One Rodney Square 920 King Street Wilmington, DE 19801 Phone: 302-651-7526 Fax: 302-658-6548 damon@rlf.com

Jose Mercado Wilmington Trust Company Rodney Square North 1100 North Market Street Wilmington, DE 19890 Phone: 302-651-8631 Fax: 302-651-8882 jmercado@wilmingtontrust.com

Hope this gives you all the addresses you need. Please let me know if you need anything else. -Catherine 713-853-9943

Message 6 of 371

Re: AES/Haywood Site--SPA Amendment

Sender	aroffwarg@bracepatt.com
Recipients	[chris.booth@enron.com', 'ben.f.jacoby@enron.com', 'kay.mann@enron.com', 'stuart.zisman@enron.com']
File	mann-k/notes_inbox/683.

Attached is the revised SPA Amendment incorporating Zisman's comments. Please let me know if I am authorized to release this to AES. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002 (713) 221-1117 (Ph) (713) 221-2184 (Fax)

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<Ben.F.Jacoby@enron.com> 04/30/01 10:02AM >>>

Aaron:

Please check with Stuart / Kay on this. We need to send it out as soon as possible. Thanks,

Ben

"Aaron Roffwarg" <aroffwarg@bracepatt.com> on 04/27/2001 04:54:12 PM

To: <Ben.Jacoby@enron.com>, <Chris.Booth@enron.com>, <Kay.Mann@enron.com>, <Stuart.Zisman@enron.com> cc: Subject: AES/Haywood Site--SPA Amendment

Per my discussions with Ben and Stuart, attached is a new redline of the SPA Amendment reflecting the revised business terms. Please call me with comments. Please note that this has not been sent to AES or its attorney yet. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002 (713) 221-1117 (Ph) (713) 221-2184 (Fax)

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(See attached file: Red-AMENDMENT NO 1 TO SPA.doc)

Message 7 of 371

Re: Monkey Business

Sender	kay.mann@enron.com
Recipients	[cthompson@bracepatt.com']
File	mann-k/all_documents/4375.

I would love to take you up on it, but I'm already lined up to go. I'll take a raincheck!

Thanks for thinking of me.

Kay

"Clark Thompson" <cthompson@bracepatt.com> on 03/30/2001 04:07:45 PM To: <ann.elizabeth.white@enron.com>, <Kay.Mann@enron.com>, <steve.van.hooser@enron.com> cc:

Subject: Monkey Business

My recollection is that each of you is somewhat of a baseball fan, as I am. I just happen to have 4 great seats for Opening Day at Enron Field, for which I very much need company to help me enjoy. I would love it if each of you could join me. The game starts at 4:05 pm, so it might require leaving the office a little early. But of course we would be discussing serious business the entire time so that it would be fully justifiable to anyone interested. I will bring my legal pad to take notes.

Let me know. Hope you can come.

cgt

Clark G. Thompson, Jr. Bracewell & Patterson, L.L.P. 711 Louisiana, Suite 2900 Houston, Texas 77002-2781 Phone: 713.221.1477 Fax: 713.221.2116 email: cthompson@bracepatt.com

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Message 8 of 371

Re: Closing Documents

Sender	afontenot@bracepatt.com
Recipients	['shase@aesc.com', 'aroffwarg@bracepatt.com', 'prollin@aesc.com']
File	mann-k/haywood/18.

Attached are clean copies of the following:

1. Assignment of Interest in Haywood Power I, LLC; 2. Amendment No. 3 to Securities Purchase Agreement; 3. Amendment No. 4 to Project Development Agreement; 4. Certificate of AES Greystone, LLC; and 5. Certificate of Volunteer Land Development Company, LLC

Please call with any questions.

Aaron P. Roffwarg Bracewell & Patterson, L.L.P. 711 Louisiana, Suite 2900 Houston, Texas 77002-2781 Phone: 713.221.1117 Fax: 713.221.2184 email: aroffwarg@bracepatt.com

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Aaron Roffwarg 05/10/01 05:09PM >>>

In connection with tomorrow's closing, attached for your review are revised versions of the Amendments to the SPA and PDA, revisions to the Assignment of Interests, and "Date Down" Certificates for the Purchaser and the Seller. Please note that these comments are being distributed to the whole group simultaneously and are subject to change. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- ASSIGNMENT OF INTERESTS.doc - AMENDMENT NO 3 TO SPA.doc - AMENDMENT NO 4 TO PDA.doc - BUYER REPRESENTATION CERTIFICATE.doc - SELLER REPRESENTATIONS CERTIFICATE.doc

Message 9 of 371

Re: Monkey Business

Sender	kay.mann@enron.com
Recipients	['cthompson@bracepatt.com']
File	mann-k/all_documents/4376.

I'm an expert at being a rabid fan and excellent arm chair manager. I keep waiting for the Skipper to call for advice....

"Clark Thompson" <cthompson@bracepatt.com> on 03/30/2001 04:28:25 PM To: <Kay.Mann@enron.com> cc:

Subject: Re: Monkey Business

Sorry for the late notice - have been underwater this week trying to get Tex-Mex and Alamac buttoned up, and just realized today that I needed to get on this. Will hope to see you there and try to find another time we can go. My understanding from all is that you are the resident baseball expert (next to Ken Lay).

Best regards.

cgt

<Kay.Mann@enron.com> 03/30/01 04:12PM >>>

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Subject: Monkey Business

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Message 10 of 371

Re: Monkey Business

Sender	kay.mann@enron.com
Recipients	[cthompson@bracepatt.com]
File	mann-k/_sent_mail/1073.

You have excellent sources.

"Clark Thompson" <cthompson@bracepatt.com> on 03/30/2001 05:07:26 PM To: <Kay.Mann@enron.com> cc:

Subject: Re: Monkey Business

and I hear you wear Hawaiin shirts to the office on game days. . . .

<Kay.Mann@enron.com> 03/30/01 04:34PM >>>

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"Clark Thompson" <cthompson@bracepatt.com> on 03/30/2001 04:28:25 PM

To: <Kay.Mann@enron.com> cc:

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Message 11 of 371

Re: Greystone/Haywood - Extension of Dates

Sender	aroffwarg@bracepatt.com
Recipients	['szisman@ect.enron.com', 'ben.f.jacoby@enron.com', 'kay.mann@enron.com']
File	mann-k/all_documents/5392.

Ben,

This version of the SPA is revised pursuant to our conversation this morning and is redlined against the version submitted to ENA by Steve Hase last week. Feel free to call me with further comments. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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<Ben.F.Jacoby@enron.com> 05/01/01 07:26PM >>>

I did not get your revision to Hase's draft. Please resend. Thanks.

"Aaron Roffwarg" <aroffwarg@bracepatt.com> on 05/01/2001 06:49:19 PM

To: <ben.jacoby@enron.com>, <stuart.zisman@enron.com> cc: <Chris.Booth@enron.com>, <Kay.Mann@enron.com>
Subject: Greystone/Haywood - Extension of Dates

Ben and Stuart,

Attached is Amendment #2 to the SPA reflecting the business terms Ben and I discussed this afternoon. As you will see this structure (with the promissory note) is different from the structure described by Steve Hase in the attached email. Please let me know if the deal has evolved since our latest discussions. Please note that this is being sent to ENA only. Please call me with your comments at your earliest convenience. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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Content-Transfer-Encoding: 8bit Received: from mcafee.bracepatt.com by bracepatt.com; Tue, 01 May 2001 15:29:24

-0500 Received: FROM aesc.com BY mcafee.bracepatt.com ; Tue May 01 15:40:09 2001 -0500 X-Proxy:

keymaster.bracepatt.com protected Received: from 207.92.93.17 ([207.92.93.2]) by aesc.com with Microsoft

SMTPSVC(5.0.2172.1); Tue, 1 May 2001 16:22:53 -0400 Message-id:

<fc.000f749c00763c4c3b9aca0044810ab2.763dd3@aesc.com> Date: Tue, 01 May 2001 16:32:21 -0400 Subject: Re:

Greystone/Haywood - Extension of Dates To: ALouison@hunton.com Cc: ben.jacoby@enron.com,

stuart.zisman@enron.com, aroffwarg@bracepatt.com, prollin@aesc.com, mbarr@hunton.com From: "Steve Hase"

<shase@aesc.com> References: <11A113B59DF4D311A0DE00805FA7F323028FC4E6@DCMAIL1> In-Reply-To:

<11A113B59DF4D311A0DE00805FA7F323028FC4E6@DCMAIL1> MIME-Version: 1.0 Content-type: text/plain;

charset=ISO-8859-1 Return-Path: shase@aesc.com X-OriginalArrivalTime: 01 May 2001 20:22:53.0236 (UTC) FILETIME

=[800B0F40:01C0D27C]

Audrey,

Ben and I have reached an agreement which will be documented as follows:

1) Extension of Dates -- May 11 becomes May 9 (Wed)

2) Ben will edit the latest version of the Amendment #2 so that

a) on Aug 1, we pay the greater of the \$1.5MM (\$2.5 less \$1 paid at exercise) and the Additional Compensation (less the \$1 MM)

b) a separate agreement whereby Corp guarantees the payment on Aug 1.

The intention is to sign the Amendment #3 before 5/9.

Thanks everyone for making this happen.

Steve Hase

(See attached file: #1283523 v5 - AMENDMENT NO 2 TO SPA.doc)

- Red Am2 to SPA.doc

Message 12 of 371

Re: FW: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to

Sender	kay.mann@enron.com
Recipients	[pthompson@akllp.com]
File	mann-k/_sent_mail/302.

Can't think of anyone.

"Thompson, Peter J." <pthompson@akllp.com> on 05/18/2001 07:26:20 AM To: "Kay Mann (E-mail)" <kay.mann@enron.com> cc:

Subject: FW: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC

With your permission, I will send it to Lee and Kent. Who else from ENA should get a copy?

-----Original Message-----

From: Eric.Booth@enron.com [mailto:Eric.Booth@enron.com] Sent: Friday, May 18, 2001 12:24 AM To: Thompson, Peter J.; Kay.Mann@enron.com Subject: RE: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC

Peter-

Everything looks good to me. Go ahead and send it. If you have questions, feel free to contact me. Tomorrow (Friday) I can be reached by cell phone at (713) 412-6873. Monday I will be back in the office. (713) 345-4683.

Thanks, Eric Booth Enron

-----Original Message-----

From: "Thompson, Peter J." <pthompson@akllp.com>@ENRON

[mailto:IMCEANOTES++22Thompson+2C+20Peter+20J+2E+22+20+3Cpthompson+40akllp+2Ecom+3E+40ENRON@ENRON.com]

Sent: Wednesday, May 16, 2001 8:22 AM To: Mann, Kay; Booth, Eric Subject: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC

<<City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC>>

Attached is a blackline of the City of Austin Turbine Agreement showing changes made to the version that went to GE on February 12. This draft includes both Lee's and Eric's changes to Exhibit A, as well as the addition of the contacts for notices in Sections 25.1 and 25.3. It also contains a few minor clean-up items identified by Lisa Bills when she reviewed LV Cogen (e.g., the definitions of Performance Test Certificate and Performance Test Completion Certificate were out of order). To complete the agreement, we will need to include the date of execution and Exhibit H-2. I particularly wanted Eric to review this before it went to the other side. If it looks acceptable, I would be happy to send a copy to GE. - City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC << File: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC >>

Message 13 of 371

FW: Michael Joyce/Platelets

Sender	bob.joyce@kvaerner.com
Recipients	['betty.lantrip@kvaerner.com', 'bob.cook@kvaerner.com', 'melody.litteral@kvaerner.com']
File	mann-k/notes_inbox/162.

Sorry, but the number is 713-792-6840.

And Bev just called to say that we have a donor for today and one for tomorrow - so the crisis has passed for the moment.

Bob

Bob Joyce Kvaerner Process 7909 Parkwood Circle Drive Houston, TX 77036 (713) 995-2137 (713) 270-3652 -- Fax bob.joyce@kvaerner.com <mailto:bob.joyce@kvaerner.com>

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immediately by using the "reply" feature or by telephone, and then delete this message and any attachments. Thank you.

-----Original Message-----

From: Joyce, Bob KPRHOU Sent: Monday, June 04, 2001 2:02 PM To: Lantrip, Betty KPRHOU Cc: Cook, Bob KPRHOU; Litteral, Melody KPRHOU; Messina, Janice KPRHOU; Perry, Cecile KPRHOU; Thibodeaux, Denece KPRHOU; Varnado, Linda KPRHOU; Atkinson, Dana KPRHOU; Bogiel, Stan KPRHOU; Butler, Mike KPRHOU; Campbell, Coy KPRHOU; Conda, Russell KPRHOU; Doremus, George KPRHOU; Hagendorf, Gordon KPRHOU; Kelley, David KPRHOU; Koenig, Charles KPRHOU; Mandel, Gary KPRHOU; McClellan, John KPRHOU; McTague, Larry KPRHOU; Montgomery, Wayne KPRHOU; Rojas, Ricardo KPRHOU; Schneider, Robert KPRHOU Subject: Michael Joyce/Platelets

Betty

I talked with Bob Cook, thinking that as he's the organizer of the blood drives, he might have a name or two of platelet donors. The two people who were going to donate Platelets for Michael today "bailed" for various reasons, and my wife has tapped out her resources for platelet donors and I've tapped out mine. Bob suggested you might contact the people on the prayer list. What's needed is people with type O blood (either + or -). If anyone is able to do so today, that'd be GREAT. And if tomorrow or some other day, that would be great also.

If anyone can donate, please have him/her call my wife, Bev, at 713 972-6840. That's the number for both Michael's room and the visitor's room adjacent to Michael's room. They should not call there before noon. If they want to call before that or late in the evening (we usually leave the hospital around 9:30 and get home around 10:30), they can call 281 360-5665 and leave a message.

Thanks.

Bob

Bob Joyce Kvaerner Process 7909 Parkwood Circle Drive Houston, TX 77036 (713) 995-2137 (713) 270-3652 -- Fax bob.joyce@kvaerner.com <mailto:bob.joyce@kvaerner.com>

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Message 14 of 371

FW: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to

Sender	pthompson@akllp.com
Recipients	['kay.mann@enron.com']
File	mann-k/discussion_threads/4137.

With your permission, I will send it to Lee and Kent. Who else from ENA should get a copy?

-----Original Message-----

From: Eric.Booth@enron.com [mailto:Eric.Booth@enron.com] Sent: Friday, May 18, 2001 12:24 AM To: Thompson, Peter J.; Kay.Mann@enron.com Subject: RE: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC

Peter-

Everything looks good to me. Go ahead and send it. If you have questions, feel free to contact me. Tomorrow (Friday) I can be reached by cell phone at (713) 412-6873. Monday I will be back in the office. (713) 345-4683.

Thanks, Eric Booth Enron

-----Original Message-----

From: "Thompson, Peter J." <pthompson@akllp.com>@ENRON

[mailto:IMCEANOTES+22Thompson+2C+20Peter+20J+2E+22+20+3Cpthompson+40akllp+2Ecom+3E+40ENRON@ENRON.com]

Sent: Wednesday, May 16, 2001 8:22 AM To: Mann, Kay; Booth, Eric Subject: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC

<<City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC>>

Attached is a blackline of the City of Austin Turbine Agreement showing changes made to the version that went to GE on February 12. This draft includes both Lee's and Eric's changes to Exhibit A, as well as the addition of the contacts for notices in Sections 25.1 and 25.3. It also contains a few minor clean-up items identified by Lisa Bills when she reviewed LV Cogen (e.g., the definitions of Performance Test Certificate and Performance Test Completion Certificate were out of order). To complete the agreement, we will need to include the date of execution and Exhibit H-2. I particularly wanted Eric to review this before it went to the other side. If it looks acceptable, I would be happy to send a copy to GE. - City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC << File: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC >>

Message 15 of 371

RE: Invoice Language

Sender	ccampbell@kslaw.com
Recipients	['jkeffer@kslaw.com', 'kay.mann@enron.com']
File	mann-k/discussion_threads/2042.

Kay:

I have copies of the Articles of Organization, the LLC Agreement, and a member's consent electing officers for each of the entities (and provided these to George by fax on 12/7). George advised last week that SEL wanted the originals of the "minute books" for the two entities. Therefore ENA should prepare to have the original organizational documents ("minute books") ready for delivery to SEL at closing. I am unaware of any efforts to obtain federal EIN's for these entities. Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Tuesday, January 02, 2001 1:26 PM To: Matthew.F.Gockerman@enron.com Cc: Ben.Jacoby@enron.com; Fred.Mitro@enron.com; Campbell, Carolyn; Keffer, John; Kathleen.Carnahan@enron.com Subject: RE: Invoice Language

Matt,

Do CA Energy Development I and II have federal EIN's?

Thanks,

Kay

PS to all, my answers to other questions:

Carolyn has corp documents Not registered to do business in Texas

----- Forwarded by Kay Mann/Corp/Enron on 01/02/2001 01:22

PM -----

"Noonan, Shawn" <SNoonan@INTERGEN.com> on 01/02/2001 01:11:17 PM

To: "George Kutzschbach" <gkutzschbach@fulbright.com>, CCampbell@KSLAW.com cc: Kay.Mann@enron.com, "Pedigo, Doug" <DPedigo@INTERGEN.com>, "Jones, John" <JJones@INTERGEN.com>, "John. Laborde (E-mail)" <john.laborde@us.pwcglobal.com>

Subject: RE: Invoice Language

All,

I need to apply for a Texas sales and use tax permit for CAED I and II very soon. Who has the current corporate data on these LLC entities (such as business address, names of managing officers and directors (i.e., persons authorized to execute documents on behalf of the LLC's), and the federal EIN numbers)? Also, have these entities registered to do business in Texas? Anyone, please help if you can. Thanks!

-----Original Message-----

From: George Kutzschbach [mailto:gkutzschbach@fulbright.com] Sent: Tuesday, January 02, 2001 11:37 AM To: CCampbell@KSLAW.com Cc: Kay.Mann@enron.com; Pedigo, Doug; Jones, John; Noonan, Shawn Subject: Re: Invoice Language

Carolyn,

In addition to the invoice change, the periods should be removed from "LLC" on the cover page, in the first paragraph of the first page, in Section 1.78 and on the signature page of each Facility Agreement. The change relating to invoices is that the address of the invoices in Section 6.7.2 should be as follows for one of the Facility Agreements:

CA Energy Development I, LLC c/o Sweetgum Energy L.P. c/o InterGen North America L.P. 909 Fannin, Suite 2200 Houston, Texas 77010 Attention: John Jones Fax: (713) 374-3901

and as follows for the other:

CA Energy Development II, LLC c/o Sweetgum Energy L.P. c/o InterGen North America L.P. 909 Fannin, Suite 2200 Houston, Texas 77010 Attention: John Jones Fax: (713) 374-3901

Thanks, George

"Campbell, Carolyn" <CCampbell@KSLAW.com> 01/02/01 11:12AM >>>

George:

Kay Mann is looking for your requested language providing that GE will invoice the LLC directly. I am unable to find your request. Can you please furnish this, as Kay intends to address this with GE today. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

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Message 16 of 371

RE: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to

Sender	eric.booth@enron.com
Recipients	['thompson@enron.com', 'kay.mann@enron.com', 'pthompson@akllp.com']
File	mann-k/discussion_threads/4136.

Peter-

Everything looks good to me. Go ahead and send it. If you have questions, feel free to contact me. Tomorrow (Friday) I can be reached by cell phone at (713) 412-6873. Monday I will be back in the office. (713) 345-4683.

Thanks, Eric Booth Enron

-----Original Message-----

From: "Thompson, Peter J." <pthompson@akllp.com>@ENRON
[mailto:IMCEANOTES+22Thompson+2C+20Peter+20J+2E+22+20+3Cpthompson+40akllp+2Ec
om+3E+40ENRON@ENRON.com] Sent: Wednesday, May 16, 2001 8:22 AM To: Mann, Kay; Booth, Eric Subject: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC

<<City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC>>

Attached is a blackline of the City of Austin Turbine Agreement showing changes made to the version that went to GE on February 12. This draft includes both Lee's and Eric's changes to Exhibit A, as well as the addition of the contacts for notices in Sections 25.1 and 25.3. It also contains a few minor clean-up items identified by Lisa Bills when she reviewed LV Cogen (e.g., the definitions of Performance Test Certificate and Performance Test Completion Certificate were out of order). To complete the agreement, we will need to include the date of execution and Exhibit H-2. I particularly wanted Eric to review this before it went to the other side. If it looks acceptable, I would be happy to send a copy to GE. - City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC << File: City of Austin Gas Turbine Agt - Blackline of 83017 v.5 to v.7.DOC >>

Message 17 of 371

Closing Documents Executed by Volunteer Land Development Co., LLC

Sender	aroffwarg@bracepatt.com
Recipients	['aroffwarg@bracepatt.com', 'afontenot@bracepatt.com', 'prollin@aesc.com', 'shase@aesc.com']
File	mann-k/haywood/19.

The receipt of the Cash Portion of the Purchase Price via intrabank transfer has been confirmed. Attached please find the following documents each executed by an authorized representative of Volunteer Land Development Co., LLC:

1. Assignment of Interest in Haywood Power I, LLC;
2. Amendment No. 3 to Securities Purchase Agreement;
3. Amendment No. 4 to Project Development Agreement; and
4. Certificate of Volunteer Land Development Company, LLC

One (1) original signature page for each document will sent for Saturday delivery to Audrey Louison at Hunton & Williams, 1900 K Street, N.W., Washington, D.C. 20006. Please forward corresponding signature pages for 1-4 above, the Commitment Letter ,and the Waiver of Termination Option, each executed by AES Greystone LLC by next Tuesday to my attention at Bracewell & Patterson, L.L.P., 711 Louisiana Street, Suite 2900, Houston, Texas 77002.

Thanks to everyone for their assistance. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- Amend-4-PDA.pdf - Amend-3-SPA.pdf - Assignment of Interest.pdf - Certificate-Volunteer.pdf

Message 18 of 371

FW: Salmon Energy LLC

Sender	catherine.clark@enron.com
Recipients	['kay.mann@enron.com']
File	mann-k/all_documents/5627.

Kay, This is the last set of emails exchanged re: Delta docs. Feel free to call Tam to check on the status (Tam is a woman...). -Catherine

-----Original Message-----

From: Clark, Catherine Sent: Thursday, May 10, 2001 2:18 PM To: 'TPham@milbank.com@ENRON' Subject: RE: Salmon Energy LLC

For Salmon Energy, GE and Enron, please send the documents to me and I'll get them to the correct legal counsel. For Wilmington Trust, please send to the address below for notarization (I guess you can also send him executed documents and he can forward to his counsel):

Jose Mercado Wilmington Trust Company Rodney Square North 1100 North Market Street Wilmington, DE 19890 Phone: 302-651-8631 Fax: 302-651-8882 jmercado@wilmingtontrust.com

Thanks, -Catherine 713-853-9943

-----Original Message-----

From: TPham@milbank.com@ENRON [mailto:IMCEANOTES-TPham+40milbank+2Ecom+40ENRON@ENRON.com]
Sent: Thursday, May 10, 2001 1:23 PM To: Clark, Catherine Subject: Salmon Energy LLC

Catherine, I am helping Karl put together execution documents for the various parties. My question to you is who should the Assignment and Assumption Agreement and the Bill of Sale go to at Salmon Energy LLC, GE Packaged Power and Wilmington Trust Company? I will send you the originals for Enron and E-Next. In addition, the signature for E-Next by WTC was not notarized on the Bill of Sale. I will send it back to them for notarization, but will need to know who to send it to. Your assistance would be greatly appreciated. Best regards, Tam T. T. Pham Milbank, Tweed, Hadley & McCloy LLP One Chase Manhattan Plaza New York, NY 10005 tel: (212) 530-5463 fax: (212) 822-5463 This e-mail message may contain legally privileged and/or confidential information. If you are not the intended recipient(s), or the employee or agent responsible for delivery of this message to the intended recipient(s), you are hereby notified that any dissemination, distribution or copying of this e-mail message is strictly prohibited. If you have received this message in error, please immediately notify the sender and delete this e-mail message from your computer.

Message 19 of 371

RE: Titan-Schaffer Option

Sender	kathleen.carnahan@enron.com
Recipients	['kay.mann@enron.com']
File	mann-k/discussion_threads/2500.

Oh, I don't know..... I guess about as many times as you have to say "don't do anything unless I ask you to."

Attached is the Schaeffer Memorandum of Option that Piper Rudnick prepared (just in case they decide to go ahead and the Option executed today or next week). The Schaffer's should probably execute at the same time, don't you think?

Kay Mann 02/09/2001 01:58 PM To: Kathleen Carnahan/NA/Enron@Enron cc:

Subject: RE: Titan-Schaffer Option

How many times do I have to say EMAIL IT? ----- Forwarded by Kay Mann/Corp/Enron on 02/09/2001 01:57 PM -----

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 02/09/2001 11:55:08 AM To: "'kay.mann@enron.com'" <kay.mann@enron.com> cc: "Shindler, Donald A. - CHI" <Donald.Shindler@piperrudnick.com>, "Townsend, Christopher J. - CHI" <chris.townsend@piperrudnick.com>

Subject: RE: Titan-Schaffer Option

Kay: Just to clarify. The "blacklined changes" in the fax I sent to you come directly from the document that you sent to us yesterday. We will let you know as soon as we hear anything further.

Thanks, Karen

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

-----Original Message----- From: Way, Karen S. - CHI Sent: Friday, February 09, 2001 11:45 AM To: 'kay.mann@enron.com' Cc: Shindler, Donald A. - CHI; Townsend, Christopher J. - CHI Subject: Titan-Schaffer Option Kay: This is to confirm that I have faxed to you at 713-646-3491 the following documents: i) a copy of the cover fax-letter to Mr. Al Freehill, attorney for the Schaffers; and 2) the blacklined changes to the Schaffer-Titan Option for Mr. Freehill's review per your changes yesterday. Please call Don or me with any questions on this matter. Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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For more information about Piper Marbury Rudnick & Wolfe, please visit us at <http://www.piperrudnick.com/>

Message 20 of 371

Itinerary for trip to RALEIGH

Sender	kay.mann@enron.com
Recipients	['Heather Kroll/HOU/ECT@ECT', 'suzanne.adams@enron.com']
File	mann-k/_sent_mail/3884.

Here it is. I guess she didn't make my reservations. You might want to double check.

Obviously, I do not need a car.

I would like to get these reservations asap for the upgrade.

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 07/31/2000 05:05 PM -----

Claudette Harvey@ECT 07/31/2000 04:53 PM To: Jeffrey T Hodge/HOU/ECT@ECT, Kay Mann/Corp/Enron@Enron cc: Heather Kroll/HOU/ECT@ECT

Subject: Itinerary for trip to RALEIGH

----- Forwarded by Claudette Harvey/HOU/ECT on 07/31/2000

04:49 PM -----

jhunt.vitolvl@us.amadeusmail.com on 07/31/2000 02:56:00 PM To: CHARVEY2@ENRON.COM cc: Subject: KROLL 2AUG HOUSTON TO RALEIGH

SALES AGT: JH/X4CMUY

KROLL/HEATHER

ENRON 1400 SMITH HOUSTON TX 77002

DATE: JUL 31 2000

SERVICE DATE FROM TO DEPART ARRIVE

CONTINENTAL AIRLINES 02AUG HOUSTON RALEIGH D 0702P 1054P CO 1884 A WED G.BUSH INTERCO RALEIGH DURHAM TERMINAL C TERMINAL A DINNER NON STOP RESERVATION CONFIRMED 2:52 DURATION

CAR 02AUG NATIONAL RALEIGH D 03AUG CONFIRMATION: 204986367COUNT TELEPHONE: (919).840-4350.

LUXURY CAR AUTOMATIC AIR RATE: USD68.18DY-0.19 MI 100FM RATE GUARANTEED BASE RATE:

*ZL*USD68.18 BR-1DY PICK-UP: RALEIGH/DURHAM AIRPORT, MORRISVILLE DROP-OFF: RALEIGH/DURHAM AIRPORT, MORRISVILL

HOTEL 02AUG HILTON GARDEN INN RALEIGH DURHAM AIRPORT 03AUG 1500 RDU CENTER DR MORRISVILLE, NC 27560 UNITED STATES OF AMERICA TELEPHONE: 919-840-8088 FAX: 919-840-8048 TELEX: TLX NONE CONFIRMATION: 3110494726 REFERENCE: A00LV0 SINGLE DOUBLE BED RATE: *** USD 139.00 PER NIGHT GUARANTEE GIVEN REQ KING NS

CONTINENTAL AIRLINES 03AUG RALEIGH D HOUSTON 0550P 0739P CO 1283 A THU RALEIGH DURHAM G.BUSH INTERCO TERMINAL A TERMINAL C DINNER NON STOP RESERVATION CONFIRMED 2:49 DURATION

RESERVATION NUMBER(S) CO/LLTHPT

CO FREQUENT FLYER COSR369071 THANK YOU FOR CALLING VITOL TRAVEL

VITOL TRAVEL 1100 LOUISIANA STE 3230 HOUSTON, TX 77002 713 759-1444

Message 21 of 371

Re: Please review your following upgraded itinerary. Have a nice

Sender	kay.mann@enron.com
Recipients	['suzanne.adams@enron.com', 'diane.fitzgerald@travelpark.com']
File	mann-k/sent/407.

Hi again,

I checked my maps of DC, and it looks like the Hotel Washington might be a good alternative. Could you see what they have for Mon/Tues night? Also, please check back with the Willard to see if they have had any cancellations.

Could you email me your telephone number and the afterhours number?

Due to the shortage of time, please call me with any information you might have. I should be in my office from 830 until 930. Ex 57566 If I'm not there, I'll be checking messages.

Thanks,

Kay

Diane Fitzgerald <diane.fitzgerald@travelpark.com> on 08/04/2000 04:08:27 PM To: "KAY.MANN@ENRON.COM" <KAY.MANN@ENRON.COM> cc:

Subject: Please review your following upgraded itinerary. Have a nice tri p!

MANN/C KAY ATTN SUZANNE ADAMS 713 853-7340 ENRON CORP 3AC SUITE 400

DATE: AUG 04 2000

SERVICE DATE FROM TO DEPART ARRIVE

CONTINENTAL AIRLINES 07AUG HOUSTON WASHINGTON 1053A 0252P CO 1460 A MON G.BUSH INTERCO R REAGAN NAT TERMINAL C TERMINAL B LUNCH NON STOP RESERVATION CONFIRMED 2:59 DURATION AIRCRAFT: BOEING 737-500 SEAT 03B NO SMOKING CONFIRMED MANN/C KAY(IDS8 FIRST CLASS UPGRADE IS CONFIRMED.

HOTEL 07AUG FOUR SEASONS WASHINGTON 09AUG 2800 PENNSYLVANIA AVENUE NW WASHINGTON, DC 20007 UNITED STATES OF AMERICA TELEPHONE: 202-342-0444 FAX: 202-944-2076 TELEX: 904008 CONFIRMATION: 89115111 SINGLE KING SIZE BED RATE: COR USD 305.00 PER NIGHT GUARANTEE GIVEN CANCELLATION POLICY: REQUIRES CANCEL BY 6PM DAY OF ARRIVAL ENRON CORP RQST NONSMKG TO AVOID NO SHOW BILLING. CANCEL 6PM HOTEL TIME DAY OF ARRIVAL

CONTINENTAL AIRLINES 09AUG WASHINGTON HOUSTON 1130A 0133P CO 1837 A WED R REAGAN NAT G.BUSH INTERCO TERMINAL B TERMINAL C LUNCH NON STOP

RESERVATION CONFIRMED 3:03 DURATION AIRCRAFT: BOEING 737-300 SEAT 03B NO SMOKING CONFIRMED MANN/C KAY(IDS8 FIRST CLASS UPGRADE IS CONFIRMED.

MISCELLANEOUS 08OCT HOUSTON SUN ** THANK YOU FOR USING THE TAP **

MANN/C KAY(IDS8C061MR102049)

CO FREQUENT FLYER COHG770475 LIL BAILEY 345-6275 INTL TVLRS: CARRY SOS WALLET CARD W/ENRONASSISTANCE INFO CALL SOS: IN U.S 800 523-6586/INTL 215 245-4707 (COLLECT)

***** THIS IS THE PASSENGER RECEIPT FOR YOUR ELECTRONIC TICKET.
PLEASE CHECK-IN WITH PHOTO IDENTIFICATION AND WITH EITHER (1) THIS RECEIPT OR (2) YOUR CONFIRMATION NUMBER. . YOUR ETKT CONFIRMATION NUMBER IS: O 2 G 5 D 5

Message 22 of 371

RE: Pegasus - Closing Documents

Sender	ccampbell@kslaw.com
Recipients	['kay.mann@enron.com', 'gregorylang@paulhastings.com']
File	mann-k/notes_inbox/131.

Greg:

If you are obtaining additional original signatures on the Letter Agreement to accommodate Freshfield's request, I would appreciate you getting one more original signed by PPL for Enron's files, as we have only a fax copy of PPL's signature on the Letter Agreement. Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<<mailto:ccampbell@kslaw.com>>

-----Original Message-----

From: PARKER, Isabel [<mailto:isabel.parker@freshfields.com>] Sent: Tuesday, June 05, 2001 11:16 AM To: 'Campbell, Carolyn' Cc: VAN DUSEN, Nicholas; Kay Mann (E-mail); Gregory F. Lang (E-mail) Subject: RE: Pegasus - Closing Documents

This e-mail is confidential and may well also be legally privileged. If you have received it in error, you are on notice of its status. Please notify us immediately by reply e-mail and then delete this message from your system. Please do not copy it or use it for any purposes, or disclose its contents to any other person: to do so could be a breach of confidence. Thank you for your co-operation. Please contact our IT Helpdesk on +44 (0) 20 7936 4000 Ext.2000 or email ITHelp@freshfields.com if you need assistance.

The lenders have specifically asked for an original of the Letter Agreement. If it is really problematic to get another 2 copies signed, I can ask them again if they will accept a copy. I appreciate that there are only 2 parties to the document, but the lenders' reasoning is that the Letter Agreement is a key underlying document and as such, they would expect to have an original. Also, our original arrangement was that we would sign 6 originals of each relevant document so that all parties could have originals.

I know what a pain it is to get documents re-executed and I apologize that this request has come so late in the day.

Regards Isabel

-----Original Message-----

From: Campbell, Carolyn [<mailto:CCampbell@KSLAW.com>] Sent: Tuesday, June 05, 2001 12:04 PM To: 'PARKER, Isabel' Cc: VAN DUSEN, Nicholas; Kay Mann (E-mail) Subject: RE: Pegasus - Closing Documents

Isabel:

ENA signed two originals of the Letter Agreement (as the Letter Agreement has only two parties). I kept one for ENA and provided the other to Greg Lang for PPL by letter dated May 2, 2001. I still do not have an original of PPL's signature, but Greg Lang did provide a fax copy. Is it necessary for the parties to sign additional copies for non-parties? I am checking with ENA on the GE documents. Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) <<mailto:ccampbell@kslaw.com>>
ccampbell@kslaw.com

-----Original Message-----

From: PARKER, Isabel [<mailto:isabel.parker@freshfields.com>] Sent: Tuesday, June 05, 2001 10:47 AM To: Carolyn Campbell (E-mail); Kay Mann (E-mail) Cc: VAN DUSEN, Nicholas Subject: Pegasus - Closing Documents

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The lenders have informed us that they would also like to have at least one original of the GE Guaranty. Please let us know whether this will be possible. In addition, could you please let us know how many originals of the Letter Agreement were signed? The lenders also need an original of this document.

Thank you in advance Isabel

Isabel Parker T +1 212 277 4025 F +1 212 277 4001 E isabel.parker@freshfields.com 520 Madison Avenue 34th Floor New York, NY 10022 www.freshfields.com

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Message 23 of 371

FW: Pegasus - Closing Documents

Sender	ccampbell@kslaw.com
Recipients	['Nicholas; Kay Mann (E-mail); Gregory F. Lang (E-mail)', 'VAN DUSEN', 'kay.mann@enron.com']
File	mann-k/discussion_threads/4763.

Kay:

Can you please have 2 additional originals of the attached letter agreement signed by Chris Calger, Managing Director of ENA, and return same to me for forwarding to Freshfields. Thanks.

Carolyn M. Campbell King?& Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

-----Original Message-----

From: PARKER, Isabel [mailto:isabel.parker@freshfields.com] Sent: Tuesday, June 05, 2001 11:16 AM To: 'Campbell, Carolyn' Cc: VAN DUSEN, Nicholas; Kay Mann (E-mail); Gregory F. Lang (E-mail) Subject: RE: Pegasus - Closing Documents

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Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) <mailto:ccampbell@kslaw.com>
ccampbell@kslaw.com

-----Original Message-----

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Thank you in advance Isabel

Isabel Parker T +1 212 277 4025 F +1 212 277 4001 E isabel.parker@freshfields.com 520 Madison Avenue 34th Floor New York, NY 10022 www.freshfields.com

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- Letter Agmt Enron Turbines Delta Power.DOC

Message 24 of 371

City of Yazoo/Clarksdale Master Gas Agreements

Sender debra.perlingiere@enron.com

Recipients ['kay.mann@enron.com']

File mann-k/yazoo_city/265.

Re: Clarksdale see below.

Debra Perlingiere Enron North America Corp. Legal Department 1400 Smith Street, EB 3885 Houston, Texas 77002
dperlin@enron.com Phone 713-853-7658 Fax 713-646-3490

----- Forwarded by Debra Perlingiere/HOU/ECT on 05/21/2001 01:46 PM -----

Debra Perlingiere 05/11/2001 05:04 PM To: Kay Mann/Corp/Enron@Enron cc: Subject: City of Yazoo/Clarksdale Master Gas Agreements

Attached are drafts of the Master Firm Purchase/Sale Agreement for gas. Upon completion of a guaranty I will incorporate a section for same.

Debra Perlingiere Enron North America Corp. Legal Department 1400 Smith Street, EB 3885 Houston, Texas 77002
dperlin@enron.com Phone 713-853-7658 Fax 713-646-3490

Message 25 of 371

City of Yazoo/Clarksdale Master Gas Agreements

Sender	debra.perlingiere@enron.com
Recipients	['kay.mann@enron.com']
File	mann-k/yazoo_city/94.

Re: Clarksdale see below.

Debra Perlingiere Enron North America Corp. Legal Department 1400 Smith Street, EB 3885 Houston, Texas 77002
dperlin@enron.com Phone 713-853-7658 Fax 713-646-3490

----- Forwarded by Debra Perlingiere/HOU/ECT on 05/21/2001 01:46 PM -----

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Debra Perlingiere Enron North America Corp. Legal Department 1400 Smith Street, EB 3885 Houston, Texas 77002
dperlin@enron.com Phone 713-853-7658 Fax 713-646-3490

Message 26 of 371

RE: Invoices

Sender	alice.wright@enron.com
Recipients	['kay.mann@enron.com']
File	mann-k/inbox/368.

These are hard copies for your review. They were in a green folder.....

Alice Wright Enron Wholesale Services - Legal 1400 Smith St., EB3809A Houston, Texas 77002 Tel: 713-853-5438 Fax: 713-646-3491 alice.wright@enron.com

-----Original Message-----

From: Mann, Kay Sent: Tuesday, November 27, 2001 11:59 AM To: Wright, Alice Cc: George, Carolyn Subject: RE: Invoices

I was having trouble with the system last time I tried a couple of hours ago. I'll try again later.

-----Original Message-----

From: Wright, Alice Sent: Tuesday, November 27, 2001 11:57 AM To: Mann, Kay Cc: George, Carolyn Subject: Invoices
Importance: High

Have you looked at the invoices that were in your inbox? If approved, I can process tomorrow. If not by Noon, I will forward to Carolyn George.

Alice Wright Enron Wholesale Services - Legal 1400 Smith St., EB3809A Houston, Texas 77002 Tel: 713-853-5438 Fax: 713-646-3491 alice.wright@enron.com

Message 27 of 371

Re: Draft of Enron CPCN Application - Richmond Project

Sender	kay.mann@enron.com
Recipients	[' lisa.mellencamp@enron.com ']
File	mann-k/_sent_mail/4066.

That would have been too much.

Lisa Mellencamp@ECT 07/10/2000 11:04 AM To: Kay Mann/Corp/Enron@ENRON cc:

Subject: Re: Draft of Enron CPCN Application - Richmond Project

i had this vision of him in a complete panic that sweet child. at least you were saved that.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393

Kay Mann@ENRON 07/10/2000 10:46 AM

To: Lisa Mellencamp/HOU/ECT@ECT cc: Subject: Re: Draft of Enron CPCN Application - Richmond Project

Yes, I have it.

She thought she had heartburn while she was with Michael.

What a summer.

Lisa Mellencamp@ECT 07/10/2000 10:33 AM To: Kay Mann/Corp/Enron@ENRON cc:

Subject: Re: Draft of Enron CPCN Application - Richmond Project

hopefully not a heart attack when she was with him??? i have limped in this am to find a zillion emails etc. i saw you were not on the list but this is their problem. i assume you have in hand??

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393

Message 28 of 371

Re: 200

Sender	kay.mann@enron.com
Recipients	[' carlos.sole@enron.com ']
File	mann-k/all_documents/4694.

Maybe having 2 kids and an SUV makes you feel older.

From: Carlos Sole on 04/12/2001 12:03 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: 200

I don't know but this has been one of the longest work weeks ever for me in my brief professional career of 7 years, even though I've only had standard type workdays.

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

Kay Mann 04/12/2001 12:00 PM

To: Carlos Sole/NA/Enron@Enron cc: Subject: Re: 200

Just in time for the weekend.

I hope to take tomorrow off, by the way. Paige is coming in tonight, and Michael has the day off from school.

Kay

From: Carlos Sole on 04/12/2001 11:56 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: 200

Sounds good. Evn though we have not had our meeting next week, you are my leader, I serve at your pleasure and will do as you command (after three cups of coffee, I'm finally starting to feel like I'm getting my edge back!)

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

Message 29 of 371

RE: Invoices

Sender	alice.wright@enron.com
Recipients	['a..garcia@enron.com', 'kay.mann@enron.com', 'tonya.dennis@enron.com']
File	mann-k/inbox/365.

Thank you very much Tonya. Have a great day!

Alice Wright Enron Wholesale Services - Legal 1400 Smith St., EB3809A Houston, Texas 77002 Tel: 713-853-5438 Fax: 713-646-3491 alice.wright@enron.com

-----Original Message-----

From: Dennis, Tonya Sent: Tuesday, November 27, 2001 9:12 AM To: Wright, Alice; Garcia, Julie A. Cc: Mann, Kay
Subject: RE: Invoices

I coded the King and Spalding invoices in IPAYIT yesterday. Before coding, I had to forward the invoices to Ben for his approval. So, they should be processed and paid soon through IPAYIT.

Thanks-

Tonya

-----Original Message-----

From: Wright, Alice Sent: Tuesday, November 27, 2001 9:07 AM To: Garcia, Julie A.; Dennis, Tonya Cc: Mann, Kay
Subject: Invoices Importance: High

Good morning,

I forwarded to you over the last three weeks approximately 8 to 12 invoices for coding.....Kay Mann wants to resolve these invoices today. Will you please code the invoices as the following or return them to me. My last day at Enron is tomorrow (3 p.m.), so if you don't get them to me, please process them and inform Kay Mann of the status.

Coral Energy - Cost Center 107319

Project Blue Dog - Split 50/50 between Cost Centers 107319 and 150273

Midway Energy - WBS C.008071. or Cost Center 107319 (second choice)

Thank you very much for your prompt attention to this matter.

Alice Wright Assistant to Kay Mann 1400 Smith St., EB3809A Houston, Texas 77002 Tel: 713-853-5438 Fax: 713-646-3491 alice.wright@enron.com

Message 30 of 371

FW: Enron escrow

Sender	chris.booth@enron.com
Recipients	['mreuter@kslaw.com', 'ben.jacoby@enron.com', 'jkeffer@kslaw.com', 'kathleen.carnahan@enron.com', 'kay.mann@en...']
File	mann-k/all_documents/5945.

Ladies and Gents,

Please see attached comments to the escrow agreement from Citibank.

Chris Booth Enron North America 1400 Smith Street, EB3147c Houston, Texas 77002 (713) 345-3364 - phone (713) 646-3037 - fax chris.booth@enron.com

-----Original Message-----

From: "Lawrence, Estelle A" <estelle.a.lawrence@citi.com>@ENRON
[mailto:IMCEANOTES--+22Lawrence+2C+20Estelle+20A+22+20+3Cestelle+2Ea+2Elawrence+40citi+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, May 23, 2001 2:37 PM To: Booth, Chris Subject: Enron escrow

Chris,

I am the account manager for the Enron relationship. I understand you would like to establish an escrow in pretty short order.

Attached are Citibank's comments to the escrow agreement. In order to complete this transaction, Escrow also needs to receive the following documents:

1) completed incumbency by all parties to the agmt; 2) Form W-9 for NorthWestern only; and 3) signed fee schedule.

Once I receive an execution copy of the agreement, I will provide you with Citibank's wire instructions. You have the option of including our fees with the initial deposit or wiring our fees directly to our billing department. Please let me know which you prefer so that I may coordinate on our end.

I look forward to working with you and trust that you will feel free to contact me should you have any questions or comments.

Estelle Lawrence Citibank Agency & Trust 111 Wall Street, 14/3 New York, NY 10005 T: 212.657.2076 F: 212.657.3862
<<citi comments.doc>>

- citi comments.doc

Message 31 of 371

Re: Delta Turbine	
Sender	carlos.sole@enron.com
Recipients	['carlos.sole@enron.com', 'kwiemer@milbank.com', 'herman.manis@enron.com', 'catherine.clark@enron.com']
File	mann-k/all_documents/4900.

Attached are clean and blackline versions of the Turbopark related documents (except for the Prepayment Notice) which have been revised per Karl's email. The documents are in the order of Karl's email attachment comments. In the event that I do not receive any further comments, these are the final versions. Thank you.

Release of Collateral

Bill of Sale

Assignment & Assumption Agreement

Initial Notice

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

KWiemer@milbank.com 04/19/2001 03:51 PM

To: Carlos.Sole@enron.com, mmckay@velaw.com, roseann.engeldorf@enron.com, Lisa.Bills@enron.com, Herman.Manis@enron.com, William.Fleenor@enron.com, Catherine.Clark@enron.com cc: Subject: Delta Turbine

My comments to the Delta Turbine papers. Thanks for your patience.

Best regards, Karl

<<delta purch cmnts.PDF>>

Karl Wiemer Milbank, Tweed, Hadley & McCloy LLP One Chase Manhattan Plaza New York, NY 10005-1413
212-530-5209 212-822-5209 (fax) kwiemer@milbank.com

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- delta purch cmnts.PDF

Message 32 of 371

Re: Invoice Language	
Sender	gkutzschbach@fulbright.com
Recipients	['dpedigo@intergen.com', 'jjones@intergen.com', 'ccampbell@kslaw.com', 'kay.mann@enron.com']
File	mann-k/coral/79.

Carolyn,

In addition to the invoice change, the periods should be removed from "LLC" on the cover page, in the first paragraph of the first page, in Section 1.78 and on the signature page of each Facility Agreement. The change relating to invoices is that the address of the invoices in Section 6.7.2 should be as follows for one of the Facility Agreements:

CA Energy Development I, LLC c/o Sweetgum Energy L.P. c/o InterGen North America L.P. 909 Fannin, Suite 2200
Houston, Texas 77010 Attention: John Jones Fax: (713) 374-3901

and as follows for the other:

CA Energy Development II, LLC c/o Sweetgum Energy L.P. c/o InterGen North America L.P. 909 Fannin, Suite 2200
Houston, Texas 77010 Attention: John Jones Fax: (713) 374-3901

Thanks, George

"Campbell, Carolyn" <CCampbell@KSLAW.com> 01/02/01 11:12AM >>>

George:

Kay Mann is looking for your requested language providing that GE will invoice the LLC directly. I am unable to find your request. Can you please furnish this, as Kay intends to address this with GE today. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

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Message 33 of 371

Re: Draft of Enron CPCN Application - Richmond Project

Sender	kay.mann@enron.com
Recipients	['lisa.mellencamp@enron.com']
File	mann-k/all_documents/210.

Allyson called Friday afternoon to tell me they would be sending this out Friday, and it needed to be reviewed quickly. It never came. I left a message Friday afternoon, asking where it was. They sent it to me on Saturday. I left out the really bad part. I had to leave early on Friday because Michael's sitter (who picks him up from school everyday) had a heart attack. She's still in St. Luke's.

I'll take a look at it.

ckm

Lisa Mellencamp@ECT 07/10/2000 10:01 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Draft of Enron CPCN Application - Richmond Project

did you get this??

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 ----- Forwarded by Lisa Mellencamp/HOU/ECT on 07/10/2000 10:01 AM -----

"Fine, Jonathan" <JFine@kilstock.com> 07/07/2000 04:10 PM

To: "jeffrey.m.keenan@enron.com" <jeffrey.m.keenan@enron.com>, "heather.kroll@enron.com" <heather.kroll@enron.com>, "tom.chapman@enron.com" <tom.chapman@enron.com>, "lisa.mellencamp@enron.com" <lisa.mellencamp@enron.com> cc: "jcrose@prodigy.net" <jcrose@prodigy.net>, "Duncan, Allyson" <aduncan@kilstock.com> Subject: Draft of Enron CPCN Application - Richmond Project

Attached for your review and comment is the latest draft of the CPCN application to be submitted on Monday. Please provide your comments, if any, by Monday morning so that we can file the application and Jeffrey's testimony that

afternoon.

Thank you.

Also - Jeffrey: in addition to the materials you are sending overnight tonight, we wanted to remind you about sending your bio for inclusion in your testimony. You can e-mail, if you prefer. Thanks.

Also - Heather - wanted to confirm that you will be taking the lead on putting together the cost estimate, which we will submit under seal as a supplement to the application. Thanks.

Jonathan M. Fine Kilpatrick Stockton, LLP 3737 Glenwood Ave., Ste. 400 Raleigh, NC 27612 TEL: (919) 420-1700 FAX: (919) 420-1800

<<Enron CPCN Application.DOC>>

- Enron CPCN Application.DOC

Message 34 of 371

Re: Invoice Language	
Sender	kay.mann@enron.com
Recipients	['DPedigo@INTERGEN.com', 'jjones@INTERGEN.com', 'Kay.Mann@enron.com', 'pthompson@akllp.com']
File	mann-k/discussion_threads/2035.

A small change... ----- Forwarded by Kay Mann/Corp/Enron on 01/02/2001 12:28 PM -----

"George Kutzschbach" <gkutzschbach@fulbright.com> on 01/02/2001 11:36:31 AM To: CCampbell@KSLAW.com cc: Kay.Mann@enron.com, DPedigo@INTERGEN.com, jjones@INTERGEN.com, SNoonan@INTERGEN.com

Subject: Re: Invoice Language

Carolyn,

In addition to the invoice change, the periods should be removed from "LLC" on the cover page, in the first paragraph of the first page, in Section 1.78 and on the signature page of each Facility Agreement. The change relating to invoices is that the address of the invoices in Section 6.7.2 should be as follows for one of the Facility Agreements:

CA Energy Development I, LLC c/o Sweetgum Energy L.P. c/o InterGen North America L.P. 909 Fannin, Suite 2200 Houston, Texas 77010 Attention: John Jones Fax: (713) 374-3901

and as follows for the other:

CA Energy Development II, LLC c/o Sweetgum Energy L.P. c/o InterGen North America L.P. 909 Fannin, Suite 2200 Houston, Texas 77010 Attention: John Jones Fax: (713) 374-3901

Thanks, George

"Campbell, Carolyn" <CCampbell@KSLAW.com> 01/02/01 11:12AM >>>

George:

Kay Mann is looking for your requested language providing that GE will invoice the LLC directly. I am unable to find your request. Can you please furnish this, as Kay intends to address this with GE today. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

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immediately by e-mail and delete all copies of the message.

Message 35 of 371

FW: June 5 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'sharon.butcher@enron.com', 'clement.abrams@enron.com']
File	mann-k/discussion_threads/4741.

User ID: enronatd PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON
[mailto:IMCEANOTES+22BNA+20Highlights+22+20+3Cbhighlig+40bna+2Ecom+3E+40ENRON @ENRON.com] Sent:
Monday, June 04, 2001 11:07 PM To: BNA Highlights Subject: June 5 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Tuesday, June 5, 2001

ISSN 1526-520X

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HIGHLIGHTS

THREATENED ENFORCEMENT OF PATENT DID NOT VIOLATE Section 2 OF SHERMAN ACT Threats to enforce a patent for a rotationally molded plastic bulk container did not violate Sherman Act Section 2, according to a decision by the U.S. District Court of the Eastern District of Pennsylvania, where there was no showing that the patent holder possessed market power or engaged in anticompetitive conduct ("PennPac International, Inc. v. Rotonics Mfg. Inc., "E.D. Pa., No. 99-CV-2890, 5/28/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G4Y1P3_

STATUTORY FRAUD IS NOT SUBJECT TO HEIGHTENED PLEADING STANDARD Statutory fraud need not be pleaded with particularity in Delaware, according to a decision by the Delaware Court of Chancery, New Castle County ("Delaware v. Publishers Clearing House, "Del. Ct. Chan., New Castle Cty., C.A. No. 17756, 4/19/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G4Y1R7_

Antitrust & Trade Regulation Daily (ISSN 1526-520X) Highlights are published daily by The Bureau of National Affairs, Inc., 1231 25th St., NW, Washington, DC 20037.

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Message 36 of 371

RE: Invoice Language	
Sender	snoonan@intergen.com
Recipients	['dpedigo@intergen.com', 'jjones@intergen.com', 'ccampbell@kslaw.com', 'gkutzschbach@fulbright.com', 'kay.mann...]
File	mann-k/all_documents/2873.

All,

I need to apply for a Texas sales and use tax permit for CAED I and II very soon.? Who has the current corporate data on these LLC entities (such as business address, names of managing officers and directors (i.e., persons authorized to execute documents on behalf of the LLC's), and the federal EIN numbers)?? Also, have these entities registered to do business in Texas?? Anyone, please help if you can.? Thanks!?

-----Original Message-----

From: George Kutzschbach [mailto:gkutzschbach@fulbright.com] Sent: Tuesday, January 02, 2001 11:37 AM To: CCampbell@KSLAW.com Cc: Kay.Mann@enron.com; Pedigo, Doug; Jones, John; Noonan, Shawn Subject: Re: Invoice Language

Carolyn,

In addition to the invoice change, the periods should be removed from "LLC" on the cover page, in the first paragraph of the first page, in Section 1.78 and on the signature page of each Facility Agreement.? The change relating to invoices is that the address of the invoices in Section 6.7.2? should be as follows for one of the Facility Agreements:

CA Energy Development I, LLC c/o Sweetgum Energy L.P. c/o InterGen North America L.P. 909 Fannin, Suite 2200 Houston, Texas 77010 Attention: John Jones Fax: (713) 374-3901

and as follows for the other:

CA Energy Development II, LLC c/o Sweetgum Energy L.P. c/o InterGen North America L.P. 909 Fannin, Suite 2200 Houston, Texas 77010 Attention: John Jones Fax: (713) 374-3901 ? Thanks, George

"Campbell, Carolyn" <CCampbell@KSLAW.com> 01/02/01 11:12AM >>>

George: ? Kay Mann is looking for your requested language providing that GE will invoice the LLC directly.? I am unable to find your request.? Can you please furnish this, as Kay intends to address this with GE today.? Thank you. ? ? Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com> ? ? ?

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Message 37 of 371

RE: Salmon Closing Checklist	
Sender	gregorylang@paulhastings.com
Recipients	['ccampbell@kslaw.com', 'kay.mann@enron.com', 'gregorylang@paulhastings.com', 'iparker@freshfields.com']
File	mann-k/all_documents/5268.

Subject to confirming the status and timing of the Retainage L/C with GE (now C.1), our only comment is that the reference for the delivery of the insurance certificates is to Section 5(f) of the Letter Agreement not 5(e) as set forth in

B.13.

Thanks.

Gregory F. Lang Paul, Hastings, Janofsky & Walker LLP 1055 Washington Blvd. Stamford, CT 06901

203.961.7446 (p) 203.674.7646 (direct fax) 203.359.3031 (firm fax) gregorylang@paulhastings.com
<mailto:gregorylang@paulhastings.com>

-----Original Message-----

From: Campbell, Carolyn [mailto:CCampbell@KSLAW.com] Sent: Monday, April 30, 2001 4:51 PM To: 'gregorylang@paulhastings.com'; 'iparker@freshfields.com' Cc: 'kay.mann@enron.com' Subject: Salmon Closing Checklist

<<2XNK03!.DOC>> <<2XNKRED.DOC>>

Greg and Isabel:

We have enclosed clean and blacklined drafts of the closing checklist, marked to reflect changes from the draft previously circulated. Please review and advise of any comments. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

Enclosures: 136928v3 136920vR3/2

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"paulhastings.com" made the following annotations on 04/30/01 17:17:13

NEW E-MAIL ADDRESSES AT PAUL, HASTINGS, JANOFSKY & WALKER LLP

We have changed our e-mail address. Our new domain name is paulhastings.com. In most cases, our address is composed of conventional first name and last name plus @paulhastings.com. Here are two examples: janesmith@paulhastings.com and danjones@paulhastings.com. If you have any questions, please contact us at noc@paulhastings.com.

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Message 38 of 371

RE: Invoice Language

Sender	kay.mann@enron.com
Recipients	['ben.jacoby@enron.com', 'fred.mitro@enron.com', 'ccampbell@kslaw.com', 'matthew.gockerman@enron.com']
File	mann-k/sent/2146.

Matt,

Do CA Energy Development I and II have federal EIN's?

Thanks,

Kay

PS to all, my answers to other questions:

Carolyn has corp documents Not registered to do business in Texas

----- Forwarded by Kay Mann/Corp/Enron on 01/02/2001 01:22

PM -----

"Noonan, Shawn" <SNoonan@INTERGEN.com> on 01/02/2001 01:11:17 PM To: "George Kutzschbach" <gkutzschbach@fulbright.com>, CCampbell@KSLAW.com cc: Kay.Mann@enron.com, "Pedigo, Doug" <DPedigo@INTERGEN.com>, "Jones, John" <JJones@INTERGEN.com>, "John. Laborde (E-mail)" <john.laborde@us.pwcglobal.com>

Subject: RE: Invoice Language

All, I need to apply for a Texas sales and use tax permit for CAED I and II very soon. Who has the current corporate data on these LLC entities (such as business address, names of managing officers and directors (i.e., persons authorized to execute documents on behalf of the LLC's), and the federal EIN numbers)? Also, have these entities registered to do business in Texas? Anyone, please help if you can. Thanks! -----Original Message----- From: George Kutzschbach [mailto:gkutzschbach@fulbright.com] Sent: Tuesday, January 02, 2001 11:37 AM To: CCampbell@KSLAW.com Cc: Kay.Mann@enron.com; Pedigo, Doug; Jones, John; Noonan, Shawn Subject: Re: Invoice Language

Carolyn, In addition to the invoice change, the periods should be removed from "LLC" on the cover page, in the first paragraph of the first page, in Section 1.78 and on the signature page of each Facility Agreement. The change relating to invoices is that the address of the invoices in Section 6.7.2 should be as follows for one of the Facility Agreements: CA Energy Development I, LLC c/o Sweetgum Energy L.P. c/o InterGen North America L.P. 909 Fannin, Suite 2200 Houston, Texas 77010 Attention: John Jones Fax: (713) 374-3901 and as follows for the other: CA Energy Development II, LLC c/o Sweetgum Energy L.P. c/o InterGen North America L.P. 909 Fannin, Suite 2200 Houston, Texas 77010 Attention: John Jones Fax: (713) 374-3901

Thanks, George

"Campbell, Carolyn" <CCampbell@KSLAW.com> 01/02/01 11:12AM >>>

George:

Kay Mann is looking for your requested language providing that GE will invoice the LLC directly. I am unable to find your request. Can you please furnish this, as Kay intends to address this with GE today. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

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Message 39 of 371

RE: Enron escrow

Sender	mreuter@kslaw.com
Recipients	[chris.booth@enron.com], 'jkeffer@kslaw.com', 'kay.mann@enron.com', 'margueritekahn@paulhastings.com']
File	mann-k/discussion_threads/4312.

Marguerite:

I have reviewed Citibank's mark-up and have only one comment. Section 6(a) changes the per annum escrow fee from \$3,000 to \$83,000, which is a typographical error since the fee schedule sets the per annum fee at \$8,000. All other changes relate to form not substance. Do you agree? Please confirm. I will rely on you to address Citibank's question on page 11 regarding the organizational structure of NorthWestern Generation I, LLC.

As you know, NorthWestern will need to deliver a Form W-9 and a completed incumbency certificate. At your earliest convenience, please update me on the status of these documents. Pursuant to the terms of the Letter Agreement, the escrow account needs to be set up before this weekend, so we will need to coordinate efforts as quickly as possible.

Regards,

Marisa

-----Original Message-----

From: Booth, Chris [mailto:Chris.Booth@ENRON.com] Sent: Wednesday, May 23, 2001 3:11 PM To: Mann, Kay; Marisa Reuter (E-mail); John Keffer (E-mail); Michael Young (E-mail); margueritekahn@paulhastings.com Cc: Jacoby, Ben; Carnahan, Kathleen Subject: FW: Enron escrow

Ladies and Gents,

Please see attached comments to the escrow agreement from Citibank.

Chris Booth Enron North America 1400 Smith Street, EB3147c Houston, Texas 77002 (713) 345-3364 - phone (713) 646-3037 - fax chris.booth@enron.com

-----Original Message----- From: "Lawrence, Estelle A" <estelle.a.lawrence@citi.com>@ENRON [mailto:IMCEANOTES+22Lawrence+2C+20Estelle+20A+22+20+3Cestelle+2Ea+2Elawrence+40citi+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, May 23, 2001 2:37 PM To: Booth, Chris Subject: Enron escrow Chris, I am the account manager for the Enron relationship. I understand you would like to establish an escrow in pretty short order. Attached are Citibank's comments to the escrow agreement. In order to complete this transaction, Escrow also needs to receive the following documents: 1) completed incumbency by all parties to the agmt; 2) Form W-9 for NorthWestern only; and 3) signed fee schedule. Once I receive an execution copy of the agreement, I will provide you with Citibank's wire instructions. You have the option of including our fees with the initial deposit or wiring our fees directly to our billing department. Please let me know which you prefer so that I may coordinate on our end. I look forward to working with you and trust that you will feel free to contact me should you have any questions or comments. Estelle Lawrence Citibank Agency & Trust 111 Wall Street, 14/3 New York, NY 10005 T: 212.657.2076 F: 212.657.3862 <<citi comments.doc>> - citi comments.doc <<citi comments.doc>>

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Message 40 of 371

FW: Enron escrow	
Sender	mreuter@kslaw.com
Recipients	['jkeffer@kslaw.com', 'kay.mann@enron.com']
File	mann-k/all_documents/6156.

Kay:

Further to our call, attached please find a mark-up of the Escrow Agreement. As I mentioned, Marguerite believes that the parties should sign the Escrow Agreement without filling in the amount left blank in Section 1. Let me know what you think.

Regards,

Marisa

-----Original Message-----

From: Reuter, Marisa Sent: Tuesday, May 29, 2001 3:11 PM To: Keffer, John Subject: FW: Enron escrow

Given the fact that Section 4(a) of the Letter Agreement requires NorSub to pay all fees associated with the Escrow Account and Section 4(b) requires NorSub to fund the Escrow Account, Kathleen Carnahan of ENA suggested revising Sections 1 and 6 of the Escrow Agreement, which make ENA and NorSub jointly responsible for the payment of these monies. Accordingly, I have marked up the Escrow Agreement, but Chris Booth wanted me to confirm with you whether you thought the changes were worth making. If so, I will forward the revised document to Chris so that he can get Citibank to signoff on the new draft.

Also, do you have a moment to discuss the dollar amount that needs to be included in Section 1? Let me know, and I'll come up.

MIR

-----Original Message-----

From: Booth, Chris [mailto:Chris.Booth@ENRON.com] Sent: Wednesday, May 23, 2001 3:11 PM To: Mann, Kay; Marisa Reuter (E-mail); John Keffer (E-mail); Michael Young (E-mail); margueritekahn@paulhastings.com Cc: Jacoby, Ben; Carnahan, Kathleen Subject: FW: Enron escrow

Ladies and Gents,

Please see attached comments to the escrow agreement from Citibank.

Chris Booth Enron North America 1400 Smith Street, EB3147c Houston, Texas 77002 (713) 345-3364 - phone (713) 646-3037 - fax chris.booth@enron.com

-----Original Message----- From: "Lawrence, Estelle A" <estelle.a.lawrence@citi.com>@ENRON [mailto:IMCEANOTES+22Lawrence+2C+20Estelle+20A+22+20+3Cestelle+2Ea+2E lawrence+40citi+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, May 23, 2001 2:37 PM To: Booth, Chris Subject: Enron escrow Chris, I am the account manager for the Enron relationship. I understand you would like to establish an escrow in pretty short order. Attached are Citibank's comments to the escrow agreement. In order to complete this transaction, Escrow also needs to receive the following documents: 1) completed incumbency by all parties to the agmt; 2) Form W-9 for NorthWestern only; and 3) signed fee schedule. Once I receive an execution copy of the agreement, I will provide you with Citibank's wire instructions. You have the option of including our fees with the initial deposit or wiring our fees directly to our billing department. Please let me know which you prefer so that I may coordinate on our end. I look forward to working with you and trust that you will feel free to contact me should you have any questions or comments. Estelle Lawrence Citibank Agency & Trust 111 Wall Street, 14/3 New York, NY 10005 T: 212.657.2076 F: 212.657.3862 <<citi comments.doc>> - citi comments.doc <<citi comments.doc>>

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- citi comments.doc

Message 41 of 371

FW: ENA Letter	
Sender	kay.mann@enron.com
Recipients	['John' <JKeffer@KSLAW.com', 'Keffer', 'stephen.thome@enron.com', 'jake.thomas@enron.com']
File	mann-k/discussion_threads/3416.

----- Forwarded by Kay Mann/Corp/Enron on 04/20/2001 09:41

AM -----

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/19/2001 10:42:28 PM To: "'kay.mann@enron.com'" <kay.mann@enron.com> cc: "Keffer, John" <JKeffer@KSLAW.com>

Subject: FW: ENA Letter

Kay:

See Greg's e-mail below. Attached is a re-draft of the "no objection to forms" letter. I have not yet furnished the re-draft to Greg. Please review and advise of any comments. Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) <mailto:ccampbell@kslaw.com>
ccampbell@kslaw.com

Enclosure: 140366v4

-----Original Message-----

From: Lang, Gregory F. [mailto:gregorylang@paulhastings.com] Sent: Thursday, April 19, 2001 8:58 PM To: 'ccampbell@kslaw.com' Subject: ENA Letter

Carolyn- I discussed the issue re the ENA letter with the lenders and they can live with the delivery of a letter attaching the forms with the "no objection" and "no act in furtherance of frustration" language we discussed with Kay. We also need to make sure a mechanism in place that ensures that upon Pegasus' payment of the \$800 on the morning of the transaction closing (post-Turbine K execution and pre-escrow release), ENA will deliver the membership interest in Salmon and any other deliverable required to allow the Delta/Pegasus slate of officers to be installed to execute the Salmon Note and the Salmon Security Agreement. I suppose this can be effected in that escrow control letter that Freshfields is drafting that ENA and the lenders will sign.

Do you want to redraft your letter or would you prefer us to mark it up. Let me know.

Greg

Gregory F. Lang Paul, Hastings, Janofsky & Walker LLP 1055 Washington Blvd. Stamford, CT 06901

203.961.7446 (p) 203.674.7646 (direct fax) 203.359.3031 (firm fax) gregorylang@paulhastings.com
<mailto:gregorylang@paulhastings.com>

"paulhastings.com" made the following annotations on 04/19/01 21:57:48

-- NEW E-MAIL ADDRESSES AT PAUL, HASTINGS, JANOFSKY & WALKER LLP

We have changed our e-mail address. Our new domain name is paulhastings.com. In most cases, our address is composed of conventional first name and last name plus @paulhastings.com. Here are two examples: janesmith@paulhastings.com and danjones@paulhastings.com. If you have any questions, please contact us at noc@paulhastings.com.

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- ENA Ltr to Delta Lender re Form of Agmt.DOC

Message 42 of 371

FW: June 6 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'sharon.butcher@enron.com', 'clement.abrams@enron.com']
File	mann-k/discussion_threads/4813.

User ID: enronatd PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON
[mailto:IMCEANOTES-+22BNA+20Highlights+22+20+3Cbhighlig+40bna+2Ecom+3E+40ENRON @ENRON.com] Sent:
Tuesday, June 05, 2001 11:07 PM To: BNA Highlights Subject: June 6 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Wednesday, June 6, 2001

ISSN 1526-520X

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HIGHLIGHTS

MINETA SAYS UNITED-USAIR DEAL DOUBTFUL BUT FORESEES OTHER CONSOLIDATION EFFORTS A year after they announced a multi-billion dollar deal to combine their operations and create the world's largest carrier, United Airlines and US Airways now appear unlikely to be able to consummate their merger, Transportation Secretary Norman Mineta said June 5.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G6F3T1_

**EU OPENS IN-DEPTH INQUIRY OF GRUPO VILLAR MIR, ENBW ACQUISITION OF HIDROCANTA`BRICO** The European Commission on June 5 decided to undertake a full, second phase investigation of the proposed acquisition of joint control over the Spanish utility Hidroele`ctrica del Canta`brico S.A. by the Spanish Group Villar Mir and the German Energie Baden-Wu`rttemberg.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G6F3V4_

LAWMAKERS CITE OPPOSITION OF REGULATORS, CONSUMER ADVOCATES TO BELL-DEREGULATION BILL Several members of the House Judiciary Committee June 5 expressed concern over opposition from state regulators and consumer advocate groups to legislation that would ease restrictions that prevent Bell companies from offering long-distance Internet services.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G6F3W5_

MURIS TAKES HELM AS NEW FTC CHAIRMAN Timothy J. Muris, sworn in on June 4, becomes the 55th Chairman of the Federal Trade Commission, succeeding outgoing Chairman Robert Pitofsky.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G6F3Y6_

ITALIAN AGENCY WIDENS PROBE OF COLLUSION IN AIRLINE SECTOR ROME -- Italy's antitrust authority has confirmed a pending investigation of six international air carriers to determine whether the companies collaborated on pricing for domestic Italian routes, thereby broadening an 11-month-old probe that originally focused domestic flagship carrier Alitalia.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G6F3Z5_

MASSACHUSETTS MOTOR VEHICLES ACT DOESN'T APPLY TO DEERE DEALERSHIP A Massachusetts statute regulating business practices between motor vehicle manufactures, distributors, and dealers is inapplicable to a dealership for lawn care and ground maintenance equipment made by Deere & Co., according to a decision by the Massachusetts Supreme Judicial Court ("Deere & Co. v. Ford," Mass. Sup. Jud. Ct., SJC-08426, 5/23/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G6F4A5_

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Message 43 of 371

RE: LV Cogen Agreement and Exhibits

Sender	kay.mann@enron.com
Recipients	[' kay.mann@enron.com ', ' peterthompson@akllp.com ', ' dale.rasmussen@enron.com ']
File	mann-k/_sent_mail/2439 .

In fairness to Pete, we have him working on ALL the GE and ABB break out agreements at once.

I'm going to be reviewing the ESA agreement, which is priority one because of financing requirements. This will be my final review of the "form" break out contract. We have not had a tax, insurance, accounting or finance review of the form for ENA, and with TurborPark closing this week it may be difficult to have completed within the next 24 hours. However, I don't expect any big issues, since it is so close to the original form. That being said, from the EPC contractor's standpoint, it is so close to being done that there shouldn't be any big issues.

Just thought I'd mention all the pieces which are still coming together.

Kay

PS. Dale, does the LV Co Gen project involve a lease (a/k/a Enron getting off take)?

h

"Thompson, Peter J." <peterthompson@akllp.com> on 12/12/2000 10:38:10 AM To: <Dale.Rasmussen@enron.com>, <Kay.Mann@enron.com> cc:

Subject: RE: LV Cogen Agreement and Exhibits

I'll have it to you by the end of business. I apologize for the delay, my secretay and Chris Cobb have both been out the last two days.

-----Original Message-----

From: Dale.Rasmussen@enron.com [mailto:Dale.Rasmussen@enron.com] Sent: Tuesday, December 12, 2000 11:25 AM

To: Thompson, Peter J.; Kay.Mann@enron.com Subject: Re: LV Cogen Agreement and Exhibits

Peter: Our EPC contractor and our prospective investor need copies of the final LV Cogen breakout contract.

Please let me know of the status of the final changes and e-mail me a final copy as soon as possible.

Thanks

Dale (503) 803-1700

Peter: This should answer your questions for the final breakout. Please make the changes and forward.

For now, let's assume that the 240 TDI number is per machine. We can confirm with GE on Monday.

Thanks. ----- Forwarded by Dale Rasmussen/HOU/ECT on 12/09/2000 09:07 AM -----

Bill Williams 12/08/2000 02:14 PM

To: Dale Rasmussen/HOU/ECT@ECT cc: Ron Coker/Corp/Enron@Enron, Andrew Kelemen/HOU/ECT@ECT, Ed Clark/PDX/ECT@ECT, Jim Gilbert/PDX/ECT@ECT, Karen E Jones/HOU/ECT@ECT, Sheila Tweed/HOU/ECT@ECT
Subject: Re: LV Cogen Agreement and Exhibits (Document link: Dale G Rasmussen)

Dale , regarding the attachment to your e mail (Peter Thompson to Kay Mann...) My input is the following:

1. Opening Paragraph..... Address is (or should be)

3WTC0306 121 SW Salmon Street Portland, OR 97204

2. Section 6.7.1 - The sentence should end with "this Agreement." (See definitions)

3. Section 6.7.2 - Address same as above. Fax is 503-464-3740. Attn: Should be Jody Blackburn

4. Information regarding notices in sections 25.1/25.3

25.1 - again - 3WTC0306 121 SW Salmon Street Portland, OR 97204 Attn: Jody Blackburn Fax: 503-464-3740

25.3 Same as above (25.1) except: Attn: W. J. Williams Jr.

Comments regarding To Finalize the Exhibits...

1. Do you need anything in Section B of (Schedule) Exhibit A-17...Answer is no. Reason: These gas turbines will not burn liquid fuel. They do not have the provision or physical means to do so as procured under this contract.

2. Exhibit B-1 (Specification)....somewhat confusing as under West LB, B-1 seemed near identical to Exhibit B. The West LB original has introductory language that says the GTs are designed to operate ion simple cycle mode....standard stuff I'm sure, but as this is a break out contract for Las Vegas, our gas turbines will operate in combined cycle. Not a big deal, and it is true I'm sure the machines were designed and built to operate in simple cycle.

I'd suggest you ask GE to confirm the West LB original spec under Exhibit B-1 is correct. If yes, incorporate it.

Exhibit H-2 - Training... GE provided a Training tab and material during the ODM September 19th, 2000 in Jacintoport. It goes into a lot of detail, but could be incorporated therein. Also, Exhibit B-1 of the West LB addresses training.

Exhibit R - Witness Test Points...No feed back from me here. I have been told GE no longer test fires their AEOD Gas Turbines prior to shipping from Cincinnati or once in the package at Jacintoport. We would like to be notified and witness as a minimum, test firings. Eric or Chris Booth of ENA may be able to suggest other points.

Exhibit T - My copy says Not Used.....

One last point. I do not see 240 hours of TDI referenced in the Scope. That is in the West LB contract. It should be here as well. Clarification. Is it 240 hours per machine? Do we get the multiple? (X 4?).

Cheers

Bill Williams Director - Restructuring and Technical Analysis - Portland (503-464-8958)

Message 44 of 371

RE: Titan-Schaeffer Option.DOC

Sender	kay.mann@enron.com
Recipients	['chris.townsend@piperrudnick.com']
File	mann-k/_sent_mail/1689.

Chris,

Your invoice for December reflects final revisions to the documents through December 20th, so I'm assuming the draft the Schaeffer's signed was done subsequent to anything transmitted on December 13th. However, emailing documents directly to me and calling me on the phone will be a big help.

Thanks for your response,

Kay

"Townsend, Christopher J. - CHI" <chris.townsend@piperrudnick.com> on 02/08/2001 05:39:21 PM To:

"Kay.Mann@enron.com" <Kay.Mann@enron.com> cc:

Subject: RE: Titan-Schaeffer Option.DOC

Kay --

I understand that we have received your revisions to the Schaffer Option Agreement and are in the process of incorporating them into the document. We will then contact the Schaffers' attorneys and get the changes incorporated.

We apologize for the confusion regarding the last set of revisions. Those revisions arose following our teleconference with the Schaffers' attorneys. Apparently, Don was acting under the assumption that you were tied up on other matters and had coordinated with Stuart, Fred and Rusty. Nevertheless, you should be able to find a copy in your electronic file attached to a December 13, 2000 email from Fred. Although Don had subsequent conversations with Rusty and Stuart, we should have circled back with you.

In the future, we will ensure that you receive email copies of all of the documents, with the changes highlighted as you requested.

Please feel free to contact me if you would like to discuss this matter further.

Thank you.

Christopher J. Townsend Piper Marbury Rudnick & Wolfe 203 N. LaSalle Street Chicago, IL 60601 (312) 368-4039 (direct line) (312) 630-6300 (direct fax) christopher.townsend@piperrudnick.com

-----Original Message-----

From: Kay.Mann@enron.com To: Way, Karen S. - CHI Cc: chris.townsend@piperrudnick.com Sent: 2/7/01 7:07 PM

Subject: Re: Titan-Schaeffer Option.DOC

Karen,

It appears to me that revisions were made to this agreement, and the agreement was presented to the counterparty for signature without me being consulted. Perhaps you did email this to me and I can't locate the electronic file. In any event, in the future, please call me on the telephone BEFORE revisions are made to documents and presented to the counterparty.

If you can't reach me by phone, send me an explanatory email. Also, please email me redlines against prior drafts. This will facilitate my review. Faxing drafts does not work for me.

I will send you the required changes tomorrow.

Thank you,

Kay

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 01/30/2001 10:53:27 AM

To: "'kathleen.carnahan@enron.com'" <kathleen.carnahan@enron.com>, "'Kay.mann@enron.com'" <Kay.mann@enron.com> cc:

Subject: Titan-Schaeffer Option.DOC

<<Titan-Schaeffer Option.DOC>>

Kathleen and Kay: Per Kathleen's voicemail this morning, attached hereto please find the most recent version of the Titan-Schaeffer Option Agreement for your use. Please feel free to contact me with any questions or comments you may have on this matter.

Best regards, Karen

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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(See attached file: Titan-Schaeffer Option.DOC)

<<Titan-Schaeffer Option.DOC>>

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Message 45 of 371

Status Update Regarding The Great Plains Energy Center/Konicek/Ke

Sender	chris.townsend@piperrudnick.com
Recipients	['kay.mann@enron.com']
File	mann-k/discussion_threads/843.

Kay:

This is the last Illinois ENA project that is currently "active." We have been informed that the Lake Calumet/Peoples Energy project is on hold indefinitely, pending acquisition of turbines by Peoples.

From a legal perspective, the Great Plains Energy Center/Konicek/Kendall County matter likewise is on hold, pending commercial resolution of transmission constraint issues with Commonwealth Edison Company. However, as soon as the transmission issues are resolved, this project could move fairly quickly.

If and when ENA decides to move forward with this matter, we envision that PMRW would provide legal counsel in the following areas:

1. Close on the Konicek property. ENA has an option on this property that expires December 15, 2001. Depending upon various commercial and operational issues, PMRW may also be asked to assist with closing on additional properties surrounding Konicek property.
2. Pursuant to the terms of the Annexation Agreement, annexation of the property to the City of Yorkville may occur when (a) ENA closes on the Konicek property; (b) the property is contiguous to the City; and (c) either (i) the County issues the final Certificate of Occupancy for the facility; or (ii) the Annexation Waiver Notice is delivered by ENA's development subsidiary to the City. The property currently is not contiguous to the City border.
3. Secure necessary environmental permits and approvals for pipelines, air emissions, water usage and water discharge.
4. Provide legal counsel associated with negotiating and implementing roadway and maintenance agreements. If ENA does not annex to the City of Yorkville and instead develops in the County, prior to issuance of the building permits, ENA will be required to finalize the terms of the Roadway Construction and Maintenance Agreements with Bristol Township. If the property is annexed to the City of Yorkville, ENA still has an obligation per the terms of the annexation agreement to repair/replace the damage resulting from construction of the facility. Typically, PMRW also provides legal counsel as needed during construction for implementing the terms of the Roadway Agreements.
5. Provide required legal assistance regarding construction activities. Typically, this involves securing building permits, certificates of occupancy, etc.
6. Per the terms of the Annexation Agreement, when at least 200 acres of area around the property is developed with industrial or commercial use, the City can create a special assessment district for roadway improvements along Corneils Road. Per Section 2(A)(E), the developer at that point is responsible for 10% or the cost of the roadways improvements or \$300,000 whichever is less for all roadway assessments in the aggregate. PMRW would assist with all legal issues arising from the creation of the special assessment district and payments in to the fund.
7. Provide post-construction legal assistance to negotiate and secure the corporate guaranties for outstanding improvements.
8. Provide legal assistance securing the pipeline route and the accompanying easements.
9. Provide legal assistance in negotiation of a potential Assessment Agreement with the County and Township Assessors. Additionally, if the project is developed under the County's rules, it will be necessary to negotiate a similar agreement with the County Board of Assessment Review. Even if developed under the City's rules, it may be desirable to negotiate such an agreement with the County Board of Assessment Review.

There also has been some internal discussion at ENA suggesting that this property might be sold. If ENA chooses such a strategy, PMRW would provide the legal support for the due diligence activities associated with the sale.

As always, please do not hesitate to contact me (312-368-4039), Mark Gershon (312-368-2127) or Karen Way (312-368-2152) if you have any questions.

Christopher J. Townsend Piper Marbury Rudnick & Wolfe 203 N. LaSalle Street Chicago, IL 60601 (312) 368-4039 (direct line) (312) 630-6300 (direct fax) christopher.townsend@piperrudnick.com

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

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Message 46 of 371

FW: Black Hills - GE Consent---This is not the final one but it is

Sender	sheila.tweed@enron.com
Recipients	['Johnson', 'Lee L (PS)', 'kay.mann@enron.com', 'GE AEP']
File	mann-k/off_balance_sheet_form_contracts/60.

----- Forwarded by Sheila Tweed/HOU/ECT on 04/02/2001 12:10 PM -----

danetta.beaushaw@ps.ge.com 03/28/2001 10:30 PM

To: stweed@enron.com cc: Subject: FW: Black Hills - GE Consent

Here's the document sent to Milbank a few minutes ago. ? I looked you up in Martindale to get your email address -- all my friends at Enron have so many different email addresses these days that I don't hazard a guess!? Saw that you are also an ex-Sonat attorney -- I thought your name was familiar! ? Hope this helps.? We had to push back a bit on pre-approval of future assignments, but hopefully it's a workable compromise.? Thanks for your efforts -- they registered big/helped. ? ? Let us know if we can do anything further to get this closed for you.? I'll be in the office in Houston the rest of the week.

g??? ????? GE Power Systems

Danetta L. Beaushaw Counsel

GE Aero Energy Products GE Aeroderivative and Package Services 2707 North Loop West Houston, Texas 77008

Phone:?(713) 803-0946? Dial*Comm: ? 8*354--0946 Fax:????? (713) 803-0368 Email: ? Danetta.Beaushaw@ps.ge.com

Webpage: www.gepower.com/aeroenergy

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-----Original Message-----

From: Beaushaw, Danetta (PS, GE AEP) Sent: Wednesday, March 28, 2001 10:19 PM To: 'LOliveira@milbank.com' Cc: Johnson, Lee L (PS, GE AEP) Subject: RE: Black Hills - GE Consent

Thanks, Laura -- this document was much easier to fast track. Here are our edits -- the one area where we have to retain some control is future assignments.? It's GE's policy to look at assignments on a case by case basis, but the language provided should allow you some leniency in getting quick approval for permitted assignments. ? ? Lee and Laura, I don't have the email addresses for Sheila and her team at Enron -- could one of you please forward this document to them?? Laura, let Lee and I know if we can do anything else to help you close your deal. ? ?

g??? ????? GE Power Systems

Danetta L. Beaushaw Counsel

GE Aero Energy Products GE Aeroderivative and Package Services 2707 North Loop West Houston, Texas 77008

Phone: (713) 803-0946? Dial*Comm: 8*354--0946 Fax: (713) 803-0368 Email: Danetta.Beaushaw@ps.ge.com

Webpage: www.gepower.com/aeroenergy

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-----Original Message-----

From: LOliveira@milbank.com [mailto:LOliveira@milbank.com] Sent: Wednesday, March 28, 2001 5:27 PM To: Beaushaw, Danetta (PS, GE AEP) Cc: tmoore@llgm.com; KWong@milbank.com Subject: Black Hills - GE Consent Importance: High

Dear Danetta,

Please find attached hereto a revised version of the GE Consent that has been streamlined in accordance with your comments.

Regards,

Laura Oliveira Milbank, Tweed, Hadley & McCloy LLP Los Angeles Tel. 213-892.4464 Fax 213-892.4764

<<Black Hills - GE Consent.DOC>>

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- Black Hills - GE Consent2.DOC

Message 47 of 371

Wire transfer request

Sender	kathleen.carnahan@enron.com
Recipients	['julie.garcia@enron.com', 'kay.mann@enron.com', 'greg.krause@enron.com']
File	mann-k/notes_inbox/347.

Julie,

Please request the following wire transfer to be made as soon as possible (next week):

Union Planters Bank 2800 NW 7th Street Miami, Florida 33125

Routing/ABA Number: 084000084 Account Number: 6229600556

AMOUNT: \$7,500.00

The name on the account is: Quantum Results, Inc. (we have previously paid Quantum some \$ so we should not have to set them up as a new vendor)

Specs on Quantum are:

Quantum Results, Inc.. 1250 S.W. 27th Avenue, Suite 404 Miami, Florida 33135

Attention: Albert Lorenzo

Thanks, and let me know if you have any questions.

Kathleen Carnahan Enron North America Corp. 1400 Smith Street, EB 3146d Houston, TX 77002 Phone - (713) 345-3386
Fax - (713) 646-3037

Message 48 of 371

Signature Pages for the PDA and SPA attached

Sender	aroffwarg@bracepatt.com
Recipients	['shase@aesc.com', 'aroffwarg@bracepatt.com', 'prollin@aesc.com']
File	mann-k/discussion_threads/3888.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- spa.pdf - pda.pdf

Message 49 of 371

Signature Pages for the Assignment of Interests attached

Sender	aroffwarg@bracepatt.com
Recipients	['shase@aesc.com', 'aroffwarg@bracepatt.com', 'prollin@aesc.com']
File	mann-k/all_documents/5489.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- #1287349 v1 - ASSIGNMENT OF INTERESTS.pdf

Message 50 of 371

Revised SPA Signature Page

Sender	aroffwarg@bracepatt.com
Recipients	['shase@aesc.com', 'aroffwarg@bracepatt.com', 'prollin@aesc.com']
File	mann-k/notes_inbox/596.

Please disregard the page sent earlier today. Thanks.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
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- spa.pdf

Message 51 of 371

Executed Documents Attached

Sender	aroffwarg@bracepatt.com
Recipients	['chris.booth@enron.com', 'cthompson@bracepatt.com', 'ben.f.jacoby@enron.com', 'szisman@ect.enron.com']
File	mann-k/haywood/8.

Attached are the following 2 executed documents:

1. 3rd Amendment to the PDA; and 2. 2nd Amendment to the SPA.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- Amend-SPA-PDA.pdf

Message 52 of 371

Re: ABB Transformer Purchase and Sale Agreement

Sender	thomp@andrews-kurth.com
Recipients	['kay.mann@enron.com']
File	mann-k/discussion_threads/1125.

Yes

Peter J. Thompson Andrews & Kurth LLP 1701 Pennsylvania Avenue, N.W. Suite 300 Washington, D.C. 20007 Direct:
(202) 662-2780 Fax: (202) 662-2739

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(202) 662-2780 Fax (202) 662-2739 pthompson@andrews-kurth.com

<Kay.Mann@enron.com> 10/25/00 06:41PM >>>

Peter,

Thanks for the update. By the way, is the new version in Word?

Kay

Message 53 of 371

Revised Documents

Sender aroffwarg@bracepatt.com

Recipients ['shase@aesc.com', 'aroffwarg@bracepatt.com', 'prollin@aesc.com']

File mann-k/all_documents/5501.

Attached for your review are revised versions of the Amendments to the SPA and PDA and revisions to the Assignment of Interests. Please note that these comments are being distributed to the whole group simultaneously and are subject to change. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- redpda.doc - redspa.doc - redaoi.doc

Message 54 of 371

AES/Haywood Site--Amendments to PDA and SPA

Sender aroffwarg@bracepatt.com

Recipients ['chris.booth@enron.com', 'ben.jacoby@enron.com', 'kay.mann@enron.com', 'mbarr@hunton.com']

File mann-k/haywood/2.

Michael,

Attached are blacklined versions of the above-referenced agreements including our comments to the same and clean versions of the documents for your convenience. Please feel free to call me with your questions and comments regarding the agreements at your convenience. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- RED - AMENDMENT NO 2 TO PDA_1.rtf - RED - AMEND NO 1 TO SPA_1.DOC - AMEND NO 2 TO PDA_1.doc - AMEND NO 1 TO SPA_1.doc

Message 55 of 371

AES/Haywood Site--New SPA and PDA Amendments

Sender	aroffwarg@bracepatt.com
Recipients	[cthompson@bracepatt.com], 'prollin@aesc.com', 'mbarr@hunton.com', 'shase@aesc.com']
File	mann-k/all_documents/5429.

Michael,

Attached please find a new Amendments to the Securities Purchase Agreement and the Project Development Agreement. In order to expedite the review process, I am simultaneously sending copies of these documents to ENA for their final approval; therefore, they remain subject to further changes if necessary.

Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- #1283533 v4 - AMENDMENT NO 3 TO PDA.doc - #1283523 v7 - AMENDMENT NO 2 TO SPA.doc

Message 56 of 371

AES/Haywood Site--Revised SPA Amendment

Sender	aroffwarg@bracepatt.com
Recipients	['prollin@aesc.com', 'szisman@ect.enron.com', 'mbarr@hunton.com', 'shase@aesc.com']
File	mann-k/discussion_threads/3672.

Michael,

Attached please find a revised Amendment No. 1 to the Securities Purchase Agreement reflecting the new business terms. This revised amendment should supercede the version I distributed on Friday. In order to expedite the review process, I am simultaneously sending a copy of this document to ENA for their final approval; therefore, it remains subject to further changes if necessary.

Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- AMENDMENT NO 1 TO SPA.doc

Message 57 of 371

Re: Greystone/Haywood - Amendments to SPA and PDA

Sender	ben.jacoby@enron.com
Recipients	['szisman@ect.enron.com', 'kay.mann@enron.com', 'aroffwarg@bracepatt.com', 'Kay.Mann@enron.com']
File	mann-k/notes_inbox/639.

Looks fine to me. I guess all we need is the form of promissory note with AES Corp. Thanks,

Ben

"Aaron Roffwarg" <aroffwarg@bracepatt.com> on 05/03/2001 01:06:57 PM To: <Ben.F.Jacoby@enron.com> cc: <szisman@ect.enron.com>, <Kay.Mann@enron.com> Subject: Greystone/Haywood - Amendments to SPA and PDA

Ben,

Pursuant to your request, attached are the revised Amendments to the PDA and the SPA. Please feel free to call me with additional questions and comments. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002 (713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- Red Am2 to SPA.doc - Red Am 3 TO PDA.doc

Message 58 of 371

AES/Haywood Site--New SPA and PDA Amendments

Sender	aroffwarg@bracepatt.com
Recipients	['alouison@hunton.com', 'aroffwarg@bracepatt.com', 'prollin@aesc.com', 'shase@aesc.com']
File	mann-k/discussion_threads/3866.

Audrey,

Attached please find new Amendments to the Securities Purchase Agreement and the Project Development Agreement which extend the May 9, 2001 date in each of the agreements to May 11, 2001. In order to expedite the review process, I am simultaneously sending copies of these documents to ENA for their final approval; therefore, they remain subject to further changes if necessary. Please call me with comments at your earliest convenience.

Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- #1287078 v2 - AM NO.3 TO PDA.doc - #1287074 v2 - AM NO.2 TO SPA.doc

Message 59 of 371

List of Missing Items

Sender	robtaylor@akllp.com
Recipients	['lisa.bills@enron.com', 'markd@nepco.com', 'roseann.engeldorf@enron.com', 'sheila.tweed@enron.com']
File	mann-k/discussion_threads/1751.

I am in receipt of your e-mails and faxes relating to the various Purchase Orders destined for the TurboPark Structure. Attached is a list of items that appear to be missing from your correspondence. I understand that you were unable to meet Friday's courier deadline and that certain of these items may be included in the courier package that you send out on Monday. Please confirm that the items referenced on the list will be so included. Only the missing items should also be sent to:

Karl Wiemer (tel: 212-530-5209) Milbank, Tweed, Hadley & McCloy LLP 1 Chase Manhattan Plaza New York, NY 10005

Please do not hesitate to call me if you have any questions regarding the foregoing.

Regards,

Rob Taylor Andrews & Kurth L.L.P. 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273 e-mail: robtaylor@andrews-kurth.com

This e-mail is privileged and confidential and is intended only for the recipient(s) named above. If you are not the intended recipient, please (i) do not read, copy, use or disclose the contents hereof to others (any of the foregoing being strictly prohibited), (ii) notify the sender immediately of your receipt hereof, and (iii) delete this e-mail and all copies of it.

<<List of Missing Items.DOC>> - List of Missing Items.DOC

Message 60 of 371

Re: AES/Haywood Site--SPA Amendment

Sender	ben.jacoby@enron.com
Recipients	['chris.booth@enron.com', 'stuart.zisman@enron.com', 'kay.mann@enron.com', 'aroffwarg@bracepatt.com']
File	mann-k/all_documents/5241.

Aaron:

Please check with Stuart / Kay on this. We need to send it out as soon as possible. Thanks,

Ben

"Aaron Roffwarg" <aroffwarg@bracepatt.com> on 04/27/2001 04:54:12 PM To: <Ben.Jacoby@enron.com>, <Chris.Booth@enron.com>, <Kay.Mann@enron.com>, <Stuart.Zisman@enron.com> cc: Subject: AES/Haywood

Site--SPA Amendment

Per my discussions with Ben and Stuart, attached is a new redline of the SPA Amendment reflecting the revised business terms. Please call me with comments. Please note that this has not been sent to AES or its attorney yet. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- Red-AMENDMENT NO 1 TO SPA.doc

Message 61 of 371

ABB Transformer Purchase and Sale Agreement

Sender	thomp@andrews-kurth.com
Recipients	['pipip@andrews-kurth.com', 'kay.mann@enron.com']
File	mann-k/all_documents/1608.

My prior e-mail was undeliverable. Here is the message I had sent earlier this evening: I hope to be e-mailing to you shortly a clean copy of the ABB Transformer Purchase and Sale Agreement, as well as a blackline showing the changes made from the WestdeutscheLB Agreement dated July 14, 2000. We have run into some formatting problems, which we believe are due to problems of the system being able to read some of the formatting codes in the original WestdeutscheLB Agreement that we received via e-mail. I hope to have these remedied shortly.

Peter J. Thompson Andrews & Kurth LLP 1701 Pennsylvania Avenue, N.W. Suite 300 Washington, D.C. 20007 Direct:
(202) 662-2780 Fax: (202) 662-2739

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(202) 662-2780 Fax (202) 662-2739 pthompson@andrews-kurth.com

Message 62 of 371

Closing Documents

Sender	aroffwarg@bracepatt.com
Recipients	['shase@aesc.com', 'aroffwarg@bracepatt.com', 'prollin@aesc.com']
File	mann-k/all_documents/5531.

In connection with tomorrow's closing, attached for your review are revised versions of the Amendments to the SPA and PDA, revisions to the Assignment of Interests, and "Date Down" Certificates for the Purchaser and the Seller. Please note that these comments are being distributed to the whole group simultaneously and are subject to change. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- #1288444 v1 - BUYER REPRESENTATION CERTIFICATE.doc - #1288432 v1 - SELLER REPRESENTATIONS CERTIFICATE.doc - #1283533 v7 - AMENDMENT NO 4 TO PDA.doc - #1283523 v10 - AMENDMENT NO 3 TO SPA.doc - #1287349 v3 - ASSIGNMENT OF INTERESTS.doc

Message 63 of 371

Re: AES/Haywood Site--SPA Amendment

Sender	ben.jacoby@enron.com
Recipients	[chris.booth@enron.com', 'stuart.zisman@enron.com', 'kay.mann@enron.com', 'aroffwarg@bracepatt.com']
File	mann-k/haywood/3.

Looks OK to me, but we only retain our right to the milestone payment to the extent the milestone is achieved on or before Aug. 1, 2001.

"Aaron Roffwarg" <aroffwarg@bracepatt.com> on 04/27/2001 04:54:12 PM To: <Ben.Jacoby@enron.com>, <Chris.Booth@enron.com>, <Kay.Mann@enron.com>, <Stuart.Zisman@enron.com> cc: Subject: AES/Haywood Site--SPA Amendment

Per my discussions with Ben and Stuart, attached is a new redline of the SPA Amendment reflecting the revised business terms. Please call me with comments. Please note that this has not been sent to AES or its attorney yet. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002 (713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- Red-AMENDMENT NO 1 TO SPA.doc

Message 64 of 371

Re: AES/Haywood Site--Revised SPA Amendment

Sender	shase@aesc.com
Recipients	[aroffwarg@bracepatt.com', 'prollin@aesc.com', 'szisman@ect.enron.com', 'mbarr@hunton.com']
File	mann-k/discussion_threads/3688.

aroffwarg@bracepatt.com writes:

Michael,

Ben Jacoby and I are still discussing the fundamental business terms reflected in this draft. Speaking for AES, we do not plan to execute as is. We expect to speak again tonight.

Steve Hase

Attached please find a revised Amendment No. 1 to the Securities Purchase Agreement reflecting the new business terms. This revised amendment should supercede the version I distributed on Friday. In order to expedite the review process, I am simultaneously sending a copy of this document to ENA for their final approval; therefore, it remains subject to further changes if necessary. Best regards. Aaron P. Roffwarg
Bracewell & Patterson, LLP
South Tower Pennzoil Place
711 Louisiana St.
Houston, Texas 77002 (713) 221-1117 (Ph) (713) 221-2184 (Fax)
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Message 65 of 371

RE: Pegasus/Enron Escrow Agreement

Sender	kay.mann@enron.com
Recipients	['Edward' <edward.morelli@citi.com>, 'Morelli', 'Kay.Mann@enron.com', 'estelle.a.lawrence@citi.com']
File	mann-k/_sent_mail/605.

Is this the right account for Pegasus to send the money to?

Thanks,

Kay

"Lawrence, Estelle A" <estelle.a.lawrence@citi.com> on 04/20/2001 12:16:04 PM To: ""Stephen.Thome@enron.com"" <Stephen.Thome@enron.com> cc: Kay.Mann@enron.com, "Morelli, Edward" <edward.morelli@citi.com>

Subject: RE: Pegasus/Enron Escrow Agreement

Thanks. It worked. Carolyn let me know that y'all would like to fund by this Wednesday. I expect to have comments back to her by early Monday. A cursory glance through the blackline faxed to me shows that outside counsel will most likely not be necessary.

Until later,

Estelle Lawrence Citibank Agency & Trust 111 Wall Street, 14/3 New York, NY 10005 T: 212.657.2076 F: 212.657.3862

-----Original Message-----

From: Stephen.Thome@enron.com [mailto:Stephen.Thome@enron.com] Sent: Friday, April 20, 2001 1:11 PM To: Lawrence, Estelle A Cc: Kay.Mann@enron.com Subject: Pegasus/Enron Escrow Agreement

Please try opening these. They are the same document in different text formats. At a minimum the .txt format should be compatible with your software

(See attached file: Escrow Agreement Enron Salmon LLC.DOC)(See attached file: Escrow Agreement Enron Salmon LLC.txt)

Should you have any problems, please call me at

713-853-7639 (o) 503-539-2340 (c)

Once you have had a chance to read them, I would appreciate a call. I need a sense of when this account can be established.

Thanks,

Steve Thome

Message 66 of 371

Re: Fountain Valley/ABB Facility Agreement

Sender	kay.mann@enron.com
Recipients	[alan.larsen@enron.com', 'don.hammond@enron.com', 'jeff.slaughter@enron.com', 'pthompson@akllp.com']
File	mann-k/sent/2314.

So long as the equipment is held by E-Next, Jody Pierce needs to get the invoices, although copies can be sent elsewhere.

Kay

Alan Larsen@ECT 01/09/2001 06:16 PM To: pthompson@akllp.com cc: Don Hammond/PDX/ECT@ECT, Jeff G Slaughter/PDX/ECT@ECT, Mark Mullen/PDX/ECT@ECT, Kay Mann/Corp/Enron@Enron

Subject: Re: Fountain Valley/ABB Facility Agreement

Here is the FVP-specific info for the ABB breakout contract. ----- Forwarded by Alan Larsen/PDX/ECT on 01/09/2001 04:04 PM -----

Don Hammond

01/09/2001 05:54:27 PM

To: Alan Larsen/PDX/ECT@ECT cc: Jeff G Slaughter/PDX/ECT@ECT, Mark Mullen/PDX/ECT@ECT, Bill Williams/PDX/ECT@ECT

Subject: Re: Fountain Valley/ABB Facility Agreement

Attached is an edited file for the ABB/Fountain Valley agreement. I have removed and made revisions to several sections to make it specific to the 3 units for Fountain Valley. Specific revisions include:

Exhibit B1 - Page 23, revise quantity from 6 to 3 - Pages 43 through 86, delete pages specific to other designs

As noted in the forwarded e-mail, the contact information in Sections 25.1 and 25.3 needs to be revised to replace Purchaser -

GE Packaged Power, Inc. 2707 North Loop West Houston, Texas 77008 Attn: Lee Johnson Fax: 713-869-8365 David Davis 16415 Jacinto Port Blvd. Houston, Texas 77015 Fax: 281-452-1585

Question in Section 6.7.2 on Address for invoices - Is NEPCO the intended location for invoices?

Message 67 of 371

RE: FW: ILA extension

Sender	reagan.roschach@enron.com
Recipients	['kay.mann@enron.com']
File	mann-k/discussion_threads/4482.

Marvin has not made it into the office yet. You may want to call David Hunt. I'll let you know when I hear from Marvin.

I will be out of the office this afternoon. Is there anything you know of other than the emails from yesterday that I owe you or can help you with?

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Wednesday, May 30, 2001 8:39 AM To: Rorschach, Reagan Subject: Re: FW: ILA extension

I don't believe I expected much from them. Now Clarksdale....

Who signs for MDEA? I can't remember the fellow's name.

Kay

From: Reagan Rorschach/ENRON@enronXgate on 05/30/2001 08:34 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: FW: ILA extension

Yazoo City weighs in.....all is well.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: PUBLIC SERVICE COMMISSION OF YAZOO CITY <yazoopsc@dixie-net.com>@ENRON
[mailto:IMCEANOTES-PUBLIC+20SERVICE+20COMMISSION+20OF+20YAZOO+20CITY+20+3Cyazo
opsc+40dixie-net+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, May 30, 2001 8:49 AM To: Rorschach,
Reagan Subject: ILA extension

Reagan,

I talked to Bob last night and went over the draft letter. He is in agreement with the contents. Please proceed with the execution of the letter and fax to me at 662-751-1141. I will run down the Chairman of PSC and MDEA for signatures.

Jimmy

Message 68 of 371

AES/Haywood Site--Draft Closing Documents

Sender	aroffwarg@bracepatt.com
Recipients	['chris.booth@enron.com', 'cthompson@bracepatt.com', 'ben.f.jacoby@enron.com', 'szisman@ect.enron.com']
File	mann-k/haywood/6.

Attached for your review are the following documents

1. Amendment Number 3 to the Securities Purchase Agreement; 2. Amendment Number 4 to the Project Development Agreement; 3. Amendment Number 1 to the Guaranty; and 4. The Assignment of Interests (in preparation for Friday's closing).

As you will see the new SPA calls for Seller's Wiring Instructions to be attached as Schedule 2.5. Please let me know where I can get that information. Also, I spoke with AES' attorney about the Guaranty issue but she had to check with AES and I have not heard back from her.

Please call me with your questions and comments at your earliest convenience. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- redspa.doc - redpda.doc - #1287349 v1 - ASSIGNMENT OF INTERESTS.doc - #1287275 v1 - AM 1 TO
GUARANTY.doc

Message 69 of 371

Tex-Mex docs

Sender	kay.mann@enron.com
Recipients	['carlos.sole@enron.com']
File	mann-k/sent/3379.

You may have these for Tex Mex. John expects to use something similiar on the coal plant, but obviously that is up to you.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 04/03/2001 07:51 AM -----

BOB CARTER@ECT 03/23/2001 03:24 PM To: John Moore/Corp/Enron@Enron, Kay Mann/Corp/Enron@Enron cc:

Subject: Tex-Mex docs

Per John's request, attached are the electronic versions of the participation agreement and the project development agreement for the Tex Mex project.

----- Forwarded by Bob Carter/HOU/ECT on 03/23/2001 03:21 PM -----

"Aaron Roffwarg" <aroffwarg@bracepatt.com> 03/23/2001 02:20 PM

To: <bob.carter@enron.com> cc: Subject: Tex-Mex docs

Documents per your request. See you tonight. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002 (713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- NEWPARTI.doc - PROJECTD.doc

Message 70 of 371

RE: My comments to David Layman's letter

Sender	laymand@gtlaw.com
Recipients	['greg.krause@enron.com', 'kay.mann@enron.com', 'chrisboehler@akllp.com']
File	mann-k/discussion_threads/4920.

Me too.

David M. Layman Greenberg Traurig, P.A. 777 South Flagler Drive, Suite 300E West Palm Beach, Florida 33401 Office: 561-650-7990 Fax: 561-655-6222 Cell: 561-714-3684 Home: 561-793-1317 E-Mail: laymand@gtlaw.com

-----Original Message-----

From: Boehler, Chris [mailto:chrisboehler@akllp.com] Sent: Thursday, June 07, 2001 11:34 AM To: Greg.Krause@enron.com; Kay.Mann@enron.com; laymand@gtlaw.com; Inoff, Darren; Ann.Elizabeth.White@enron.com Subject: RE: My comments to David Layman's letter

We should set up a call to discuss the comments. I am available at any time today or tomorrow. Thanks, Chris

-----Original Message-----

From: Greg.Krause@enron.com [mailto:Greg.Krause@enron.com] Sent: Wednesday, June 06, 2001 11:09 PM To: Boehler, Chris; Kay.Mann@enron.com; laymand@gtlaw.com; Inoff, Darren; Ann.Elizabeth.White@enron.com Subject: My comments to David Layman's letter

please see attached

(See attached file: Midway Laymans letter re POA docs.DOC)

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To reply to our email administrator directly, please send an email to postmaster@gtlaw.com.

Message 71 of 371

AES/Haywood Site- SPA, PDA and Guaranty Amendments	
Sender	aroffwarg@bracepatt.com
Recipients	['alouison@hunton.com', 'cthompson@bracepatt.com', 'prollin@aesc.com', 'shase@aesc.com']
File	mann-k/haywood/7.

Audrey,

Attached for your review are drafts of the following documents

1. Amendment Number 3 to the Securities Purchase Agreement compared against the version circulated on Monday; 2. Amendment Number 4 to the Project Development Agreement compared against the version circulated on Monday; 3. Amendment Number 1 to the Guaranty; and 4. The Assignment of Interests (in preparation for Friday's closing).

In order to expedite the review process, I am simultaneously sending copies of these documents to ENA for their final approval; therefore, they remain subject to further changes if necessary.

Regarding Amendment 2 to the SPA and Amendment 3 to the PDA, ENA will be faxing executed copies of the documents directly to AES this evening.

Please call me with comments at your earliest convenience.

Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002 (713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- #1287275 v1 - AM 1 TO GUARANTY_1.doc - #1287349 v1 - ASSIGNMENT OF INTERESTS_1.doc - redspa_1.doc - redpda_1.doc

Message 72 of 371

Revised AOI and Closing Agenda for Friday 5/11/01

Sender	aroffwarg@bracepatt.com
Recipients	['shase@aesc.com', 'aroffwarg@bracepatt.com', 'prollin@aesc.com']
File	mann-k/haywood/17.

Attached is the revised AOI reflecting comments from AES' counsel.

Closing Agenda for Friday 5/11/2001

-10am --wire in the amount of \$1mm to be initiated by AES -Upon Wire Confirmation--ENA delivers to AES the following executed docs via Fax: 1. Am. 4 to PDA; 2. Am.2 to SPA; 3. Assignment of Interest in Haywood Power I, LLC; and 4. Representations Certificate

-Upon Wire Confirmation--AESdelivers to ENA the following executed docs via Fax: 1. Am. 4 to PDA; 2. Am. 2 to SPA; 3. Assignment of Interest in Haywood Power I, LLC; 4. Representations Certificate; 5. Commitment Letter; and 6. Waiver of Termination Option

--Both Parties will overnight 1 copy of each agreement/letter to the other's counsel for Saturday delivery. Additionally, in the same package ENA will include the LLC Binder for Haywood Power I, LLC and appropriate termination letters of the company's officers.

Please feel free to call me with questions or comments. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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- #1287349 v4 - ASSIGNMENT OF INTERESTS.doc

Message 73 of 371

Re: Conference Call

Sender	kay.mann@enron.com
Recipients	['carlos.sole@enron.com']
File	mann-k/all_documents/4670.

It isn't necessary unless you want to.

From: Carlos Sole on 04/11/2001 02:48 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: Conference Call

Do you want me involved?

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

Kay Mann 04/11/2001 02:45 PM

To: "Campbell, Carolyn" <CCampbell@KSLAW.com> cc: "carlos.sole@enron.com" <carlos.sole@enron.com>, "Keffer, John" <JKeffer@KSLAW.com> stephen thome Subject: Re: Conference Call

Thanks for writing - I deleted your message and then hopped on another conference call. How about 330?

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/11/2001 02:38:35 PM To: "kay.mann@enron.com" <kay.mann@enron.com>, "carlos.sole@enron.com" <carlos.sole@enron.com> cc: "Keffer, John" <JKeffer@KSLAW.com>

Subject: Conference Call

Kay:

Per my voice mail, Greg Lang wanted to schedule a call for 3:00 central time today to raise something that the lenders brought up. Please advise if you are available, or if not, what time would be convenient later today. Greg says it should be a 15 minute call. Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

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Message 74 of 371

Re: Astros Diamond Box Tickets

Sender	kay.mann@enron.com
Recipients	['cthompson@bracepatt.com']
File	mann-k/sent/3733.

Thanks for the offer (and the call) but I haven't been able to secure a sitter for Michael.

My schedule should be getting better (famous last words), and I hope we can get together soon. I would like to introduce you to Carlos Sole, if you haven't met him yet.

Thanks again,

Kay

"Clark Thompson" <cthompson@bracepatt.com> on 04/20/2001 12:47:05 PM To: <alan.aronowitz@enron.com>, <Barbara.N.Gray@enron.com>, <carlos.sole@enron.com>, <dan.lyons@enron.com>, <jordan.mintz@enron.com>, <kay.mann@enron.com>, <lisa.mellencamp@enron.com>, <Sheila.Tweed@enron.com>, <steve.van.hooser@enron.com>, <Stuart.Zisman@enron.com> cc:

Subject: Astros Diamond Box Tickets

I noticed this morning that the firm's Diamond Box seats for tonight's game against St. Louis had not been claimed and so claimed them. I apologize for the late notice, but if you would be interested in going tonight, I would be happy to make them available to you and your spouse, date, etc. I'm still trying to arrange my schedule to go, but wanted you to have the opportunity, even if I couldn't make it. Please call me or my secretary, Becky, at your earliest convenience to let me know if you would like to use these tickets.

cgt

Clark G. Thompson, Jr. Bracewell & Patterson, L.L.P. 711 Louisiana, Suite 2900 Houston, Texas 77002-2781 Phone: 713.221.1477 Fax: 713.221.2116 email: cthompson@bracepatt.com

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Message 75 of 371

FW: Incumbency certificate

Sender	kay.mann@enron.com
Recipients	['ben.jacoby@enron.com', 'kathleen.carnahan@enron.com']
File	mann-k/all_documents/2856.

Hi Kathleen,

Let's discuss this sometime this am.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 01/02/2001 08:28 AM -----

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 12/29/2000 03:33:18 PM To: "'kay.mann@enron.com'" <kay.mann@enron.com> cc: "'Fred.Mitro@enron.com'" <Fred.Mitro@enron.com>, "Keffer, John" <JKeffer@KSLAW.com>

Subject: FW: Incumbency certificate

Kay:

Per the prior e-mail, I am forwarding the InterGen draft of an ENA incumbency certificate for your reference. (Ben also received it directly from Lari Paradee).

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com>

-----Original Message-----

From: Paradee, Lari [mailto:Lparadee@INTERGEN.com] Sent: Friday, December 29, 2000 12:36 PM To: 'Ben.F.Jacoby@enron.com'; Campbell, Carolyn Subject: Incumbency certificate

Citibank has advised me that we need Enron to provide an incumbency certificate. I've attached a blank one for you to fill in the appropriate people. They need this as soon as possible. They also need us to insert wiring instructions into each of the Escrow agreements - I am in the process of inserting our instructions - please provide your wiring instructions as soon as possible.

<<Enron Certificate.doc>>

Thanks,

Lari Paradee InterGen North America Two Houston Center 909 Fannin, Suite 2222 Houston, Texas 77010 713-374-3928 phone 713-374-3927 fax lparadee@intergen.com

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Message 76 of 371

Re: Astros Diamond Box Tickets

Sender	kay.mann@enron.com
Recipients	['nmann@erac.com']
File	mann-k/_sent_mail/682.

3 nights out in a row would be a bit much for this ol girl. ----- Forwarded by Kay Mann/Corp/Enron on 04/20/2001 01:10 PM -----

Kay Mann 04/20/2001 12:55 PM To: "Clark Thompson" <cthompson@bracepatt.com> cc:

Subject: Re: Astros Diamond Box Tickets

Thanks for the offer (and the call) but I haven't been able to secure a sitter for Michael.

My schedule should be getting better (famous last words), and I hope we can get together soon. I would like to introduce you to Carlos Sole, if you haven't met him yet.

Thanks again,

Kay

"Clark Thompson" <cthompson@bracepatt.com> on 04/20/2001 12:47:05 PM To: <alan.aronowitz@enron.com>, <Barbara.N.Gray@enron.com>, <carlos.sole@enron.com>, <dan.lyons@enron.com>, <jordan.mintz@enron.com>, <kay.mann@enron.com>, <lisa.mellencamp@enron.com>, <Sheila.Tweed@enron.com>, <steve.van.hooser@enron.com>, <Stuart.Zisman@enron.com> cc:

Subject: Astros Diamond Box Tickets

I noticed this morning that the firm's Diamond Box seats for tonight's game against St. Louis had not been claimed and so claimed them. I apologize for the late notice, but if you would be interested in going tonight, I would be happy to make them available to you and your spouse, date, etc. I'm still trying to arrange my schedule to go, but wanted you to have the opportunity, even if I couldn't make it. Please call me or my secretary, Becky, at your earliest convenience to let me know if you would like to use these tickets.

cgt

Clark G. Thompson, Jr. Bracewell & Patterson, L.L.P. 711 Louisiana, Suite 2900 Houston, Texas 77002-2781 Phone: 713.221.1477 Fax: 713.221.2116 email: cthompson@bracepatt.com

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Message 77 of 371

RE: Pegasus - Closing Documents

Sender	ccampbell@kslaw.com
Recipients	['isabel.parker@freshfields.com', 'kay.mann@enron.com', 'nicholas.vandusen@freshfields.com']
File	mann-k/discussion_threads/4759.

Isabel:

ENA signed two originals of the Letter Agreement (as the Letter Agreement has only two parties). I kept one for ENA and provided the other to Greg Lang for PPL by letter dated May 2, 2001. I still do not have an original of PPL's signature, but Greg Lang did provide a fax copy. Is it necessary for the parties to sign additional copies for non-parties? I am checking with ENA on the GE documents. Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) <mailto:ccampbell@kslaw.com>
ccampbell@kslaw.com

-----Original Message-----

From: PARKER, Isabel [mailto:isabel.parker@freshfields.com] Sent: Tuesday, June 05, 2001 10:47 AM To: Carolyn Campbell (E-mail); Kay Mann (E-mail) Cc: VAN DUSEN, Nicholas Subject: Pegasus - Closing Documents

This e-mail is confidential and may well also be legally privileged. If you have received it in error, you are on notice of its status. Please notify us immediately by reply e-mail and then delete this message from your system. Please do not copy it or use it for any purposes, or disclose its contents to any other person: to do so could be a breach of confidence. Thank you for your co-operation. Please contact our IT Helpdesk on +44 (0) 20 7936 4000 Ext.2000 or email ITHelp@freshfields.com if you need assistance.

The lenders have informed us that they would also like to have at least one original of the GE Guaranty. Please let us know whether this will be possible. In addition, could you please let us know how many originals of the Letter Agreement were signed? The lenders also need an original of this document.

Thank you in advance Isabel

Isabel Parker T +1 212 277 4025 F +1 212 277 4001 E isabel.parker@freshfields.com 520 Madison Avenue 34th Floor New York, NY 10022 www.freshfields.com

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Message 78 of 371

New Power Project

Sender	kay.mann@enron.com
Recipients	['jeffrey.hodge@enron.com']
File	mann-k/all_documents/4252.

FYI. I don't know what I think about this email. I will say that I've heard good things about Clark, but haven't worked with him. Also, there is a big difference between a transmission project and a power project, since transmission assets are treated differently from an accounting standpoint. Obviously, I don't consider the question of who is handling this (internally or externally) to be resolved, pending further discussions.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 03/24/2001 03:12 PM -----

"Clark Thompson" <cthompson@bracepatt.com> on 03/24/2001 12:03:20 PM To: <Kay.Mann@enron.com> cc:

Subject: New Power Project

Understand from John Moore that there is a new solid fuel power project being discussed for the Brownsville area, and that you will be involved. I would really like to talk to you about this at your convenience. As you may know from John, we have been very involved with the Tex Mex transmission line project that we have done with BPUB and that has just received board approval. We have a very good relationship, I believe, with BPUB, the Port of Brownsville and their respective counsel from that transaction. John also seems to believe the deals with BPUB and the Port will be structured

along the same lines as the transmission project, and as the draftsmen for not only the docs with BPUB, but also the Port, we are also obviously very familiar with these documents as well.

Could we possibly talk about this project at your convenience? We would really like to do a deal with you and your team and given our background on the first project, it would seem to make a lot of sense from your point of view as well. I would be happy to drop by to discuss staffing, timing, etc. whenever it would work best for you.

Many thanks - look forward to hearing from you.

cgt

Clark G. Thompson, Jr. Bracewell & Patterson, L.L.P. 711 Louisiana, Suite 2900 Houston, Texas 77002-2781 Phone: 713.221.1477 Fax: 713.221.2116 email: cthompson@bracepatt.com

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Message 79 of 371

Re: SPA: Illinois Project Entities

Sender	kay.mann@enron.com
Recipients	['lisa.mellencamp@enron.com']
File	mann-k/sent/2502.

Well, I hope this won't be too complicated. Did you hire Cory, and if so, what did you think?

Lisa Mellencamp@ECT 01/24/2001 05:40 PM To: Kay Mann/Corp/Enron@ENRON cc:

Subject: Re: SPA: Illinois Project Entities

do i see your hand raised?? thank you.

Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com

Kay Mann@ENRON 01/24/2001 05:27 PM

To: Lisa Mellencamp/HOU/ECT@ECT cc: Subject: SPA: Illinois Project Entities

I presume that you would just as soon continue to follow this?

Kay ----- Forwarded by Kay Mann/Corp/Enron on 01/24/2001 05:26 PM -----

Fred Mitro@ECT 01/24/2001 05:26 PM To: Kay Mann/Corp/Enron@Enron cc: Rusty Stevens/Corp/Enron@ENRON, Ben Jacoby/HOU/ECT@ECT

Subject: SPA: Illinois Project Entities

Kay:

As we discussed, I have been working with a counterparty interested in purchasing one or both of ENA's Illinois development project LLC's. The counterparty is listed below: PSEG Americas Development Company, L.L.C. 35 Waterview Blvd. Parsippany, NJ 94105

The key points of the proposed transaction are:

1. The transaction would be an outright purchase of 100% of the member interests in one or both of the following project entities:

Kendall New Century Development, L.L.C. Titan Land Development Company, L.L.C.

2. The purchase price of 100% of the member interests would be:

Kendall New Century Development, L.L.C.: \$3,000,000.00 Titan Land Development Company, L.L.C.: \$6,000,000.00

Lisa Mellancamp was the ENA attorney who handled the CA between ENA and PSEG before Christmas. At the end of November, Lisa engaged Corey Brown at Bracewell & Patterson to handle the preparation of a draft Securities Purchase Agreement in conjunction with our discussions with Coastal Power. Corey prepared a draft SPA based upon an option to purchase structure, but Coastal Power backed away from the transaction in early December.

I have received a letter from PSEG Power LLC indicating their interest in proceeding with a transaction in the near future. I will forward you a copy of this letter for your records. They have verbally indicated that the Purchase Price(s) of \$3 MM and \$6 MM respectively, are acceptable to them.

I believe that this is the appropriate time to bring you into the process and transfer things from Lisa to yourself. Please call me to discuss the SPA once you have reviewed the appropriate documents. I will be in Chicago tomorrow. I can be reached by cell at (713) 412-4612 or leave me a voicemail. I will be in the Houston office by noon on Friday.

Thanks, Fred

Message 80 of 371

Re: ORDER ACKNOWLEDGEMENT

Sender	kay.mann@enron.com
Recipients	[pfordack@hickoryfarms.com]
File	mann-k/sent/2378.

I ordered these for Christmas, and am totally aghast that these orders are just now being processed. What is going on? I am appalled that this wasn't handled weeks ago.

Kay Mann 713 973 6325

pfordack@HICKORYFARMS.COM on 01/12/2001 12:13:54 PM To: kay.mann@enron.com cc:

Subject: ORDER ACKNOWLEDGEMENT

YOUR ORDER NUMBER: T77846700000

Thank you for your recent Pfaelzer Brothers order. This is an acknowledgement of your order. If you placed your order from our website, and set up a password, you may check your order status by clicking here: <http://www.pfaelzerbrothers.com/> then click on Customer Service and then on Order Status.

Please note that your greeting and requested delivery date will not appear on this Order Acknowledgement.

If you have any questions, please contact our Customer Service Department by clicking here: <http://pfaelzerbrothers.com/email/pfaelzer.asp?> or by phone at 1-800-621-0202 during normal business hours. When sending us email, please include your full name, zip code, and order number. This will expedite the process.

0568705792 . 03104I

Page 1 Order Number: T7784670 Ship To: MIKE AND SALLI MCCALL 2707 NORWOOD ARLINGTON, TX 76013

1 060040 8 (6 OZ) PFAELZER FAMOUS FILET MIGNON 1 1/4" 84.95

Total \$: 84.95

Ship To: BOBBY AND LISA CLARKE 12804 SILVERCREEK AUSTIN, TX 78724

1 060040 8 (6 OZ) PFAELZER FAMOUS FILET MIGNON 1 1/4" 84.95

Total \$: 84.95

Order Recap: Total Product \$: 169.90 Net Product\$: 169.90

Shipping: 23.90 Sales Tax: 0.00 Grand Total: 193.80

Message 81 of 371

RE: Pegasus Closing Sets

Sender	ccampbell@kslaw.com
Recipients	['VAN DUSEN', 'kay.mann@enron.com', 'Lisa (LMO)', 'Nicholas; O'BRIEN']
File	mann-k/notes_inbox/142.

Kay:

I do not have originals of these documents and in fact was able to obtain copies of these documents only from Freshfields. I recall that that Freshfields coordinated directly with GE to obtain these documents. Do you happen to have the originals? If not, how do you feel about asking GE for the originals?

Also, per my earlier voice mail, we still need copies of the following documents to complete our closing volume for ENA:

Confidentiality Agreement Notice of Intent to Purchase Specified Option Property Assignment and Assumption Agreement Bill of Sale

If you prefer, we could prepare the closing volume omitting these documents altogether, or alternatively, listing (but not including copies) of these documents. Please advise of your preference.

Finally, can you please furnish the Notice of Intent to Purchase, Assignment and Assumption Agreement and Bill of Sale for the CA Energy Development transactions in order that I can forward these to George Kutzschback per his request. Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) <mailto:ccampbell@kslaw.com>
ccampbell@kslaw.com

-----Original Message-----

From: PARKER, Isabel [mailto:isabel.parker@freshfields.com] Sent: Tuesday, June 05, 2001 10:18 AM To: Carolyn Campbell (E-mail); Kay Mann (E-mail) Cc: VAN DUSEN, Nicholas; O'BRIEN, Lisa (LMO) Subject: Pegasus Closing Sets

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We are close to completing our closing sets but do not have originals of the GE Guarantee, legal opinion or acknowledgement of receipt of funds. We appreciate that it is logistically difficult to have GE re-execute documentation, but as the legal opinion and the receipt of funds are both addressed to the lenders, we ought really to have originals of these two documents. Could you please let me know where the originals of these documents were sent and whether it would be possible to have them re-directed to us or to have the documents re-executed? Thank you in advance Isabel

Isabel Parker T +1 212 277 4025 F +1 212 277 4001 E isabel.parker@freshfields.com 520 Madison Avenue 34th Floor New York, NY 10022 www.freshfields.com

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Message 82 of 371

FW: June 7 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'sharon.butcher@enron.com', 'clement.abrams@enron.com']
File	mann-k/discussion_threads/4901.

User iD: enronatd PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON

[mailto:IMCEANOTES-+22BNA+20Highlights+22+20+3Cbhighlig+40bna+2Ecom+3E+40ENRON @ENRON.com] Sent: Wednesday, June 06, 2001 11:07 PM To: BNA Highlights Subject: June 7 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Thursday, June 7, 2001

ISSN 1526-520X

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HIGHLIGHTS

SIXTH CIRCUIT AFFIRMS SUMMARY DISPOSITION OF UROKINASE CASE IN UNPUBLISHED OPINION The summary disposition of a Sherman Act Section 1 and Section 2 attack on an exclusive supply contract for a raw material used to produce urokinase, a broad category of thrombolytics used for treating clinical conditions caused by blood clots, is upheld in an unpublished opinion by the U.S. Court of Appeals for the Fourth Circuit ("Microbix Biosystems, Inc. v. BioWhittaker, Inc., "4th Cir., No. 00-2262, 6/4/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G7D9H5_

COURT ENJOINS TUMS COMMERCIAL, FINDS CLAIM FOR RIVAL PRODUCT TO BE LITERALLY TRUE The manufacturer of Tums(R) may need to take a more costly competing product as a result of a decision by the U.S. District Court for the Southern District of New York, which upholds a competitor's comparative advertising while enjoining a Tums commercial as literally false in violation of Lanham Act Section 43(a) ("SmithKline Beecham Consumer Healthcare, L.P. v. Johnson & Johnson-Merck Consumer Pharmaceuticals Co., "S.D.N.Y., No. 01 Civ. 2775 (DAB), 6/1/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G7D9K4_

STATE REGULATORS OK, WITH CONDITIONS, ON VERIZON BID TO SELL LONG-DISTANCE SERVICE Regulators in Pennsylvania June 6 told Verizon Pennsylvania they would support the phone company's planned application to the Federal Communications Commission seeking to provide long-distance services in the state, provided the company meets several conditions.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G7D9P9_

REGULATORY RECIPROCITY COULD OFFER SOLUTION TO COMPETITION IN CANADIAN BANKING SECTOR
OTTAWA--Permitting foreign banks to do business directly in Canada under the oversight of their home country regulators would solve Canada's current problem of maintaining sufficient competition in the retail banking sector, according to a study released on May 29 by the C.D. Howe Institute.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G7D9R1_

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Message 83 of 371

FW: June 4 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	[jim.armogida@enron.com] , [sharon.butcher@enron.com] , [clement.abrams@enron.com]
File	mann-k/all_documents/6394 .

User ID: enronatd PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON
[mailto:IMCEANOTES+22BNA+20Highlights+22+20+3Cbhighlig+40bna+2Ecom+3E+40ENRON @ENRON.com] Sent:
Sunday, June 03, 2001 11:14 PM To: BNA Highlights Subject: June 4 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Monday, June 4, 2001

ISSN 1526-520X

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HIGHLIGHTS

TRAVEL COMPANY WILL PAY CONSUMER REDRESS, MUST CEASE ENGAGING IN DECEPTIVE BEHAVIOR A California-based travel company must stop misrepresenting to consumers that they have won vacation packages and must pay \$20,000 into a consumer redress fund, according to a proposed consent judgment filed by the Federal Trade Commission in the U.S. District Court for the Central District of California ("FTC v. Holiday Plus Travel, LLC, "C.D. Cal., 5/29/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G3R5D8_

APPLE SETTLEMENT SURVIVES SCRUTINY BY CALIFORNIA COURT A settlement and an \$875,000 counsel fee award in consolidated class actions charging Apple Computer, Inc. with violating California law by withdrawing free technical support from customers is upheld by the California Court of Appeal, Sixth District ("Wershba v. Apple Computer,

Inc., "Cal. Ct. App., 6th Dist., No. H020625, 5/21/01; "Consumer Advocates v. Apple Computer, Inc., "Cal. Ct. App., 6th Dist., No. H020625, 5/21/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G3R5F5_

LAWYER'S WISCONSIN PRICE FIXING CLAIM WAS PROPERLY ENDED ON INJURY GROUNDS A lawyer cannot persuade the Wisconsin Court of Appeal to reinstate his allegations of a conspiracy to artificially inflate the price of thermal facsimile paper between February 1990 and March 1992 ("Derzon v. Appleton Papers, Inc., "Wis. Ct. App., No. 00-180800 - 1808, 5/22/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G3R5N1_

DTPA DEFENDANT, COUNSEL MUST PAY COUNSEL FEES FOR BREACH OF DUTY OF CANDOR A trial court committed legal error when it dismissed with prejudice a complaint filed under the state's Deceptive and Unfair Trade Practices Act, and the defendant and its counsel must pay the plaintiffs' counsel fees at trial and on appeal for misleading the courts about the contents of Florida procedural rules, according to a decision by the Florida District Court of Appeal, Fourth District ("Forum v. Boca Burger, Inc., "Fla. Dist. Ct. App., 4th Dist., No. 4D00-1255, 5/16/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4G3R5P9_

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Message 84 of 371

RE: Pegasus - Closing Documents

Sender	isabel.parker@freshfields.com
Recipients	['ccampbell@kslaw.com', 'kay.mann@enron.com', 'nicholas.vandusen@freshfields.com']
File	mann-k/notes_inbox/137 .

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The lenders have specifically asked for an original of the Letter Agreement. If it is really problematic to get another 2 copies signed, I can ask them again if they will accept a copy. I appreciate that there are only 2 parties to the document, but the lenders' reasoning is that the Letter Agreement is a key underlying document and as such, they would expect to have an original. Also, our original arrangement was that we would sign 6 originals of each relevant document so that all parties could have originals.

I know what a pain it is to get documents re-executed and I apologize that this request has come so late in the day.

Regards Isabel

-----Original Message-----

From: Campbell, Carolyn [mailto:CCampbell@KSLAW.com] Sent: Tuesday, June 05, 2001 12:04 PM To: 'PARKER, Isabel' Cc: VAN DUSEN, Nicholas; Kay Mann (E-mail) Subject: RE: Pegasus - Closing Documents

Isabel:

ENA signed two originals of the Letter Agreement (as the Letter Agreement has only two parties). I kept one for ENA and provided the other to Greg Lang for PPL by letter dated May 2, 2001. I still do not have an original of PPL's signature, but Greg Lang did provide a fax copy. Is it necessary for the parties to sign additional copies for non-parties? I am checking with ENA on the GE documents. Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) <mailto:ccampbell@kslaw.com>
ccampbell@kslaw.com

-----Original Message-----

From: PARKER, Isabel [mailto:isabel.parker@freshfields.com] Sent: Tuesday, June 05, 2001 10:47 AM To: Carolyn Campbell (E-mail); Kay Mann (E-mail) Cc: VAN DUSEN, Nicholas Subject: Pegasus - Closing Documents

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The lenders have informed us that they would also like to have at least one original of the GE Guaranty. Please let us know whether this will be possible. In addition, could you please let us know how many originals of the Letter Agreement were signed? The lenders also need an original of this document.

Thank you in advance Isabel

Isabel Parker T +1 212 277 4025 F +1 212 277 4001 E isabel.parker@freshfields.com 520 Madison Avenue 34th Floor New York, NY 10022 www.freshfields.com

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Message 85 of 371

Re: Electrobolt EPC Contract

Sender	kay.mann@enron.com
Recipients	[' suzanne.adams@enron.com ']
File	mann-k/sent/1147.

Why don't you try feeding her again at night? Maybe she will sleep better. I feed Jack twice a day, and he is still skinny as a stick. Isn't she on the thin side anyway?

All dogs go through adjustments. She may be trying to find out who is the boss. There are lots of little tricks I can tell you about to show her you are the boss. I'll try to make you a list while you are gone. CRATE TRAIN HER!! It is one of the best things you will ever do for yourself. She may fuss at first, but she will love it. Crating her will calm her down. I believe the Pointer Rescue people agree.

ckm

From: Suzanne Adams@ECT on 10/20/2000 12:15 PM To: Kay Mann/Corp/Enron@ENRON cc:

Subject: Re: Electrobolt EPC Contract

I think I'll try the treat approach and see if that helps. I scold her and then tell her I love her and pet and kiss her and she pops right back. She's not a dumb dog, just a stubborn dog!

I'm not feeling very good again today, probably lack of sleep! She was looking pretty drowsy herself this morning too, she didn't get her 10 hours of sleep. I bet the neighbors are just loving us. Oh well!

I'll print this out now. How many of those pigs ears can I give her at night. We feed her in the morning and she's hungry again at night. Although dogs are pigs and always want more. Help!

Kay Mann@ENRON 10/20/2000 12:07 PM

To: Suzanne Adams/HOU/ECT@ECT cc: Subject: Electrobolt EPC Contract

If I had a printer, I wouldn't ask you to print this, but since I don't...

Thanks,

Kay

PS Don't worry too much about Ruthie. You'll get her figured out. ----- Forwarded by Kay Mann/Corp/Enron on 10/20/2000 12:05 PM ----- From: Roseann Engeldorf on 10/20/2000 11:12 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Electrobolt EPC Contract

Per my voicemail.

Rose ----- Forwarded by Roseann Engeldorf/Corp/Enron on 10/20/2000 11:11 AM -----

"David Gohlke" <DGOHLKE@skadden.com> 10/19/2000 05:08 PM

To: glauco.palhoto@enron.com, jeff.westfahl@enron.com, john.g.rigby@enron.com, john.guidry@enron.com, john.novak@enron.com, john.r.ayres@enron.com, jose.anson@enron.com, kevin.joyce@enron.com, laine.a.powell@enron.com, lisa.alfaro@enron.com, luiz.watanabe@enron.com, mary.cilia@enron.com, mary.kimball@enron.com, Mike.Morrison@enron.com, patricia.scholz@enron.com, Peter.N.Anderson@enron.com, roderick.blackham@enron.com, roseann.engeldorf@enron.com, roshena.ham@enron.com, scott.dieball@enron.com, sergio.nomura@enron.com, stephen.gray@enron.com cc: "Brian Bradshaw" <BBRADSHA@skadden.com>, "Thomas Weil" <TWEIL@skadden.com> Subject: Electrobolt EPC Contract

ESA, EECC and Finance Teams,

Attached for your review is the Electrobolt EPC Contract (our doc # 39444.04), which incorporates the negotiated provisions of the Electrobolt MOU. To assist you in your review, I have also attached (1) a blackline of the Electrobolt EPC marked to show all changes from the RioGen EPC Contract distributed October 17, and (2) a blackline of the Electrobolt EPC marked to show all revisions to the EECC form EPC contract.

Please note that the comparison document, prepared by DeltaView, shows new text in blue double underscore, deleted text in red strikethrough, and moved text in green (double underscore at the new location, strikethrough from where moved).

Please call if you have questions/comments.

Regards, Dave Gohlke

David E. Gohlke Skadden, Arps, Slate, Meagher & Flom LLP 1600 Smith Street, Suite 4460 Houston, Texas 77002 direct (713) 655-5158 fax - main (713) 655-5181 dgohlke@skadden.com

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copy of any e-mail and any printout thereof.

Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request.

- 39444_4.doc - 39822_1.doc - 39820_1.doc

Message 86 of 371

Re: Preliminary Engineering Release Agmt. - final issue	
Sender	mary.cilia@enron.com
Recipients	['kay.mann@enron.com']
File	mann-k/all_documents/1264.

----- Forwarded by Mary Cilia/NA/Enron on 10/04/2000 08:38 AM -----

"David Gohlke" <DGOHLKE@skadden.com> 10/03/2000 08:12 PM

To: Mary.Cilia@enron.com cc: glauco.palhoto@enron.com Subject: Re: Preliminary Engineering Release Agmt. - final issue

Mary,

I've attached the latest draft, which has not yet been sent to the other side, and which includes a provision not yet agreed by ESA or negotiated with EECC (Clause 1(c)). The schedule 1, which you care about, should reflect the changes you and I discussed with Jeff last week. Since this draft is not an agreed one, will you delete it after you review it, and if you are not ok with all the changes, let me know so I can include them when we finalize this tomorrow (Wed). I will include you on the final negotiated draft tomorrow when I (or Glauco) send it out for final approval.

Dave

<Mary.Cilia@enron.com> 10/03/00 03:53PM >>>

Dave -

Do we have the latest draft with the changes I submitted for Appendix 1? Can you please send it to me. Thanks.

Mary

"David Gohlke" To: john.g.rigby@enron.com, <DGOHLKE@skad john.guidry@enron.com, den.com> john.r.ayres@enron.com, mary.cilia@enron.com cc: john.novak@enron.com, "Brian 09/29/2000 Bradshaw" <BBRADSHA@skadden.com>, "Thomas 05:25 PM Weil" <TWEIL@skadden.com> Subject: Preliminary Engineering Release Agmt. - final issue

ESA and EECC teams,

This email is in response to John Rigby's fax of 28 Sep with comments to the Preliminary Engineering Release Agreement.

I am OK with all of John and Scott's proposed changes except the rider to replace paragraph 1(c), which deals with who has the risk/gatekeeper role on deciding whether an activity is "hard cost" or not. While I would prefer to keep a "Contractor shall not perform any "hard cost" activity" -type prohibition in the contract, I understand that since financing is really an Owner issue, and Owner wants off-balance sheet financing, making sure no "hard cost" activity is performed is really an Owner issue. Thus, I have taken their basic language/concept and modified it somewhat.

I have marked up EECC's proposed rider and attached the marked copy for your review. If acceptable to the owner team, I will forward it to EECC for their review/approval. Once we have agreement on this language, the Preliminary Eng Release Agmt should be done and ready for John Novak's review and approval and subsequent execution by ESA and EECC.

David E. Gohlke Skadden, Arps, Slate, Meagher & Flom LLP 1600 Smith Street, Suite 4460 Houston, Texas 77002 direct (713) 655-5158 fax - main (713) 655-5181 dgohlke@skadden.com

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Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request.
(See attached file: 39148_2.doc)

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Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request.
- 38012_9.doc

Message 87 of 371

Re: Greystone/Haywood - Extension of Dates

Sender	ben.jacoby@enron.com
Recipients	['chris.booth@enron.com', 'stuart.zisman@enron.com', 'kay.mann@enron.com', 'aroffwarg@bracepatt.com']
File	mann-k/all_documents/5370.

Aaron:

It is highly likely that AES would exercise their early purchase option in May. As such, I want to make sure we are thinking about the duties, obligations, and indemnities among the parties under the circumstance that AES owns the member interests in Haywood, and ENA is continuing its efforts to achieve the milestone of the interconnection agreement through August 1. I also want to make sure we have adequate indemnities from AES regarding actions we will undertake to achieve the interconnection milestone. At the end of the day, ENA will be focused on two things: (i) causing TVA to lower its Network Upgrade estimate from the current level of \$4.8 million, and (ii) causing TVA to produce an interconnection agreement in substantially the same form as the Gleason interconnect agreement. Obviously, with AES owning the Haywood member interests and being in the driver's seat, they will play a key role in whether these two items are achieved. I want to make sure that the same standards which applied to us prior to them exercising their early option (i.e. we were on the hook to use reasonable commercial efforts to achieve the milestones) now applies to them during the period that we are still trying to achieve the milestones.

With Stuart's concurrence, I'd like you to further review the documents and make a recommendation as to what other changes, if any, we should make, to protect our upside under the circumstance described above.

Thanks,

Ben

"Aaron Roffwarg" <aroffwarg@bracepatt.com> on 05/01/2001 06:49:19 PM To: <ben.jacoby@enron.com>, <stuart.zisman@enron.com> cc: <Chris.Booth@enron.com>, <Kay.Mann@enron.com> Subject: Greystone/Haywood - Extension of Dates

Ben and Stuart,

Attached is Amendment #2 to the SPA reflecting the business terms Ben and I discussed this afternoon. As you will see this structure (with the promissory note) is different from the structure described by Steve Hase in the attached email. Please let me know if the deal has evolved since our latest discussions. Please note that this is being sent to ENA only. Please call me with your comments at your earliest convenience. Best regards.

Aaron P. Roffwarg Bracewell & Patterson, LLP South Tower Pennzoil Place 711 Louisiana St. Houston, Texas 77002
(713) 221-1117 (Ph) (713) 221-2184 (Fax)

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Content-Transfer-Encoding: 8bit Received: from mcafee.bracepatt.com by bracepatt.com; Tue, 01 May 2001 15:29:24 -0500 Received: FROM aesc.com BY mcafee.bracepatt.com ; Tue May 01 15:40:09 2001 -0500 X-Proxy:

keymaster.bracepatt.com protected Received: from 207.92.93.17 ([207.92.93.2]) by aesc.com with Microsoft SMTPSVC(5.0.2172.1); Tue, 1 May 2001 16:22:53 -0400 Message-id:

<fc.000f749c00763c4c3b9aca0044810ab2.763dd3@aesc.com> Date: Tue, 01 May 2001 16:32:21 -0400 Subject: Re: Greystone/Haywood - Extension of Dates To: ALouison@hunton.com Cc: ben.jacoby@enron.com, stuart.zisman@enron.com, aroffwarg@bracepatt.com, prollin@aesc.com, mbarr@hunton.com From: "Steve Hase" <shase@aesc.com> References: <11A113B59DF4D311A0DE00805FA7F323028FC4E6@DCMAIL1> In-Reply-To: <11A113B59DF4D311A0DE00805FA7F323028FC4E6@DCMAIL1> MIME-Version: 1.0 Content-type: text/plain; charset=ISO-8859-1 Return-Path: shase@aesc.com X-OriginalArrivalTime: 01 May 2001 20:22:53.0236 (UTC) FILETIME=[800B0F40:01C0D27C]

Audrey,

Ben and I have reached an agreement which will be documented as follows:

- 1) Extension of Dates -- May 11 becomes May 9 (Wed)
- 2) Ben will edit the latest version of the Amendment #2 so that
 - a) on Aug 1, we pay the greater of the \$1.5MM (\$2.5 less \$1 paid at exercise) and the Additional Compensation (less the \$1 MM)
 - b) a separate agreement whereby Corp guarantees the payment on Aug 1.

The intention is to sign the Amendment #3 before 5/9.

Thanks everyone for making this happen.

Steve Hase

- #1283523 v5 - AMENDMENT NO 2 TO SPA.doc

Message 88 of 371

Presentation for Today's meeting - manlove	
Sender	travis.mccullough@enron.com
Recipients	['kay.mann@enron.com']
File	mann-k/discussion_threads/691.

FYI

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 09/18/2000 11:29 AM -----

Ranabir Dutt@ENRON 09/18/2000 09:55 AM

To: Roger Ondreko/HOU/ECT@ECT, Jordan Mintz/HOU/ECT@ECT, Rhett Jackson/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT cc: Katie Stowers/HOU/ECT@ECT Subject: Presentation for Today's meeting - manlove

Attached is the presentation that we will go over @ today's meeting. If there things that need to added/corrected give me a call (35274) or lets talk about it at todays meeting.

Ranabir

Message 89 of 371

RE: Agency Agreement

Sender	dtucker@bracepatt.com
Recipients	['tim.hermann@enron.com', 'd.wear@pecorp.com', 'cdade@bracepatt.com', 'kay.mann@enron.com', 'gregg.penman@enro...]
File	mann-k/enovate/12.

I attach for your review a draft of the Agency Agreement, redlined against the draft Simon Halfin sent us June 9th as well as a clean draft.

I understand from Greg that a few matters are still under discussion, such as the payment arrangements, and will need to be worked into the next draft.

Please feel free to call me at 713-221-1414 if you have any questions whatsoever.

Best regards,

David A. Tucker Bracewell & Patterson, L.L.P. Pennzoil Place, South Tower 711 Louisiana Houston, Texas 77002 Phone: (713) 221-1414 Fax: (713) 221-1212 Email: dtucker@bracepatt.com

- #1127382 vRED - NEW AGENCY AGREEMENT.rtf - #1127382 v16 - NEW AGENCY AGREEMENT.doc

Message 90 of 371

Pegasus

Sender	suzannepepe@paulhastings.com
Recipients	['ccampbell@kslaw.com', 'kay.mann@enron.com', 'gregorylang@paulhastings.com']
File	mann-k/all_documents/4456.

Hi, attached is draft language: ?

"substantially in the form attached hereto as Exhibit A, provided that the LLC Agreement may differ from such form in such respects (which may or maynot be substantial, but which shall not affect the economic rights of the parties thereto) as may be necessary or desirable to properly reflect? [Pegasus as the sole owner] [the treatment] of the? LLC for? federal income tax purposes"

?

Please feel free to call me with any questions.

Suzanne Pepe Paul, Hastings, Janofsky & Walker LLP 1055 Washington Blvd. Stamford, Connecticut 06901 Note New E-Mail suzannepepe@paulhastings.com Phone: (203) 961-7432 Fax (general):? (203) 359-3031 Fax (dedicated): (203) 674-7632 ?

*Message 91 of 371***Attn. Facilities Managers**

Sender	richardleal@houston.rr.com
Recipients	['richardleal@houston.rr.com']
File	mann-k/inbox/199.

Are you in the need for professional furniture service?

Is your modular (cubicle) furniture being mis-treated by inexperienced service companies?

Recon Office Solutions has put together an outfit of extensively experienced technicians which have been acquired from some of Houston's top leading furniture dealer/installation companies.

Recon is driving service to it's full definition.

Let Recon Office Solutions visit with you and submit an honest price for the maintenance of your furniture, and keep the wheels of progress in motion.

Richard Leal Jr.

Recon Office Solutions Houston, Texas 77092 Tel. 713-812-7860 Fax 713-812-7915

Toll Free 1-888-310-2480 or e-mail: richardleal@houston.rr.com <mailto:richardleal@houston.rr.com>

*Message 92 of 371***Annual Compliance Meeting**

Sender	donna.lowry@enron.com
Recipients	['john.allario@enron.com', 'michael.anderson@enron.com']
File	mann-k/inbox/226.

As a reminder, the mandatory Annual Compliance Meeting was rescheduled to Thursday, November 8, 2001 from 8:30 - 10:00 am at the Doubletree Hotel, LaSalle Room B. The agenda remains the same:

Robert George/Gil Melman Board Seats Richard Lauer ECT Securities LP David Port Risk Management Policy Bob Bruce Chinese Wall Policy Dave Gorte Transaction Approval Process Rick Carson RAC Reporting Tools

Please confirm your attendance at this year's meeting either by responding to this email message or contacting Donna Wackerle at ext. 39755. Thank you in advance for your cooperation. If you have any questions, please contact me directly at ext. 31939. I look forward to seeing you this year.

PLEASE FORWARD THIS MESSAGE TO YOUR ADMINISTRATIVE ASSISTANT TO ENSURE IT IS SCHEDULED ON YOUR CALENDAR.

Donna Lowry Sr. Director RAC Compliance (713) 853-1939 (713) 646-4039 fax

Message 93 of 371

Article 10 and 14

Sender	rlevine@fce.com
Recipients	['hnock@fce.com', 'scott.healy@enron.com', 'heather.kroll@enron.com', 'jleitman@fce.com', 'kay.mann@enron.com']...
File	mann-k/all_documents/1691.

Here is our revised Article 10 and 14. Will talk to you at 1:00.

<<ENRONARTICLE X and XIV.doc>>

Ross M. Levine, Esq. Director of Contracts and Contracts Counsel FuelCell Energy, Inc. 3 Great Pasture Rd. Danbury, CT 06813

(203) 825-6057 (203) 798-2945 (fax) rlevine@fce.com (email)

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- ENRONARTICLE X and XIV.doc

Message 94 of 371

Purchase Option Assignment/Assumption.DOC

Sender	taylr@andrews-kurth.com
Recipients	['roseann.engeldorf@enron.com', 'kay.mann@enron.com', 'hcubill@enron.com']
File	mann-k/lm6000/25.

Attached is the document mentioned on the conference call relating the purchase of certain of the LM6000 turbines from the S&S ADA.

Regards,

Rob Taylor Andrews & Kurth L.L.P. Chase Tower 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273

robtaylor@andrews-kurth.com

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- Purchase.DOC

*Message 95 of 371***Coyote Springs Turbine Contract**

Sender	taylr@andrews-kurth.com
Recipients	['roseann.engeldorf@enron.com', 'kay.mann@enron.com', 'scott.dieball@enron.com']
File	mann-k/all_documents/649.

Attached are clean and marked versions of the Coyote Springs Turbine Contract incorporating the changes received from Kay, Scott and Rose.

Regards,

Rob Taylor Andrews & Kurth L.L.P. Chase Tower 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273

robtaylor@andrews-kurth.com

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- CoyoteSp.DOC - TurbineC.DOC

*Message 96 of 371***Re: Land Option Agreement with Electricities**

Sender	kay.mann@enron.com
Recipients	['lisa.mellencamp@enron.com']
File	mann-k/all_documents/217.

I can try!

Lisa Mellencamp@ECT 07/11/2000 10:37 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Land Option Agreement with Electricities

can you do this?

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 ----- Forwarded by Lisa Mellencamp/HOU/ECT on 07/11/2000 10:36 AM -----

Jeffrey M Keenan 07/11/2000 10:33 AM

To: Lisa Mellencamp/HOU/ECT@ECT cc: Subject: Land Option Agreement with Electricities

Lisa:

Ken Raber (electricities) and I discussed the option agreement yesterday and came to the conclusion that any issues electricities has with the option agreement will go to you directly. I believe that will streamline the process.

The attorney's name is Mike Colo and his telephone number is 252-972-7105.

I would really like to get this option agreement signed as soon as we can and I'm sure you feel the same!

If there is anything I can do let me know.

Jeffrey

Message 97 of 371

Reservation Assignment Agreement

Sender	taylr@andrews-kurth.com
Recipients	['kay.mann@enron.com', 'herman.manis@enron.com', 'hcubill@enron.com']
File	mann-k/discussion_threads/56.

Attached is a draft Assignment and Assumption Agreement for use in assigning Option, Reservation and like Agreements to WestLB.

Please let me know if you have any comments or questions regarding the attached.

Regards,

Rob Taylor Andrews & Kurth L.L.P. Chase Tower 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273

robtaylor@andrews-kurth.com

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- Reservat.DOC

Message 98 of 371

Platelets

Sender	bob.joyce@kvaerner.com
Recipients	['david.k.bargainer@enron.com', 'tracybogiel@garygreene.com']
File	mann-k/all_documents/6408.

Is anyone with type O blood (either + or -) able to donate Platelets for Michael today? Sorry for the short notice, but the two people who were going to do it today "bailed" for various reasons.

If you're able to donate today, please call my wife, Bev, at 713 972-6840.

Thanks.

Bob

Bob Joyce Kvaerner Process 7909 Parkwood Circle Drive Houston, TX 77036 (713) 995-2137 (713) 270-3652 -- Fax bob.joyce@kvaerner.com <mailto:bob.joyce@kvaerner.com>

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Message 99 of 371

Contract Forms

Sender	kay.mann@enron.com
Recipients	['suzanne.adams@enron.com', 'kjones@ect.enron.com', 'Sheila.Tweed@Enron.com']
File	mann-k/all_documents/1495.

Please print and put in folder, Off Balance Sheet EPC Contract. Thanks, Kay

----- Forwarded by Kay Mann/Corp/Enron on 10/20/2000 11:53

AM -----

Davidlu@nepco.com on 10/19/2000 05:52:07 PM To: Kay.Mann@enron.com cc: kjones@ect.enron.com, Sheila.Tweed@Enron.com

Subject: Contract Forms

Kay, Attached is the TECO contract and the blank form of EPC and Exhibits I believe ENA has used in the past. None have stood the test of financing (at least since NEPCO has been doing ENA work).

Karen Jones called me on the same subject so I am emailing her a copy as well. I'm flexible in regard to making these documents more compatible with lender requirements. Let me know if I can help. <<TECO Contract (less exhibits)l.doc>> <<EECC-EPCTurnkey.doc>> <<EPC-Exhibits.doc>>

David H. Lund, Jr. Assistant General Counsel National Energy Production Corporation 11831 North Creek Parkway N. Bothell, WA 98011 425-415-3138 Fax: 425-415-3032 David.Lund@nepco.com or davidlu@nepco.com

- TECO Contract (less exhibits)l.doc - EECC-EPCTurnkey.doc - EPC-Exhibits.doc

Message 100 of 371

Fw: Purchase of Enron at South Florida

Sender	ben.jacoby@enron.com
Recipients	['kay.mann@enron.com']
File	mann-k/inbox/144.

Is this the letter from Krinsky's buddies (I can't read it because I'm on my blackberry)? I thought this was Southern Company (I.e. the utility).

Ben Jacoby (713) 853-6173

-----Original Message-----

From: "Gloria Castellanos" <gcastellanos@southernfacilities.com>@ENRON [NOTES:"Gloria Castellanos" <gcastellanos@southernfacilities.com>@ENRON] To: Jacoby, Ben <Ben.Jacoby@ENRON.com> CC: cabele <cabele@southernfacilities.com> Sent: Mon Dec 17 14:51:04 2001 Subject: Purchase of Enron at South Florida

Thank you for your return phone call today, attached, please find an electronic copy of the letter federal expressed to both you and Kay Mann on Friday.

Please call me to discuss upon review.

Also, I would like to have a clear understanding of where you are with respect to the December 9th payment on the Palm Beach ground lease.

Thank you in advance for your assistance. Look forward to speaking to you tomorrow with the intention of moving this along.

Charles R. Abele, Jr. Southern Facilities Development, Inc. 2901 SW 8th Street, Suite 204 Miami, FL 33135 Tel: (305) 541-3738 Fax: (305) 541-1314 cabele@southernfacilities.com

Message 101 of 371

purchase contract markup

Sender	rlevine@fce.com
Recipients	['hnock@fce.com', 'tleo@fce.com', 'heather.kroll@enron.com', 'jleitman@fce.com', 'kay.mann@enron.com', 'cbentl...]
File	mann-k/discussion_threads/1025.

Heather, Scott, Kay, Stephen:

The attached file is a redlined markup of your draft purchase contract prepared by our outside counsel, with a few added comments from our group. Please note these comments are intended to be preliminary and non-binding, for discussion only. Most of these comments don't address the scope of our meeting today, but are more detail oriented. Please call me if you have any questions before we meet Wednesday.

<<RMLredline version 2.doc>>

Ross M. Levine, Esq. Director of Contracts and Contracts Counsel FuelCell Energy, Inc. 3 Great Pasture Rd. Danbury, CT 06813

(203) 825-6057 (203) 798-2945 (fax) rlevine@fce.com (email)

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- RMLredline version 2.doc

Message 102 of 371

Re: Don Solomon Memorial

Sender	kay.mann@enron.com
Recipients	['renee.alfaro@enron.com']
File	mann-k/_sent_mail/1650.

Thank you. I really liked Don.

Renee Alfaro@ENRON_DEVELOPMENT 02/12/2001 04:46 PM To: Daniel Despres/Enron Communications@Enron Communications, Ed Giblin/HOU/EES@EES, Roberta Staehlin/HOU/EES@EES, Kathleen Clark/Enron@EnronXGate, Rick Perkins/Enron@EnronXGate, Kay Mann/Corp/Enron@Enron, David K Bargainer/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, bob.joyce@kvaerner.com, "Howell, Roy" <rhowell@bechtel.com> @ ENRON, "Marilyn Wolff" <marilyn.wolff@attglobal.net> @ ENRON cc:

Subject: Don Solomon Memorial

It looks like this only went to EECC employees, so I wanted to make sure you were all aware of Don's passing and of the service on Friday.

Renee Alfaro Phone: 713-646-7281 Fax: 713-646-6158 Email: ralfaro@enron.com ----- Forwarded by Renee Alfaro/ENRON_DEVELOPMENT on 02/12/2001 04:38 PM -----

Administrative Services Sent by: Marilyn Oliver 02/12/2001 04:33 PM

To: EECC Announcements -- Houston Notes Users, EECC Announcements -- Non-Houston Notes Users cc: Subject: Don Solomon Memorial

Don Solomon passed away at 12:00 a.m. today. There will be a memorial service for him Friday, February 16, 2001 at 1:00 P.M. at the Resurrection Lutheran Church, Meadow Edge, Spring, TX.

Expressions of sympathy can be sent to:

Lea Solomon 17517 Hidden Forrest Spring, TX 77379

Message 103 of 371

RE: GE CONFERENCE CALL

Sender	kay.mann@enron.com
Recipients	['kent.shoemaker@ss.ps.ge.com', 'roseann.engeldorf@enron.com', 'sheila.tweed@enron.com', 'stephen.swift@ps.ge....
File	mann-k/discussion_threads/1420.

This is the last email I have on the issue of consequential/LOL. As I recall, we have not agreed to the redaction of the carve out of the LOL for gross negligence, but it is an important issue for GE.

Steve Swift wants to close out these issues. Are we ready, or do we need this for a swap for something?

Kay

----- Forwarded by Kay Mann/Corp/Enron on 11/22/2000 08:57

AM -----

michael.barnas@ps.ge.com on 10/04/2000 12:40:51 PM To: Sheila.Tweed@enron.com, Ben.Jacoby@enron.com, Scott.Dieball@enron.com, kay.mann@enron.com cc: kent.shoemaker@ss.ps.ge.com, stephen.swift@ps.ge.com

Subject: RE: GE CONFERENCE CALL

Folks,

Here is some language for discussion this afternoon. Please note that this is being submitted for discussion without full management approval; we're getting so close to the bone that we'll probably need to take the final package as a whole through our vetting process

I'm looking through the warranty section now, so perhaps we can discuss that as well.

Ciao,

Mike g _____ Michael C. Barnas Counsel, Power Plants Commercial Operations GE Power Systems One River Road - Building 37, Room 307 Schenectady, NY 12345 USA Phone 8*235-7602 (518) 385 7602 Fax 8*235 5466 (518) 385 5466 Mobile 518 369 9538

- WorldHungerModsOct2.DOC

Message 104 of 371

FW: Dec. 24 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	[jim.armogida@enron.com', 'sharon.butcher@enron.com', 'clement.abrams@enron.com']
File	mann-k/deleted_items/10.

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON Sent: Sunday, December 23, 2001 11:22 PM To: BNA Highlights
Subject: Dec. 24 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Monday, December 24, 2001

ISSN 1526-520X

HIGHLIGHTS

No issue will be published for this service today.

Antitrust & Trade Regulation Daily (ISSN 1526-520X) Highlights are published daily by The Bureau of National Affairs, Inc., 1231 25th St., NW, Washington, DC 20037.

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Message 105 of 371

Section 14.3 Warranty

Sender	rlevine@fce.com
Recipients	['hnock@fce.com', 'jscheib@rc.com', 'jleitman@fce.com', 'kay.mann@enron.com', 'tleo@fce.com']
File	mann-k/all_documents/2081.

Kay:

Here is a proposed correction to the first sentence of section 14.3 of the agreement.

We had offered a 15% reduction in efficiency in our warranty. When we changed efficiency to heat rate, we neglected to correct the percentage change because heat rate goes up as efficiency declines. Mathematically, there is an inverse relationship (see attached spreadsheet) which means that the equivalent of a 15% reduction in efficiency is an 18% increase in heat rate. Therefore we propose to change the Heat Rate reduction in the first sentence of Section 14.3 (also attached) from 15% to 18% and correspondingly revise the total change from 20% to 23%.

<<14.3 revision.doc>> <<eff and heat rate.xls>>

Ross M. Levine, Esq. Director of Contracts and Contracts Counsel FuelCell Energy, Inc. 3 Great Pasture Rd. Danbury, CT 06813

(203) 825-6057 (203) 798-2945 (fax) rlevine@fce.com (email)

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- 14.3 revision.doc - eff and heat rate.xls

Message 106 of 371

Re: Closing Checklist	
Sender	kathleen.carnahan@enron.com
Recipients	['ccampbell@kslaw.com', 'kay.mann@enron.com']
File	mann-k/all_documents/3137.

Carolyn,

Can you put together a set of execution documents plus the original signature pages for CA Energy Development and have them sent to Kay Mann's house tomorrow? Her address is: 29 Inverness Pkwy., Houston, Texas 77055. Phone number is (713) 973-6325.

Please call if you have any questions.

Thanks.

Kathleen

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 01/10/2001 05:10:41 PM To: "kay.mann@enron.com" <kay.mann@enron.com> cc: "ben.f.jacoby@enron.com" <ben.f.jacoby@enron.com>, "f_mitro@hotmail.com" <f_mitro@hotmail.com>, "fred.mitro@enron.com" <fred.mitro@enron.com>, "kathleen.carnahan@enron.com" <kathleen.carnahan@enron.com>, "Keffer, John" <JKeffer@KSLAW.com>

Subject: Closing Checklist

<<2RR404!.DOC>>

Kay:

An updated closing checklist for the ENA / SEL transaction is attached.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com>

Enclosure: 129280v4

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- 2RR404!.DOC

Message 107 of 371

Medway Project - Confidentiality Agreement

Sender	john.llodra@enron.com
Recipients	['kathleen.carnahan@enron.com', 'kay.mann@enron.com']
File	mann-k/discussion_threads/3739.

Kay

Attached please find a proposed CA from Navigant Consulting on behalf of Sithe regarding the potential sale of a generating facility under development or a long-term tolling transaction. I would like to take a look at this opportunity and to get a copy of the Information Memo. Could you please review and comment on the attached CA so that we can advance on this? Thanks much

John

978-449-9936

----- Forwarded by John Llodra/Corp/Enron on 05/01/2001

12:42 PM -----

LBarbas@rcgroup.com on 05/01/2001 11:33:46 AM To: John.Llodra@enron.com cc:

Subject: Medway Project - Confidentiality Agreement

Good Afternoon, Thank you for your expression of interest in the Medway Project offerings. In order to receive a copy of the Offering Memorandum you must first execute a Confidentiality Agreement ("CA"). Attached please find a copy of the CA for your company's execution. Please create and execute three (3) original documents and return them to my attention at the address below. Once we receive them back from you, we will have them executed by Sithe and Navigant Consulting, Inc. Immediately thereafter, a fully executed copy of the CA, along with the Offering Memorandum will be forwarded to you. If there are any changes you would propose be made to this document, please use the revision tool to highlight those changes. I will then review your proposed changes with Sithe's counsel and get back to you. Thank you again for your interest in this offering. (See attached file: Enron-CA.DOC) Lisa Barbas Navigant Consulting, Inc. 200 Wheeler Rd., Suite 400 Burlington, MA 01803 Phone: (781) 564-9619 Fax: (781) 270-0418 - Enron-CA.DOC

Message 108 of 371

Re: Midwest Energy Hub name change to enovate

Sender	kay.mann@enron.com
Recipients	['deb.korkmas@enron.com']
File	mann-k/sent/743.

Can you tell if the documents have been filed in the state of incorporation?

Could you send me an email with a description of what you learned about how this done? I know the procedures weren't followed.

Thanks,

Kay

Deb Korkmas@ECT 09/15/2000 02:16 PM To: Kay Mann/Corp/Enron@ENRON cc:

Subject: Re: Midwest Energy Hub name change to enovate

Kay, they just sent the documents to us yesterday from Chicago. I have forwarded to corporate secretary's office for filing.

Deb

Deb Korkmas Enron North America Corp. ENA Legal Dept. 1400 Smith Street, Room 3819 Houston, TX 77002 Phone: 713-853-5448 Fax: 713-646-3393

Kay Mann@ENRON 09/15/2000 10:35 AM

To: Deb Korkmas/HOU/ECT@ECT cc: Subject: Re: Midwest Energy Hub name change to enovate

Deb,

Could you please check with the state of incorporation (I believe Delaware) and the Corp Secretary's office to see if the papers have been processed in both places?

Thanks,

Kay

Russell E Murrell 09/15/2000 09:03 AM To: Deb Korkmas/HOU/ECT@ECT cc: Kay Mann/Corp/Enron@Enron, Sheila Tweed/HOU/ECT@ECT, gregg.penman@enron.com, Eric Thode/Corp/Enron@ENRON

Subject: Midwest Energy Hub name change

I received the name change document and it has been executed on behalf of Peoples and Enron. I have also received and returned some state (IL) registration documents from you and Lillian Bailey.

My understanding is that we have done everything we need to do to effect the entity name change to enovate, L.L.C. Kay Mann is trying to follow up and confirm that all of the proper paperwork is in place.

Please let me know if there is anything further I can do to facilitate the process.

thanks, Russell (312) 541-1159

Message 109 of 371

Michael Update

Sender	bob.joyce@kvaerner.com
Recipients	[david.k.bargainer@enron.com', 'tracybogiel@garygreene.com']
File	mann-k/discussion_threads/4188.

Michael is to receive the bone marrow transplant sometime today. Some of you have thought it's a surgical procedure. It's not. Rather, it's done through an IV.

He will be in need of quite a few platelet transfusions over the next while. One can donate platelets more frequently than one can donate blood, but I don't know much more than that about the frequency. If you or your friends/co-workers can donate platelets, please first contact my wife (Beverly) to find out the exact schedule for Michael's need for them. As they do not have a shelf life of more than 24-26 hours, they must be donated one day for transfusion the next. Bev is more or less staying with Michael in the hospital. You can reach her at (713) 792-6840 (that's the number for Michael's room, but she has a 2nd line in the little visitor room to the side of it).

Thanks so much for your help. "Thanks" is a poor substitute for the gratitude we have for your support, but . . .

Bob

Bob Joyce Kvaerner Process 7909 Parkwood Circle Drive Houston, TX 77036 (713) 995-2137 (713) 270-3652 -- Fax bob.joyce@kvaerner.com <mailto:bob.joyce@kvaerner.com>

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Message 110 of 371

Facility AGreement

Sender	kent.shoemaker@ae.ge.com
Recipients	['lee.johnson@ss.ps.ge.com', 'kay.mann@enron.com']
File	mann-k/discussion_threads/1291.

Kay:

Here are our comments for meeting. Sorry I couldn't get them to you earlier but Lee and I couldn't talk before now. We meant to just talk them all through anyway as you can see. Maybe you've got more.

Our biggest concern is that the law firm seems to keep wanting to make the document better, when they should just leave it the way it is. We certainly can see who pays them.

Kent

<<Facility AGreement (blackline with KAS comment 110300).ZIP>> g GE Power Systems

Kent A. Shoemaker Counsel GE Industrial Aeroderivative Gas Turbines GE Aeroderivative and Package Services 1
Neumann Way MD S150 Cincinnati, Ohio 45215 Phone: (513) 552-5838 Dial*Comm: 8*892-5838 Mobile: (513) 604-4687
Fax: (513) 552-5839 Dial*Comm: 8*892-5839 Internet: Kent.Shoemaker@ae.ge.com

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- Facility AGreement (blackline with KAS comment 110300).ZIP

Message 111 of 371

Coyote Springs Turbine Contract---Please review. Could we ge

Sender	sheila.tweed@enron.com
Recipients	['kay.mann@enron.com', 'scott.dieball@enron.com', 'martin.penkwitz@enron.com']
File	mann-k/all_documents/543.

----- Forwarded by Sheila Tweed/HOU/ECT on 08/14/2000 04:56 PM -----

Roseann Engeldorf@ENRON 08/09/2000 01:47 PM

To: Lisa Bills/Corp/Enron@ENRON, Sheila Tweed/HOU/ECT@ECT cc: "ROB TAYLOR" <TAYLR@andrews-kurth.com>
Subject: Coyote Springs Turbine Contract

Hello -

Attached for your review and comment are Rob's and Rose's changes to the template contract.

Thanks,

Rose ----- Forwarded by Roseann Engeldorf/Corp/Enron on 08/09/2000 01:46 PM -----

"ROB TAYLOR" <TAYLR@andrews-kurth.com> on 08/09/2000 12:42:47 PM To: <Roseann.Engeldorf@enron.com> cc:

Subject: Coyote Springs Turbine Contract

Attached are (i) a revised, clean copy of the Coyote Springs Turbine Contract, (ii) a blackline of the Contract showing the changes that I made, and (iii) a rider containing provisions relating to the Purchaser Indemnity.

Please let me know if you have any questions or comments.

Regards,

Rob Taylor Andrews & Kurth L.L.P. Chase Tower 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273

robtaylor@andrews-kurth.com

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- TurbineC.DOC - Ridersto.DOC - TurbineC.DOC

Message 112 of 371

GE Language

Sender	kay.mann@enron.com
Recipients	['scott.dieball@enron.com', 'kent.shoemaker@ae.ge.com', 'brian.barto@enron.com']
File	mann-k/sent/691.

I'm not particularly wild about many of the changes proposed by GE. Seems that it would be a good idea to get a consensus on how to respond. Here are the issues I see:

Indemnity issues: They should indemnify us from claims by their employees/subcontractors. Indemnity should be triggered by strict liability as well as negligence. What is a cognizant government?

Limit of liability issues: They want to limit their indemnity obligation to 100% of purchase price. They want the limit of liability to apply to gross negligence, if possible. They don't want to clarify that they have to indemnify us for another party's claim for consequential (as in a personal injury claim).

We've don't have anything concrete on assignment yet.

Comments?

Sheila has asked that we change Wednesday's call to 1100 Central, or 100 Central if 1100 doesn't work. Is this a problem?

Kay

They should have to ----- Forwarded by Kay Mann/Corp/Enron on 09/11/2000 04:07 PM -----

michael.barnas@ps.ge.com on 09/07/2000 07:46:07 PM To: stephen.swift@ps.ge.com, Sheila.Tweed.@enron.com, Roseann.Engeldorf@enron.com, Kay.Mann@enron.com, Scott.Dieball@enron.com, Martin.W.Penkwitz@enron.com cc: kent.shoemaker@ae.ge.com

Subject: GE Language

Folks,

Having conferred at last with my colleagues, I can now forward to you our draft language for the Indemnity and LOL clauses. As Steve mentioned in his earlier message, he has suggested some issues to discuss which could bring us closer to resolution on that issue. Please let me know if you have any question!

Best regards,

Mike g _____ Michael C. Barnas Counsel, Power Plants Commercial Operations GE Power Systems One River Road - Building 37, Room 307 Schenectady, NY 12345 USA Phone 8*235-7602 (518) 385 7602 Fax 8*235 5466 (518) 385 5466 Mobile 518 369 9538

- MajorClausesGE01.doc

Message 113 of 371

RE: purchase contract markup

Sender	rlevine@fce.com
Recipients	['hnock@fce.com', 'tleo@fce.com', 'heather.kroll@enron.com', 'kay.mann@enron.com', 'cbentley@fce.com', 'stephe...]
File	mann-k/discussion_threads/1034.

Per our meeting yesterday, here is the clean version of the redline I sent to you on Monday. This doesn't incorporate any of the changes we discussed yesterday. If you have any questions, please call. <<Enron Purchase Agreement v.2 Clean.doc>> Ross Levine

-----Original Message----- From: Levine, Ross Sent: Monday, October 16, 2000 6:58 PM To: 'Heather.Kroll@enron.com'; 'Kay.Mann@enron.com'; 'Stephen.Plauche@enron.com'; 'Scott.Healy@enron.com' Cc: Nock, Herb; Bentley, Chris; Leitman, Jerry; Leo, Tony; Mahler, Joseph Subject: purchase contract markup Heather, Scott, Kay, Stephen: The attached file is a redlined markup of your draft purchase contract prepared by our outside counsel, with a few added comments from our group. Please note these comments are intended to be preliminary and non-binding, for discussion only. Most of these comments don't address the scope of our meeting today, but are more detail oriented. Please call me if you have any questions before we meet Wednesday. << File: RMLredline version 2.doc >> Ross M. Levine, Esq. Director of Contracts and Contracts Counsel FuelCell Energy, Inc. 3 Great Pasture Rd. Danbury, CT 06813 (203) 825-6057 (203) 798-2945 (fax) rlevine@fce.com (email) This transmittal and its attached files (if any) may contain proprietary or confidential information belonging to FuelCell Energy, Inc. If you are not the intended recipient, you are hereby notified that you have received this transmittal in error. Any review, disclosure, use, dissemination, distribution or copying of this information is strictly prohibited. If you suspect that you have received this communication in error, please notify us immediately by telephone at 1-(203) 825-6000, or e-mail at jryan@fce.com and immediately delete this message and all its attachments.

- Enron Purchase Agreement v.2 Clean.doc

Message 114 of 371

RE: Market Price definition

Sender	reagan.roschach@enron.com
Recipients	['kay.mann@enron.com']
File	mann-k/yazoo_city/294.

OK, I see your point. Incremental may be misleading. How about this??

"Market Price" is the price agreed to in any transaction inclusive of all costs specific to the same transaction.

Incremental to me means an increased cost. I'm not sure what the cost is "incremental" of. I'm just trying to figure out if "incremental" is descriptive, or just an extra word the engineers (sorry) threw in.

From: Reagan Rorschach/ENRON@enronXgate on 06/08/2001 09:38 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: RE: Market Price definition

Incremental costs, for example, would be transmission and losses associated with a sale of power if that sale specified a delivery point away from the MDEA interconnect with Entergy. For example, EPMI sells 22 MW from the Clarksdale unit for \$40/MWh to Southern at the Southern border. The transaction includes \$4 of transmission and \$0.50 of losses. Therefore, the Market Price is \$44.50.

Thanks

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Friday, June 08, 2001 9:18 AM To: Rorschach, Reagan Subject: Re: Market Price definition

What is an incremental cost? I'm not sure I get it.

From: Reagan Rorschach/ENRON@enronXgate on 06/08/2001 08:46 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Market Price definition

Kay-

Discussions with RW Beck have resulted in the following changes:

From the EMSA: "Market Price" is the price agreed to in any transaction inclusive of incremental costs specific to the same transaction.

From the Profit Calculation Exhibit: "Profit per hour is calculated as the product of MWh sold and the difference between Market Price and the Target Production Cost as follows:...." (delete the reference limiting Profit to Back-to-back Transactions)

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

Message 115 of 371

RE: Market Price definition

Sender	reagan.rorschach@enron.com
Recipients	['=20', 'kay.mann@enron.com']
File	mann-k/all_documents/7422.

OK, I see your point. Incremental may be misleading. How about this??

=01&Market Price=018 is the price agreed to in any transaction inclusive of= all=20 costs specific to the same transaction.

Incremental to me means an increased cost. I'm not sure what the cost is= =20 "incremental" of. I'm just trying to figure out if "incremental" is=20 descriptive, or just an extra word the engineers (sorry) threw in.

From: Reagan Rorschach/ENRON@enronXgate on 06/08/2001 09:38 AM To: Kay Mann/Corp/Enron@Enron cc: =20

Subject: RE: Market Price definition

Incremental costs, for example, would be transmission and losses associated= =20 with a sale of power if that sale specified a delivery point away from the= =20 MDEA interconnect with Entergy. For example, EPMI sells 22 MW from the=20 Clarksdale unit for \$40/MWh to Southern at the Southern border. The=20 transaction includes \$4 of transmission and \$0.50 of losses. Therefore, th= e=20 Market Price is \$44.50.

Thanks

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay =20 Sent: Friday, June 08, 2001 9:18 AM To: Rorschach, Reagan Subject: Re: Market Price definition

What is an incremental cost? I'm not sure I get it.

From: Reagan Rorschach/ENRON@enronXgate on 06/08/2001 08:46 AM To: Kay Mann/Corp/Enron@Enron cc: =20

Subject: Market Price definition

Kay-

Discussions with RW Beck have resulted in the following changes:

From the EMSA: =01&Market Price=018 is the price agreed to in any transaction inclusive of= =20 incremental costs specific to the same transaction.

From the Profit Calculation Exhibit: "Profit per hour is calculated as the product of MWh sold and the differenc= e=20 between Market Price and the Target Production Cost as follows:...." (dele= te=20 the reference limiting Profit to Back-to-back Transactions)

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

Message 116 of 371

FW: Dec. 28 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'sharon.butcher@enron.com', 'clement.abrams@enron.com']
File	mann-k/deleted_items/32.

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON Sent: Thursday, December 27, 2001 11:14 PM To: BNA Highlights Subject: Dec. 28 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Friday, December 28, 2001

ISSN 1526-520X

HIGHLIGHTS

FTC STAFF RELEASES FINANCIAL PRIVACY GUIDANCE Financial institutions in search of help complying with the Federal Trade Commission's consumer privacy regulations may find it in the form of answers to frequently asked questions issued on Dec. 12 by the FTC staff.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A5B3R4B7_

DOJ HAS DIM VIEW OF BA-AMERICAN ALLIANCE, PROPOSES DIVESTITURES TO ENSURE COMPETITION The Justice Department, generating a crosswind for a proposed airline industry alliance, on Dec. 17 indicated that the current deal advanced by American Airlines and British Airways could be a threat to competition.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A5B3R4C6_

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Message 117 of 371

Re: Revised Purchase Option Assignment and Assumption Agreement

Sender	lisa.bills@enron.com
Recipients	[' roseann.engeldorf@enron.com ', ' robtaylor@andrews-kurth.com ', ' herman.manis@enron.com ', ' kay.mann@enron.com ']
File	mann-k/all_documents/786 .

I have finally reviewed the below. Comments:

In the 2nd recital to begin and elsewhere where stated, we need to build in flexibility for other ancillary equipment besides the ABB Transformers.

What do we do about selling the equipment for more or less than what's due WestLB? How will the money flow? What accounting impact will this have?

Regards, Lisa

Roseann Engeldorf 08/15/2000 08:49 AM To: Lisa Bills/Corp/Enron@ENRON, Herman Manis/Corp/Enron@ENRON cc:

Subject: Revised Purchase Option Assignment and Assumption Agreement

See Rob's mark-ups attached - let me know if you have any comments. I have also sent them to Kay.

Rose ----- Forwarded by Roseann Engeldorf/Corp/Enron on 08/15/2000 08:48 AM -----

"ROB TAYLOR" <TAYLR@andrews-kurth.com> on 08/14/2000 05:41:55 PM To: <Roseann.Engeldorf@enron.com>, <toxley@winston.com> cc:

Subject: Revised Purchase Option Assignment and Assumption Agreement

As I mentioned in my voice mail to Tim and as discussed with Rose, attached are clean and marked (against the form of Exhibit attached to the S&S ADA) drafts of the Purchase Option Assignment and Assumption Agreement.

Please let me know if you have any questions or comments regarding the attached.

Regards,

Rob Taylor Andrews & Kurth L.L.P. Chase Tower 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273

robtaylor@andrews-kurth.com

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- AssignAs.DOC - Purchase.DOC

Message 118 of 371

FW: Dec. 31 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'sharon.butcher@enron.com', 'clement.abrams@enron.com']
File	mann-k/inbox/183.

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON Sent: Sunday, December 30, 2001 11:21 PM To: BNA Highlights
Subject: Dec. 31 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Monday, December 31, 2001

ISSN 1526-520X

HIGHLIGHTS

APPEALS COURT ORDERS FCC TO JUSTIFY PUBLIC-INTEREST TEST IN LONG-DISTANCE NOD A federal appeals court Dec. 28 directed the Federal Communications Commission to better justify why it rejected arguments against allowing SBC Communications, Inc., to offer long-distance phone service in Oklahoma and Kansas ("Sprint Communications Co. L.P. v. FCC, "D.C. Cir., 01-1076, 12/29/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A5B4F5J0_

SECOND MULTISTATE SETTLEMENT OF UNAPPROVED HEARING DEVICES IS UNVEILED A settlement in the four-year, multistate health fraud investigation into the distribution of the Crystal Ear hearing device was announced on Dec. 11 by Attorney General Bill Lockyer.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A5B4F5K9_

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Message 119 of 371

Re: Yet another version - take 3

Sender	roseann.engeldorf@enron.com
Recipients	['lisa.bills@enron.com', 'michael.barnas@ps.ge.com', 'kay.mann@enron.com', 'kent.shoemaker@ae.ge.com']
File	mann-k/all_documents/2391.

Per Mike's and Kay's discussion earlier, we have attempted to address your concerns about the broad universe of permitted assignees.

Roseann Engeldorf 12/06/2000 11:12 PM

To: michael.barnas@ps.ge.com cc: Kay.Mann@enron.com, kent.shoemaker@ae.ge.com, Lisa.Bills@enron.com, paul.miller@ps.ge.com, Roseann.Engeldorf@enron.com, Sheila.Tweed@enron.com, stephen.swift@ps.ge.com Subject: Yet another version

We will agree that the attached does not apply to world hunger - only to Turbo Park.

Rose

michael.barnas@ps.ge.com 12/06/2000 03:33 PM

To: Kay.Mann@enron.com, Sheila.Tweed@enron.com, Roseann.Engeldorf@enron.com, Lisa.Bills@enron.com cc: kent.shoemaker@ae.ge.com, stephen.swift@ps.ge.com, paul.miller@ps.ge.com Subject: New, Improved Consent to Assignment and Assignment Sideletter Lan guage

Fellow Sufferers,

Below you will find:

- (a) a revised Consent to Assignment, and
- (b) assignment language waiting to be framed:

Please note that in the interest of time I am sending them to you before the GE team has had an opportunity to review them. Accordingly, there may be some addition comments from our side.

Happy reading!

Mike Barnas g _____ Michael C. Barnas Counsel, Power Plants Commercial Operations GE Power Systems
One River Road - Building 37, Room 307 Schenectady, NY 12345 USA Phone 8*235-7602 (518) 385 7602 Fax 8*235
5466 (518) 385 5466 Mobile 518 369 9538

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- ESAconsentMCBRev.doc - WorldHungerAssignmentDec6.doc

Message 120 of 371

Schaeffer Property - Livingston County, Illinois

Sender	kay.mann@enron.com
Recipients	['rusty.stevens@enron.com'] <rusty.stevens@enron.com>, 'kathleen.carnahan@enron.com']
File	mann-k/_sent_mail/2983.

----- Forwarded by Kay Mann/Corp/Enron on 11/01/2000 11:27

AM -----

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 10/09/2000 02:52:14 PM To: "kay.mann@enron.com" <kay.mann@enron.com> cc: "rusty.stevens@enron.com" <rusty.stevens@enron.com>, "fred.mitro@enron.com" <fred.mitro@enron.com>, "Gershon, Mark A. - CHI" <Mark.Gershon@piperrudnick.com>, "Townsend, Christopher J. - CHI" <chris.townsend@piperrudnick.com>, "Shindler, Donald A. - CHI" <Donald.Shindler@piperrudnick.com>

Subject: Schaeffer Property - Livingston County, Illinois

Kay:

This morning, Rusty requested that we prepare an Option Agreement for the 29 acre parcel west of the Livingston Energy Center. This property could be used as a construction laydown site, but more importantly would provide a sound buffer for the project. It is our understanding that the Option Agreement is to be presented to the property owner at some point next week. We will forward a draft of the agreement to you no later than Monday, October 16, 2000. Please feel free to call me or Don Shindler (312-368-2175) with any questions regarding the agreement. Best regards.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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Message 121 of 371

Re: KAY MANN//HTL

Sender	kay.mann@enron.com
Recipients	['suzanne.adams@enron.com']
File	mann-k/_sent_mail/2107.

I'm working like a dog, so it is going quickly...

From: Suzanne Adams@ECT on 01/05/2001 04:41 PM To: Kay Mann/Corp/Enron@ENRON cc:

Subject: Re: KAY MANN//HTL

Ok, I was scared there for a minute!

Has this been a long afternoon for you? It seems awfully long to me.

Kay Mann@ENRON 01/05/2001 04:38 PM

To: Suzanne Adams/HOU/ECT@ECT cc: Subject: Re: KAY MANN//HTL

Don't know yet. I'll decide Monday. It is hard to get a hotel, so Claude made me one in connection with Heather, who is there on other business.

From: Suzanne Adams@ECT on 01/05/2001 04:36 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: KAY MANN//HTL

What's going on? Do I need to do anything to your DC flight reservations? ----- Forwarded by Suzanne Adams/HOU/ECT on 01/05/2001 04:35 PM -----

Claudette Harvey 01/05/2001 04:09 PM

To: Kay Mann/Corp/Enron@Enron cc: Suzanne Adams/HOU/ECT@ECT Subject: KAY MANN//HTL

FYI..... Let me know if you need anything else.

claude ----- Forwarded by Claudette Harvey/HOU/ECT on 01/05/2001 04:09 PM -----

VIKKI ANAYA <vanaya_vitolvl@yahoo.com> on 01/05/2001 03:03:26 PM To: CHARVEY2@ENRON.COM cc: Subject: KAY MANN//HTL

SALES AGT: VA/YZ97H4

MANN/C KAY

ENRON 1400 SMITH HOUSTON TX 77002 ATTN CALUDETTE

DATE: JAN 05 2001

HOTEL 09JAN THE MARK NEW YORK 10JAN 25 EAST 77TH STREET NEW YORK, NY 10021 UNITED STATES OF AMERICA TELEPHONE: 1 212 744 4300 FAX: 1 212 472 5714 CONFIRMATION: 9603223 REFERENCE: IA1KNIC SINGLE ROOM KING SIZE BED RATE: ABC USD 455.00 PER NIGHT GUARANTEE GIVEN

24 HOUR ADVANCE XCL POLICY AT THE MARK THANK YOU FOR CALLING VITOL TRAVEL

Do You Yahoo!? Yahoo! Photos - Share your holiday photos online! <http://photos.yahoo.com/>

Message 122 of 371

Re: Additional Contract Item

Sender	kay.mann@enron.com
Recipients	['rlevine@fce.com', 'scott.healy@enron.com', 'jscheib@rc.com', 'stephen.plauche@enron.com']
File	mann-k/all_documents/1821.

Ross,

The only thought I have with respect to this request would be that it should not apply if FCEL has failed to comply with its warranty obligations, or has declined to service the modules after the warranty period has expired.

Kay

"Levine, Ross" <rlevine@fce.com> on 11/08/2000 03:22:30 PM To: "Jacqueline Scheib" <jscheib@rc.com>, "Stephen.Plauche@enron.com" <Stephen.Plauche@enron.com>, Scott.Healy@enron.com, Heather.Kroll@enron.com, Kay.Mann@enron.com cc: "Leitman, Jerry" <jleitman@fce.com>, "Nock, Herb" <HNock@FCE.com>, "Leo, Tony" <tleo@fce.com>, "Bentley, Chris" <cbentley@fce.com>, "Mahler, Joseph" <jmahler@fce.com>

Subject: Additional Contract Item

Jackie, Stephen, Scott, Kay, Heather:

We have an additional item we did not discuss today. We want to add to the agreement a provision to the effect that:

The Purchaser (include their successors and/or assigns, subcontractors, vendors, operators, etc.) may not open or in any other manner attempt to view the interior of the DFC modules without Seller's express written consent. Failure to comply with this provision would: a) Void all warranties with respect to the Unit and b) Be considered an automatic violation and breach of the confidentiality provisions of the agreement and subject to all remedies for such violation.

Tony: We will also add the same provision to the O&M manuals.

Jackie: Please draft appropriate language for the agreement and include it in the latest draft of the agreement.

Thank you.

Ross M. Levine, Esq. Director of Contracts and Contracts Counsel FuelCell Energy, Inc. 3 Great Pasture Rd. Danbury, CT 06813

(203) 825-6057 (203) 798-2945 (fax) rlevine@fce.com (email)

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Message 123 of 371

RE: Cost plus contract for Co Op City

Sender	kay.mann@enron.com
Recipients	['john.schwartzburg@enron.com', 'davidlu@nepco.com']
File	mann-k/_sent_mail/1796.

Many thanks.

When I first started in the E & C bidness all our company did was cost plus work. I may have some old exhibits about how the multplier was used to capture benefits and burdens, both for field people and home office. You know the goal is to never create an original document!

Kay

Davidlu@nepco.com on 02/01/2001 12:23:43 PM To: Kay.Mann@ENRON.com, IMCEAEX-_O=ENRON_OU=NA_CN=FOREIGN+20CONTACTS_CN=NEPCO_CN=DLUND@ENRON.com, john.schwartzburg@enron.com, John.G.Rigby@ENRON.com, Peter.Nassab@ENRON.com cc: Mark.Bernstein@ENRON.com, jude.rolfes@enron.com, STEVED@nepco.com, MikeR@nepco.com, danielh@nepco.com, Patricia@nepco.com

Subject: RE: Cost plus contract for Co Op City

Kay, I got your message this morning. Enjoy the big apple. I presume you got my mark ups on the term sheet. I am investigating with the NEPCO folks if they have any particular form of cost plus contract. JWVS just informed me he had one that he will forward to me. I know from past history that NEPCO is not set up from an accounting viewpoint to give a lot of detailed breakdown of costs in terms of labor hours, burdens and benefits since they are calculated and charged to a project based on assignment of people.

I'll stay in touch.

David H. Lund, Jr. Assistant General Counsel National Energy Production Corporation 11831 North Creek Parkway N. Bothell, WA 98011 425-415-3138 Fax: 425-415-3032 David.Lund@nepco.com or davidlu@nepco.com

-----Original Message-----

From: Mann, Kay [mailto:Kay.Mann@ENRON.com] Sent: Thursday, February 01, 2001 10:07 AM To: Lund, David; Schwartzenburg, John; Rigby, John; Nassab, Peter Cc: Bernstein, Mark; Rolfes, Jude Subject: Cost plus contract for Co Op City Importance: High

Gentlemen,

As Dave and John know, I'm working on a deal for ENA (and with Jude) which has as one aspect a cost plus EPC contract for the construction of a power plant. We need to put together the T's and C's for a cost plus contract, and since it is possible that NEPCO might be the contractor, I wanted to use something that is acceptable to NEPCO. I will then take the laboring oar in order to get a working draft prepared for this project.

As always, I'm on a short time frame, so your response would be appreciated.

Thanks,

Kay

Message 124 of 371

Re: Yorkville Annexation Agreement

Sender	kay.mann@enron.com
Recipients	['ben.jacoby@enron.com', 'mark.gershon@piperrudnick.com', 'fred.mitro@enron.com', 'karen.way@piperrudnick.com']...
File	mann-k/_sent_mail/3366.

Karen,

It appears to me that this version of the document allocates a new risk to Enron: risk of damage to a certain road during construction. It would seem that the responsibility to repair it should be limited to damage done as a result of the construction. Also, it is unclear as written as to whether we can repair it ourselves, or whether the City fixes it and sends us the bill. What is the intent?

Thank you,

Kay

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 09/13/2000 01:25:34 PM To: "kay.mann@enron.com" <kay.mann@enron.com> cc: "fred.mitro@enron.com" <fred.mitro@enron.com>, "Gershon, Mark A. - CHI" <Mark.Gershon@piperrudnick.com>

Subject: Yorkville Annexation Agreement

Kay: As Mark Gershon mentioned in his email, we are wrapping up the Yorkville Annexation Agreement. For your benefit, I have forwarded to you by fax (to fax number 713-646-3491) an additional copy of the final revised Annexation Agreement for your review and approval. As I mentioned in the fax coversheet, upon your approval, I will substitute the original signature pages from the previously executed version with the final version. We had previously received approval from the Konicek's to do the same with their original signature pages. Thanks and please call with any questions or comments.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

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message and any copy of it from your computer system. Thank you.

For more information about Piper Marbury Rudnick & Wolfe, please visit us at <http://www.piperrudnick.com/>

Message 125 of 371

Assignment and Consent

Sender	kay.mann@enron.com
Recipients	['Lisa.Bills@enron.com', 'lee.johnson@ss.ps.ge.com', 'Kay.Mann@enron.com', 'kent.shoemaker@ae.ge.com']
File	mann-k/_sent_mail/2566.

I saw you didn't get these. ----- Forwarded by Kay Mann/Corp/Enron on 12/07/2000 09:52 AM
----- From: Roseann Engeldorf on 12/07/2000 09:39 AM To: michael.barnas@ps.ge.com cc:
Kay.Mann@enron.com, kent.shoemaker@ae.ge.com, Lisa.Bills@enron.com, paul.miller@ps.ge.com,
Roseann.Engeldorf@enron.com, Sheila.Tweed@enron.com, stephen.swift@ps.ge.com, "ROB TAYLOR"
<TAYLR@andrews-kurth.com>

Subject: Assignment and Consent

See attached.

----- Forwarded by Roseann Engeldorf/Corp/Enron on 12/07/2000 09:37 AM -----

Roseann Engeldorf 12/06/2000 11:12 PM

To: michael.barnas@ps.ge.com cc: Kay.Mann@enron.com, kent.shoemaker@ae.ge.com, Lisa.Bills@enron.com,
paul.miller@ps.ge.com, Roseann.Engeldorf@enron.com, Sheila.Tweed@enron.com, stephen.swift@ps.ge.com Subject:
Yet another version

We will agree that the attached does not apply to world hunger - only to Turbo Park.

Rose

michael.barnas@ps.ge.com 12/06/2000 03:33 PM

To: Kay.Mann@enron.com, Sheila.Tweed@enron.com, Roseann.Engeldorf@enron.com, Lisa.Bills@enron.com cc:
kent.shoemaker@ae.ge.com, stephen.swift@ps.ge.com, paul.miller@ps.ge.com Subject: New, Improved Consent to
Assignment and Assignment Sideletter Lan guage

Fellow Sufferers,

Below you will find:

- (a) a revised Consent to Assignment, and
- (b) assignment language waiting to be framed:

Please note that in the interest of time I am sending them to you before the GE team has had an opportunity to review them. Accordingly, there may be some addition comments from our side.

Happy reading!

Mike Barnas g _____ Michael C. Barnas Counsel, Power Plants Commercial Operations GE Power Systems
One River Road - Building 37, Room 307 Schenectady, NY 12345 USA Phone 8*235-7602 (518) 385 7602 Fax 8*235
5466 (518) 385 5466 Mobile 518 369 9538

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- ESAconsentMCBRev.doc - WorldHungerAssignmentDec6.doc

Message 126 of 371

FW: Nov. 26 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'sharon.butcher@enron.com', 'clement.abrams@enron.com']
File	mann-k/deleted_items/121.

User iD: enronatd PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON Sent: Sunday, November 25, 2001 11:18 PM To: BNA Highlights
Subject: Nov. 26 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Monday, November 26, 2001

ISSN 1526-520X

HIGHLIGHTS

FTC, FDA, AND STATES WARN WEB SITES SELLING BIOTERRORISM-RELATED PRODUCTS An Internet surf by federal and state officials has uncovered Web sites touting products and therapies claiming to prevent, treat, or cure anthrax, smallpox, and other health hazards and has resulted in nearly 40 letters from the Federal Trade Commission warning the operators of these sites to pull the unsubstantiated information immediately, the agency revealed Nov. 19.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y8V8H3_

INSURERS' LIABILITY MAY HINGE ON MULTI-VEHICLE SALES PRACTICE The viability of a suit charging California insurers with violating the Cartwright Act and the Unfair Competition Act by requiring multi-vehicle policyholders to purchase more uninsured motorist insurance than is needed or desired may depend on whether the insurer issues a single policy in multi-vehicle situations or allows the insured to purchase a separate policy for each vehicle, according to a decision by the California Court of Appeal, Second Appellate District ("Smith v. State Farm Mutual Automobile Ins. Co., "Cal. Ct. App., 2d Dist., No. B136688, 11/2/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y8V8K3_

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Message 127 of 371

FW: Draft Bill of Sale

Sender	kay.mann@enron.com
Recipients	['ben.jacoby@enron.com', 'fred.mitro@enron.com']
File	mann-k/discussion_threads/2038.

----- Forwarded by Kay Mann/Corp/Enron on 01/02/2001 12:33

PM -----

Lisa Bills 12/27/2000 11:21 AM To: Kay Mann/Corp/Enron@Enron cc: Roseann Engeldorf/Corp/Enron@ENRON

Subject: FW: Draft Bill of Sale

Here's the bill of sale I promised to you. Why don't you arrange a call/mtg with Rose and me to discuss form of notice/information. We should probably start with the WestLB Purchase Option Assignment and Assumption form and redraft it to include what we want and think the bank will require in addition to what they asked for.

Lisa ----- Forwarded by Lisa Bills/Corp/Enron on 12/27/2000 11:19 AM -----

KWierner@milbank.com on 12/22/2000 05:15:58 PM To: lisa.bills@enron.com, roseann.engeldorf@enron.com, mmckay@velaw.com cc:

Subject: FW: Draft Bill of Sale

And here is the bill of sale, also opened and saved on our system. If Mike had a more recent version of this I don't think we got it. - KW

-----Original Message-----

From:?? McKay, Michael (NY) [SMTP:mmckay@velaw.com] Sent:?? Saturday, December 09, 2000 1:56 PM To:???? Wiemer Karl (E-mail); Michalchuk Daniel (E-mail) Cc:???? Lisa Bills (E-mail); Roseann Engeldorf (E-mail); Tweed Shelia (E-mail); Vrielink, Cliff; Woodworth, Thomas Subject:??????? Draft Bill of Sale

I attach a draft Bill of Sale to be attached as Exhibit 7.1 to the DCMA. Please note that it remains subject to comment by Enron.

Thank you.

Michael McKay Vinson & Elkins L.L.P 1325 Avenue of the Americas New York, N.Y. 10019 Tel:????? 917-206-8115 Fax:????? 917-849-5311 Mobile:? 203-243-5681 Email:???? mmckay@velaw.com

?<<NewYork_13338_2.DOC>> ?????????? +++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged.? This email is intended to be reviewed by only the individual or organization named above.? If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited.? If you have received this email in error, please immediately notify the sender by return email and delete this email from your system.? Thank You <<NewYork_13338_2.DOC>>

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- NewYork_13338_2.DOC

Message 128 of 371

RE: Montana Megawatts I, LLC

Sender	kay.mann@enron.com
Recipients	['deberry@enron.com', 'jeremiahdeberry@paulhastings.com']
File	mann-k/sent_items/254.

Hi Jerry,

Steve told me that he had asked whoever he spoke to at NorthWestern to take steps to extinguish the letter agreement that Enron and GE regarding the transaction. I have prepared a letter to that effect and sent it to Steve for his review. Basically it just says that Enron doesn't have any continuing obligations to GE under the previous letter.

Before we release the funds we would like to get an executed, revised letter from NorthWestern concerning the revised set off amounts and final total to be wired. My fax number is 713 646 3491.

I did not have the certificate signed, but will dig it out and see what I can do. Quite frankly I just overlooked it.

Kay

-----Original Message-----

From: DeBerry, Jeremiah A. [mailto:JeremiahDeberry@paulhastings.com] Sent: Monday, November 26, 2001 5:18 PM
To: Mann, Kay Subject: Montana Megawatts I, LLC

Kay, please advise me via e-mail of the results of your discussion with Steve Swift.

Also, please confirm to me via e-mail that you will send to me via facsimile, simultaneously with the the payment of the "Remaining Purchase Amount Refund Amount", copies of the certificate evidencing Enron's 20% interest in Montana Megawatts I, LLC along with the Membership Interest Power, executed by Enron. In addition, I ask that you forward originals of such documents to me via overnight courier for next day delivery.

Please do not hesitate to contact me with any questions.

Thanks. ***** Jeremiah A. DeBerry, Esq. Paul Hastings Janofsky & Walker LLP 399
Park Avenue New York, New York 10022 Phone: (212) 318-6458 Fax: (212) 230-7754

"paulhastings.com" made the following annotations on 11/26/01 18:17:41

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Message 129 of 371

ENA / Coral Turbine Transaction	
Sender	kay.mann@enron.com
Recipients	['roger.ondreko@enron.com', 'matthew.gockerman@enron.com', 'Ben.F.Jacoby@enron.com'] <Ben.F.Jacoby@enron.com'...
File	mann-k/_sent_mail/2502.

FYI. Most recent versions. Matt, sorry I missed you call.

Roger, does signing the letter agreement cause any balance sheet problems? We anticipate closing a few days later.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 12/10/2000 01:52 PM -----

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 12/09/2000 10:50:09 AM To: "gkutzxchbach@fulbright.com" <gkutzxchbach@fulbright.com>, "areynaud@coral-energy.com" <areynaud@coral-energy.com>, "dwhaley@coral-energy.com" <dwhaley@coral-energy.com>, "TSeigler@coral-energy.com" <TSeigler@coral-energy.com> cc: "Ben.F.Jacoby@enron.com" <Ben.F.Jacoby@enron.com>, "Kay.Mann@enron.com" <Kay.Mann@enron.com>, "Keffer, John" <JKeffer@KSLAW.com>

Subject: ENA / Coral Turbine Transaction

<<2RR401!.DOC>> <<2R6LRED.DOC>> <<2RM3RED.DOC>> <<2RLSRED.DOC>> <<2R6KRED.DOC>>

We have enclosed the following documents for your review:

1. Closing Checklist
2. Revised draft of the Letter Agreement for CA Energy Development I, LLC, marked to reflect revisions from the draft circulated by Fulbright and Jaworski on 12-08-2000;
3. Revised draft of the Letter Agreement for CA Energy Development II, LLC, which is identical to the enclosed Letter Agreement for CA Energy Development I, LLC, marked to reflect revisions from the draft circulated by King & Spalding on 12-08-2000;
4. Revised draft of the Letter Agreement for CA Energy Development II, LLC pertaining to the transformer, marked to reflect revisions from the draft circulated by King & Spalding on 12-08-2000; and
5. Revised draft of the Liability Company Agreement of CA Energy Development I, LLC, marked to reflect revisions from the draft circulated by King & Spalding on 12-08-2000.

The conference call to discuss the enclosed documents has been rescheduled. Please note the following dial in number and password, as well as the new date and time. Thank you.

Date: Sunday, December 10 Time: 2:00 p.m. Central Time Dial In: 877-232-0064 Password: 25581#

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

Enclosures: 129280v1 128541vR12/11 129099v3/2 129088v4/3 128540v8/7

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- 2RR401!.DOC - 2R6LRED.DOC - 2RM3RED.DOC - 2RLSRED.DOC - 2R6KRED.DOC

Message 130 of 371

Re: Peoples Transaction

Sender	kay.mann@enron.com
Recipients	[gregg.penman@enron.com', 'Kay.Mann@enron.com']
File	mann-k/discussion_threads/1411.

Looks like the changes are relatively minor, but I feel better! ----- Forwarded by Kay Mann/Corp/Enron on 11/21/2000 03:40 PM -----

"William J. Harmon" <wjharmon@JonesDay.com> on 11/21/2000 02:51:55 PM To: "Boyd J. Springer" <bjspringer@JonesDay.com> cc: gregg.penman@enron.com, Kay.Mann@enron.com

Subject: Re: Peoples Transaction

Attached is the "term sheet" with some suggested revisions (identified by strikethrough and underlining). We suggest that you simply call the "late charges" interest rather than any other term. This type of business transaction is exempt from the usury statute in terms of any maximum rate and thus it is best to make it clear that the late charge is "interest" rather than something else. The other changes I made were merely to clarify the method of calculating the interest on overdue amounts. I note the the contract you provided does include a provision for interest on overdue invoice amounts. Under the contract, interest is the Citibank prime rate. I assume you will set this term sheet up as an amendment to the agreement. (See attached file: Payment Delay Term Sheet.doc)

Please contact us if there are any other questions.

Bill Harmon wjharmon@jonesday.com 312-269-4160 Fax: 312-782-8585

Boyd J. Springer Extension 54151 To: Kay.Mann@enron.com cc: gregg.penman@enron.com, 11/21/00 11:52 William J. Harmon/JonesDay@JonesDay AM Subject: Re: Peoples Transaction (Document link: William J. Harmon)

Kay: Bill Harmon from our office (312-269-4160) is reviewing the material re deferred payment and will get back to you.

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- Payment Delay Term Sheet.doc

Message 131 of 371

Ledford-Titan Option to Purchase

Sender	kay.mann@enron.com
Recipients	['kathleen.carnahan@enron.com', 'fred.mitro@enron.com\'' <fred.mitro@enron.com']
File	mann-k/_sent_mail/3326.

fyi ----- Forwarded by Kay Mann/Corp/Enron on 10/02/2000 01:25 PM -----

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 10/02/2000 12:22:33 PM To: "kay.mann@enron.com" <kay.mann@enron.com> cc: "fred.mitro@enron.com" <fred.mitro@enron.com>, "rusty.stevens@enron.com" <rusty.stevens@enron.com>, "Shindler, Donald A. - CHI" <Donald.Shindler@piperrudnick.com>, "Townsend, Christopher J. - CHI" <chris.townsend@piperrudnick.com>

Subject: Ledford-Titan Option to Purchase

Kay: Per my voicemail, at the request of the Ledfords, Fred and Rusty have agreed to limit the easement area in the Option for Purchase and Grant of Easement between the Ledfords and Titan Development to a 100' area adjacent to the railroad right-of-way. The following reflects that modification to the third "whereas" in the Ledford-Titan Option incorporated this morning following my conversations with Fred and Rusty. WHEREAS, Optionors desire to grant to Optionee, and Optionee desires to obtain from Optionors, an option for the grant of an easement in, over and within the strip of land 100' wide in Parcel 2 (defined below) which is immediately adjacent to and east of the railroad right-of-way for the installation of drain tiles, pipelines, and other utility uses across other property owned by Optionors ("Parcel 2"), as more particularly described in Exhibit B attached hereto and incorporated herein by this reference (the "Easement");

Additionally, I have received a fax copy of the executed Fehr agreement. I am stopping by their attorney's office today to pick up the originals and to put together the joint counterpart signatures. I am also meeting with the Ledford's attorney this afternoon and hope to finalize the execution of that Option as well. I will fax you the fully executed copies tomorrow morning when I return to the office and the original versions will follow by fed ex. Please call either Mark Gershon or me on Mark's cell phone 847-869-2015 with any questions or comments. Thank you.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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Enron/Delta Turbine Transaction/ Comments to Letter Agreement	
Sender	gregorylang@paulhastings.com
Recipients	['dvanech@deltapower.com', 'srahman@deltapower.com', 'jake.thomas@enron.com', 'kay.mann@enron.com', 'rvicens@d...]
File	mann-k/panda/22.

"paulhastings.com" made the following annotations on 03/20/01 19:23:16

NEW E-MAIL ADDRESSES AT PAUL, HASTINGS, JANOFSKY & WALKER LLP

We have changed our e-mail address. Our new domain name is paulhastings.com. In most cases, our address is composed of conventional first name and last name plus @paulhastings.com. Here are two examples: janesmith@paulhastings.com and danjones@paulhastings.com. If you have any questions, please contact us at noc@paulhastings.com.

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Per our conversations on Friday and our discussions with our clients at Delta today, attached please find a pdf file that contains a draft timeline for the transaction and our comments to the Letter Agreement. ? Please note that many of our comments reflect?a change to the structure whereby the Escrow Agent would ultimately pay out the ENA fee and the progress payments to GE under the Turbine Contract on behalf of the LLC.??We prefer this structure and believe it?does not alter the underlying economics of the deal.? It is also our understanding that Enron has agreed to a financing condition precedent to DAL's obligation to make the initial deposit into the Escrow Account and our mark-up reflects this understanding. ? Regarding the LLC Agreement, our principal comment is to add an allowance for a pledge of the DAL Membership Interest without consent in connection with third party financing in Section 6.1(c) thereof.? Of course other changes to conform the Letter Agreement may be needed as well. ? We will provide additional comments to the draft Guaranty tomorrow; however, we will expect that the obligations be capped at specific dollar amount and that the term of the Guaranty would end upon the earliest occurrence of any of the events set forth in Section 5.3(c) of the Letter Agreement.? We will also need to discuss changes to the Escrow Agreement in light of our comments to the Letter Agreement. ? In the interests of time, we are distributing these comments?before our?clients have had time to review them. As such, they remain subject to their further comments and review.? Please feel free to contact John Hawkins or me with regard to any of the foregoing. We look forward to discussing our comments with you at your earliest convenience. ? Greg Lang ? ? ? Gregory F. Lang Paul, Hastings, Janofsky & Walker LLP 1055 Washington Blvd. Stamford, CT 06901 ? 203.961.7446 (p) 203.674.7646 (direct fax) 203.359.3031 (firm fax) gregorylang@paulhastings.com ? - Stamford.pdf

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FW: Nov. 21 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'sharon.butcher@enron.com', 'clement.abrams@enron.com']
File	mann-k/deleted_items/114.

User iD: enronatd PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON Sent: Tuesday, November 20, 2001 11:26 PM To: BNA Highlights
Subject: Nov. 21 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Wednesday, November 21, 2001

ISSN 1526-520X

HIGHLIGHTS

MICROSOFT SETTLES CLASS ACTION SUITS; FIVE-YEAR EDUCATION PROGRAM PROPOSED Microsoft Corp. would provide computer technology to disadvantaged schools to settle more than 100 class action lawsuits alleging overpricing of Microsoft products, the company announced Nov. 20.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y7M5Y0_

INTERNET FIRM, HEAD SETTLE FTC CHARGES OF MISREPRESENTATION IN DATA COLLECTION The operator of a Web site that offered to pay monthly Internet access fees for consumers who completed monthly surveys and paid a one time setup fee, will refrain from collecting or disclosing personal information obtained by alleged misrepresentations, according to a proposed settlement with the Federal Trade Commission announced Nov. 20 ("FTC v. Millennium Concepts Inc., "N.D. Ill., No. 01 C 3797, Nov. 20).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y7M6B6_

FTC THWARTS CREDIT CARD OPERATION TO CONSUMERS WITH NEGATIVE CREDIT HISTORIES Several California defendants will refrain from representing themselves as a MasterCard or Visa operation, offering zero percent interest rate gold cards to consumers with negative credit histories, and promising high credit limits, according to a temporary restraining order entered in the U.S. District Court for the Central District of California ("FTC v. Salyon Inc., "C.D. Cal., No. 01-9273 NM (EX), 10/29/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y7M6D6_

FCC MULLS IMPOSING NATIONAL STANDARDS ON PHONE FIRMS' WHOLESALE ACCESS SERVICE The Federal Communications Commission Nov. 20 announced that it is considering adopting national performance standards to monitor how incumbent local phone companies provide service to their competitors that links customers up to the upstart phone companies.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y7M6F1_

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FW: Nov. 27 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	[jim.armogida@enron.com] , [sharon.butcher@enron.com] , [clement.abrams@enron.com]
File	mann-k/deleted_items/159 .

User iD: enronatd PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON Sent: Monday, November 26, 2001 11:20 PM To: BNA Highlights
Subject: Nov. 27 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Tuesday, November 27, 2001

ISSN 1526-520X

HIGHLIGHTS

VERIZON SEEKS LONG-DISTANCE GO AHEAD IN RHODE ISLAND FROM REGULATORS Local phone company Verizon Communications Nov. 26 told federal regulators it has opened up its Rhode Island market to competition sufficiently to gain entry into the state's long-distance market.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y9U4G9_

FEDERAL COURT TEMPORARILY HALTS ILLINOIS CREDIT CARD SERVICE, PER FTC The operations of three Illinois companies were temporarily shut down, their assets frozen, and a receiver appointed at the request of the Federal Trade Commission and Illinois Attorney General, according to a Nov. 26 announcement ("FTC v. 1st Financial Solutions Inc., "N.D. Ill., No. 01-C8790, 11/20/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y9U3Z6_

NEW JERSEY DEFENDANTS SETTLE ADVANCE FEE LOAN ACCUSATIONS A New Jersey company and its principals will pay \$239,793 in consumer redress to resolve accusations that they engaged in the deceptive telemarketing of advance fee VISA(R) or MasterCard(R) credit cards, according to a consent judgment entered in the U.S. District Court for the District of New Jersey ("FTC v. Financial Services of North America Inc., "D.N.J., No. 002-2792-2792 (GEB), 10/31/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y9U4B3_

CIRCUIT DIVIDES OVER ENFORCEMENT OF ANTITRUST SETTLEMENT AGREEMENT A district court's summary enforcement of a settlement agreement in an antitrust dispute between Ohio real estate brokerage firms survives a challenge by one party, as a divided U.S. Court of Appeals for the Sixth Circuit parries an attack on the district court's subject matter jurisdiction and declines to find an abuse of discretion in the enforcement order ("Re/Max International, Inc. v. Realty One, Inc., "6th Cir., No. 01-4235, 11/9/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y9U4D5_

Antitrust & Trade Regulation Daily (ISSN 1526-520X) Highlights are published daily by The Bureau of National Affairs, Inc., 1231 25th St., NW, Washington, DC 20037.

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Message 135 of 371

Corp Services Authorization Memos

Sender	deb.korkmas@enron.com
Recipients	['angela.davis@enron.com', 'alan.aronowitz@enron.com', 'ann.white@enron.com']
File	mann-k/all_documents/3843.

See new authorization forms attached below. Deb

Deb Korkmas EWS Legal Dept. 1400 Smith Street, Room 3819 Houston, TX 77002 Phone: 713-853-5448 Fax: 713-646-3393 ----- Forwarded by Deb Korkmas/HOU/ECT on 03/02/2001 01:22 PM -----

Geneva Holland/ENRON@enronXgate 02/23/2001 05:25 PM

To: John Ale/HOU/AZURIX@AZURIX, Elizabeth Labanowski/ENRON@enronXgate, Bruce Lundstrom/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Marc Manly/HOU/EES@EES, Jordan Mintz/ENRON@enronXgate, Kristina Mordaunt/Enron Communications@Enron Communications, Eric Newell/EWC/Enron@ENRON, Janet Place/NPNG/Enron@ENRON, Molly Sample/Houston/Eott@Eott, John

Schwartzburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Vicki Sharp/HOU/EES@EES, Stephen Wallace/Corp/Enron@ENRON, Rob Walls/ENRON@enronXgate, Randy Young/NA/Enron@Enron, Denise Almoina/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Martha Braddy/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, William E Brown/ENRON@enronXgate, Sarah Bruck/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Cindy Buckley/LON/ECT@ECT, Kathleen Carnahan/NA/Enron@Enron, Kim Collins/HOU/EES@EES, Julie Delahay/EWC/Enron@ENRON, Rosy Duron/ENRON@enronxgate, Carol Essig/ENRON@enronXgate, Nony Flores/HOU/ECT@ECT, Brenda L Funk/ENRON@enronXgate, Lauren Hagerty/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Barbara Hankins/HOU/EES@EES, Ed B Hearn III/HOU/ECT@ECT, Mary J Heinitz/HOU/ECT@ECT, Robin Hill/Enron Communications@Enron Communications, Gina Karathanos/ENRON@enronXgate, Sue Kelly/LON/ECT@ECT, Deb Korkmas/HOU/ECT@ECT, Matt Maxwell/Corp/Enron@ENRON, Darlene McKeever/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Wyndel McNamara/NA/Enron@ENRON, Stephanie Moorehead/HOU/EES@EES, Nancy Muchmore/NA/Enron@Enron, Mary Ogden/HOU/ECT@ECT, Larry Pardue/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Claudia Santos/Corp/Enron@Enron, Tami Scrudder/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Norma Tidrow/HOU/AZURIX@AZURIX cc: Hardie Davis/ENRON@enronXgate, Rebecca Carter/Corp/Enron@ENRON, Lillian Bailey/ENRON@enronXgate, Teresa Callahan/ENRON@enronXgate, Kate Cole/ENRON@enronXgate, Irene Garcia/ENRON@enronXgate, LaShonda LaDay/ENRON@enronXgate, Peggy Miller/ENRON@enronXgate, Lori Pinder/ENRON@enronXgate, Renee Rodriguez/ENRON@enronXgate, Tanya Sanford/ENRON@enronXgate Subject: Corp Services Authorization Memos

Attached are 3 updated Word forms for requesting new US entities (Corp, LLC, LP). Unless you have access to our automated HotDocs system for requesting Secretary of State corporate activities, please use the attached forms (and delete data files for older versions). Although these forms are not as user friendly as our HotDocs templates, they have been conformed as nearly as possible to the HotDocs forms, and are now as automated as MicroSoft Word will allow. I think you will find these a great improvement over our old forms. Please forward these new forms to anyone in your group who might need to create a new domestic entity.

I continue work on HotDocs templates and Word forms for authorization of US mergers, acquisitions, name changes, and for similar activities for non-US entities, and will make those available to you ASAP. In the meantime, if you have any questions or comments regarding Corp Services forms, please contact me via email or call me at Ext 37291.

Geneva K. Holland Asst Secretary & Mgr Corp Svcs (713)853-7291 EB4802

Message 136 of 371

Re: Schaeffer Property - Livingston County, Illinois	
Sender	kay.mann@enron.com
Recipients	['kathleen.carnahan@enron.com', 'Rusty Stevens/Corp/Enron@ENRON']
File	mann-k/sent/1319.

----- Forwarded by Kay Mann/Corp/Enron on 11/01/2000 11:28

AM -----

Fred Mitro@ECT 10/11/2000 10:46 AM To: Kay Mann/Corp/Enron@ENRON cc: Rusty Stevens/Corp/Enron@ENRON

Subject: Re: Schaeffer Property - Livingston County, Illinois

Kay:

The Fehrs and Ledfords did sign their respective option agreements last week prior to our Zoning Board of Appeals meeting. I am expecting Karen Way to forward you an executed original copy of each agreement. I will check with her on the status of this.

With regard to the policy, I understand your point. Rusty and I will work to better co-ordinate with you in the future. Perhaps we can lever off of Kathleen for agreements such as the Schaeffer option.

Let me know.

Fred

From: Kay Mann @ ENRON 10/10/2000 08:51 AM

To: Rusty Stevens/Corp/Enron@ENRON, Fred Mitro/HOU/ECT@ECT cc: Subject: Schaeffer Property - Livingston County, Illinois

Hi Guys,

Enron policy requires that the assignment of tasks to outside counsel go through (or at least be coordinated with) the legal department. In the future, please let me know what you need so that there can be some order to the process.

Did the Fehrs and Ledfords sign the option agreements?

Thank you,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 10/10/2000 08:47 AM -----

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 10/09/2000 02:52:14 PM To: "kay.mann@enron.com" <kay.mann@enron.com> cc: "rusty.stevens@enron.com" <rusty.stevens@enron.com>, "fred.mitro@enron.com" <fred.mitro@enron.com>, "Gershon, Mark A. - CHI" <Mark.Gershon@piperrudnick.com>, "Townsend, Christopher J. - CHI" <chris.townsend@piperrudnick.com>, "Shindler, Donald A. - CHI" <Donald.Shindler@piperrudnick.com>

Subject: Schaeffer Property - Livingston County, Illinois

Kay:

This morning, Rusty requested that we prepare an Option Agreement for the 29 acre parcel west of the Livingston Energy Center. This property could be used as a construction laydown site, but more importantly would provide a sound buffer for the project. It is our understanding that the Option Agreement is to be presented to the property owner at some point next week. We will forward a draft of the agreement to you no later than Monday, October 16, 2000. Please feel free to call me or Don Shindler (312-368-2175) with any questions regarding the agreement. Best regards.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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Message 137 of 371

FW: Nov. 20 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'sharon.butcher@enron.com', 'clement.abrams@enron.com']
File	mann-k/deleted_items/80.

User ID: enronatd PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON Sent: Monday, November 19, 2001 11:24 PM To: BNA Highlights
Subject: Nov. 20 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Tuesday, November 20, 2001

ISSN 1526-520X

HIGHLIGHTS

ANTITRUST LEGISLATION WOULD LEVEL PLAYING FIELD BETWEEN PLANS, PROVIDERS, AMA SAYS Congress needs to craft antitrust legislation that levels the playing field between health insurers and physicians because the imbalance of power towards health plans hampers the providers' ability to effectively care for patients, an official with the American Medical Association said Nov. 19.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y6M5C9_

FTC ALERTS E-TAILERS OF VARIOUS RULES FOR UPCOMING HOLIDAY SEASON Seventy-two letters were sent to e-tailers advising them of various Federal Trade Commission rule requirements after a recent surf of 110 Internet retailers revealed potential violations, the FTC's Division of Enforcement announced Nov. 19.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y6M5E3_

FTC, FDA, STATES WARN WEB SITES SELLING BIOTERRORISM RELATED PRODUCTS After a coordinated Internet search, the Federal Trade Commission sent nearly 40 e-mail warnings to operators of Web sites claiming that products and therapies they offered would prevent, treat, or cure anthrax, smallpox, or other health hazards.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y6M5G0_

SBC GETS LONG-DISTANCE OK IN TWO STATES; FCC TO TACKLE BROADER DSL RESALE QUESTION The Federal Communications Commission Nov. 16 unanimously agreed to allow local phone company SBC Communications Inc. to provide long-distance services in Missouri and Arkansas.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y6M5J1_

EU LAUNCHES INVESTIGATION OF AD-HOC AID GIVEN TO PORTUGUESE PUBLIC BROADCASTER RTP The European Commission on Nov. 13 began a formal state aid investigation over various ad-hoc measures granted to the Portuguese public broadcaster Radio Televisão Portuguesa SA.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y6M5M1_

EU INITIATES STATE AID PROBE OF RENAULT'S VALLADOLID PLANT A detailed state aid investigation regarding [euro]18 million in aid earmarked for the Renault plant in Valladolid was launched on Nov. 13 by the European Commission.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y6M5N7_

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Message 138 of 371

Re: Schaeffer Property - Livingston County, Illinois

Sender	kay.mann@enron.com
Recipients	['Rusty Stevens/Corp/Enron@ENRON', 'fred.mitro@enron.com']
File	mann-k/_sent_mail/3237.

Fred,

I think Kathleen will be a big help to all of us in improving the flow of paper. I trust her to work up initial drafts of option agreements, subject to my quick review and the review of local counsel.

Thanks for your cooperation.

kay

Fred Mitro@ECT 10/11/2000 10:46 AM To: Kay Mann/Corp/Enron@ENRON cc: Rusty Stevens/Corp/Enron@ENRON

Subject: Re: Schaeffer Property - Livingston County, Illinois

Kay:

The Fehrs and Ledfords did sign their respective option agreements last week prior to our Zoning Board of Appeals meeting. I am expecting Karen Way to forward you an executed original copy of each agreement. I will check with her on the status of this.

With regard to the policy, I understand your point. Rusty and I will work to better co-ordinate with you in the future. Perhaps we can lever off of Kathleen for agreements such as the Schaeffer option.

Let me know.

Fred

From: Kay Mann @ ENRON 10/10/2000 08:51 AM

To: Rusty Stevens/Corp/Enron@ENRON, Fred Mitro/HOU/ECT@ECT cc: Subject: Schaeffer Property - Livingston County, Illinois

Hi Guys,

Enron policy requires that the assignment of tasks to outside counsel go through (or at least be coordinated with) the legal department. In the future, please let me know what you need so that there can be some order to the process.

Did the Fehrs and Ledfords sign the option agreements?

Thank you,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 10/10/2000 08:47 AM -----

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 10/09/2000 02:52:14 PM To: "kay.mann@enron.com" <kay.mann@enron.com> cc: "rusty.stevens@enron.com" <rusty.stevens@enron.com>, "fred.mitro@enron.com" <fred.mitro@enron.com>, "Gershon, Mark A. - CHI" <Mark.Gershon@piperrudnick.com>, "Townsend, Christopher J. - CHI" <chris.townsend@piperrudnick.com>, "Shindler, Donald A. - CHI" <Donald.Shindler@piperrudnick.com>

Subject: Schaeffer Property - Livingston County, Illinois

Kay:

This morning, Rusty requested that we prepare an Option Agreement for the 29 acre parcel west of the Livingston Energy Center. This property could be used as a construction laydown site, but more importantly would provide a sound buffer for the project. It is our understanding that the Option Agreement is to be presented to the property owner at some point next

week. We will forward a draft of the agreement to you no later than Monday, October 16, 2000. Please feel free to call me or Don Shindler (312-368-2175) with any questions regarding the agreement. Best regards.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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For more information about Piper Marbury Rudnick & Wolfe, please visit us at <http://www.piperrudnick.com/>

Message 139 of 371

Re: GE Language	
Sender	scott.dieball@enron.com
Recipients	['john.schwartzburg@enron.com', 'kay.mann@enron.com', 'brian.barto@enron.com']
File	mann-k/ge_general/19.

See my comments in blue below.

To: Scott Dieball/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Brian D Barto/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, John Schwartzburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Martin W Penkwitz/NA/Enron@Enron, Roseann Engeldorf/Corp/Enron@ENRON, Sheila Tweed/HOU/ECT@ECT, Ben Jacoby/HOU/ECT@ECT cc:

Subject: GE Language

I'm not particularly wild about many of the changes proposed by GE. Agree. Seems that it would be a good idea to get a consensus on how to respond. Here are the issues I see:

Indemnity issues: They should indemnify us from claims by their employees/subcontractors. Kay - Is your comment in connection with GE's comment to Section 27.1(iii) (carve out of the 100% LOL for "gross acts" of its subcontractors, vendors, ect.)? GE is in an aggressive outsource mode and needs to remain solely and totally responsible for the actions and liabilities for its subcontractors and vendors. I think Section 20.2(a) as written covers simple negligence of GE's subcontractors and vendors and I would argue that we need to keep Section 27.1(iii) as written dealing with gross negligence of GE's subcontractors and vendors. Indemnity should be triggered by strict liability as well as negligence. Agree - Maybe we could agree to GE's strike out in 20.2(a) provided the phrase "negligent or willfully wrongful" is replaced with "negligent, at fault or strictly liable without fault" (or some variation thereof). What is a cognizant government? Don't know! This was not discussed with Mike so I am not sure what is the meaning of adding this term. We need to also think in terms of how we could be harmed in a situation where GE fails to comply with law, and instead of Enron incurring a monetary penalty, is ordered to shut down the facility.

Limit of liability issues: They want to limit their indemnity obligations for complying with laws, patent infringement, liability for haz. waste and liens to 100% of purchase price. They want the limit of liability to apply to gross negligence, if possible. Agree - See 1st comment above re indemnity. They don't want to clarify that they have to indemnify us for another party's claim for consequential (as in a personal injury claim). Agree.

We've don't have anything concrete on assignment yet. Agree.

Comments? I suggest we get together before our next scheduled conf. call to discuss our game plan.

Sheila has asked that we change Wednesday's call to 1100 Central, or 100 Central if 1100 doesn't work. Is this a problem? Works for me...just let me know when, where, ect.

Kay

They should have to ----- Forwarded by Kay Mann/Corp/Enron on 09/11/2000 04:07 PM -----

michael.barnas@ps.ge.com on 09/07/2000 07:46:07 PM To: stephen.swift@ps.ge.com, Sheila.Tweed.@enron.com, Roseann.Engeldorf@enron.com, Kay.Mann@enron.com, Scott.Dieball@enron.com, Martin.W.Penkwitz@enron.com cc: kent.shoemaker@ae.ge.com

Subject: GE Language

Folks,

Having conferred at last with my colleagues, I can now forward to you our draft language for the Indemnity and LOL clauses. As Steve mentioned in his earlier message, he has suggested some issues to discuss which could bring us closer to resolution on that issue. Please let me know if you have any question!

Best regards,

Mike g _____ Michael C. Barnas Counsel, Power Plants Commercial Operations GE Power Systems One River Road - Building 37, Room 307 Schenectady, NY 12345 USA Phone 8*235-7602 (518) 385 7602 Fax 8*235 5466 (518) 385 5466 Mobile 518 369 9538

- MajorClausesGE01.doc

Message 140 of 371

RE: NLR & Benton Purchase Power RFP

Sender	reagan.roschach@enron.com
Recipients	['heather.kroll@enron.com', 'rudy.acevedo@enron.com', 'kay.mann@enron.com']
File	mann-k/inbox/292.

Keep it simple and just buy it off them. No JV stuff.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Wednesday, November 14, 2001 9:01 AM To: Rorschach, Reagan; Kroll, Heather; Acevedo, Rudy
Subject: RE: NLR & Benton Purchase Power RFP

Is your thought on the Dynegy role to have them contract with Enron, taking their profit in how they price OR enter into some type of joint venture/joint bidding arrangement? I know you don't know what they might want to do, but I was curious as to your starting position.

-----Original Message-----

From: Rorschach, Reagan Sent: Wednesday, November 14, 2001 8:52 AM To: Kroll, Heather; Mann, Kay; Acevedo, Rudy
Subject: FW: NLR & Benton Purchase Power RFP

Kay, attached is the letter from NLR regarding our proposal.

Summary of the Cities of NLR and Benton, Arkansas deal:

assist Cities with network transmission service agreements with Entergy assist with initialization of OASIS, TSIN, and JTSIN transmission reservation accounts telemetering load from NLR SCADA and Benton's meters to Enron control room perform load forecasting manage NLR's Murray Hydro facility to serve NLR load deliver wholesale energy to match NLR and Benton loads inclusive of losses as an "into Entergy" product deliver wholesale energy such that network transmission

can be used to sink energy to NLR and Benton native loads provide real time, day ahead, and term trading; scheduling and transmission reservations/services; volume management; settlements; and control room services arrange for ancillary services related to native load including Entergy OATT Schedules 1 through 6 provide NLR and Benton with a fixed price for energy and ancillary services through the life of contract provide NLR and Benton with option to extend agreement for 3 additional years.

NLR Issues with Enron Proposal:

Your price is greater than 15% from the best price offer. A substantial improvement in price would be necessary to receive further consideration. You have identified no resources inside of Entergy's control area. If you can point to resources inside of Entergy's control area you may improve your position. You did not utilize dynamic scheduling for the scheduling of generation to match load. You may improve your position by offering dynamic scheduling. The Cities desire a fixed cost over the term of the contract. You may improve your position by including any increases in the Cities' cost for Network Transmission Service over the term of the contract in your costs. The Negotiation Committees are alarmed by the recent developments concerning Enron's losses and the downgrading of Enron's securities. Significant financial assurance would be required before the Negotiating Committee's would further consider Enron.

What We'd Like to Do With Dynegy:

Provided we can win the project, we'd like to do the following:

name generation to satisfy point #2 use Dynegy base load generation assets to dynamically schedule the NLR and Benton loads name Dynegy assets as network resources

Note that we have not talked with Dynegy about any of this and any deal would be subject to mutual agreement and negotiation.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Gertsch, Joe [mailto:JGertsch@nlrelectric.com] Sent: Monday, November 12, 2001 5:10 PM To: Rorschach, Reagan Subject: NLR & Benton Purchase Power RFP

Reagan:

Attached is the letter I promised regarding Enron's position relative to the other proposals.

Joe Gertsch

<<Enron LTR.doc>>

Message 141 of 371

FW: Nov. 23 -- BNA, Inc. Antitrust & Trade Regulation Daily

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'sharon.butcher@enron.com', 'clement.abrams@enron.com']
File	mann-k/deleted_items/118.

User ID: enronatd PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON Sent: Thursday, November 22, 2001 11:25 PM To: BNA Highlights Subject: Nov. 23 -- BNA, Inc. Antitrust & Trade Regulation Daily

ANTITRUST & TRADE REGULATION DAILY Highlights Friday, November 23, 2001

ISSN 1526-520X

HIGHLIGHTS

HEARST TO DIVEST DRUG DATABASE, PAY \$19 MILLION, TO SETTLE FTC CHARGES The Hearst Corporation has agreed to sell off a drug database company, and to pay \$19 million, to settle an antitrust complaint by the Federal Trade Commission, the agency announced Nov. 20.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y8K1D6_

LAWMAKERS QUERY VERIZON'S TAUKE ON COMPETITIVE PHONE FIRM ACCESS Two members of the House Commerce Committee Nov. 20 pressed a Verizon Communications official to explain how it plans to share its network with competitors if legislation is passed that deregulates Bell companies' broadband services.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y8K1F1_

EC PURSUIT OF MICROSOFT WILL BE 'DISTINCT' FROM U.S. APPROACH; HEARINGS IN DECEMBER BRUSSELS--The European Commission has no plans to expand its investigation against Microsoft Corp. and pursue antitrust violations that were at the heart of an out-of-court settlement the world's leading software maker recently reached with the U.S. Justice Department.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y8K1G1_

EU SLAPS GLOBAL VITAMIN CARTEL WITH FINES OF \$800 MILLION; HOFFMAN-LA ROCHE HIT HARD BRUSSELS--Two years after American antitrust officials reached the same conclusion, the European Commission levied approximately \$800 million in fines against eight European and Asian companies for orchestrating a range of cartels to control the sale of vitamins on the world market, the commission announced Nov. 21.

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y8K1G8_

SENIOR CITIZENS' GROUP, OTHERS BRING SUIT SEEKING DAMAGES FOR GLAXO PRICING PRACTICES Advocates for senior citizens asked a federal district court Nov. 16 to declare that the pharmaceutical company GlaxoSmithKline PLC illegally inflated the prices of Medicare-covered drugs, at the expense of consumers, health plans, and taxpayers ("Action Alliance of Senior Citizens v. GlaxoSmithKline PLC, "E.D. Pa., No. 01-CV-5790, filed 11/16/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y8K1K4_

CLASS ACTION ALLEGATIONS OF EGG PRICE FIXING IN CALIFORNIA WON'T BE REVIVED Consumers in Southern California cannot persuade the California Court of Appeal, Fourth Appellate District, to reinstate a class action charging grocers with conspiring to fix the price of eggs in violation of the Cartwright Act and California's unfair competition law ("McCampbell v. Ralphs Grocery Co., "Cal. Ct. App., 4th Dist., No. D034834, 11/6/01).

http://pubs.bna.com/ip/BNA/atd.nsf/id/A0A4Y8K1M7_

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Message 142 of 371

Re: coop city outline

Sender	kay.mann@enron.com
Recipients	['jrmotel@llgm.com']
File	mann-k/_sent_mail/1805.

Thanks. Do you have some free time today? I'm not sure about our schedule, but if we have free time which matches up with you, I would like to spend some time discussing the issues.

Kay

"JON R MOSTEL" <JRMOSTEL@LLGM.COM> on 02/01/2001 08:36:23 AM To: Kay.Mann@enron.com cc:

Subject: Re: coop city outline

Kay:

Thanks for the update. I thought I'd reply so you would have my e-mail address available.

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Jon R. Motel LeBoeuf, Lamb, Greene & MacRae, LLP 125 West 55th Street New York, N.Y. 10019 Tel.: (212) 424-8220
Fax: (212) 424-8500 jrmotel@llgm.com

<Kay.Mann@enron.com> 02/01/01 09:36AM >>>

Hi John,

Mark and I are still working at the hotel, waiting to hear from the counterparty.

Could you forward this to Jon? I don't have his email address.

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 02/01/2001 08:34 AM -----

"Mark Bernstein" <delivertomark@hotmail.com> on 02/01/2001 08:30:37 AM

To: kay.mann@enron.com cc:

Subject: coop city outline

Kay,

I don't have the "sent" e-mail, but here is my outline:

thank

ASSET MANAGEMENT 1. Every December 1 the benchmark is set for next year's gas cost. The benchmark is adjusted for basis and transport. 2. The benchmark for gas purchases will be adjusted for a gas load factor to account for the non-block nature of gas consumption. 3. Enron will serve full requirements power and steam at the benchmark cost. 4. If unit 1 is down, Enron will serve Co-op City based on prevailing gas market price. 5. If Enron does nothing but serve power and steam from the project, actual cost will equal benchmark cost and Enron earns nothing. 6. If Enron can shut down the generators and buy power cheaper from the market than it could generate and sell the gas for a profit, the net reduces the average cost of gas. 7. Enron is only incentivized to buy gas and sell power or buy power and sell gas if there is a net benefit to Co-op City 8. A Co-op City book will be kept and audited to keep track of the gas and power purchases and sales to calculate the asset management performance.

DEVELOPMENT RISK CAPITAL 1. Enron will commit development risk capital for: Permit preparation and application Preliminary engineering Site due diligence Securing turbines 1. Need to negotiate terms for development agreement

ENGINEERING, PROCUREMENT AND CONSTRUCTION 1. Enron will perform EPC services at cost plus up to an estimate. The plus however, is not at risk. 2. The EPC contract must be executed after the asset management agreement so that there is no appearance of consideration between the two agreements. 3. Commercial operations date will float relative to the issuance of permits.

OPERATIONS 1. Enron will dispatch the plant and procure gas and power so as to maximize plant efficiency and economics per the asset management agreement.

MAINTENANCE 1. Enron will act as agent on behalf of Co-op City to negotiate a long term maintenance agreement, with a third party, subject to Co-op City's approval. 2. Enron will manage the maintenance contract and coordinate planned outages so as to maximize project value under the asset management agreement.

Get your FREE download of MSN Explorer at <http://explorer.msn.com>

Message 143 of 371

Re:	
Sender	kay.mann@enron.com
Recipients	['carlos.sole@enron.com', 'suzanne.adams@enron.com']
File	mann-k/all_documents/3903.

Good. I hadn't heard back from them.

From: Carlos Sole on 03/06/2001 03:27 PM To: Kay Mann/Corp/Enron@Enron cc: Suzanne Adams/HOU/ECT@ECT

Subject: Re:

We do. Steve just left me a message confirming that.

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

Kay Mann 03/06/2001 03:21 PM

To: Suzanne Adams/HOU/ECT@ECT cc: Carlos Sole/NA/Enron@Enron Subject:

Please call Jake Thomas and Steve Thome in Portland and see if we can have a conference call at 500 Houston time.

Thanks,

Kay

Message 144 of 371

RE: Water Supply Agreement	
Sender	william.fleenor@enron.com
Recipients	['carlos.sole@enron.com', 'kay.mann@enron.com', 'herman.manis@enron.com']
File	mann-k/all_documents/6248.

Please see comments therein.

-----Original Message-----

From: Sole, Carlos Sent: Wednesday, May 30, 2001 10:18 PM To: Manis, Herman; Fleenor, William Subject: Water Supply Agreement

Please review and comment on the attached. In particular, you will note that the Notice to Proceed concept is addressed in Article V. Thanks and as Kay repeatedly indicated in her voicemail, I am out on vacation until Monday.

<< File: Water Supply Agreement for Hart County.DOC >>

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

Message 145 of 371

Storage Invoices

Sender	chris.booth@enron.com
Recipients	['ben.jacoby@enron.com', 'kay.mann@enron.com', 'e-mail <.michael@enron.com', 'jeffrey.darst@ps.ge.com', 'bob.f...]
File	mann-k/inbox/236.

Jeff,

I received an invoice for storage for the month of November, but would request that this invoice and future invoices for storage instead be sent to NorthWestern. Under the terms of the assignment, NorthWestern has the obligation for storage charges from October forward. I know this might be a little confusing since Enron has the ongoing payment obligations for the original purchase contract and the first two change orders.

Please feel free to call if you need to discuss this matter further.

Regards,

Chris Booth Enron North America 1400 Smith Street, EB3147c Houston, Texas 77002 (713) 345-3364 - phone (713) 646-3037 - fax chris.booth@enron.com

Message 146 of 371

Re: Skeletal Remains Found on Nolan Ryan's Ranch

Sender	kay.mann@enron.com
Recipients	['kathleen.carnahan@enron.com']
File	mann-k/sent/4187.

YIKES.

From: Kathleen Carnahan/ENRON@enronXgate on 05/23/2001 02:50 PM To: Kay Mann/Corp/Enron@Enron, Carlos Sole/NA/Enron@Enron, "Norman Carnahan (E-mail)" <ncarnahan@velaw.com>@SMTP@enronXgate cc:

Subject: Skeletal Remains Found on Nolan Ryan's Ranch

FYI - My daughter just called to tell me that their seismic company just found a body (skeletal remains) on Nolan Ryan's bull ranch China Grove (don't know if that is a town or the name of the ranch), off of County Road 521. Ryan is just the tenant, the property belongs to Claude Hammel.

Kathleen Carnahan Enron North America Corp. 1400 Smith Street, EB 3146d Houston, TX 77002 Phone - (713) 345-3386 Fax - (713) 646-3037

Message 147 of 371

Option Exercise Agreement - Blue Dog Project

Sender	robtaylor@akllp.com
Recipients	['roseann.engeldorf@enron.com', 'kay.mann@enron.com']
File	mann-k/all_documents/4681.

As requested by Rose, please see attached.

Regards,

Rob Taylor Andrews & Kurth L.L.P. 4200 Chase Tower 600 Travis Street Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273 e-mail: robtaylor@akllp.com

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<<Option Exercise Agreement - Blue Dog Project.DOC>> - Option Exercise Agreement - Blue Dog Project.DOC

Message 148 of 371

Re: Rodeo Tickets

Sender	kay.mann@enron.com
Recipients	['carolyn.george@enron.com', 'nmann@erac.com']
File	mann-k/all_documents/3335.

Ok. My hubby tells me the tickets you want are available, and he'll put your name on them, so to speak.

Kay

Carolyn George 01/25/2001 03:26 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: Rodeo Tickets

Kay,

If you still have 4 tickets for March 2 (Martina McBride & Lee Ann Womack) I would like to purchase those.

Do you mind checking to see if you have 2 tickets for March 1 (Def Leppard), if you do I would like to purchase those also.

Just let me know.

Thanks so much!

Carolyn George Sr. Administrative Assistant Enron Wholesale Services Enron Industrial Markets LLC 1400 Smith, EB3836A Houston, TX 77002 (713) 853-3439 Fax: (713) 646-3393 email: carolyn.george@enron.com

Message 149 of 371

nan

Sender	turnergerry@bek.com
Recipients	['kay.mann@enron.com']
File	mann-k/discussion_threads/3091.

Hello Kay. Nice to talk with my old (I mean young) buddy.

My email is turnergerry@bek.com

Most of the BE&K e-mails are the last name, first initial @bek.com

BennettD@bek.com MooreC@bek.com CrainJ@bek.com McLainD@bek.com HensleyH@bek.com (maybe you and Harvey can start a chat room)

Our general number is 281-531-1788.

My direct number is 832-486-4537.

Donna is 538, Credia is 544, Tina is 521, Dewey is 536.

Our address is 14701 St. Mary's Lane, Suite 500. We have the fifth floor of the Ashford V building. If you take Dairy-Ashford south from I10, you take the first right which is St. Mary's Lane. We are on the corner of St. Mary's and Threadneedle. Real nice office.

See you soon,

Gerry Turner

Message 150 of 371

RE: World Hunger Preliminary Discussion List

Sender	stephen.swift@ps.ge.com
Recipients	['brian.d.barto@enron.com', 'michael.barnas@ps.ge.com', 'sheila.tweed.ect@enron.com', 'john.schroeder@ps.ge.co...]
File	mann-k/ge_general/7.

Attached is a first cut at the Status of the items we discussed at our meetings last week in Houston.

Our common target is to get this contract review done by labor day so I will send this out periodically to let everyone know where we stand. Please send updates or corrections that need to be made. I have attached the contact list for all the GE folks.

Thanks,

Steve Swift GE Power Systems _____ Commercial Leader Commercial Operations General Electric
International Inc. Bldg 37-4, 1 River Road, Schenectady, NY 12345 *(518)-385-3826 *Dial Comm: 8*235-3826 *Fax:
(518)-385-5128 *Email: stephen.swift@ps.ge.com

- Status 7-18-00.doc - GE CONTACT LIST.doc

Message 151 of 371

My Info

Sender	barton.clark@enron.com
Recipients	['kay.mann@enron.com']
File	mann-k/all_documents/880.

More info re the Bingham deal team. Nick is a friend of Ben Jacoby and has worked with Scott before. Nick is the lawyer within Bingham with billing responsibility for Enron. ----- Forwarded by Barton Clark/HOU/ECT on 09/12/2000 09:59 AM -----

"Politan, Nicholas H." <PolitaNH@bingham.com> 09/06/2000 03:29 PM

To: "'Barton.Clark@enron.com'" <Barton.Clark@enron.com> cc: Subject: My Info

Sorry we didn't get officially introduced on the call today. Below is my contact information. I'm looking forward to working with you on this transaction. Speak with you soon.

Nicholas H. Politan Bingham Dana LLP 399 Park Ave. New York, NY 10022 (212) 318-7726 (tel) (212) 752-5378 (fax)
politanh@bingham.com

Message 152 of 371

Override Letter

Sender	robtaylor@akllp.com
Recipients	['roseann.engeldorf@enron.com', 'lisa.bills@enron.com', 'kay.mann@enron.com']
File	mann-k/discussion_threads/1582.

Attached is an initial draft of the Override Letter that we discussed today. Please call me if you have any questions or comments.

Regards,

Rob Taylor Andrews & Kurth L.L.P. 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273 e-mail: robtaylor@andrews-kurth.com

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<<Override Letter.DOC>> - Override Letter.DOC

Message 153 of 371

Re: 8 turbines from ena inventory to south america

Sender	kay.mann@enron.com
Recipients	['lisa.mellencamp@enron.com']
File	mann-k/_sent_mail/3742.

We are at the MOU stage. Need to keep off the balance sheet duly noted and emphasized in a commercial meeting last Friday. Commercial leads at ENA and Global Finance are out this week, so no progress at the moment. The information I was given is that we want to get it done by the end of September. How does this sound?

Kay

PS Also includes 2 transformers.

Lisa Mellencamp@ECT 08/22/2000 02:41 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: 8 turbines from ena inventory to south america

can you tell me what the status on this is?? important obviously to keep off balance sheet as we discussed.

.Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393

Message 154 of 371

Re: Indian matter

Sender	kay.mann@enron.com
Recipients	['kathleen.carnahan@enron.com']
File	mann-k/sent/4295.

I would mention Carlos in the email, or have it shown as sent by him. If it were me (and not him), I would have you send it under your own name, but explain that you are helping Carlos.

From: Kathleen Carnahan/ENRON@enronXgate on 05/31/2001 09:31 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Indian matter

I am getting ready to send Michelle Blaine a question regarding some proposed gifts that Mat Gimble and crew want to give the "new" Seminole Indian Chief. Would you rather the question be sent by you? If so, let me know and I will explain, otherwise I will just copy you on the e-mail.

K-

Kathleen Carnahan Enron North America Corp. 1400 Smith Street, EB 3146d Houston, TX 77002 Phone - (713) 345-3386 Fax - (713) 646-3037

Message 155 of 371

Coyote Springs Turbine Contract

Sender	zimmg@andrews-kurth.com
Recipients	['taylr@andrews-kurth.com', 'roseann.engeldorf@enron.com', 'kay.mann@enron.com', 'scott.dieball@enron.com']
File	mann-k/ge_general/29.

Attached is a revised draft of the above-referenced document marked to show changes.

Please call Rob Taylor with any questions.

Sincerely,

Gina G. Zimmerman Legal Secretary Andrews & Kurth L.L.P. 600 Travis, Suite 4200 Houston, Texas 77002 Direct: 713-220-4460 Fax: 713-238-7273 ginazimmerman@andrews-kurth.com

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- Blacklin.DOC

Message 156 of 371

Re: Withdrawal

Sender	kay.mann@enron.com
Recipients	['carlos.sole@enron.com']
File	mann-k/all_documents/4180.

I cannot imagine a shirt larger than the one you received. Yikes. Sounds like Neil still has a chance for a new shirt.

We'll have to allow extra time next Monday for a double de-brief.

Kay

From: Carlos Sole on 03/19/2001 09:46 AM To: kay.mann@enron.com cc:

Subject: Withdrawal

Must confess that it's a bit wierd with you not being here. Although we've talked on the phone, I've ginda gotten used to having a face-to-face weekend debrief each morning to let my coffee kick in.

PS Scott also got thw rong shirt size from A&K, he wears XXL and is disappointed he only got a XL. I sure hope that they got JD's size right. I'll have to check with Lance and see what he got.

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

Message 157 of 371

Re: Override Letter

Sender	kay.mann@enron.com
Recipients	['robtaylor@akllp.com', 'roseann.engeldorf@enron.com']
File	mann-k/sent/1834.

"Taylor, Rob" <robtaylor@akllp.com> on 12/08/2000 12:21:28 PM To: "Kay Mann (E-mail)" <kay.mann@enron.com>, "Roseann M Engeldorf (E-mail)" <Roseann.Engeldorf@enron.com> cc:

Subject: Override Letter

Winston & Strawn would like to see a draft of the Override Letter. Is there a draft that we can send them?

Rob Taylor Andrews & Kurth L.L.P. 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273 e-mail: robtaylor@andrews-kurth.com

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Message 158 of 371

Purchase Option Assignment and Assumption Agreements - Pastoria and

Sender	robtaylor@akllp.com
Recipients	['lisa.bills@enron.com', 'roseann.engeldorf@enron.com', 'seanbunk@akllp.com', 'sheila.tweed@enron.com']
File	mann-k/all_documents/2417.

Attached are revised drafts of the Purchase Option Assignment and Assumption Agreements for the Pastoria and S&S ADAs.

Regards,

Rob Taylor Andrews & Kurth L.L.P. 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273 e-mail: robtaylor@andrews-kurth.com

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<<LM6000 Compare.DOC>> <<Purchase Option Assignment and Assumption Agreement - Pastoria.DOC>> - LM6000 Compare.DOC - Purchase Option Assignment and Assumption Agreement - Pastoria.DOC

Message 159 of 371

Kendall SPA

Sender	cbrown@bracepatt.com
Recipients	['kay.mann@enron.com']
File	mann-k/discussion_threads/2354.

Kay:

Attached is the SPA we discussed over the phone. Please call me with any questions.

Corey C. Brown Bracewell & Patterson, L.L.P. Suite 2900 South Tower 711 Louisiana Houston, Texas 77002-2781
Telephone: 713.221.1323 Telecopy: 713.221.2181 email: cbrown@bracepatt.com

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- SECURITI.doc

Message 160 of 371

DevCo Equipment Purchases

Sender	robtaylor@akllp.com
Recipients	['lisa.bills@enron.com', 'seanbunk@akllp.com', 'sheila.tweed@enron.com', 'kay.mann@enron.com']
File	mann-k/all_documents/2414.

In connection with the finalization of the Assignment Documentation for transferring equipment to DevCo, please see the attached. Please note that I have not received copies of the "Fountain Valley" contracts referenced in the attached chart.

Regards,

Rob Taylor Andrews & Kurth L.L.P. 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273 e-mail: robtaylor@andrews-kurth.com

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<<DevCo Equipment Purchase Agreement Chart.DOC>> - DevCo Equipment Purchase Agreement Chart.DOC

Message 161 of 371

RE: opinions

Sender travis.mccullough@enron.com

Recipients ['kay.mann@enron.com']

File mann-k/inbox/102.

I think we are finishing tomorrow. At least, I'm finished tomorrow --- don't know about anyone else. Conference call at 7:00 a.m. to discuss the Enron Corp. opinion with the banks.

I know you didn't mean for this to end up on my plate ... but it probably would have anyway, just because of the volatile nature of the issue. I'll let you know what happens.

Travis C. McCullough Enron North America Corp. 1400 Smith Street EB 824 Houston, Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

-----Original Message-----

From: Mann, Kay Sent: Wednesday, December 12, 2001 7:43 PM To: McCullough, Travis Subject: opinions

Hi Travis,

I never saw anything from Robert. Did you get anything? I didn't mean for this to end up on your plate.

How does closing look for tomorrow? I don't want to redo the other 13 opinions until we know we are at the end.

Thanks,

Kay

Message 162 of 371

Re: Land Options - Estoppel language

Sender kay.mann@enron.com

Recipients ['carlos.sole@enron.com']

File mann-k/all_documents/5035.

Sounds good to me, although we are likely to find different purchasers want other stuff as well. Kinda like on the turbine stuff - each counterparty has wanted something different.

ckm

From: Carlos Sole on 04/24/2001 11:18 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: Land Options - Estoppel language

A letter whereby a party agrees that in the event of a change of control of its counterparty, it will not use such change of control event as a basis for challenging the enforceability of the agreement that it has with the counterparty. At least in our context this is what Fred means by estoppel letter. He has a very good point that we should incorporate this concept into our further assurances clause in our option agreements.

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

Message 163 of 371

GE Override Letter

Sender	robtaylor@akllp.com
Recipients	['roseann.engeldorf@enron.com', 'lisa.bills@enron.com', 'kay.mann@enron.com']
File	mann-k/all_documents/2283.

Attached are clean and marked copies of the GE Override Letter reflecting the comments I received today from Lisa Bills.

Please call me if you have any questions or comments regarding the attached.

Regards,

Rob Taylor Andrews & Kurth L.L.P. 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273 e-mail: robtaylor@andrews-kurth.com

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<<Blackline of Override Letter - 595910.2 to .1.DOC>> <<Override Letter-v2.DOC>> - Blackline of Override Letter - 595910.2 to .1.DOC - Override Letter-v2.DOC

Message 164 of 371

Re: GE Documents

Sender	kay.mann@enron.com
Recipients	['robtaylor@akllp.com', 'kay.mann@enron.com', 'roseann.engeldorf@enron.com']
File	mann-k/_sent_mail/2504.

ENA should sign them tomorrow. (I assume you are referring to the TurboPark set?)

"Taylor, Rob" <robtaylor@akllp.com> on 12/09/2000 04:24:26 PM To: "Kay Mann (E-mail)" <kay.mann@enron.com>, "Roseann M Engeldorf (E-mail)" <Roseann.Engeldorf@enron.com> cc:

Subject: GE Documents

Please provide me with signed copies of the GE Consents to Assignment and the Override Letters.

Thanks,

Rob Taylor Andrews & Kurth L.L.P. 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273 e-mail: robtaylor@andrews-kurth.com

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Message 165 of 371

Assignment and Assumption Agreement

Sender	seanbunk@akllp.com
Recipients	['robtaylor@akllp.com', 'mary.kimball@enron.com', 'fredericoporto@akllp.com', 'toxley@winston.com', 'roseann.e...]
File	mann-k/general_stuff/65.

Attached please find an execution copy of the Assignment and Assumption Agreement between ESAT and EBPH. Both a clean copy and a copy blacklined to show the changes from the prior version distributed are attached.

Please feel free to call me with any questions.

~~~~~ Sean Bunk Andrews & Kurth L.L.P. 600 Travis St., Suite 4200 Houston, Texas 77002 Tel.: 713.220.4427 Fax.: 713.238.7252 e-mail: seanbunk@andrews-kurth.com

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<<Blackline 593877v3 to v2.DOC>> <<ESAT-EBPH Assignment-v3.DOC>> - Blackline 593877v3 to v2.DOC - ESAT-EBPH Assignment-v3.DOC

Message 166 of 371

**Re: Rodeo Tickets**

|                   |                                                |
|-------------------|------------------------------------------------|
| <b>Sender</b>     | kay.mann@enron.com                             |
| <b>Recipients</b> | ['carolyn.george@enron.com', 'nmann@erac.com'] |
| <b>File</b>       | mann-k/sent/2521.                              |

OK.

Carolyn George 01/25/2001 04:36 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: Rodeo Tickets

I am soooo sorry I made a mistake. My daughter's schedule will allow her to attend Clay Walker - not Def Leppard.

If you still have 2 tickets for February 13 (Clay Walker) I would like to purchase those.

If you still have 4 tickets for March 2 (Martina McBride & Lee Ann Womack) I would like to purchase those.

Sorry for the confusion.

Thank you!!

Kay,

If you still have 4 tickets for March 2 (Martina McBride & Lee Ann Womack) I would like to purchase those.

Do you mind checking to see if you have 2 tickets for March 1 (Def Leppard), if you do I would like to purchase those also.

Just let me know.

Thanks so much!

Carolyn George Sr. Administrative Assistant Enron Wholesale Services Enron Industrial Markets LLC 1400 Smith, EB3836A Houston, TX 77002 (713) 853-3439 Fax: (713) 646-3393 email: carolyn.george@enron.com

Message 167 of 371

**Re: 4 Unrelated Issues**

|            |                           |
|------------|---------------------------|
| Sender     | kay.mann@enron.com        |
| Recipients | ['carlos.sole@enron.com'] |
| File       | mann-k/_sent_mail/803.    |

1. One director 2. Probably Global Finance, depending on the structure of the deal. 3. Humm. 4. I guess I see the question as the overall role of outside counsel in the transaction. Good discussion item.

Kay

From: Carlos Sole on 04/16/2001 02:14 PM To: kay.mann@enron.com cc:

Subject: 4 Unrelated Issues

Please call, I have 4 four unrelated issues which I need to discuss:

1. Whether in CA Power Development and Salmon, Enron will appoint any officers or directors after it has reduced its ownership interest to 20%?
2. Who besides Christy Nicolay and Herman Manis should review Ameren interconnect agreements?
3. Handling and payment of Piper Marbury past legal bills.
4. Want to discuss appropriateness of involving outside counsel for water supply agreements with local water utilities for two Georgia power projects.

Thanks.

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

Message 168 of 371

**Purchase Option (LM6000-South America)**

|            |                                                                                                          |
|------------|----------------------------------------------------------------------------------------------------------|
| Sender     | seanbunk@akllp.com                                                                                       |
| Recipients | ['roseann.engeldorf@enron.com', 'rebecca.walker@enron.com', 'robtaylor@akllp.com', 'kay.mann@enron.com'] |
| File       | mann-k/all_documents/2714.                                                                               |

Attached please find an execution copy of the Purchase Option Assignment and Assumption Agreement for the LM6000 turbines being transferred into the Owner Trust. I have inserted the appropriate dates and have removed the draft date, otherwise the document remains unchanged from the draft of December 11, 2000.

Please feel free to call me with any questions.

<<Purchase Option (LM6000-South America).DOC>>

~~~~~ Sean Bunk Andrews & Kurth L.L.P. 600 Travis St., Suite 4200 Houston, Texas 77002 Tel.: 713.220.4427 Fax.: 713.238.7252 e-mail: seanbunk@andrews-kurth.com

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- Purchase Option (LM6000-South America).DOC

*Message 169 of 371***501D5A with damaged Generator - meeting during week of 4dec00**

| | |
|-------------------|--|
| Sender | scott.laidlaw@enron.com |
| Recipients | ['ben.jacoby@enron.com', 'lynn.dekrey@siemens.com', 'mark.tartaglio@swpc.siemens.com'] |
| File | mann-k/discussion_threads/1505. |

confirming recent phone calls/messages, a "tentative" time/date of 10:00 a.m. to noon (houston time) on wednesday, 6 dec00 has been set for a meeting between siemens-westinghouse and enron re: the subject unit. the exact timing/date to be confirmed by siemens-westinghouse after mark tartaglio is able to discuss/confirm with lynn dekrey.

attendees from enron to include ben jacoby, chris booth, kay mann (?), and scott laidlaw(?). to be confirmed. attendees from siemens-westinghouse to include mark tartaglio and lynn dekrey. to be confirmed.

agenda as follows (to be confirmed): - discuss "facts" of issue. - siemens-westinghouse to present their response to enron's recent correspondence. - discuss plan forward re: resolution of issue mindful of current relationship between the parties.

plz call with any questions. regards. scott.

Scott Laidlaw Project Manager Enron Engineering & Construction Company 333 Clay Street, Suite 400 Houston, TX 77002

Work 713 646 6422 Fax 713 646 7374/6120

*Message 170 of 371***Re: Contractually Limiting Liability under Virginia Law**

| | |
|-------------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['nwodka@bracepatt.com', 'dparr@bracepatt.com', 'kay.mann@enron.com'] |
| File | mann-k/sent/814. |

Thank you for your response. It is always refreshing to get good news!

"David Parr" <dparr@bracepatt.com> on 09/19/2000 05:12:46 PM To: <kay.mann@enron.com> cc: "Nancy Wodka" <nwodka@bracepatt.com>

Subject: Contractually Limiting Liability under Virginia Law

Kay:

Nancy Wodka asked me to research whether parties to a contract governed by Virginia law may negotiate to limit their liability under such contract. The answer is yes. Because the parties (within broad parameters) can make just about whatever law they like so long as it doesn't violate public policy, etc., Virginia freely allows limitation of liability clauses. Of course, in the case of fraud or material misrepresentation in inducement, etc., no court would honor the clause, but that circumstance does not apply to us.

Please let me know if you need anything further.

David

D. David Parr, Jr., Esq. Bracewell & Patterson, L.L.P. 2000 K Street NW, Suite 500 Washington, D.C. 20006-1872
202-828-5800 Telephone 202-857-2122 Facsimile

Message 171 of 371

Schedule V to Participation Agreement

| | |
|------------|--|
| Sender | seanbunk@akllp.com |
| Recipients | ['lisa.bills@enron.com', 'robtaylor@akllp.com', 'catherine.clark@enron.com', 'kay.mann@enron.com'] |
| File | mann-k/all_documents/2575. |

Attached please find a revised draft of Schedule V to the Participation Agreement. Both a clean copy and a copy blacklined to show the changes from the prior version are attached.

Please feel free to call with any questions or comments.

~~~~~ Sean Bunk Andrews & Kurth L.L.P. 600 Travis St., Suite 4200 Houston, Texas 77002 Tel.: 713.220.4427 Fax.: 713.238.7252 e-mail: seanbunk@andrews-kurth.com

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<<Blackline 597234v3 to v2 (Schedule V - Turbo Park).DOC>> <<Schedule V to Participation Agreement (TurboPark).DOC>> - Blackline 597234v3 to v2 (Schedule V - Turbo Park).DOC - Schedule V to Participation Agreement (TurboPark).DOC

Message 172 of 371

### FW: Salmon again

|            |                            |
|------------|----------------------------|
| Sender     | catherine.clark@enron.com  |
| Recipients | ['kay.mann@enron.com']     |
| File       | mann-k/all_documents/5528. |

Kay, Here is a PDF file with the Delta documents. Originals will follow shortly. -Catherine x3-9943

-----Original Message-----

From: KWierner@milbank.com@ENRON

[mailto:IMCEANOTES-KWierner+40milbank+2Ecom+40ENRON@ENRON.com] Sent: Thursday, May 10, 2001 11:17 AM

To: Clark, Catherine Subject: Salmon again

It would help for me to attach the file, I suppose. <<salmon ener docs.PDF>> Karl Wierner Milbank, Tweed, Hadley & McCloy LLP One Chase Manhattan Plaza New York, NY 10005-1413 212-530-5209 212-822-5209 (fax) kwierner@milbank.com This e-mail message may contain legally privileged and/or confidential information. If you are not the intended recipient(s), or the employee or agent responsible for delivery of this message to the intended recipient(s), you are hereby notified that any dissemination, distribution or copying of this e-mail message is strictly prohibited. If you have received this message in error, please immediately notify the sender and delete this e-mail message from your computer.

- salmon ener docs.PDF

Message 173 of 371

**Contractually Limiting Liability under Virginia Law**

|            |                                                                                            |
|------------|--------------------------------------------------------------------------------------------|
| Sender     | kay.mann@enron.com                                                                         |
| Recipients | ['heather.kroll@enron.com', 'Nancy Wodka' <nwodka@bracepatt.com>, 'ozzie.pagan@enron.com'] |
| File       | mann-k/sent/813.                                                                           |

viola ----- Forwarded by Kay Mann/Corp/Enron on 09/19/2000 05:13 PM -----

"David Parr" <dparr@bracepatt.com> on 09/19/2000 05:12:46 PM To: <kay.mann@enron.com> cc: "Nancy Wodka" <nwodka@bracepatt.com>

Subject: Contractually Limiting Liability under Virginia Law

Kay:

Nancy Wodka asked me to research whether parties to a contract governed by Virginia law may negotiate to limit their liability under such contract. The answer is yes. Because the parties (within broad parameters) can make just about whatever law they like so long as it doesn't violate public policy, etc., Virginia freely allows limitation of liability clauses. Of course, in the case of fraud or material misrepresentation in inducement, etc., no court would honor the clause, but that circumstance does not apply to us.

Please let me know if you need anything further.

David

D. David Parr, Jr., Esq. Bracewell & Patterson, L.L.P. 2000 K Street NW, Suite 500 Washington, D.C. 20006-1872  
202-828-5800 Telephone 202-857-2122 Facsimile

Message 174 of 371

**E-Next Generation Purchase by DAED I/II**

|            |                                 |
|------------|---------------------------------|
| Sender     | kwiemer@milbank.com             |
| Recipients | ['kay.mann@enron.com']          |
| File       | mann-k/discussion_threads/2272. |

Kay - As mentioned in my voice mail.? Please revise the signature pages for E-Next Generation as follows and e-mail back to me. Wilmington is standing by to execute.

Regards, Karl

Each signature block for E-Next Generation should appear as follows:

E-NEXT GENERATION LLC

By: ??? Wilmington Trust Company, ??????? not in its individual capacity but ??????? solely as Manager

By: \_\_\_\_\_ Name: Title:

Karl Wiemer Milbank, Tweed, Hadley & McCloy LLP One Chase Manhattan Plaza New York, NY 10005-1413  
212-530-5209 212-822-5209 (fax) kwiemer@milbank.com

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*Message 175 of 371***Re: Jurisdiction issue in the consent**

|                   |                           |
|-------------------|---------------------------|
| <b>Sender</b>     | kay.mann@enron.com        |
| <b>Recipients</b> | ['carlos.sole@enron.com'] |
| <b>File</b>       | mann-k/sent/3589.         |

I would go with Sheila's approach. I don't see a reason not to.

Kay

From: Carlos Sole on 04/12/2001 05:12 PM To: kay.mann@enron.com cc:

Subject: Jurisdiction issue in the consent

Lender's counsel indicated to Caroline that not getting an opinion letter may be acceptable, but it needs to be confirmed. As for the consent agreement, the one pending issue is whether we will consent to jurisdiction somewhere in connection with actions involving the consent agreement. Sheila's edits to the document had venue in NY federal court but eliminated the text concerning waiver of forum non-conveniens defense. We did not present that but rather argued against it in its entirety. Lender's counsel worked on another deal in which we allegedly agreed to jurisdiction in Delaware. Need your views on how to address this issue, Kemosabe. You can do so via email or we can wait until Monday. Happy Easter and I'll be in tomorrow.

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

*Message 176 of 371***Re: Rodeo Tickets**

|                   |                         |
|-------------------|-------------------------|
| <b>Sender</b>     | kay.mann@enron.com      |
| <b>Recipients</b> | ['nmann@erac.com']      |
| <b>File</b>       | mann-k/_sent_mail/1867. |

Note change from Def to Clay. ----- Forwarded by Kay Mann/Corp/Enron on 01/25/2001 04:45 PM  
-----

Carolyn George 01/25/2001 04:36 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: Rodeo Tickets

I am soooo sorry I made a mistake. My daughter's schedule will allow her to attend Clay Walker - not Def Leppard.

If you still have 2 tickets for February 13 (Clay Walker) I would like to purchase those.

If you still have 4 tickets for March 2 (Martina McBride & Lee Ann Womack) I would like to purchase those.

Sorry for the confusion.

Thank you!!

Kay,

If you still have 4 tickets for March 2 (Martina McBride & Lee Ann Womack) I would like to purchase those.

Do you mind checking to see if you have 2 tickets for March 1 (Def Leppard), if you do I would like to purchase those also.

Just let me know.



Thanks so much!

Carolyn George Sr. Administrative Assistant Enron Wholesale Services Enron Industrial Markets LLC 1400 Smith, EB3836A Houston, TX 77002 (713) 853-3439 Fax: (713) 646-3393 email: carolyn.george@enron.com

Message 177 of 371

### Re: PSEG Risk Memo

|            |                           |
|------------|---------------------------|
| Sender     | kay.mann@enron.com        |
| Recipients | ['carlos.sole@enron.com'] |
| File       | mann-k/_sent_mail/1007.   |

Not that this is a big deal, but I heard a voice mail from Mark stating that Lance is the DASH guy while Mark is in DC. Maybe that was deal specific.

Maybe we can grab something quick and eat upstairs. I am underwater.

From: Carlos Sole on 04/04/2001 08:57 AM To: kay.mann@enron.com cc:

Subject: PSEG Risk Memo

I'm going in today, can we meet for lunch?

Also, please review attached form of risk memo in which I outline the risks that I see in the PSEG transaction. I have not elaborated the details yet because I wanted to first confirm the outline with you. I only expect to use bullets below the issues I've identified. Also, how much if any of this should be added to the DASH which is also attached. Lastly, since Mark is out this week, I've addressed the memo to Julia since she will sign the DASH (I gave her a heads up yesterday). Thanks. I've got a 10:30 call, but will stop by may be before or more likely after.

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

Message 178 of 371

### Transfer of Blue Dog Turbine into Turbo Park

|            |                                                                                                    |
|------------|----------------------------------------------------------------------------------------------------|
| Sender     | seanbunk@akllp.com                                                                                 |
| Recipients | ['lisa.bills@enron.com', 'robtaylor@akllp.com', 'catherine.clark@enron.com', 'kay.mann@enron.com'] |
| File       | mann-k/off_balance_sheet_form_contracts/18.                                                        |

Attached please a revised draft of the Assignment and Assumption Agreement effecting the transfer of the Blue Dog turbine into the Turbo Park structure. Both a clean copy and a copy blacklined to show the changes from the prior version are attached.

Please feel free to call me if you have any questions or comments.

~~~~~ Sean Bunk Andrews & Kurth L.L.P. 600 Travis St., Suite 4200 Houston, Texas 77002 Tel.: 713.220.4427 Fax.: 713.238.7252 e-mail: seanbunk@andrews-kurth.com

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<<E-Next Generation LLC Assignment and Assumption Agreement.DOC>> <<Blackline 593853v2 to v1 (Assignment - Blue Dog).DOC>> - E-Next Generation LLC Assignment and Assumption Agreement.DOC - Blackline 593853v2 to v1

(Assignment - Blue Dog).DOC

Message 179 of 371

| Re: Turbine Inv | |
|-----------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['lisa.mellencamp@enron.com', 'sheila.tweed@enron.com'] |
| File | mann-k/all_documents/169. |

Sheila,

I believe I can help Lisa with this information, at least confirming some of the stuff for her.

Kay

Lisa Mellencamp@ECT 07/05/2000 12:36 PM To: Sheila Tweed/HOU/ECT@ECT, Kay Mann/Corp/Enron@Enron cc:

Subject: Turbine Inv

ben glissan is trying to verify all turbines. can you confirm the turbine assets that are under ena on the list below??? do you see any others that should be on ena and not elsewhere??? do not want the list circulated please. is this possible to do quickly?

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 ----- Forwarded by Lisa Mellencamp/HOU/ECT on 07/05/2000 12:32 PM -----

Wanda LaBaume@ENRON_DEVELOPMENT 06/30/2000 11:57 AM

To: Lisa Mellencamp/HOU/ECT@ECT cc: Fred L Kelly/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Keith Marlow/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Turbine Inv

As requested, attached is a listing of the turbine inventory. Because the payment/termination schedules are not consolidated into one file, I will send you a hard copy of this information this afternoon.

Wanda

Message 180 of 371

| Pegasus - Closing documents | |
|-----------------------------|---|
| Sender | isabel.parker@freshfields.com |
| Recipients | ['ccampbell@kslaw.com', 'kay.mann@enron.com', 'gregorylang@paulhastings.com', 'aweed@jhancock.com'] |
| File | mann-k/discussion_threads/3536. |

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Just to confirm our call, we we need to see execution pages of the following executed documents today:

ENA Consent ENA no objection to forms letter ENA resolutions for Salmon Energy Escrow Agreement GE Letter Agreement

We will send you a signed copy of the Hancock entitlement letter.

We also need to see evidence that the escrow account has been opened and the revised form of GE Guarantee.

My fax number is set out below.

Thank you Isabel

Isabel Parker T +1 212 277 4025 F +1 212 277 4001 E isabel.parker@freshfields.com 520 Madison Avenue 34th Floor
New York, NY 10022 www.freshfields.com

Message 181 of 371

Re: THE agreement

| | |
|-------------------|---------------------------------|
| Sender | roseann.engeldorf@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/discussion_threads/1956. |

The person to contact, I believe, is Michael Hinds. His number is 55869. However, Ace Roman, who sits on our floor and is a manager with the group, should help you coordinate, particularly with the LJM lawyers. His number is 39587. Kirkland and Ellis out of DC does their legal work. Amy Harvey, who I believe is an associate there, worked with us on the "E-Next Generation" deal. Her number is 202-879-5053.

Thanks,

Rose

Kay Mann 12/20/2000 06:59 PM

To: Roseann Engeldorf/Corp/Enron@ENRON cc: Subject: THE agreement

I'm trying to clean up after Blue Girl. Can you tell me again who signs for LJM so that I can get signature? Who does their legal work?

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 12/20/2000 06:58 PM -----

Kay Mann 12/15/2000 01:22 PM To: Lynn.DeKrey@swpc.com cc:

Subject: THE agreement

With high hopes that this is the FINAL final version, I'm attaching what I believe to be the execution copy. Some things have been cleaned up, and Brownsville has been added to paragraph 5. I'm going to start collecting signatures.

Thanks,

Kay

Message 182 of 371

RE: Public Staff Confidentiality Agreement

| | |
|-------------------|---|
| Sender | jfine@kilstock.com |
| Recipients | ['aduncan@kilstock.com', 'john.moore@enron.com', 'heather.kroll@enron.com', 'kay.mann@enron.com', 'jeffrey.m.k...'] |
| File | mann-k/discussion_threads/429. |

Attached is the memorandum Kay asked for regarding confidentiality. I will send the attachments by mail under separate cover to Kay.

Please let me know if you have follow-up questions regarding the memo. Thanks.

Jonathan M. Fine Kilpatrick Stockton, LLP 3737 Glenwood Ave., Ste. 400 Raleigh, NC 27612 TEL: (919) 420-1700 FAX: (919) 420-1800 <http://www.kilstock.com>

<<Memo to Kay Mann regarding confidentiality of materials turned over to the Public Staff(v1).DOC>>

-----Original Message----- From: Duncan, Allyson Sent: Monday, August 21, 2000 5:32 PM To: 'Mann Kay'; 'Keenan Jeffrey'; 'Chapman Tom' Cc: Fine, Jonathan; 'Kroll Heather'; 'Mellencamp Lisa'; 'John.Moore@enron.com' Subject: Public Staff Confidentiality Agreement We received today a copy of the signed Confidentiality Agreement with the Public Staff, so you will know who has access to the material you are providing. Jonathan is attaching it to the copy of the memorandum on North Carolina's Public Records law which he will be sending you tomorrow.

- Memo to Kay Mann regarding confidentiality of materials turned over to the Public Staff(v1).DOC

Message 183 of 371

Re: FW: Turbopark Notices and Documents for Delta Turbine Sale

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['legal.4@enron.com', 'Catherine Clark/ENRON@enronXgate', 'Herman', 'Carlos Sole/NA/Enron@Enron'] |
| File | mann-k/_sent_mail/753. |

Hi Warren,

Could you please print these for me?

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 04/18/2001 10:27 AM ----- From: Carlos Sole on 04/17/2001 06:52 PM To: Lisa Bills/ENRON@enronXgate cc: Carlos Sole/NA/Enron@Enron, Catherine Clark/ENRON@enronXgate, Herman Manis/ENRON@enronXgate, Kay Mann/Corp/Enron@Enron, Roseann Engeldorf/ENRON@enronXgate, kweimer@milbank.com, mmckay@velaw.com

Subject: Re: FW: Turbopark Notices and Documents for Delta Turbine Sale

To all:

Attached for your review and comment are forms of the initial notice letter, assignment and assumption agreement and bill of sale that we intend to deliver this Friday for a closing the next Friday on April 27. In addition, please note that Rose and I are still coordinating the preparation of the Prepayment Notice as well as the UCC-3s. Please call or email me with any comments or questions that you may have and thank you in advance for your attention to this matter.

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

Message 184 of 371

Re: FW: Revised form of Memorandum of Option

| | |
|------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['kathleen.carnahan@enron.com'] |
| File | mann-k/all_documents/6088. |

It needs to be sent to Lisa Bills, Roseann Engeldorf, and Ben Jacoby for approval.

Thanks,

Kay

From: Kathleen Carnahan/ENRON@enronXgate on 05/29/2001 08:26 AM To: Kay Mann/Corp/Enron@Enron, Carlos Sole/NA/Enron@Enron cc:

Subject: FW: Revised form of Memorandum of Option

Herman has approved the revised Memorandum of Option. I will incorporate it into our form, okay? K-

-----Original Message-----

From: Manis, Herman Sent: Tuesday, May 29, 2001 7:55 AM To: Carnahan, Kathleen Cc: Mann, Kay; Sole, Carlos Subject: RE: Revised form of Memorandum of Option

ok

-----Original Message-----

From: Carnahan, Kathleen Sent: Friday, May 25, 2001 10:55 AM To: Manis, Herman Cc: Mann, Kay; Sole, Carlos Subject: Revised form of Memorandum of Option

Herman,

Attached is a revised form of Memorandum of Option for your review. We have revised it to be consistent with our form of Option to Purchase.

Please advise if these revisions are acceptable.

Thanks

<< File: FORM of Memorandum of Option (2001) Rev 2.doc >>

Kathleen Carnahan Enron North America Corp. 1400 Smith Street, EB 3146d Houston, TX 77002 Phone - (713) 345-3386 Fax - (713) 646-3037

Message 185 of 371

RE: Revised Draft of the proposed new Homestead Option

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['kathleen.carnahan@enron.com', 'greg.krause@enron.com'] |
| File | mann-k/florida/75. |

When the 3 of you are happy with the form, send it out. I'll review in more detail once we hear back from the owner. Please don't have another lawyer approve it while I'm gone based on my review thus far, as I want to give it some more thought. Plus, it will need to go to Accounting and possibly Finance.

Thanks,

Kay

-----Original Message-----

From: Carnahan, Kathleen Sent: Thursday, August 02, 2001 4:27 PM To: Mann, Kay; Krause, Greg; 'chrisboehler@andrew-kurth.com' Subject: Revised Draft of the proposed new Homestead Option

Attached is the a redline of the revised Homestead Option. This redline is against the one provided by Alger's attorney and includes all of your suggested changes. The deal has changed to obtain an option on 5.0 acres; purchase price, firm at \$1,100,000.00 and Option Payments at \$11,000. I have highlighted two areas (Sections 6 and 14) that still need to be addressed. Please advise of any additional changes.

<< File: Homestead Option to Purchase Revised 2 km cb Aug 2 redline.doc >>

Kathleen Carnahan Enron North America Corp. 1400 Smith Street, EB 3146d Houston, TX 77002 Phone - (713) 345-3386
Fax - (713) 646-3037

Message 186 of 371

Re: ENRON Blue Dog Max 2 X 7 EA GTG

| | |
|-------------------|------------------------------|
| Sender | ben.jacoby@enron.com |
| Recipients | ['john.schroeder@ps.ge.com'] |
| File | mann-k/all_documents/4221. |

John:

Thanks for the e-mail. I also got your voice-mail. We will of course wrap up all outstanding items on change orders quickly. Also, rest assured, we intend to give you ample notice of project location, etc. for the units after we're sure we have a deal for a joint project with the customer.

As I mentioned in our call, please let me know if you will be able to improve the delivery date on the air filter for unit 1 as we have been advised that it is presently scheduled for a June 15 delivery date.

Thanks much for looking into this, and for the e-mail below.

Regards,

Ben

john.schroeder@ps.ge.com on 03/22/2001 12:14:26 PM To: Ben.Jacoby@enron.com, gilbert.bosworth@ps.ge.com cc:
Subject: ENRON Blue Dog Max 2 X 7 EA GTG

Dear Ben, I have asked Gib Bosworth of GE Power Sys in Arizona to call you about the availability of the 2 units we call Blue Dog. He has a customer who is interested in the units because of their timing. I have advised him you are also closely working with others for these turbines.

Ben Jacoby 713 853 - 6173 Gib Bosworth 480-888-1545

Best Regards John H Schroeder, Jr. GE Power Systems Account Mgr. 2707 North Loop West, 9th Floor Houston, Texas 77008 (713) 803-0525 Fax - 0567

Message 187 of 371

Override Letter

| | |
|-------------------|--|
| Sender | roseann.engeldorf@enron.com |
| Recipients | ['lisa.bills@enron.com', 'kay.mann@enron.com'] |
| File | mann-k/discussion_threads/1653. |

I think we do want the Purchasers on the override, since they are parties to the Turbine Purchase Agreements!!

R. ----- Forwarded by Roseann Engeldorf/Corp/Enron on 12/06/2000 08:08 PM -----

"Taylor, Rob" <robtaylor@akllp.com> 12/06/2000 06:15 PM

To: <roseann.engeldorf@enron.com> cc: Subject: Override Letter

Rose:

Attached are clean and marked copies of the Override Letter incorporating the changes you made to date. The "third-party beneficiary" issue is covered in paragraph 10.

Please let me know if you have any further comments or questions.

Regards,

Rob Taylor Andrews & Kurth L.L.P. 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273 e-mail: robtaylor@andrews-kurth.com

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<<Override Letter (Compare).DOC>> <<Override Letter.DOC>> - Override Letter (Compare).DOC - Override Letter.DOC

Message 188 of 371

GE Consent to Assignment

| | |
|------------|-----------------------------|
| Sender | roseann.engeldorf@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/all_documents/2413. |

Annoyed again

----- Forwarded by Roseann Engeldorf/Corp/Enron on 12/07/2000 06:36 PM -----

"Taylor, Rob" <robtaylor@aklp.com> 11/24/2000 12:38 PM

To: <kent.shoemaker@ps.ge.com>, <michael.barnas@ps.ge.com>, <stephen.swift@ps.ge.com> cc: <sheila.tweed@enron.com>, <roseann.engeldorf@enron.com>, <kay.mann@enron.com> Subject: GE Consent to Assignment

Attached is a draft of the Consent to Assignment and Agreement relating to the transfer of certain turbine contracts into the TurboPark structure. Please note that the attached is being distributed in advance of review by Enron and remains subject to its comments in every respect.

Regards, <<GE Consent to Assignment.DOC>>

Rob Taylor Andrews & Kurth L.L.P. 600 Travis Street Suite 4200 Houston, Texas 77002

Tel: (713) 220-4436 Fax: (713) 238-7273 e-mail: robtaylor@andrews-kurth.com

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- GE Consent to Assignment.DOC

Message 189 of 371

Illinois Projects Update

| | |
|------------|---|
| Sender | chris.townsend@piperrudnick.com |
| Recipients | ['donald.shindler@piperrudnick.com', 'kay.mann@enron.com', 'michael.elam@piperrudnick.com'] |
| File | mann-k/discussion_threads/1500. |

Kay --

We hope you had an enjoyable Thanksgiving holiday.

Attached please find the update regarding ENA's Illinois projects. Please do not hesitate to contact me with any questions or comments. Thank you. Christopher J. Townsend Piper Marbury Rudnick & Wolfe 203 N. LaSalle Street Chicago, IL 60601 (312) 368-4039 (direct line) (312) 630-6300 (direct fax) christopher.townsend@piperrudnick.com

<<z_9q12_.WPD>>

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For more information about Piper Marbury Rudnick & Wolfe, please visit us at <http://www.piperrudnick.com/>

- z_9q12_.WPD

Message 190 of 371

ENA/Blue Dog: Payment of Purchase Amount Installments

| | |
|------------|--|
| Sender | mreuter@kslaw.com |
| Recipients | ['chris.booth@enron.com', 'kay.mann@enron.com', 'john.keffer@enron.com'] |
| File | mann-k/inbox/218. |

Chris:

Further to your call on Friday, the Letter Agreement does not require NorSub to consent to the invoices that GE submits for the installments of Purchase Amount due and payable by ENA. Instead, Section 8(a) of the Letter Agreement requires ENA to "provide NorSub with notice of each Remaining Purchase Amount Installment which is paid by ENA (including the date and the amount thereof) promptly after payment thereof by ENA."

Please do not hesitate to contact me if you have any further questions.

Regards,

Marisa

Maria I. ("Marisa") Reuter King & Spalding 1100 Louisiana, Suite 3300 Houston, Texas 77002 713-751-3244 (tel) 713-276-7440 (fax) <<Reuter, Marisa.vcf>>

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Message 191 of 371

E-Next Generation Purchase by DAED I/II

| | |
|------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['kathleen.carnahan@enron.com'] |
| File | mann-k/all_documents/3210. |

----- Forwarded by Kay Mann/Corp/Enron on 01/17/2001 01:12

PM -----

KWiemer@milbank.com on 01/17/2001 12:57:24 PM To: Kay.Mann@enron.com cc:

Subject: E-Next Generation Purchase by DAED I/II

Kay - As mentioned in my voice mail. Please revise the signature pages for E-Next Generation as follows and e-mail back to me. Wilmington is standing by to execute. Regards, Karl Each signature block for E-Next Generation should appear as follows:

E-NEXT GENERATION LLC By: Wilmington Trust Company, not in its individual capacity but solely as Manager

By: _____ Name: Title:

Karl Wiemer Milbank, Tweed, Hadley & McCloy LLP One Chase Manhattan Plaza New York, NY 10005-1413
212-530-5209 212-822-5209 (fax) kwiemer@milbank.com

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Message 192 of 371

Re: term sheet template

| | |
|------------|----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['carlos.sole@enron.com'] |
| File | mann-k/all_documents/4912. |

Oh why not. You probably need to get an overview of the entire deal, as you may want some outside help. If we are building a plant and selling power, there are lots of folks at Enron who weigh in on it.

Kay

From: Carlos Sole on 04/20/2001 09:08 AM To: kay.mann@enron.com cc:

Subject: term sheet template

Would I be the one to handle a PPA term sheet with a potential offtake party for a Wisconsin-based peaker facility that someone in Ben's group, Ron Tapscott, is developing.

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax) ----- Forwarded by Carlos Sole/NA/Enron on 04/20/2001 09:05 AM -----

Ron Tapscott@ECT 04/20/2001 08:56 AM

To: Doug Sewell/Enron@EnronXGate, Carlos Sole/NA/Enron@Enron cc: Subject: term sheet template

Doug,

see attached term sheet for NMC (Arpin, WI site). Please provide comments and changes as appropriate (plus add language for your insurance product in the place holder).

Carlos,

Doug and I will provide you background. I am not sure if you are the appropriate Legal Support (please direct us to the appropriate person if you are not).

This is a starting point and is fairly general (to facilitate discussions with NMC).

Thanks, Ron.

Message 193 of 371

FW: ESA Break-out Agreement Draft of 12/5/00.DOC

| | |
|------------|--|
| Sender | peterthompson@akllp.com |
| Recipients | ['paulpipitone@akllp.com', 'robtaylor@akllp.com', 'roseann.engeldorf@enron.com', 'kay.mann@enron.com'] |
| File | mann-k/all_documents/2273. |

Here is the latest version of the Enron South America Break-Out Turbine Contract that I received from Rob Taylor. I am working on a new version that will incorporate the specific guarantees into the body of the agreement. When I send a blackline, I will run it against version 2, which is the last version that I sent to you. That way, you'll be able to see my changes as well as Rob Taylor's changes.

Original Message----- From: Taylor, Rob Sent: Tuesday, December 05, 2000 1:45 PM To: roseann.engeldorf@enron.com Cc: Thompson, Peter J. Subject: ESA Break-out Agreement Draft of 12/5/00.DOC Attached is a draft of the Break-Out Turbine Contract for South America. Regards, Rob Taylor Andrews & Kurth L.L.P. 600 Travis Street Suite 4200 Houston, Texas 77002 Tel: (713) 220-4436 Fax: (713) 238-7273 e-mail: robtaylor@andrews-kurth.com This e-mail is privileged and confidential and is intended only for the recipient(s) named above. If you are not the intended recipient, please (i) do not read, copy, use or disclose the contents hereof to others (any of the foregoing being strictly prohibited), (ii) notify the sender immediately of your receipt hereof, and (iii) delete this e-mail and all copies of it. <<00.DOC>>

- 00.DOC

Message 194 of 371

Re: E-Next Generation Purchase by DAED I/II

| | |
|------------|----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['kwiemer@milbank.com'] |
| File | mann-k/all_documents/3215. |

Evidently we are experiencing some technical difficulty on this end. The task should be finished shortly.

KWiemer@milbank.com on 01/17/2001 12:57:24 PM To: Kay.Mann@enron.com cc:

Subject: E-Next Generation Purchase by DAED I/II

Kay - As mentioned in my voice mail. Please revise the signature pages for E-Next Generation as follows and e-mail back to me. Wilmington is standing by to execute. Regards, Karl Each signature block for E-Next Generation should appear as follows:

E-NEXT GENERATION LLC By: Wilmington Trust Company, not in its individual capacity but solely as Manager

By: _____ Name: Title:

Karl Wiemer Milbank, Tweed, Hadley & McCloy LLP One Chase Manhattan Plaza New York, NY 10005-1413
212-530-5209 212-822-5209 (fax) kwiemer@milbank.com

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Message 195 of 371

| GE Contract | |
|-------------|------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['kathleen.clark@enron.com'] |
| File | mann-k/sent/1324. |

Per my voice mail ----- Forwarded by Kay Mann/Corp/Enron on 11/01/2000 03:11 PM -----

"Cope, Lori" <loricope@akllp.com> on 11/01/2000 03:00:50 PM To: "Kay Mann (E-mail)" <Kay.Mann@Enron.com> cc:

Subject: GE Contract

Enclosed please find clean and blacklined versions of the GE Contract. The blackline of the Agreement identifies the changes from the draft I sent you. Note that no blackline of the Exhibits was necessary because it contained no references to WestLB. Regards, Paul

<<HOU_554886_3.DOC>> <<BL554888.DOC>> <<HOU_554888_4.DOC>> Paul J. Pipitone Andrews & Kurth L.L.P.
4200 Chase Tower 600 Travis Houston, Texas 77002 Phone: 713-220-4101 Fax: 713-238-7176
ppipitone@andrews-kurth.com

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Thank you.

- HOU_554886_3.DOC - BL554888.DOC - HOU_554888_4.DOC

Message 196 of 371

| Illinois Projects Update | |
|--------------------------|---|
| Sender | chris.townsend@piperrudnick.com |
| Recipients | ['carlos.sole@enron.com', 'kay.mann@enron.com', 'michael.elam@piperrudnick.com', 'donald.shindler@piperrudnick...'] |
| File | mann-k/all_documents/5269. |

Attached please find a summary of the status of the various ENA projects in Illinois with which PMR&W has been assisting. As always, please do not hesitate to contact us if you have any questions or if we can be of any further assistance. Christopher J. Townsend Piper Marbury Rudnick & Wolfe 203 N. LaSalle Street Chicago, IL 60601 (312) 368-4039 (direct line) (312) 630-6300 (direct fax) christopher.townsend@piperrudnick.com <<Z_9Q21_.WPD>>

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- Z_9Q21_.WPD

*Message 197 of 371***GE Breakout Contract - LVCII**

| | |
|-------------------|---|
| Sender | tconstan@llgm.com |
| Recipients | ['jim.gilbert@enron.com', 'dale.rasmussen@enron.com', 'bill.williams@enron.com', 'pthompson@akllp.com'] |
| File | mann-k/discussion_threads/3743. |

**** High Priority ****

Peter: Further to voicemail and email, please send the current version of the GE Breakout agreement for the LVCII project to Lisa.Bills@enron.com and Roseann.Engeldorf@ENRON.com

We anticipate that it will be necessary to modify the GE Agreement per comments that would be transmitted by Rose or Lisa and would ask that the document be turned around as quickly as possible.

If you have any questions you can reach me at 904 630 5376.

Tom Constantine

Thomas B. Constantine LeBoeuf, Lamb, Greene & MacRae, L.L.P. 50 N. Laura Street, Suite 2800 Jacksonville, FL 32202
904-630-5376 tconstan@llgm.com

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*Message 198 of 371***Re: GE Legal Opinion**

| | |
|-------------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['isabel.parker@freshfields.com', 'ccampbell@kslaw.com', 'kay.mann@enron.com', 'kent.shoemaker@ae.ge.com'] |
| File | mann-k/all_documents/5309. |

May 2 it is.

"PARKER, Isabel" <isabel.parker@freshfields.com> on 05/01/2001 10:34:35 AM To: "Kent Shoemaker (E-mail)" <kent.shoemaker@ae.ge.com> cc: "Kay Mann (E-mail)" <kay.mann@enron.com>, "Carolyn Campbell (E-mail)" <CCampbell@KSLAW.com>, "Gregory F. Lang (E-mail)" <gregorylang@paulhastings.com>

Subject: GE Legal Opinion

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Kent In answer to your question as to when the GE opinion should be dated, it should be dated the execution date of the Turbine Contract, which I believe will be tomorrow, May 2. Please could Carolyn, Kay or Greg let Kent and myself know if the Turbine Contract will be dated a date other than May 2. Thanks Isabel

Isabel Parker T +1 212 277 4025 F +1 212 277 4001 E isabel.parker@freshfields.com 520 Madison Avenue 34th Floor
New York, NY 10022 www.freshfields.com

Message 199 of 371

Re: City of Yazoo/Clarksdale Master Gas Agreements

| | |
|------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['stacy.dickson@enron.com'] |
| File | mann-k/discussion_threads/4026. |

Hi Stacy,

I don't know if Jeff or Debra mentioned this to you, but this is a master we need in place in connection with a gas/power asset management arrangement with the cities of Yazoo City and Clarksdale Mississippi. As you can see, Jeff suggested you take a look at it before it is sent to the customer.

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 05/15/2001 08:31 AM -----

Jeffrey T Hodge@ECT 05/14/2001 09:57 AM To: Kay Mann/Corp/Enron@ENRON cc:

Subject: Re: City of Yazoo/Clarksdale Master Gas Agreements

Kay:

That would be great.

Jeff

Kay Mann@ENRON 05/14/2001 08:44 AM

To: Jeffrey T Hodge/HOU/ECT@ECT cc: Subject: City of Yazoo/Clarksdale Master Gas Agreements

Hi Jeff,

Did you want Stacy to take a look at this?

Kay ----- Forwarded by Kay Mann/Corp/Enron on 05/14/2001 08:43 AM -----

DEBRA PERLINGIERE@ECT 05/11/2001 05:04 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: City of Yazoo/Clarksdale Master Gas Agreements

Attached are drafts of the Master Firm Purchase/Sale Agreement for gas. Upon completion of a guaranty I will incorporate a section for same.

Debra Perlingiere Enron North America Corp. Legal Department 1400 Smith Street, EB 3885 Houston, Texas 77002
dperlin@enron.com Phone 713-853-7658 Fax 713-646-3490

Message 200 of 371

Michael Update

| | |
|------------|---|
| Sender | bob.joyce@kvaerner.com |
| Recipients | ['david.k.bargainer@enron.com', 'tracybogiel@garygreene.com'] |
| File | mann-k/notes_inbox/623. |

It's been a while since the last e-mail, so thought I'd bring you up to date.

Michael was back in the hospital for a week, starting Good Friday, with an infection/flu. He's pretty much recovered from that, but the net result was that the bone marrow transplant has been delayed because of his condition. His white cells (the infection fighters) are down, so he needs a boost in their count. Once they're up to an acceptable level, and everything else is OK, the transplant process will start.

The marrow was taken from the donor last Thursday, the 3rd. The report is that it's healthy marrow. It's now in a freezer, waiting for Michael to be able to receive it.

Bob

Bob Joyce Kvaerner Process 7909 Parkwood Circle Drive Houston, TX 77036 (713) 995-2137 (713) 270-3652 -- Fax bob.joyce@kvaerner.com <mailto:bob.joyce@kvaerner.com>

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Message 201 of 371

Livingston Energy Center - Special USE Conditions

| | |
|------------|--|
| Sender | mark.gershon@piperrudnick.com |
| Recipients | ['20844-6662@piperrudnick.com', 'fred.mitro@enron.com', 'mhall@fcg.net', 'rsteven@enron.com', 'jennifer.walker...] |
| File | mann-k/all_documents/1120. |

Dear Mason,

As we discussed, attached are proposed conditions to the special use for the referenced project based on the items identified at our recent meeting. Please call me when you have had an opportunity to read the enclosed. I will be in Pontiac tomorrow afternoon and would be happy to sit down with you and discuss these with you further if you prefer.

Thank you

Mark

<<30B2505_.WPD>>

Mark A. Gershon Piper Marbury Rudnick & Wolfe Phone: (312) 368-2127 Fax: (312) 630-5338

Mark.Gershon@PiperRudnick.com

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- 30B2505_.WPD

*Message 202 of 371***GE Contract**

| | |
|-------------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['dale.rasmussen@enron.com'] |
| File | mann-k/discussion_threads/1192. |

Hi Dale,

We are meeting with GE tomorrow to talk about this. Please let me know if you have any suggestions or comments. Ditto on the ABB agreement which I forwarded not too long ago.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 11/01/2000 06:31 PM -----

"Cope, Lori" <loricope@akllp.com> on 11/01/2000 03:00:50 PM To: "Kay Mann (E-mail)" <Kay.Mann@Enron.com> cc:

Subject: GE Contract

Enclosed please find clean and blacklined versions of the GE Contract. The blackline of the Agreement identifies the changes from the draft I sent you. Note that no blackline of the Exhibits was necessary because it contained no references to WestLB. Regards, Paul

<<HOU_554886_3.DOC>> <<BL554888.DOC>> <<HOU_554888_4.DOC>> Paul J. Pipitone Andrews & Kurth L.L.P.
4200 Chase Tower 600 Travis Houston, Texas 77002 Phone: 713-220-4101 Fax: 713-238-7176
ppipitone@andrews-kurth.com

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Thank you.

- HOU_554886_3.DOC - BL554888.DOC - HOU_554888_4.DOC

*Message 203 of 371***RE: Citibank's billing wire instructions**

| | |
|-------------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['theresa.vos@enron.com'] |
| File | mann-k/discussion_threads/3533. |

It is our responsibility to pay the fees, which I hope will need to be paid today.

Thanks,

Kay

From: Theresa Vos/ENRON@enronXgate on 04/25/2001 08:24 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: RE: Citibank's billing wire instructions

Is Enron responsible for paying these fees? If so, when do they need to be paid?

thanks, theresa

-----Original Message-----

From: Mann, Kay Sent: Tuesday, April 24, 2001 2:17 PM To: Vos, Theresa Cc: Thome, Stephen Subject: Citibank's billing wire instructions

Hi Theresa,

I'm not sure if Steve Thome mentioned this to you, but Enron is opening an escrow account in connection with a transaction with Delta Power. He suggested that I forward the wiring instructions for the payment of the escrow fee of \$10,500. Please let me know what other info you need to tee this up.

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 04/24/2001 02:13 PM -----

"Lawrence, Estelle A" <estelle.a.lawrence@citi.com> on 04/24/2001 02:08:44 PM To: "'kay.mann@enron.com'" <kay.mann@enron.com> cc:

Subject: Citibank's billing wire instructions

Kay,

As per Steve's request, please find below our wire instructions for the fees. Feel free to give me a call should you have any further questions. Thanks.

Citibank, NA ABA 021000089 A/C 3611-3293 F/B/O 795184, Enron/Pegasus Escrow

Estelle Lawrence Citibank Agency & Trust 111 Wall Street, 14/3 New York, NY 10005 T: 212.657.2076 F: 212.657.3862

Message 204 of 371

FW: term sheet template

Sender carlos.sole@enron.com

Recipients ['ben.jacoby@enron.com', 'kay.mann@enron.com']

File mann-k/all_documents/5362.

Term sheet for Wisconsin project with Nuclear Management LLC to discuss with Herman Manis.

Carlos Sole Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

----- Forwarded by Carlos Sole/NA/Enron on 05/01/2001 04:51 PM -----

=09Doug Sewell/ENRON@enronXgate =0904/25/2001 09:33 AM =09=09=20 =09=09 To: Carlos Sole/NA/Enron@Enron
=09=09 cc: Terri Clynes/HOU/ECT@ECT, Mike E Kelly/ENRON@enronXgate, Ron=20 Tapscott/HOU/ECT@ECT
=09=09 Subject: FW: term sheet template

Carlos, I have added some language that briefly describes the unit protection=20 product. Mike Kelly or the folks from Enron Global Markets will have to=20 approve the final language for their product. Please note that we can=01,t= call=20 this an insurance product. Terri Clynes will be sending comments on the te= rm=20 sheet later today. =20

=20 -----Original Message----- From: Tapscott, Ron =20 Sent: Friday, April 20, 2001 8:57 AM To: Sewell, Doug; Sole, Carlos Subject: term sheet template

Doug,

see attached term sheet for NMC (Arpin, WI site). Please provide comments= =20 and changes as appropriate (plus add language for your insurance product in= =20 the place holder).

Carlos,

Doug and I will provide you background. I am not sure if you are the=20 appropriate Legal Support (please direct us to the appropriate person if yo= u=20 are not).

This is a starting point and is fairly general (to facilitate discussions= =20 with NMC).

Thanks, Ron.

Message 205 of 371

RE: Invoices

| | |
|------------|--|
| Sender | ben.jacoby@enron.com |
| Recipients | ['kay.mann@enron.com', 'tonya.dennis@enron.com'] |
| File | mann-k/inbox/43. |

These invoices are approved. Thanks.

-----Original Message-----

From: Mann, Kay Sent: Tuesday, November 27, 2001 9:16 AM To: Jacoby, Ben Subject: FW: Invoices

Hi Ben,

It would be great if you could expedite the invoices.

Thanks,

Kay

-----Original Message-----

From: Dennis, Tonya Sent: Tuesday, November 27, 2001 9:12 AM To: Wright, Alice; Garcia, Julie A. Cc: Mann, Kay Subject: RE: Invoices

I coded the King and Spalding invoices in IPAYIT yesterday. Before coding, I had to forward the invoices to Ben for his approval. So, they should be processed and paid soon through IPAYIT.

Thanks-

Tonya

-----Original Message-----

From: Wright, Alice Sent: Tuesday, November 27, 2001 9:07 AM To: Garcia, Julie A.; Dennis, Tonya Cc: Mann, Kay Subject: Invoices Importance: High

Good morning,

I forwarded to you over the last three weeks approximately 8 to 12 invoices for coding.....Kay Mann wants to resolve these invoices today. Will you please code the invoices as the following or return them to me. My last day at Enron is tomorrow (3 p.m.), so if you don't get them to me, please process them and inform Kay Mann of the status.

Coral Energy - Cost Center 107319

Project Blue Dog - Split 50/50 between Cost Centers 107319 and 150273

Midway Energy - WBS C.008071. or Cost Center 107319 (second choice)

Thank you very much for your prompt attention to this matter.

Alice Wright Assistant to Kay Mann 1400 Smith St., EB3809A Houston, Texas 77002 Tel: 713-853-5438 Fax: 713-646-3491 alice.wright@enron.com

Message 206 of 371

| GE Contract | |
|-------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['ben.jacoby@enron.com', 'stuart.zisman@enron.com', 'kent.shoemaker@ae.ge.com'] |
| File | mann-k/sent/1323. |

Gentlemen:

Attached is a draft of the facility agreement, without reference to WestLB. It just came in, so I haven't reviewed it.

It looks like 330 tomorrow will work for this group, unless you tell me otherwise. I'll get back to you with the location.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 11/01/2000 03:04 PM -----

"Cope, Lori" <loricope@akllp.com> on 11/01/2000 03:00:50 PM To: "Kay Mann (E-mail)" <Kay.Mann@Enron.com> cc:

Subject: GE Contract

Enclosed please find clean and blacklined versions of the GE Contract. The blackline of the Agreement identifies the changes from the draft I sent you. Note that no blackline of the Exhibits was necessary because it contained no references to WestLB. Regards, Paul

<<HOU_554886_3.DOC>> <<BL554888.DOC>> <<HOU_554888_4.DOC>> Paul J. Pipitone Andrews & Kurth L.L.P.
4200 Chase Tower 600 Travis Houston, Texas 77002 Phone: 713-220-4101 Fax: 713-238-7176
ppipitone@andrews-kurth.com

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Thank you.

- HOU_554886_3.DOC - BL554888.DOC - HOU_554888_4.DOC

Message 207 of 371

| Re: Richmond Project | |
|----------------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['lisa.mellencamp@enron.com', 'Allyson' <aduncan@kilstock.com>, 'jfine@kilstock.com', 'Duncan'] |
| File | mann-k/_sent_mail/3969. |

Jonathan,

Please resend the draft confidentiality agreement for the Public Staff, preferably by email. I cannot locate the document here.

The LOI with Rocky Mount is still under discussion. In a recent discussion with one of Enron's folks the City (or their lawyer) raised the issue that Kilpatrick Stockton had represented them in the past, and that there might be a potential conflict. I don't anticipate a problem, but we should discuss it soon.

Thank you for your assistance,

Kay

"Fine, Jonathan" <JFine@kilstock.com> on 07/18/2000 08:09:28 AM To: "'kay.mann@enron.com'" <kay.mann@enron.com> cc: "Duncan, Allyson" <aduncan@kilstock.com>, "'lisa.mellencamp@enron.com'"

<lisa.mellencamp@enron.com>, "jeffrey.m.keenan@enron.com" <jeffrey.m.keenan@enron.com>

Subject: Richmond Project

Kay:

Just a brief note to check on the status of the confidentiality agreement with the Public Staff. What did you think of the draft Allyson and I forwarded by fax last week? Once that is signed, we can go ahead and submit Jeffrey Keenan's cost estimates.

Also, curious as to the status of the LOI and confidentiality agreement (draft attached to our last e-mail message) with the City of Rocky Mount.

Once these documents are finalized, Allyson and I can continue to move your project forward. In the meantime, as you know, Allyson has been drafting resolutions for adoption by local government officials.

Jonathan M. Fine Kilpatrick Stockton, LLP 3737 Glenwood Ave., Ste. 400 Raleigh, NC 27612 TEL: (919) 420-1700 FAX: (919) 420-1800

Message 208 of 371

Schaffer-Titan Option

| | |
|------------|---|
| Sender | karen.way@piperrudnick.com |
| Recipients | ['donald.shindler@piperrudnick.com', 'kay.mann@enron.com', 'chris.townsend@piperrudnick.com'] |
| File | mann-k/discussion_threads/2498. |

<<_HMW01_.DOC>> <<Titan-Schaeffer Optionredline.DOC>>

Kay: Per your request, attached hereto please find the blacklined Titan-Schaffer Option with those blacklined changes per your email yesterday and sent to Mr. Freehill today for his review. I have also attached the coverletter sent to Mr. Freehill for your files. Please feel free to call with any questions or comments.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

I appreciate the heads up - I'll try to chase down the fax (it hasn't been delivered yet). Can you email me the blacklines just in case?

Thanks,

Kay

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- _HMW01_.DOC - Titan-Schaeffer Optionredline.DOC

Message 209 of 371

RE: Yorkville Annexation Agreement

| | |
|------------|---|
| Sender | karen.way@piperrudnick.com |
| Recipients | ['fred.mitro@enron.com', 'mark.gershon@piperrudnick.com', 'kay.mann@enron.com', 'karen.way@piperrudnick.com'] |
| File | mann-k/discussion_threads/696. |

That's it! Thanks and I'll talk with you soon.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

-----Original Message----- From: Kay.Mann@enron.com [SMTP:Kay.Mann@enron.com] Sent: Monday, September 18, 2000 1:04 PM To: Way, Karen S. - CHI Cc: 'kay.mann@enron.com'; 'fred.mitro@enron.com'; Gershon, Mark A. - CHI Subject: Re: Yorkville Annexation Agreement Hi Karen, I'm looking at a version which was faxed on Sept 13. Is this the final version? Expecting the answer to be "yes", I am reviewing it now. Kay

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

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Message 210 of 371

RE: Yorkville Annexation Agreement

| | |
|------------|---|
| Sender | karen.way@piperrudnick.com |
| Recipients | ['mark.gershon@piperrudnick.com', 'kay.mann@enron.com'] |
| File | mann-k/chicago/73. |

Kay: The Village's attorney drafted the agreement and therefore we do not have an electronic version -- unfortunately, he does not have email either. The redlined version you are reviewing now reflects only minor changes from that originally executed by ENA approximately a month ago. Please let me know if I can be of any assistance. Thanks!

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

-----Original Message----- From: Kay.Mann@enron.com [SMTP:Kay.Mann@enron.com] Sent: Monday, September 18, 2000 2:16 PM To: Way, Karen S. - CHI Subject: RE: Yorkville Annexation Agreement I'm looking at it right now. Could you please email it to me? Thanks, Kay

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Message 211 of 371

Re: ENRON Blue Dog Max 2 X 7 EA GTG

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['ben.jacoby@enron.com', 'jeffrey.hodge@enron.com'] |
| File | mann-k/discussion_threads/2948. |

Jeff,

It looks like Ben has made some good progress with GE re: Blue Dog turbines. This really helps.

As you can see, I now have email access.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 03/23/2001 08:09 AM -----

From: Ben F Jacoby @ ECT 03/22/2001 07:44 PM

Sent by: Ben Jacoby@ECT To: john.schroeder@ps.ge.com @ ENRON cc: (bcc: Kay Mann/Corp/Enron)

Subject: Re: ENRON Blue Dog Max 2 X 7 EA GTG

John:

Thanks for the e-mail. I also got your voice-mail. We will of course wrap up all outstanding items on change orders quickly. Also, rest assured, we intend to give you ample notice of project location, etc. for the units after we're sure we have a deal for a joint project with the customer.

As I mentioned in our call, please let me know if you will be able to improve the delivery date on the air filter for unit 1 as we have been advised that it is presently scheduled for a June 15 delivery date.

Thanks much for looking into this, and for the e-mail below.

Regards,

Ben

john.schroeder@ps.ge.com on 03/22/2001 12:14:26 PM To: Ben.Jacoby@enron.com, gilbert.bosworth@ps.ge.com cc:
Subject: ENRON Blue Dog Max 2 X 7 EA GTG

Dear Ben, I have asked Gib Bosworth of GE Power Sys in Arizona to call you about the availability of the 2 units we call Blue Dog. He has a customer who is interested in the units because of their timing. I have advised him you are also closely working with others for these turbines.

Ben Jacoby 713 853 - 6173 Gib Bosworth 480-888-1545

Best Regards John H Schroeder, Jr. GE Power Systems Account Mgr. 2707 North Loop West, 9th Floor Houston, Texas 77008 (713) 803-0525 Fax - 0567

Message 212 of 371

Re: GE Breakout Contract - LVCII

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['tconstan@llgm.com', 'dale.rasmussen@enron.com', 'bill.williams@enron.com', 'pthompson@akllp.com'] |
| File | mann-k/_sent_mail/473. |

If it will help, I will see if I can find the last version transmitted to Lisa et al, so they don't have to start from scratch.

Kay

"THOMAS CONSTANTINE" <TCONSTAN@LLGM.COM> on 05/01/2001 11:44:30 AM To: Pthompson@akllp.com cc: Bill.Williams@enron.com, dale.rasmussen@enron.com, Jim.Gilbert@enron.com, kay.mann@enron.com, Lisa.Bills@enron.com, Roseann.Engeldorf@enron.com

Subject: GE Breakout Contract - LVCII

**** High Priority ****

Peter: Further to voicemail and email, please send the current version of the GE Breakout agreement for the LVCII project to Lisa.Bills@enron.com and Roseann.Engeldorf@ENRON.com

We anticipate that it will be necessary to modify the GE Agreement per comments that would be transmitted by Rose or Lisa and would ask that the document be turned around as quickly as possible.

If you have any questions you can reach me at 904 630 5376.

Tom Constantine

Thomas B. Constantine LeBoeuf, Lamb, Greene & MacRae, L.L.P. 50 N. Laura Street, Suite 2800 Jacksonville, FL 32202 904-630-5376 tconstan@llgm.com

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Message 213 of 371

FW: ENA/Blue Dog: Execution Sets

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['litigation.ljm@enron.com', 'Janis; Keffer', 'Carnahan', 'John', 'Kathleen; McRae'] |
| File | mann-k/sent_items/169. |

-----Original Message-----

From: Reuter, Marisa [mailto:MReuter@KSLAW.com] Sent: Thursday, September 13, 2001 3:54 PM To: Mann, Kay Cc: Carnahan, Kathleen; McRae, Janis; Keffer, John Subject: ENA/Blue Dog: Execution Sets Importance: High

Kay:

I am attaching execution sets of the following documents:

1. Assignment and Assumption Agreement; 2. ENA Promissory Note; 3. Amended and Restated LLC Agreement; 4. Certificate of Amendment; and

5. ENA Closing Certificate. Please have an authorized representative execute 4 originals of every document, except for the Note where only 1 original is needed. In addition, please courier all originals to my attention so that all Closing documents remain in one place. Thanks.

Best regards,

Marisa <<Assignmentand AssumptionAgreement.DOC>> <<PromissoryNote.DOC>>

<<LLC Agreement(v5).DOC>> <<Certificate of Amendment to Certificate of Formation of Merchant Energy Ventures, LLC(v1).DOC>> <<ENA Closing Certificate(v2).DOC>>

Maria I. ("Marisa") Reuter King & Spalding 1100 Louisiana, Suite 3300 Houston, Texas 77002 713-751-3244 (tel) 713-276-7440 (fax) <<Reuter, Marisa.vcf>>

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Message 214 of 371

E-Next Generation Purchase by DAED I/II

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['kathleen.carnahan@enron.com', 'suzanne.adams@enron.com'] |
| File | mann-k/_sent_mail/1972. |

Please make the requested change to the signature blocks on the following docs in my CA directory:

EXECUTIONCOPY Bill of Sale (CAED I)

EXECUTION COPY Assumption with GE ack (CAEDI)

EXECUTION COPY Bill of Sale (CAEDII)

EXECUTION COPY Assumption re ABB (CAEDII)

EXECUTION COPY Assumption with GE ack (CAEDII) (I think this is the correct name)

When this is completed, please email these agreements to Karl, copy to me and Kathleen Carnahan

Thanks,

Kay

----- Forwarded by Kay Mann/Corp/Enron on 01/17/2001 01:18

PM -----

KWierner@milbank.com on 01/17/2001 12:57:24 PM To: Kay.Mann@enron.com cc:

Subject: E-Next Generation Purchase by DAED I/II

Kay - As mentioned in my voice mail. Please revise the signature pages for E-Next Generation as follows and e-mail back to me. Wilmington is standing by to execute. Regards, Karl Each signature block for E-Next Generation should appear as follows:

E-NEXT GENERATION LLC By: Wilmington Trust Company, not in its individual capacity but solely as Manager

By: _____ Name: Title:

Karl Wierner Milbank, Tweed, Hadley & McCloy LLP One Chase Manhattan Plaza New York, NY 10005-1413
212-530-5209 212-822-5209 (fax) kwierner@milbank.com

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Message 215 of 371

| Re: Turbine Inv | |
|-----------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['lisa.mellencamp@enron.com', 'sheila.tweed@enron.com'] |
| File | mann-k/sent/138. |

Here's what I can give you without talking to anyone:

I am not familiar with the Goldendale turbine (#7 on ENA long list). ENA's CTG group lists #7 as being an EECC turbine for Goldendale, not an ENA asset.

I don't know the 2 used GEC turbines (#8 on ENA long list).

On the EECC long list, #13 (501D5A) is not slated to be used on an an ENA/Electrocities project, as LM's are now being considered (guess you knew this).

I believe Blue Dog (#14 on EECC list) has been an EECC deal, not an ENA deal; I don't know about the Choc. Bayou or Central Iowa projects listed as ENA projects. Maybe these are sleepers.

I can chase down more info, and Sheila probably has a great deal she can tell you just from looking at the list.

Kay

Lisa Mellencamp@ECT 07/05/2000 12:36 PM To: Sheila Tweed/HOU/ECT@ECT, Kay Mann/Corp/Enron@Enron cc:

Subject: Turbine Inv

ben glissan is trying to verify all turbines. can you confirm the turbine assets that are under ena on the list below??? do you see any others that should be on ena and not elsewhere??? do not want the list circulated please. is this possible to do quickly?

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 ----- Forwarded by Lisa Mellencamp/HOU/ECT on 07/05/2000 12:32 PM -----

Wanda LaBaume@ENRON_DEVELOPMENT 06/30/2000 11:57 AM

To: Lisa Mellencamp/HOU/ECT@ECT cc: Fred L Kelly/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Keith Marlow/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Turbine Inv

As requested, attached is a listing of the turbine inventory. Because the payment/termination schedules are not consolidated into one file, I will send you a hard copy of this information this afternoon.

Wanda

Message 216 of 371

| Re: C. Kay Mann - 2000 W2 Information | |
|---------------------------------------|-----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['suzanne.adams@enron.com'] |
| File | mann-k/sent/2941. |

Many thanks!

From: Suzanne Adams@ECT on 03/05/2001 11:07 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: C. Kay Mann - 2000 W2 Information

Kay, I've done the request and signed your name and faxed it out. Let me know if you get the W-2. Thanks, Suz -----
Forwarded by Suzanne Adams/HOU/ECT on 03/05/2001 11:07 AM -----

Norma Villarreal 03/05/2001 10:58 AM

To: Suzanne Adams/HOU/ECT@ECT cc: Subject: C. Kay Mann - 2000 W2 Information

Per your request, here is the information regarding C. Kay Mann's W2. Let me know if you have further questions

Norma X31545

----- Forwarded by Norma Villarreal/HOU/ECT on 03/05/2001

10:42 AM -----

Enron North America Corp.

From: Corporate Payroll @ ENRON 01/26/2001 06:17 PM

Sent by: Enron Announcements@ENRON To: All Eligible Enron Employees United States cc: Subject: 2000 W2 Information

The 2000 Form W-2 will be mailed to your address of record by January 31, 2001. If you have not received your form by February 20th, you may request, in writing, for a duplicate copy to be sent to you. Please note that a written request, including authorized signature is required.

When requesting a duplicate form, please specify the year for which you need a copy, sign your request, and include the following information:

Name Complete Mailing Address Phone Number Social Security Number

You may mail your request to: ENRON CORP EB 1528 P O BOX 1188 HOUSTON TX 77002

Or you may fax your request to 713-646-3755.

Your request will be processed within one week of receipt.

If you have a question regarding the information on your Form W2, please contact the Payroll Call Center at 713-345-5555 option 1.

Thank you

Message 217 of 371

Titan-Schaeffer Option.DOC

| | |
|------------|----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['herman.manis@enron.com'] |
| File | mann-k/sent/2559. |

Here's the option we discussed yesterday. It has some farm tenancy stuff which I want to make sure you see.

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 01/30/2001 11:58 AM -----

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 01/30/2001 10:53:27 AM To: "'kathleen.carnahan@enron.com'" <kathleen.carnahan@enron.com>, "'Kay.mann@enron.com'" <Kay.mann@enron.com> cc:

Subject: Titan-Schaeffer Option.DOC

<<Titan-Schaeffer Option.DOC>>

Kathleen and Kay: Per Kathleen's voicemail this morning, attached hereto please find the most recent version of the Titan-Schaffer Option Agreement for your use. Please feel free to contact me with any questions or comments you may have on this matter.

Best regards, Karen

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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- Titan-Schaeffer Option.DOC

Message 218 of 371

Re: #3148597 v1 - livingston county - fehr option to purchase

| | |
|------------|--|
| Sender | herman.manis@enron.com |
| Recipients | ['lisa.bills@enron.com', 'kay.mann@enron.com', 'karen.way@piperrudnick.com'] |
| File | mann-k/chicago/50. |

See comments and recommendations in sections 2.1, 3.1, 11.2(b).

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 08/16/2000 05:01:56 PM To: "kay.mann@enron.com" <kay.mann@enron.com>, "herman.manis@enron.com" <herman.manis@enron.com> cc: "fred.mitro@enron.com" <fred.mitro@enron.com>, "Shindler, Donald A. - CHI" <Donald.Shindler@piperrudnick.com> Subject: #3148597 v1 - livingston county - fehr option to purchase

<<302PL01_.DOC>>

Kay and Herman: Per my conversation with Fred Mitro, please review the attached Land Option Agreement for the Fehr property in Livingston County, Illinois for purposes of off-balance sheet suitability. Please call with any questions. Thank you.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

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- 302PL01_.DOC

Message 219 of 371

TurboPark Assignment Documents

| | |
|-------------------|--|
| Sender | seanbunk@akllp.com |
| Recipients | ['lisa.bills@enron.com', 'robtaylor@akllp.com', 'catherine.clark@enron.com', 'kay.mann@enron.com', 'tompopplew...] |
| File | mann-k/all_documents/2472. |

Attached please find revised drafts of the following documents:

1. Purchase Option Assignment and Assumption Agreement (LM6000) 2. Purchase Option Assignment and Assumption Agreement (Pastoria) 3. Schedule V to Participation Agreement 4. Equipment Purchase Agreements to be Assigned to Devco chart

Both a clean copy and a copy blacklined to show the changes from the prior version are included for items 1 and 2 above.

Please feel free to call me if you have any questions or comments.

~~~~~ Sean Bunk Andrews & Kurth L.L.P. 600 Travis St., Suite 4200 Houston, Texas 77002 Tel.: 713.220.4427 Fax.: 713.238.7252 e-mail: seanbunk@andrews-kurth.com

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<<Blackline 593717v2 to v1 (Assignment - Pastoria, TurboPark).DOC>> <<Blackline 593834v3 to v2 (Assignment Ag TurboPark).DOC>> <<Purchase Option Assignment and Assumption Agreement (Turbopark - LM6000).DOC>> <<Purchase Option Assignment and Assumption Agreement - Pastoria.DOC>> <<Schedule V to Participation Agreement (TurboPark).DOC>> <<DevCo Equipment Purchase Agreement Chart.DOC>> - Blackline 593717v2 to v1 (Assignment - Pastoria, TurboPark).DOC - Blackline 593834v3 to v2 (Assignment Ag TurboPark).DOC - Purchase Option Assignment and Assumption Agreement (Turbopark - LM6000).DOC - Purchase Option Assignment and Assumption Agreement - Pastoria.DOC - Schedule V to Participation Agreement (TurboPark).DOC - DevCo Equipment Purchase Agreement Chart.DOC

Message 220 of 371

**Re: Transfer of Blue Dog Turbines into E-Next Generation LLC**

|                   |                                                                                                    |
|-------------------|----------------------------------------------------------------------------------------------------|
| <b>Sender</b>     | amy_harvey@dc.kirkland.com                                                                         |
| <b>Recipients</b> | ['lisa.bills@enron.com', 'robtaylor@akllp.com', 'catherine.clark@enron.com', 'seanbunk@akllp.com'] |
| <b>File</b>       | mann-k/all_documents/2603.                                                                         |

Sean:

The final Option Exercise Agreement is fine. As requested, LJM will Federal Express ten (10) original signature pages to each of the documents listed below to Rose's attention (c/o Karl Wiemer) for delivery on Thursday morning.

Thanks,

Amy

"Bunk, Sean" <seanbunk@akllp.com> on 12/13/2000 06:54:20 PM

To: Amy Harvey/Washington DC/Kirkland-Ellis@K&E cc: "Taylor, Rob" <robtaylor@akllp.com>, lisa.bills@enron.com, catherine.clark@enron.com, roseann.engeldorf@enron.com, kay.mann@enron.com

Subject: Re: Transfer of Blue Dog Turbines into E-Next Generation LLC

Amy,

Attached please find the final execution copy of the Option Exercise Agreement. Both a clean copy and a copy blacklined to show the changes from the prior version distributed are attached.

As discussed, please send by overnight courier ten (10) executed signature pages for each of the Option Exercise Agreement, the Assignment and Assumption of Option Agreement and the side letter agreement terminating the Agency Agreement to Rose Engeldorf in New York for the Closing.

Please feel free to call me if you have any questions.

----- Sean Bunk Andrews & Kurth L.L.P. 600 Travis St., Suite 4200 Houston, Texas 77002 Tel.: 713.220.4427 Fax.: 713.238.7252 e-mail: seanbunk@andrews-kurth.com

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<<Option Exercise Agreement - Blue Dog Project.DOC>> <<Blackline 598219v3 to v2 (Option Exercise Agreement).DOC>>

- Option Exercise Agreement - Blue Dog Project.DOC - Blackline 598219v3 to v2 (Option Exercise Agreement).DOC

---

Message 221 of 371

### Re: Services Agreement

|            |                                 |
|------------|---------------------------------|
| Sender     | kathleen.carnahan@enron.com     |
| Recipients | ['kay.mann@enron.com']          |
| File       | mann-k/discussion_threads/3453. |

As a matter of fact, I do have the LLC Agreement for enovate (formerly Midwest Energy Hub, L.L.C.) and the Certo fo Amendment changing the name, etc. Do you want me to bring it up to you? I have a meeting with Ann Elizabeth at 9:00.

K-

Kay Mann 04/23/2001 08:39 AM To: Kathleen Carnahan/NA/Enron@Enron cc:

Subject: Re: Services Agreement

Do you have enovate agreement handy? ----- Forwarded by Kay Mann/Corp/Enron on 04/23/2001 08:39 AM  
----- From: Travis McCullough@ECT on 04/23/2001 03:20 AM To: Gregg Penman/Corp/Enron@ENRON  
cc: Kay Mann/Corp/Enron@Enron

Subject: Re: Services Agreement

Attached is a draft of an agreement between Enron Corp. and the Enron entity that is the managing member of enovate under which Enron Corp.'s treasury department would agree to provide certain funds management services on behalf of the managing member. Gregg, as we discussed with the People's attorney, this agreement would establish the link between enovate's managing member and Enron Corp. with respect to these services, since the managing member has the authority to take these actions, but Enron Corp. would be the entity actually doing the work. We should resist any attempt to make enovate or any other party a party to this Agreement, since we want only the Enron entity that is the managing member to have a cause of action against Enron Corp. for any breach of this agreement, etc.

Kay, I am out of the office, and I didn't bring the enovate LLC agreement with me. Could you fill in the blanks for me in this document with the correct names, jurisdictions of organization, etc.?

Gregg, if you could take a look at the description of services to make sure that it captures everything that the treasury group does for enovate, that would be great.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3893 Houston Texas 77002 Phone: (713) 853-1575  
Fax: (713) 646-3490

Message 222 of 371

### Fuel Cell Purchase Agreement

|            |                                             |
|------------|---------------------------------------------|
| Sender     | cwelsh@llgm.com                             |
| Recipients | ['kay.mann@enron.com', 'jklauber@llgm.com'] |
| File       | mann-k/all_documents/4166.                  |

Kay, John Klauber forwarded your email requesting a "fatal flaw" review under Connecticut law and also your question relating to the granting of a security interest under the agreement. The agreement does not appear to have any "fatal flaws" with respect to enforceability under Connecticut law. There are no liquidated damages provisions or "sole" remedy provisions that are often times problematic. The contract does contain a rather extensive force majeure provision which we have not fully analyzed under Connecticut law, but the provision appears to be reasonably drafted and should not be a problem. If you would like, we can take a closer look at it for precedents under Connecticut law.

As to the granting of the security interest and the filing of financing statements, we think that these provisions are reasonable for this type of contract and merely provide the seller with a mechanism for perfecting its security interest. I have attached a memorandum that addresses this issue under Connecticut law. Please call me at the number set forth below if you have any questions regarding this email or the attached memorandum, or if I may be of any other assistance.

Regards. Chuck Welsh

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Charles R. Welsh LeBoeuf, Lamb, Greene & MacRae, L.L.P. Goodwin Square 225 Asylum Street Hartford, Connecticut 06103 (860) 293-3723 Email: cwelsh@llgm.com

- memotoch.DOC

Message 223 of 371

### Re: Peoples Transaction

|            |                                                  |
|------------|--------------------------------------------------|
| Sender     | bjspringer@jonesday.com                          |
| Recipients | ['gregg.penman@enron.com', 'kay.mann@enron.com'] |
| File       | mann-k/all_documents/2047.                       |

actually, I told Bill that I thought only these two invoices were involved. Is that correct? ----- Forwarded by Boyd J. Springer/JonesDay on 11/21/00 04:09 PM -----

William J. Harmon To: Boyd J. Springer/JonesDay@JonesDay, gregg.penman@enron.com, Extension 54160  
Kay.Mann@enron.com cc: 11/21/00 03:45 Subject: Re: Peoples Transaction(Document link: Boyd J. Springer) PM

Boyd just explained to me that the special interest rate provisions will apply only to these two invoices. As a "one time" event, it probably is not necessary to make the change into a formal amendment to the basic agreement. A letter outlining the changes (and reference that it is for just these two invoices an amendment) should be sufficient.

Bill Harmon wjharmon@jonesday.com 312-269-4160 Fax: 312-782-8585

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Message 224 of 371

### CA for Island End Project and Meeting Scheduled for 5/15/01

|            |                                                 |
|------------|-------------------------------------------------|
| Sender     | kathleen.carnahan@enron.com                     |
| Recipients | ['john.llodra@enron.com', 'kay.mann@enron.com'] |
| File       | mann-k/discussion_threads/3902.                 |

Kay,

Here is a redline of their changes (they took out the arbitration clause and changed the choice of law to New York). Please advise.

K-

----- Forwarded by Kathleen Carnahan/NA/Enron on 05/09/2001

03:22 PM -----

John Llodra 05/09/2001 03:10 PM To: Kay Mann/Corp/Enron@Enron, Kathleen Carnahan/NA/Enron@Enron cc:

Subject: CA for Island End Project and Meeting Scheduled for 5/15/01

Kay/Kathleen

Please see Ameresco's attached markup of our 2-way CA. If you would like a redline please let me know and I can see if they can send one. We have a meeting next Tuesday and will need to begin to share info prior to that, so I would like to get this wrapped up as soon as possible. Thanks so much for your help

Regards John

----- Forwarded by John Llodra/Corp/Enron on 05/09/2001

04:08 PM -----

"Barba, Doug" <dbarba@ameresco.com> on 05/09/2001 02:19:36 PM To: "john.llodra@enron.com" <john.llodra@enron.com> cc: "Corrsin, David" <dcorrsin@ameresco.com>, "Wallis, Peter" <pwallis@ameresco.com>

Subject: CA for Island End Project and Meeting Scheduled for 5/15/01

John,

Attached is a CA that Ameresco is prepared to sign.? Once Enron has reviewed, then I will send 2 signed CA's with one original returned to Ameresco.? The meeting is confirmed with Joe Murphy at Cabot.? I believe he will have one or more people attend the meeting and he has asked the names of persons that will be attending.? Please let me know who from Houston besides yourself will be at the meeting.? I also want to have a conference call with Gil or Dave plus yourself to discuss strategy prior to us getting together next week.

<<Enron Bilateral CA Draft 2 by Ameresco 050901.doc>>

Doug Barba Executive Vice President Ameresco Inc. 111 Speen Street Framingham, MA? 01701 Phone: 508-661-2238  
Fax: 508-661-2201 E-mail: dbarba@ameresco.com

- Enron Bilateral CA Draft 2 by Ameresco 050901.doc

Message 225 of 371

### Option to Purchase Real Estate re TitanFehr.DOC

|            |                                                                                                     |
|------------|-----------------------------------------------------------------------------------------------------|
| Sender     | kay.mann@enron.com                                                                                  |
| Recipients | ['Shindler', 'Gershon', 'stuart.zisman@enron.com', 'Mark A. - CHI' <Mark.Gershon@piperrudnick.com>] |
| File       | mann-k/discussion_threads/702.                                                                      |

This makes me crazy. I ask her to send me a document, and she copies TWO partners on the transmittal, plus Fred and Rusty. ----- Forwarded by Kay Mann/Corp/Enron on 09/18/2000 03:12 PM -----

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 09/18/2000 02:58:55 PM To: "kay.mann@enron.com" <kay.mann@enron.com>, "rusty.stevens@enron.com" <rusty.stevens@enron.com>, "fred.mitro@enron.com" <fred.mitro@enron.com> cc: "Gershon, Mark A. - CHI" <Mark.Gershon@piperrudnick.com>, "Shindler, Donald A. - CHI" <Donald.Shindler@piperrudnick.com>

Subject: Option to Purchase Real Estate re TitanFehr.DOC

<<Option to Purchase Real Estate re TitanFehr.DOC>>

Kay: Per your previous email, attached is the electronic version of the Titan-Fehr Option for your review. Please call with any questions. Thanks!

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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- Option to Purchase Real Estate re TitanFehr.DOC

Message 226 of 371

### Re: CA for Island End Project and Meeting Scheduled for 5/15/01

|            |                                                          |
|------------|----------------------------------------------------------|
| Sender     | kay.mann@enron.com                                       |
| Recipients | ['john.llodra@enron.com', 'kathleen.carnahan@enron.com'] |
| File       | mann-k/discussion_threads/3900.                          |

Hi John,

I left you a voice mail, but thought I'd try email as well.

The language that they added to paragraph 6 raises some issues since they want to restrict ENA and its affiliates from future potential transactions. Please call me at your convenience to discuss.

Thanks,

Kay

John Llodra 05/09/2001 03:10 PM To: Kay Mann/Corp/Enron@Enron, Kathleen Carnahan/NA/Enron@Enron cc:

Subject: CA for Island End Project and Meeting Scheduled for 5/15/01

Kay/Kathleen

Please see Ameresco's attached markup of our 2-way CA. If you would like a redline please let me know and I can see if they can send one. We have a meeting next Tuesday and will need to begin to share info prior to that, so I would like to get this wrapped up as soon as possible. Thanks so much for your help

Regards John

----- Forwarded by John Llodra/Corp/Enron on 05/09/2001

04:08 PM -----

"Barba, Doug" <dbarba@ameresco.com> on 05/09/2001 02:19:36 PM To: "john.llodra@enron.com" <john.llodra@enron.com> cc: "Corrsin, David" <dcorrsin@ameresco.com>, "Wallis, Peter" <pwallis@ameresco.com>

Subject: CA for Island End Project and Meeting Scheduled for 5/15/01

John,

Attached is a CA that Ameresco is prepared to sign.? Once Enron has reviewed, then I will send 2 signed CA's with one original returned to Ameresco.? The meeting is confirmed with Joe Murphy at Cabot.? I believe he will have one or more people attend the meeting and he has asked the names of persons that will be attending.? Please let me know who from Houston besides yourself will be at the meeting.? I also want to have a conference call with Gil or Dave plus yourself to discuss strategy prior to us getting together next week.

<<Enron Bilateral CA Draft 2 by Ameresco 050901.doc>>

Doug Barba Executive Vice President Ameresco Inc. 111 Speen Street Framingham, MA? 01701 Phone: 508-661-2238 Fax: 508-661-2201 E-mail: dbarba@ameresco.com

- Enron Bilateral CA Draft 2 by Ameresco 050901.doc

Message 227 of 371

## RE: GE Legal Opinion

|            |                                                                                        |
|------------|----------------------------------------------------------------------------------------|
| Sender     | isabel.parker@freshfields.com                                                          |
| Recipients | ['kay.mann@enron.com', 'Kent Shoemaker (E-mail); Kay Mann (E-mail); Carolyn Campbell'] |
| File       | mann-k/discussion_threads/3735.                                                        |

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Thank you. Isabel

-----Original Message-----



From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Tuesday, May 01, 2001 11:41 AM To: PARKER, Isabel Cc: Kent Shoemaker (E-mail); Kay Mann (E-mail); Carolyn Campbell (E-mail); Gregory F. Lang (E-mail) Subject: Re: GE Legal Opinion

May 2 it is.

"PARKER, Isabel" <isabel.parker@freshfields.com> on 05/01/2001 10:34:35 AM

To: "Kent Shoemaker (E-mail)" <kent.shoemaker@ae.ge.com> cc: "Kay Mann (E-mail)" <kay.mann@enron.com>, "Carolyn Campbell (E-mail)" <CCampbell@KSLAW.com>, "Gregory F. Lang (E-mail)" <gregorylang@paulhastings.com>

Subject: GE Legal Opinion

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Kent In answer to your question as to when the GE opinion should be dated, it should be dated the execution date of the Turbine Contract, which I believe will be tomorrow, May 2. Please could Carolyn, Kay or Greg let Kent and myself know if the Turbine Contract will be dated a date other than May 2. Thanks Isabel

Isabel Parker T +1 212 277 4025 F +1 212 277 4001 E [isabel.parker@freshfields.com](mailto:isabel.parker@freshfields.com) 520 Madison Avenue 34th Floor New York, NY 10022 [www.freshfields.com](http://www.freshfields.com)

---

Message 228 of 371

## Re: Titan-Schaeffer Option.DOC

|            |                                                                                                                                                                            |
|------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Sender     | <a href="mailto:kay.mann@enron.com">kay.mann@enron.com</a>                                                                                                                 |
| Recipients | [' <a href="mailto:chris.townsend@piperrudnick.com">chris.townsend@piperrudnick.com</a> ', ' <a href="mailto:karen.way@piperrudnick.com">karen.way@piperrudnick.com</a> '] |
| File       | <a href="#">mann-k/sent/2684.</a>                                                                                                                                          |

Karen,

It appears to me that revisions were made to this agreement, and the agreement was presented to the counterparty for signature without me being consulted. Perhaps you did email this to me and I can't locate the electronic file. In any event, in the future, please call me on the telephone BEFORE revisions are made to documents and presented to the counterparty. If you can't reach me by phone, send me an explanatory email. Also, please email me redlines against prior drafts. This will facilitate my review. Faxing drafts does not work for me.

I will send you the required changes tomorrow.

Thank you,

Kay

"Way, Karen S. - CHI" <[karen.way@piperrudnick.com](mailto:karen.way@piperrudnick.com)> on 01/30/2001 10:53:27 AM To: "'[kathleen.carnahan@enron.com](mailto:kathleen.carnahan@enron.com)'" <[kathleen.carnahan@enron.com](mailto:kathleen.carnahan@enron.com)>, "'[Kay.mann@enron.com](mailto:Kay.mann@enron.com)'" <[Kay.mann@enron.com](mailto:Kay.mann@enron.com)> cc:

Subject: Titan-Schaeffer Option.DOC

<<Titan-Schaeffer Option.DOC>>

Kathleen and Kay: Per Kathleen's voicemail this morning, attached hereto please find the most recent version of the Titan-Schaffer Option Agreement for your use. Please feel free to contact me with any questions or comments you may have on this matter.

Best regards, Karen

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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- Titan-Schaeffer Option.DOC

Message 229 of 371

### E-Next Generation Assignment Documents and UCC-3s (WestLB)

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | seanbunk@akllp.com                                                                                                 |
| Recipients | ['lisa.bills@enron.com', 'robtaylor@akllp.com', 'catherine.clark@enron.com', 'kay.mann@enron.com', 'tompopplew...] |
| File       | mann-k/off_balance_sheet_form_contracts/30.                                                                        |

Attached please find execution copies of the following documents:

1. Purchase Option Assignment and Assumption Agreement (Pastoria) 2. Purchase Option Assignment and Assumption Agreement (LM6000-North America) 3. UCC-3 Financing Statement Change (Release) forms for filing with the Secretary of State of Delaware, the Secretary of State of Ohio, Hamilton County, Ohio, and the Secretary of State of Texas 4. Exhibit A - Collateral Description to be attached to the UCC-3s

Both a clean copy and a copy blacklined to show the changes from the prior version are attached for items 2 and 4 above. Items 1 and 3 have not been revised from the prior version distributed.

Please feel free to call me with any questions or comments.

~~~~~ Sean Bunk Andrews & Kurth L.L.P. 600 Travis St., Suite 4200 Houston, Texas 77002 Tel.: 713.220.4427 Fax.: 713.238.7252 e-mail: seanbunk@andrews-kurth.com

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<<Blackline 593834v5 to v4 (LM6000 Assignment - North America).DOC>> <<Purchase Option Assignment and Assumption Agreement - Pastoria.DOC>> <<Purchase Option Assignment and Assumption Agreement (Turbopark - LM6000).DOC>> <<Blackline 597247.2 vs. .1 Exhibit A.DOC>> <<UCC-3 Ex. A (TurboPark).DOC>> <<Enron UCC Release Texas 99-216124.DOC>> <<Enron UCC Release Hamilton Co. Ohio 99-215836.DOC>> <<Enron UCC Release Ohio APO1901088.DOC>> <<Enron UCC Release Delaware 9956376.DOC>> - Blackline 593834v5 to v4 (LM6000 Assignment - North America).DOC - Purchase Option Assignment and Assumption Agreement - Pastoria.DOC - Purchase Option Assignment and Assumption Agreement (Turbopark - LM6000).DOC - Blackline 597247.2 vs. .1 Exhibit A.DOC - UCC-3 Ex. A (TurboPark).DOC - Enron UCC Release Texas 99-216124.DOC - Enron UCC Release Hamilton Co. Ohio 99-215836.DOC - Enron UCC Release Ohio APO1901088.DOC - Enron UCC Release Delaware 9956376.DOC

Message 230 of 371

| RE: GE Contract | |
|-----------------|------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['kent.shoemaker@ae.ge.com'] |
| File | mann-k/_sent_mail/2976. |

CST. That was right, right?

I'm going to have the outside lawyer involved for the purpose of turning the revised draft, so long as you don't have an objection (objecting=volunteering to turning the next draft!)

Kay

"Shoemaker, Kent (GEAE)" <kent.shoemaker@ae.ge.com> on 11/01/2000 03:11:13 PM To: "'Kay.Mann@enron.com'" <Kay.Mann@enron.com> cc:

Subject: RE: GE Contract

Is that 3:30 CST? If so, I'll be ready.

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Wednesday, November 01, 2000 4:08 PM To: Stuart.Zisman@enron.com; kent.shoemaker@ae.ge.com; Ben.Jacoby@enron.com; lee.johnson@ss.ps.ge Subject: GE Contract

Gentlemen:

Attached is a draft of the facility agreement, without reference to WestLB. It just came in, so I haven't reviewed it.

It looks like 330 tomorrow will work for this group, unless you tell me otherwise. I'll get back to you with the location.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 11/01/2000 03:04 PM -----

"Cope, Lori" <loricope@akllp.com> on 11/01/2000 03:00:50 PM

To: "Kay Mann (E-mail)" <Kay.Mann@Enron.com> cc:

Subject: GE Contract

Enclosed please find clean and blacklined versions of the GE Contract. The blackline of the Agreement identifies the changes from the draft I sent you. Note that no blackline of the Exhibits was necessary because it contained no references to WestLB. Regards, Paul

<<HOU_554886_3.DOC>> <<BL554888.DOC>> <<HOU_554888_4.DOC>> Paul J. Pipitone Andrews & Kurth L.L.P.
4200 Chase Tower 600 Travis Houston, Texas 77002 Phone: 713-220-4101 Fax: 713-238-7176
ppipitone@andrews-kurth.com

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Thank you.

(See attached file: HOU_554886_3.DOC) (See attached file: BL554888.DOC) (See attached file: HOU_554888_4.DOC)

Message 231 of 371

TITAN-LEDFORD comparrite.DOC

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['rusty.stevens@enron.com', 'fred.mitro@enron.com'] |
| File | mann-k/discussion_threads/793. |

fyi ----- Forwarded by Kay Mann/Corp/Enron on 09/25/2000 06:11 PM -----

Enron North America Corp.

From: Kay Mann 09/25/2000 05:34 PM

To: Herman Manis/Corp/Enron@ENRON cc:

Subject: TITAN-LEDFORD comparrite.DOC

This is the one you looked at and left me comments. Your comments aren't in this draft (timing), but I want to pick them up in the next go round. When we get together to discuss stuff, maybe we can review this. It is difficult to get your comments over voice mail, as I'm just not that quick!

Kay ----- Forwarded by Kay Mann/Corp/Enron on 09/25/2000 05:33 PM -----

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 09/21/2000 01:41:25 PM To: "rusty.stevens@enron.com" <rusty.stevens@enron.com>, "kay.mann@enron.com" <kay.mann@enron.com> cc: "Shindler, Donald A. - CHI" <Donald.Shindler@piperrudnick.com>

Subject: TITAN-LEDFORD comparrite.DOC

<<comparrite.DOC>>

Kay and Rusty: Attached is the redlined Titan-Ledford Option for your review. Rusty, I will look for your email re: address for Fed Ex to the Ledfords. Thanks!

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

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- comparrite.DOC

Message 232 of 371

Re: Sept. 6 Agency Draft

| | |
|------------|--|
| Sender | dtucker@bracepatt.com |
| Recipients | ['gregg.penman@enron.com', 'cdade@bracepatt.com', 'kay.mann@enron.com', 'bjspringer@jonesday.com'] |
| File | mann-k/discussion_threads/561. |

I responding to your comments as follows:

Sect. 1.9. The second to last sentence in the definition of Cumulative Net Revenues duplicates part (but not all) of the first sentence of Section 7.2 with regard to what is included in Cumulative Net Revenue. . . . Perhaps the make-up of Cumulative Net Revenue should be covered in just one place or, as an alternative, the definition 1.9 could cross-reference 7.2.

You're absolutely right. The "and, for purposes of Section 7.1, Section 7.2" reference is a bust. I've recast the sentence as "The calculation of Cumulative Net Revenues is made expressly subject to Sections 2.10 and 7.2."

I don't believe the language of Sect. 7.2 regarding the make-up of Cumulative Net Revenue is intended to be only "for purposes of Section 7.1" as the wording of 7.2 suggests.

I included that to avoid any unintended consequences in the event we later use "Cumulative Net Revenue" in other contexts for which it wouldn't be appropriate to include such refund-revenues; but if you believe it's confusing, I'll delete the clause.

Sect. 3.3. I would delete part (i) if the last sentence. It would be illegal and contrary to this Agreement for MEH (or Peoples) to charge a rate above the maximum, so it seems inappropriate to suggest that MEH can collect a fee for doing this.

Per our discussion, I agree that it seems inappropriate to contemplate knowing violations of federal law. I'll soften it so it will have a better chance of not raising regulatory hackles.

Perhaps we should just make Peoples responsible for all refunds. Let me know what you think.

That would be easier, but it seems fair that we should be responsible for risks we knowingly or recklessly assume.

Also, 6 lines from the end of 7.2, I think the reference to 7.2 (ii) is a typo. I believe it's just 7.2.

It's now changed.

Sect. 18.3. Do we want to include any work related to the Governmental Approval as "ordinary course"?

My inclination is to not include it, so as to avoid arguments with Peoples over what's extraordinary and what's ordinary in this context.

As always, I thank you for your help. DT

David A. Tucker Bracewell & Patterson, L.L.P. Pennzoil Place, South Tower 711 Louisiana Houston, Texas 77002 Phone: (713) 221-1414 Fax: (713) 221-1212 Email: dtucker@bracepatt.com

Message 233 of 371

RE: Yorkville Annexation Agreement/Fehr option

| | |
|------------|--------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['karen.way@piperrudnick.com'] |
| File | mann-k/sent/776. |

Karen,

I don't run across many people without email these days. Big hassle. It is so much easier to check for certain issues with an electronic copy.

I'm looking for the Fehr option, but the latest I have on my computer is the version I emailed to you on August 30th. Is there a more up-to-date version, and if so, could you please mail it to me?

Thanks,

Kay

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 09/18/2000 02:28:53 PM To: ""Kay.Mann@enron.com"" <Kay.Mann@enron.com>, "Gershon, Mark A. - CHI" <Mark.Gershon@piperrudnick.com> cc:

Subject: RE: Yorkville Annexation Agreement

Kay: The Village's attorney drafted the agreement and therefore we do not have an electronic version -- unfortunately, he does not have email either. The redlined version you are reviewing now reflects only minor changes from that originally executed by ENA approximately a month ago. Please let me know if I can be of any assistance. Thanks!

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

-----Original Message----- From: Kay.Mann@enron.com [SMTP:Kay.Mann@enron.com] Sent: Monday, September 18, 2000 2:16 PM To: Way, Karen S. - CHI Subject: RE: Yorkville Annexation Agreement I'm looking at it right now. Could you please email it to me? Thanks, Kay

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

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Message 234 of 371

Re: Form of Memorandum of Option Question

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['=20', 'kathleen.carnahan@enron.com'] |
| File | mann-k/_sent_mail/206. |

Here's how I would do it. =20

(llc and its permitted assignees hereinafter referred to as "Optionee"), a= nd=20
_____, L.L.C., a Delaware limited liability,

This is consistent with option. Revise like this and send out again to=20 Herman.

thanks ckm

From: Kathleen Carnahan/ENRON@enronXgate on 05/25/2001 10:29 AM To: Kay Mann/Corp/Enron@Enron cc: =20

Subject: Form of Memorandum of Option Question

Kay, Herman suggested the changes to our form of Memorandum (in red). My= =20 question is, since we are defining Optionee as " _____, =20 LLC, its designee or permitted assignees" is it really necessary to includ= e=20 the second reference to designee or permitted assignees?

This MEMORANDUM OF PURCHASE OPTION (this "Memorandum") is made and entered= =20 into effective as of the _____, 2001 by and between=20 _____ (hereinafter referred to as "Optionor"), an= d=20 _____, L.L.C., a Delaware limited liability,= =20 OR ITS DESIGNEE OR PERMITTED ASSIGNEES (hereinafter referred to as=20 "Optionee"). Capitalized terms used but not defined herein shall have the= =20 meaning given to them in that certain Option to Purchase Real Estate dated= =20 _____, 2001, by and between Optionor and Optionee (the= =20 =01&Agreement=018).

Optionor and Optionee are parties to the Agreement covering certain real=20 property situated in _____ County, _____, a= nd=20 more particularly described on Exhibit =01&A=018 attached hereto and incorp= orated=20 for all purposes (the =01&Property=018). Pursuant to the Agreement, Option= or=20 granted to Optionee an option to purchase the Property (the =01&Option=018)= , as=20 more particularly described therein, which Option expires _____=20 (subject to Optionee=01,s rights to extend the Option for _____ renew= al=20 term(s) of _____ (____) months ending _____,=20 unless Optionee, ITS DESIGNEE OR ITS PERMITTED ASSIGNEE delivers to Optiono= r=20 a notice of exercise of its option to purchase the Property prior to such= =20 expiration date, as may be extended.

Kathleen Carnahan Enron North America Corp. 1400 Smith Street, EB 3146d Houston, TX 77002 Phone - (713) 345-3386 Fax - (713) 646-3037

Message 235 of 371

Re: Titan-Schaeffer Option to Purchase

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['rusty.stevens@enron.com', 'fred.mitro@enron.com', 'karen.way@piperrudnick.com', 'kay.mann@enron.com'] |
| File | mann-k/sent/1102. |

Karen,

Please provide a redline version of this document against the Fehr option, or whichever previous document you started with.

Thanks,

Kay

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 10/16/2000 08:42:52 AM To: "'fred.mitro@enron.com'" <fred.mitro@enron.com>, "'rusty.stevens@enron.com'" <rusty.stevens@enron.com>, "'kay.mann@enron.com'" <kay.mann@enron.com> cc: "Shindler, Donald A. - CHI" <Donald.Shindler@piperrudnick.com>, "Gershon, Mark A. - CHI" <Mark.Gershon@piperrudnick.com>, "Townsend, Christopher J. - CHI" <chris.townsend@piperrudnick.com>

Subject: Titan-Schaeffer Option to Purchase

<<30FK203_.DOC>> Kay, Fred, and Rusty:

Attached hereto please find the Draft Option to purchase for the Titan-Schaeffer acquisition in Livingston County, Illinois for your review. Per Rusty's and my conversation, the option has 1) a \$4000 option payment for an 18 month term; 2) a \$4000 renewal payment for an additional 18 month term; 3) farm tenancy provisions to allow the Optionor to continue to farm the land. Please note we need to order preliminary title on the property to confirm if the property is held solely by Mr. Schaeffer or if his wife or other is also a fee holder. Additionally, on page 7, please let me know what cap, if any, we are willing to place on reimbursement for soil preparation costs (we allowed \$25 per acre on the Konicek option). Please feel free to call me with any questions or comments. Thanks and talk with you shortly.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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- 30FK203_.DOC

Message 236 of 371

RE: Confidentiality agreement

| | |
|------------|--|
| Sender | lance.schuler-legal@enron.com |
| Recipients | ['john.llodra@enron.com', 'timothy.detmering@enron.com', 'kay.mann@enron.com', 'mark.metts@enron.com'] |
| File | mann-k/discussion_threads/4006. |

We do have another CA with Ameresco; however, there is no conflict between the two agreements. Kay, we would appreciate your deal team not engaging in any discussions with Ameresco regarding any other deal we may be working on with them. Kay, I do not have any comments on the language limiting our involvement with your proposed transaction to be only with Ameresco. Thanks. Lance.

W. Lance Schuler Enron North America Corp. 1400 Smith Street, EB 3826 Houston, Texas 77002 Phone: 713/853-5419
Fax: 713/646-3393 Email: lance.schuler-legal@enron.com

Mark Metts/Enron@EnronXGate 05/14/2001 04:45 PM

To: Kay Mann/Corp/Enron@Enron, Timothy J Detmering/HOU/ECT@ENRON cc: John Llodra/Corp/Enron@ENRON, W David Duran/ENRON@enronXgate, Lance Schuler-Legal/HOU/ECT@ECT Subject: RE: Confidentiality agreement

I do not necessarily anticipate a problem, but because I believe that Enron is considering the possibility of entering into another transaction with Ameresco, I have asked Lance Schuler to make sure that there is no conflict or other unintended result. Having said that, I have no substantive problem with the provision addressed by Kay's email. But let's make sure we run this one trap first.

Thanks, Mark

-----Original Message-----

From: Mann, Kay Sent: Monday, May 14, 2001 1:01 PM To: Metts, Mark; Timothy J Detmering/HOU/ECT@ENRON Cc: Llodra, John; Duran, W. David; Schuler-Legal, Lance Subject: Confidentiality agreement

Gentlemen,

I'm with EWS Legal, and I'm working with John Llodra (East Power origination) concerning a confidentiality agreement with Ameresco. The proposed transaction is described as follows:

A potential power plant site development and asset management services related to the Island End Generation Project, a nominal 365 MW combined cycle power generation facility, proposed to be located in Everett, Massachusetts.

The current draft of the CA contains this language:

From the time of the signing of this Agreement until October 1, 2001 neither Party shall pursue the Proposed Transaction without the participation of the other Party, unless the other Party consents in writing or notifies the other Party that it does not intend to pursue the Proposed Transaction.

In accordance with policy, this issue is being submitted to you for your review.

John can be contacted at 978 449 9936. My extension is 57566.

Thank you,

Kay

Here is the entire CA:

<< File: Enron Bilateral CA Draft 5 reAmeresco 050901.doc >>

Message 237 of 371

FW: Aquila

| | |
|-------------------|------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | [edward.sacks@enron.com] |
| File | mann-k/power_purchase_eei/9. |

Hi Ed,

I'm dusting this off to figure it out, and it looks like there are some open credit issues. Any thoughts?

Thanks,

Kay

-----Original Message-----

From: Denton, Rhonda L. Sent: Monday, July 16, 2001 2:16 PM To: Fitzgerald, Genia; Sacks, Edward; Mann, Kay
Subject: Aquila

Genia,

I am attaching a redlined version of the draft EEI agreement. I have incorporated Aquila's standard language and other changes, in addition to those you proposed. A little bit of explanation might be in order:

1. Aquila's guarantor, "Aquila Energy Corporation", changed its name to "Aquila, Inc." effective February 21, 2001.
2. The language under Downgrade Event for Aquila is rather lengthy. This is due to the fact that Aquila, Inc. will soon be rated and at that time part (b) will apply. Part (a) applies until that time. We have included both in order not to have to change the agreement after we are rated.
3. We have proposed \$15,000,000 for collateral thresholds for both parties. We would be willing to adjust this figure higher if you would like, as long as the numbers are the same for both Aquila and Enron.
4. We currently have guarantees in place for both parties for \$100,000,000. We can apply \$15,000,000 of that to power trades, or another option would be to execute new guarantees in the amount of \$15,000,000 to be applied to power only.
5. Section 1.53 - We do not agree to add the last phrase. Sales price, absent a resale, is already defined as market price. The proposed last phrase contradicts that definition and is not acceptable.
6. Section 2.2 - Exhibit B needs to be included.
7. Section 6.2 - We prefer to leave payment terms as they are in the EEI agreement, which is industry standard language.
8. Sections 8.1(c), 8.2(c), 8.4, and 8.5 - We have inserted language to clarify the collateral threshold and performance assurance process.
9. Sections 9.3. and 10.12 - We have inserted language to cover new taxes and imaged documents.
10. Arbitration - We do not agree to be bound to mandatory binding arbitration.
11. Schedule P - CAISO Firm - We prefer to use the industry accepted definition of CAISO Firm, which is the first sentence of your proposed definition. We do not agree to the additional language.

Please contact me when you have reviewed the redlined document. I look forward to working with you to execute this agreement.

<<ENRONcoversheetredlined.doc>>

Sandy Rimmer Contract Administrator Aquila Energy Marketing Corporation 1100 Walnut, Suite 3300 Kansas City, MO 64106 Phone: 816-527-1625 Fax: 816-527-4625 srimmer@utilicorp.com

Message 238 of 371

Re: redlined version - Titan-Schaeffer Option

| | |
|------------|-------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | [kathleen.carnahan@enron.com] |
| File | mann-k/all_documents/1431. |

I leave tomorrow, and will be back on Thursday.

There's a bunch of food up here today. You might want to make the trip up this way.

From: Kathleen Carnahan 10/16/2000 09:13 AM

To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: redlined version - Titan-Schaeffer Option

Well, that way the other three lawyers at Piper Rudnick can bill their time for reading the message and attachments. By the way, Karen called me on Friday regarding the "missing items" on our Ledford and Fehr Option Agreements and says she will follow up on the acknowledgements and legal descriptions. I have a feeling I will need to remind her every now and then.

When are you going out of town?

Kathleen

To: Kathleen Carnahan/NA/Enron@Enron cc:

Subject: redlined version - Titan-Schaeffer Option

She makes me crazy the way she copies three lawyers in her firm everytime she writes me.

A pet peeve! ----- Forwarded by Kay Mann/Corp/Enron on 10/16/2000 09:03 AM -----

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 10/16/2000 08:56:50 AM To: "kay.mann@enron.com" <kay.mann@enron.com>, "rusty.stevens@enron.com" <rusty.stevens@enron.com>, "fred.mitro@enron.com" <fred.mitro@enron.com> cc: "Townsend, Christopher J. - CHI" <chris.townsend@piperrudnick.com>, "Gershon, Mark A. - CHI" <Mark.Gershon@piperrudnick.com>, "Shindler, Donald A. - CHI" <Donald.Shindler@piperrudnick.com>

Subject: redlined version - Titan-Schaeffer Option

<<307XGRED.DOC>>

Attached hereto, please find the redlined version of the Titan-Schaeffer Option as compared to the Fehr option. Please feel free to call with any questions or comments. Thanks!

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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For more information about Piper Marbury Rudnick & Wolfe, please visit us at <http://www.piperrudnick.com/>

- 307XGRED.DOC

Message 239 of 371

Re: Signature authority

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['kathleen.carnahan@enron.com', 'deb.korkmas@enron.com'] |
| File | mann-k/all_documents/1340. |

Found it. It was buried beneath a stack. Looks good.

I would add something to the effect that the appointment terminates if Ben leaves the company's employment.

Thanks,

kay

Deb Korkmas@ECT 10/10/2000 02:37 PM To: Kay Mann/Corp/Enron@ENRON cc: Kathleen Carnahan/NA/Enron@Enron

Subject: Re: Signature authority

Kay, I left the ENA draft for your review. Was it acceptable? If so, please initial and I'll have circulated for signature and will draft the other consents accordingly. Thanks, Deb

Deb Korkmas Enron North America Corp. ENA Legal Dept. 1400 Smith Street, Room 3819 Houston, TX 77002 Phone: 713-853-5448 Fax: 713-646-3393

Kay Mann@ENRON 10/10/2000 02:29 PM

To: Deb Korkmas/HOU/ECT@ECT cc: Kathleen Carnahan/NA/Enron@Enron Subject: Signature authority

Deb,

Let's go ahead with POA's for Ben F. Jacoby for ENA, Tarheel Land Development, Edgecombe Development, and Titan Land Development in accordance with Janet's request and ENA standard practice. Deb, I have the impression that this is something you typically handle, although I'm glad to volunteer Kathleen for the task if that would help.

There will be other companies, but we can add these as we go. Kathleen, please advise if there are any which you see as most active at this time. For instance, what are the names of the Florida development companies?

Your assistance is greatly appreciated, as Janet is eager to get this done.

Thanks,

Kay

----- Forwarded by Kay Mann/Corp/Enron on 10/10/2000 02:20

PM -----

Enron North America Corp.

From: Kay Mann 10/08/2000 07:59 PM

To: Deb Korkmas/HOU/ECT@ECT cc: Kathleen Carnahan/NA/Enron@Enron

Subject: Signature authority

Deb,

I'll get you the particulars, but you get the general idea. I'll have to check on the expense account stuff.

Kathleen, you haven't done any thing with this request yet, have you? Could you get the names of the active development companies so that we can address those, as well as ENA?

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 10/08/2000 07:56 PM -----

Janet R Dietrich@ECT 10/08/2000 02:22 PM To: Kay Mann/Corp/Enron@Enron cc: Ben Jacoby/HOU/ECT@ECT

Subject: Signature authority

Kay, as we discussed previously:

Effective immediately, I would like Ben Jacoby to have signature authority for his team's expense reports as well as all documents whose capital commitments are not greater than \$250,000. Most documents will be confidentiality agreements, exclusivity agreements, permit applications, and land/equipment option agreements.

Please forward this (if need be) to the appropriate internal individuals who get this set up. Thanks Kay.

Message 240 of 371

RE: Language

| | |
|------------|---|
| Sender | michael.barnas@ps.ge.com |
| Recipients | ['lisa.bills@enron.com', 'paul.miller@ps.ge.com', 'ben.jacoby@enron.com', 'sheila.tweed@enron.com', 'stephen.s... |
| File | mann-k/off_balance_sheet_form_contracts/16. |

See below!!

Message-ID: <BDEE30284494D111B09D00A0C92A6B0E05C8DC2A@nyschx08psge.sch.ge.com> From: paul.miller@ps.ge.com To: stephen.swift@ps.ge.com, michael.barnas@ps.ge.com Subject: RE: Consent to move Blue Dog and Pastoria Date: Thu, 30 Nov 2000 08:35:17 -0500 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-Type: multipart/mixed; boundary="----_=_NextPart_002_01C05EFF.D52C3710"

I have marked it up with my comments for our discussion. Also, 1. Is DevCo the "Agent" as stated in the first paragraph of the Consent, or the "Buyer" (or both)? If DevCo is not the Buyer, who is and shouldn't they sign the Consent?

2. I have not attempted to add the requirement for 15/18 months evidence of the units going into a "real project" vs. staying in DevCo and thus remaining in the financing structure because I don't know if it really belongs in the Consent. Remember the issue is that the financing is not sufficient to pay for all of the units so some (how many?) must be refinanced out before new ones can come in. Failure to do this means we get suspended/terminated. Based on the direction from Stan for Entergy: seek to get the right to stop if they can't show a project 15/18 from delivery, we should discuss where we think this should go.

3. Related to 2 above, we must have payment ahead of termination or an LC for the delta. We discussed an LC with Enron two phone calls ago and they were going to check on the ability to get this. The SPV must minimally show the ability to pay the termination. Has Commercial Finance looked at the pay/terminate schedules?

I am back in the office tomorrow.

<<GE Consent to AssignmentGE 11-30.DOC>>

C. Paul Miller Finance Risk Manager Energy Products General Electric Company 1 River Rd., Bldg. 2 Room 555, Schenectady, NY 12345 Ph: 518-385-2095; Dial Com 8*235-2095 Fax: 518-385-7122; Dial Com 8*235-7122 E-mail paul.miller@ps.ge.com

-----Original Message----- From: Swift, Stephen L (PS, CommOps) Sent: Wednesday, November 29, 2000 6:40 PM To: Barnas, Michael C (PS, Legal); Miller, Paul (PS, HQ) Subject: Consent to move Blue Dog and Pastoria Mike and Paul, Attached are my thoughts on the agreement. I'm sure you will have better words regarding agents obligations in the event of Default by Devco. I'm not sure what other reps and warrants we wanted to include in the structure. There will be two agreements that should have parallel comments. The attached document covers a portion of the LM's , Blue Dog, Pastoria I and Pastoria II. The second agreement that Kent forwarded to you today is for the remainder of the LM's. Hope this adds some clarity. Steve << File: GE Consent to AssignmentGE 11-29.DOC >>

- GE Consent to AssignmentGE 11-30.DOC

Message 241 of 371

RE: Confidentiality agreement

| | |
|-------------------|--|
| Sender | mark.metts@enron.com |
| Recipients | ['lance.schuler-legal@enron.com', 'Kay; Timothy J Detmering/HOU/ECT@ENRON; Duran', 'W.', 'john.llodra@enron.co...] |
| File | mann-k/notes_inbox/541. |

Based upon Lance's email, consider me "signed off" as well. Thanks.

-----Original Message-----

From: Schuler-Legal, Lance Sent: Tuesday, May 15, 2001 7:37 AM To: Metts, Mark Cc: Llodra, John; Mann, Kay; Timothy J Detmering/HOU/ECT@ENRON; Duran, W. David Subject: RE: Confidentiality agreement

We do have another CA with Ameresco; however, there is no conflict between the two agreements. Kay, we would appreciate your deal team not engaging in any discussions with Ameresco regarding any other deal we may be working on with them. Kay, I do not have any comments on the language limiting our involvement with your proposed transaction to be only with Ameresco. Thanks. Lance.

W. Lance Schuler Enron North America Corp. 1400 Smith Street, EB 3826 Houston, Texas 77002 Phone: 713/853-5419 Fax: 713/646-3393 Email: lance.schuler-legal@enron.com

Mark Metts/Enron@EnronXGate 05/14/2001 04:45 PM To: Kay Mann/Corp/Enron@Enron, Timothy J Detmering/HOU/ECT@ENRON cc: John Llodra/Corp/Enron@ENRON, W David Duran/ENRON@enronXgate, Lance Schuler-Legal/HOU/ECT@ECT Subject: RE: Confidentiality agreement

I do not necessarily anticipate a problem, but because I believe that Enron is considering the possibility of entering into another transaction with Ameresco, I have asked Lance Schuler to make sure that there is no conflict or other unintended result. Having said that, I have no substantive problem with the provision addressed by Kay's email. But let's make sure we run this one trap first.

Thanks, Mark

-----Original Message-----

From: Mann, Kay Sent: Monday, May 14, 2001 1:01 PM To: Metts, Mark; Timothy J Detmering/HOU/ECT@ENRON Cc: Llodra, John; Duran, W. David; Schuler-Legal, Lance Subject: Confidentiality agreement

Gentlemen,

I'm with EWS Legal, and I'm working with John Llodra (East Power origination) concerning a confidentiality agreement with Ameresco. The proposed transaction is described as follows:

A potential power plant site development and asset management services related to the Island End Generation Project, a nominal 365 MW combined cycle power generation facility, proposed to be located in Everett, Massachusetts.

The current draft of the CA contains this language:

From the time of the signing of this Agreement until October 1, 2001 neither Party shall pursue the Proposed Transaction without the participation of the other Party, unless the other Party consents in writing or notifies the other Party that it does not intend to pursue the Proposed Transaction.

In accordance with policy, this issue is being submitted to you for your review.

John can be contacted at 978 449 9936. My extension is 57566.

Thank you,

Kay

Here is the entire CA:

<< File: Enron Bilateral CA Draft 5 reAmeresco 050901.doc >>

Message 242 of 371

Re: E-Next Generation Assignment Documents and Schedule V

| | |
|------------|---|
| Sender | lisa.bills@enron.com |
| Recipients | ['lisa.bills@enron.com', 'catherine.clark@enron.com', 'seanbunk@akllp.com', 'kay.mann@enron.com'] |
| File | mann-k/discussion_threads/1806. |

why does LM6000 contract still have brackets around the number of turbines to be assigned to WestLB? Why does it still ignore the change orders rose asked you to include?

why does schedule v to PA still ignore the change orders to the various documents?

Please correct or advise why requests for changes are NOT being made.

As you know, these documents are deliverables on Wednesday. Blue Dog had comments from the other side today. Why haven't I seen a revision or been asked if I agree with their comments?

Please do not operate in a vacuum without consulting me or Roseon questionable issues.

Regards, Lisa

"Bunk, Sean" <seanbunk@akllp.com> on 12/11/2000 07:46:53 PM To: <lisa.bills@enron.com>, <catherine.clark@enron.com>, <kay.mann@enron.com>, <sheila.tweed@enron.com>, <roseann.engeldorf@enron.com>, <mgocker@enron.com>, <sarah.wesner@enron.com>, <toxley@winston.com>, <mmckay@velaw.com> cc: "Taylor, Rob" <robtaylor@akllp.com>, "Poppewell, Tom" <tompoppewell@akllp.com>

Subject: E-Next Generation Assignment Documents and Schedule V

Attached please find revised drafts of the following documents:

1. Purchase Option Assignment and Assumption Agreement (LM6000) 2. Purchase Option Assignment and Assumption Agreement (Pastoria) 3. Schedule V to Participation Agreement

Both a clean copy and a copy blacklined to show the changes from the prior version are included for each of these documents.

Please feel free to call me if you have any questions or comments.

~~~~~ Sean Bunk Andrews & Kurth L.L.P. 600 Travis St., Suite 4200 Houston, Texas 77002 Tel.: 713.220.4427 Fax.: 713.238.7252 e-mail: seanbunk@andrews-kurth.com

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<<Blackline 593717v3 to v2 (Pastoria Assignment).DOC>> <<Purchase Option Assignment and Assumption Agreement - Pastoria.DOC>> <<Blackline 593834v4 to v3 (LM6000 Assignment - N.A.).DOC>> <<Purchase Option Assignment and Assumption Agreement (Turbopark - LM6000).DOC>> <<Schedule V to Participation Agreement (TurboPark).DOC>> <<Blackline 597234v2 to v1 (Sched. V - Turbo Park).DOC>> - Blackline 593717v3 to v2 (Pastoria Assignment).DOC - Purchase Option Assignment and Assumption Agreement - Pastoria.DOC - Blackline 593834v4 to v3 (LM6000 Assignment - N.A.).DOC - Purchase Option Assignment and Assumption Agreement (Turbopark - LM6000).DOC - Schedule V to Participation Agreement (TurboPark).DOC - Blackline 597234v2 to v1 (Sched. V - Turbo Park).DOC

Message 243 of 371

### Revised Change Order #4

|            |                                                                                     |
|------------|-------------------------------------------------------------------------------------|
| Sender     | kent.shoemaker@ae.ge.com                                                            |
| Recipients | ['lee.johnson@ss.ps.ge.com', 'kay.mann@enron.com', 'aivancovich@andrews-kurth.com'] |
| File       | mann-k/discussion_threads/1203.                                                     |

Here is the Change Order number 4 that I should have sent out earlier. Lee, stated on the phone call today that there may be additional comments, so please reply to all if there are so we can revise the Facility Agreements accordingly.

Kent

-----Original Message-----

From: Shoemaker, Kent (GEAE) Sent: Wednesday, November 01, 2000 4:21 PM To: 'Kay.Mann@enron.com' Subject: RE: GE Contract

Didn't I tell you - I love outside counsel!!!

See you tomorrow Kent

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Wednesday, November 01, 2000 4:20 PM To: Shoemaker, Kent (GEAE) Subject: RE: GE Contract

CST. That was right, right?

I'm going to have the outside lawyer involved for the purpose of turning the revised draft, so long as you don't have an objection (objecting=volunteering to turning the next draft!)

Kay

"Shoemaker, Kent (GEAE)" <kent.shoemaker@ae.ge.com> on 11/01/2000 03:11:13 PM

To: "'Kay.Mann@enron.com'" <Kay.Mann@enron.com> cc:

Subject: RE: GE Contract

Is that 3:30 CST? If so, I'll be ready.

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Wednesday, November 01, 2000 4:08 PM To: Stuart.Zisman@enron.com; kent.shoemaker@ae.ge.com; Ben.Jacoby@enron.com; lee.johnson@ss.ps.ge Subject: GE Contract

Gentlemen:

Attached is a draft of the facility agreement, without reference to WestLB. It just came in, so I haven't reviewed it.

It looks like 330 tomorrow will work for this group, unless you tell me otherwise. I'll get back to you with the location.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 11/01/2000 03:04 PM -----

"Cope, Lori" <loricope@akllp.com> on 11/01/2000 03:00:50 PM

To: "Kay Mann (E-mail)" <Kay.Mann@Enron.com> cc:

Subject: GE Contract

Enclosed please find clean and blacklined versions of the GE Contract. The blackline of the Agreement identifies the changes from the draft I sent you. Note that no blackline of the Exhibits was necessary because it contained no references to WestLB. Regards, Paul

<<HOU\_554886\_3.DOC>> <<BL554888.DOC>> <<HOU\_554888\_4.DOC>> Paul J. Pipitone Andrews & Kurth L.L.P.  
4200 Chase Tower 600 Travis Houston, Texas 77002 Phone: 713-220-4101 Fax: 713-238-7176  
ppipitone@andrews-kurth.com

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Thank you.

(See attached file: HOU\_554886\_3.DOC) (See attached file: BL554888.DOC) (See attached file: HOU\_554888\_4.DOC)

Message 244 of 371

**RE: Message from Gisele Rankin**

|            |                                                                                                   |
|------------|---------------------------------------------------------------------------------------------------|
| Sender     | kay.mann@enron.com                                                                                |
| Recipients | ['aduncan@kilstock.com', 'lisa.mellencamp@enron.com', 'jfine@kilstock.com', 'kay.mann@enron.com'] |
| File       | mann-k/_sent_mail/3918.                                                                           |

I don't see a problem with it.

"Fine, Jonathan" <JFine@kilstock.com> on 07/25/2000 04:07:30 PM To: "Mann Kay" <Kay.Mann@enron.com>, "Mellencamp Lisa" <lisa.mellencamp@enron.com> cc: "Duncan, Allyson" <aduncan@kilstock.com>

Subject: RE: Message from Gisele Rankin

Kay and Lisa:

We should probably let Gisele Rankin know by tomorrow morning whether we agree with the proposal to revise the procedural scheduling order to include a provision which will require final substantive orders to be presented to the Commission by October 10.

What are your thoughts? Neither Allyson nor I can think of a downside to agreement, and in fact we feel that it would be in our best interest to agree to the October 10 date.

Please advise. Thank you.

Jonathan M. Fine Kilpatrick Stockton, LLP 3737 Glenwood Ave., Ste. 400 Raleigh, NC 27612 TEL: (919) 420-1700 FAX: (919) 420-1800 <http://www.kilstock.com>

-----Original Message-----

From: Duncan, Allyson Sent: Tuesday, July 25, 2000 1:31 PM To: 'Mann Kay'; 'Keenan Jeffrey'; 'Chapman Tom' Cc: 'Mellencamp Lisa'; 'Kroll Heather'; Fine, Jonathan Subject: Message from Gisele Rankin

Attached is an e:mail from Gisele Rankin regarding the procedural schedule I described in my e:mail this morning. I will fax it on to you immediately upon receipt. As I explained earlier, it will help expedite matters considerably if we get the agenda before the Commission on July 31. I had planned to take care of the publication of notice. Please let me know if that is not alright. I will follow up with you today after you receive the proposed order, but would strongly recommend agreeing to a proposed order due date of October 10 as that represents the best chance of getting timely approval. If there are no (or limited) interventions, compliance with the October 10 date should not be difficult.

-----Original Message-----

From: Gisele Rankin [mailto:Gisele.Rankin@ncmail.net] Sent: Tuesday, July 25, 2000 12:58 PM To: Allyson Duncan Subject: Enron



I have just faxed you an agenda item, proposed order and public notice for Enron's application for a certificate. This has to be finalized by early tomorrow morning. In the memo attached to the fax, I offered to put a proposed order due date (of October 10th) in the proposed procedural order to expedite getting an order by November 1st. That is much more doable than moving the hearing into September. Please let me know as soon as possible if Enron can live with this.

(Please remind Enron that it has to publish notice once a week for four weeks pursuant to G.S. 62-82 (it isn't discretionary) and then we have to have time for complaints (ten days pursuant to the statute - although we're going ahead and setting this for hearing), time for interventions, and time for prefiled testimony. Late September is pretty much as early as a hearing could be held even if we didn't need time to investigate NC Power's bidding process (and the last week of September is booked already according to Sami Salib)..

---

Message 245 of 371

### RE: Georgia sites

|            |                            |
|------------|----------------------------|
| Sender     | kay.mann@enron.com         |
| Recipients | ['jkeffer@kslaw.com']      |
| File       | mann-k/all_documents/1177. |

I had the definite impression he was going to call you. I also know he is working on a different deal on an impossible schedule. You know the drill.

Bart is a Washington & Lee guy. He is older than Ned, so he didn't go to school with him. Just a little trivia...

Kay

"Keffer, John" <JKeffer@KSLAW.com> on 09/27/2000 06:25:41 PM To: "Kay.Mann@enron.com"  
<Kay.Mann@enron.com> cc:

Subject: RE: Georgia sites

I haven't heard from Barton-have you?

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Monday, September 25, 2000 9:09 AM To: Keffer, John Subject: Re: Georgia sites

Spalding, Spradling, whatever. I know it isn't Houston stuff (yet)...

----- Forwarded by Kay Mann/Corp/Enron on 09/25/2000 09:07

AM -----

Lisa Mellencamp@ECT 09/25/2000 09:05 AM

To: Kay Mann/Corp/Enron@ENRON cc: Barton Clark/HOU/ECT@ECT, Stuart Zisman/HOU/ECT@ECT

Subject: Re: Georgia sites (Document link: Kay Mann)

agree with kay. i'd go with king and spradling

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com

Kay Mann@ENRON

To: Barton Clark/HOU/ECT@ECT

09/25/2000 cc: Stuart Zisman/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT 08:59 AM Subject: Re: Georgia sites(Document link: Lisa Mellencamp)

I've worked with Kilpatrick Stockton's North Carolina office quite a bit, mostly regulatory- they are so so. It is my understanding that the Atlanta office messed up a simple thing for Lisa, and that's all I know about them. I've worked extensively with King & Spalding, both their Houston office (multiple matters) and Atlanta (two matters), and have had good results. I've always worked through John Keffer in Houston, who then hooked me up with the right folks in Atlanta.

Kay

Barton Clark@ECT 09/22/2000 12:39 PM

To: Stuart Zisman/HOU/ECT@ECT, Kay Mann/Corp/Enron@Enron cc:

Subject: Georgia sites

The Georgia sites have slid down hill and reached the bottom. I have to consult with local counsel re groundwater issues. I understand the options are King & Spaulding and Kilpatrick & Stockton. I've worked with neither. Can you evaluate/recommend either?

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Message 246 of 371

## RE: Response to Public Staff Data Request

|            |                                                                                              |
|------------|----------------------------------------------------------------------------------------------|
| Sender     | kay.mann@enron.com                                                                           |
| Recipients | ['aduncan@kilstock.com', 'rorschak@enron.com', 'john.moore@enron.com', 'jfine@kilstock.com'] |
| File       | mann-k/sent/558.                                                                             |

Here's a suggestion for the equipment question:

ENA and its affiliates have contractual rights to numerous turbines, several of which can satisfy the technical and scheduling requirements of this project, and some of which are already manufactured. In the case of turbines still in the manufacturing process, ENA has firm commitments for delivery, backed by liquidated damages clauses and other financial incentives.

"Duncan, Allyson" <aduncan@kilstock.com> on 08/25/2000 07:40:52 AM To: "Fine, Jonathan" <JFine@kilstock.com>, "Reagan" <Rorschak@enron.com>, "John Moore" <John.Moore@enron.com>, "Heather Kroll" <Heather.Kroll@enron.com>, "Kay Mann" <Kay.Mann@enron.com>, "Ozzie Pagan" <Ozzie.Pagan@enron.com>, "Tom Chapman" <Tom.Chapman@enron.com>, "Jeffrey Keenan" <Jeffrey.Keenan@enron.com>, "Reagan.Rorschach@enron.com" <Reagan.Rorschach@enron.com> cc: "Grigg, Mary" <mgrigg@kilstock.com>

Subject: RE: Response to Public Staff Data Request

I have received material from Reagan in response to Question No. 5--thanks. Reagan, do you have problems providing the total project cost under seal? We can file as is, but I expect the public Staff will want to follow up. Also, we do have the cost data, and are filing that under seal. I have indicated that we will file the supporting documentation next Tuesday. The only thing we are awaiting to day is the paragraph explaining that turbines are indeed available.

I did want to call your attention to the fact that I took a sentence out of the response to No. 17 regarding Enron's intent to operate the plant as a merchant facility after the expiration of the PPA. You have been very straightforward about that and it is clear from the rest of the answer. However, given the Commission's skittishness about merchant facilities, I would rather not highlight it.

We would like to file the responses by the end of the day, with the exception of the supporting documentation on the cost data.

-----Original Message-----

From: Fine, Jonathan Sent: Thursday, August 24, 2000 4:18 PM To: 'Reagan Rorschach'; John Moore; Heather Kroll; Kay Mann; Ozzie Pagan; Tom Chapman; Jeffrey Keenan Cc: Duncan, Allyson; Grigg, Mary Subject: Response to Public Staff Data Request

Attached is the latest draft of our responses to the Public Staff's data requests. Please let us know of any suggested revisions or other comments you may have. Once cost data (Request No. 1), other facility data (Request No. 5) and some more information regarding the turbine purchase source (Request No. 11) is received, we will file the responses shortly thereafter. Intervention deadline is Sept. 8.

We did just a few minor edits of what John and Heather e-mailed to us -- nothing substantive.

Question: Do you need us to set up "Edgecombe Development Co., LLC" here as a NC LLC? Just let me know. We have some folks that can do that for you quite efficiently.

Look forward to your comments. Thank you.

Jonathan M. Fine Kilpatrick Stockton, LLP 3737 Glenwood Ave., Ste. 400 Raleigh, NC 27612 TEL: (919) 420-1700 FAX: (919) 420-1800 <http://www.kilstock.com>

Message 247 of 371

#### Entities that do not need FERC power marketing authorization

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | christi.nicolay@enron.com                                                                                          |
| Recipients | ['ron.mcnamara@enron.com', 'jeff.brown@enron.com', 'Dan Watkiss' <dwatkiss@bracepatt.com>, 'paul.kaufman@enron...] |
| File       | mann-k/discussion_threads/3347.                                                                                    |

We have been getting questions about the ability of potential customers to sell power onto the grid to EPMI. Below is a brief outline of the FERC licenses required. Customers other than those listed below (including non-QF industrial on site generators) need a power marketer license from FERC. In most cases, such customers do not need to file for EWG status (unless their primary business is as a utility, like Enron).

In addition, both EPMI and EES filed at FERC for authorization to perform certain power marketer license functions on behalf of industrial on-site generation customers. We expect the authorization within a month. I'll let you know when we receive it and what we can do for customers.

----- Forwarded by Christi L Nicolay/HOU/ECT on 04/18/2001

05:22 PM -----

"Andrea Settanni" <asettanni@bracepatt.com> on 04/18/2001 05:17:11 PM To: <christi.l.nicolay@enron.com> cc: "Dan Watkiss" <dwatkiss@bracepatt.com>

Subject: Entities that do not need power marketing authorization

Christi-

This email briefly responds to your question whether state agencies or municipalities and qualifying facilities ("QFs") must obtain power marketing authorization. The answer is no.

With regard to state agencies or municipalities, section 201(f) of the Federal Power Act ("FPA") states that no provision of Part II of the FPA, which governs the regulation of electric utility companies engaged in interstate commerce, "shall apply to, or be deemed to include, the United States, a State or any political subdivision of a state, or any agency, authority, or instrumentality of any one or more of the foregoing, or any corporation which is wholly owned, directly or indirectly, by any one or more of the foregoing, or any officer, agent, employee of any of the foregoing acting as such in the course of his official duty, unless such provision makes specific reference thereto."

Section 205 of the FPA, which would otherwise require an entity to have rates for wholesale sales of power on file with FERC, does not apply to state agencies and municipalities.

With regard to whether QFs need power marketing authorization, most QFs are exempt (some small power production facilities are not exempt) from most provisions of the FPA, including section 205, which requires public utilities making sales of electric energy for resale in interstate commerce to file rate schedules with FERC. QFs are instead regulated under PURPA, which authorizes utilities to purchase power from QFs at the purchaser's avoided cost. FERC decisional precedent indicates that a QF can lawfully sell at market-based rates without seeking market-based rate authorization from FERC, but that it may nevertheless be prudent for a QF to seek FERC acceptance of a market-based rate schedule that would provide protection in the event QF status is lost.

Let me know if you need anything else.

Andrea M. Settanni Bracewell & Patterson, L.L.P. 2000 K Street, N.W. Suite 500 Washington, D.C. 20006-1872 (202) 828-7631 (phone) (202) 857-2128 (fax) asettanni@bracepatt.com

Message 248 of 371

## RE: Signatures for Certain Documents

|            |                                                                             |
|------------|-----------------------------------------------------------------------------|
| Sender     | lee.johnson@ps.ge.com                                                       |
| Recipients | ['kay.mann@enron.com', 'Lang', 'Gregory F.' <gregorylang@paulhastings.com>] |
| File       | mann-k/discussion_threads/3798.                                             |

Kay,

I don't know the answer to your 1st question since I don't recall ever having to have insurance certificates on any of the other Facility Agreements. Maybe we did, but I just forgot that detail. Jaap/Kent? do you know?

The Retention LC was faxed this am to Greg Lang and Isabell Parker. Jaap's Admin Asst can fax you a copy (Carla Corly) if you wish.

Also, need to talk about Austin Tech reps being added to Facility Agreement asap (Mike Storm says they've worked out 1700 hours with Eric Booth). But we need something in the interim that confirms this will be added into the Austin Facility Agreement (e-mail to me OK).

Regards,

Lee

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Wednesday, May 02, 2001 8:43 AM To: Shoemaker, Kent (GEAE); Johnson, Lee L (PS, GE AEP); Smink, Jaap (PS, GE AEP) Subject: Signatures for Certain Documents

Good morning.

I haven't seen the insurance certificate she references. Anyone know where it is?

Is the retention letter of credit available yet? I know it has been requested, but I don't recall seeing that it has been delivered.

Thanks for everything,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 05/02/2001 08:37 AM -----

"Chow, Susan D." <susanchow@paulhastings.com> on 05/01/2001 07:45:03 PM

To: "'ccampbell@kslaw.com'" <ccampbell@kslaw.com>, "'kay.mann@enron.com'" <kay.mann@enron.com> cc: "Lang, Gregory F." <gregorylang@paulhastings.com>

Subject: Signatures for Certain Documents

"paulhastings.com" made the following annotations on 05/01/01 20:45:12

--

NEW E-MAIL ADDRESSES AT PAUL, HASTINGS, JANOFSKY & WALKER LLP

We have changed our e-mail address. Our new domain name is paulhastings.com. In most cases, our address is composed of conventional first name and last name plus @paulhastings.com. Here are two examples: janesmith@paulhastings.com and danjones@paulhastings.com. If you have any questions, please contact us at noc@paulhastings.com.

==

"The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers."

==

Attached please find signature pages for: GE Consent, Consent of Director for transaction. We will forward signature pages for Amended LLC Agreement, Consent of Director and Members tomorrow morning upon receipt from Fed Ex.

Please confirm that insurance certificates have been received from the insurance broker.? It is my understanding that originals were sent to Enron. Thanks.

Susan D. Chow Paul, Hastings, Janofsky & Walker LLP 1055 Washington Boulevard Stamford, Connecticut 06901 (203) 961-7527 (203) 359-3031 (fax) NOTE NEW EMAIL ADDRESS: susanchow@paulhastings.com

(See attached file: ge\_conse.pdf) (See attached file: salmon\_d.pdf)

Message 249 of 371

## RE: Confidentiality Agreement

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | kay.mann@enron.com                                                                                                 |
| Recipients | ['suzette.emmons@enron.com', 'kathleen.carnahan@enron.com', 'heather.kroll@enron.com', 'rahil.jafry@enron.com']... |
| File       | mann-k/sent_items/147.                                                                                             |

We can add a statement that written information provided at the meeting of x date (or however you want to describe it) is covered, and that in the future written stuff will be designated as confidential.

Then I'm just fine with it.

-----Original Message-----

From: Jafry, Rahil Sent: Monday, October 22, 2001 5:19 PM To: Mann, Kay; Carnahan, Kathleen Cc: Emmons, Suzette; Kroll, Heather Subject: RE: Confidentiality Agreement

Kay,

I just checked our first presentation to them, and it didn't have the "confidential stamp on them. Ideally, we'd like to have that covered, but don't think it is critical if the information there is not.

Going forward, I believe our revised proposal already has the stamp on every page. If not, we will ensure that it is marked.

Are you guys okay with everything else?

- R

-----Original Message-----

From: Mann, Kay Sent: Monday, October 22, 2001 4:54 PM To: Carnahan, Kathleen Cc: Jafry, Rahil Subject: RE: Confidentiality Agreement

Rahil,

Have we given them anything in writing yet, and are you willing to mark everything?

Kay

-----Original Message-----

From: Carnahan, Kathleen Sent: Monday, October 22, 2001 4:51 PM To: Mann, Kay Cc: Jafry, Rahil Subject: FW: Confidentiality Agreement

Kay, Here are Central Virginia's comments regarding the CA. As you can see, they want all information marked "confidential". I spoke to Butch Solomon this afternoon with Suzette and tried to explain to him that it was not our normal policy to mark all confidential information "confidential", but I guess I did not persuade him.

Please advise.

Kathleen

-----Original Message-----

From: Emmons, Suzette Sent: Monday, October 22, 2001 4:39 PM To: Carnahan, Kathleen Subject: FW: Confidentiality Agreement

-----Original Message-----

From: Butch Solomon [mailto:BUTCHS@gdsassoc.com] Sent: Monday, October 22, 2001 3:57 PM To: Emmons, Suzette Cc: bmaurhoff@forcvec.com; gwood@forcvec.com; Chris Dawson Subject: Confidentiality Agreement

Suzette,

Pursuant to our conversation of earlier this afternoon, I am attaching a revised version of your proposed confidentiality agreement. The revised version is in Word format and my suggested changes are highlighted as you requested in your 10/19/01 email transmitting the proposed agreement. My first change is at the end of paragraph 2. It addresses my concern that any documents you give us that you consider confidential information will be so marked on every page, while taking our conversation into account and allowing other nonwritten confidential information provided to be covered as well. The next two changes are the typo we discussed in paragraph 3 and an additional sentence at the end of that paragraph. The sentence is added simply to recognize the need for timely provision of a Public Disclosure Copy in a regulatory or court proceeding. Finally, I have added the phrase found at the end of the first sentence of paragraph 7 to the end of the third sentence of that paragraph. I believe this addition is consistent with Enron's intent, but makes it more explicit. I plan to be in the office until about 7:00 pm EDT this evening and until about 2:30 pm tomorrow, and I will be happy to discuss my proposed changes with you and your attorneys at any time during that period.

Best Regards, Butch

J. Bertram Solomon Vice President and Treasurer GDS Associates, Inc. Suite 800 1850 Parkway Place Marietta, GA 30067 Phone: 770.425.8100 ext. 119 Fax: 770.426.0303 Email: butchs@gdsassoc.com

Message 250 of 371

# RE: Executed Copy of Fountain Valley GE/Facility Agreement with B

|            |                                                                                                     |
|------------|-----------------------------------------------------------------------------------------------------|
| Sender     | kay.mann@enron.com                                                                                  |
| Recipients | ['Sheila.Tweed@enron.com', 'kathleen.carnahan@enron.com', 'Ed B Hearn', 'kent.shoemaker@ae.ge.com'] |
| File       | mann-k/discussion_threads/2837.                                                                     |

Do you have the GE contracts in the CA stuff? Thanks, Kay ----- Forwarded by Kay Mann/Corp/Enron on 03/13/2001 03:09 PM ----- From: Sheila Tweed@ECT on 03/13/2001 03:02 PM To: lee.johnson@ss.ps.ge.com@ENRON cc: kent.shoemaker@ae.ge.com, Sheila.Tweed@enron.com, Ed B Hearn III/HOU/ECT@ECT, Kay Mann/Corp/Enron@Enron

Subject: RE: Executed Copy of Fountain Valley GE/Facility Agreement with B lackline showing change made to execution date. "I know it's not final u ntil you say it is."

WOW! We need to start having old fashioned closings with lunch and the exchange of signed documents. By copy of this, I'm asking Ed to track down as many docs as he can and Kay, can you come up with the CA Development I and II docs for Lee?

lee.johnson@ss.ps.ge.com 03/13/2001 02:56 PM

To: Sheila.Tweed@enron.com cc: kent.shoemaker@ae.ge.com Subject: RE: Executed Copy of Fountain Valley GE/Facility Agreement with B lackline showing change made to execution date. "I know it's not final u ntil you say it is."

Sheila,

I hate to do this to you at this late date, but I finally figured out that the execution copy that we received via this e-mail of 2-12-01 was not the final executed version (WAS:83641.7). The final executed version (file WAS:83641.8) is attached. The changes were made by Alan Larsen on January 19, 2001 to paragraphs 6.1.2 Payment Schedule (from \$ 10,892,000.00 to \$ 11,572,250.00)and 6.1.3 Retention Letter(s) of Credit (amount changed to \$ 720,535). This was due to the agreed upon scope and storage changes we determined were necessary at time of execution to avoid a change order.

Please distribute accordingly on your side. Also, I never received my original signature pages, plus other consent documents.

Also, I'm trying to get our copy of the executed CA Development I and CA Development II contract documents. Plus the E-Next Generation contract, too. (Who says we're going paperless.)

Thanks,

Lee -----Original Message----- From: Sheila.Tweed@enron.com [mailto:Sheila.Tweed@enron.com] Sent: Tuesday, January 16, 2001 11:26 AM To: lee.johnson@ss.ps.ge.com; kent.shoemaker@ae.ge.com Subject: Executed Copy of Fountain Valley GE/Facility Agreement with Blackline showing change made to execution date. "I know it's not final until you say it is."

----- Forwarded by Sheila Tweed/HOU/ECT on 01/16/2001 11:16 AM -----

"Lindo,

Jacqueline E." To: <Kay.Mann@enron.com>, <Alan.Larsen@enron.com>, <jacquelinelindo@<Sheila.Tweed@enron.com>

akllp.com> cc: "Cobb, Chris" <chris Cobb@akllp.com> Subject: Executed Copy of Fountain Valley GE/Facility Agreement with 01/16/2001 10:58 Blackline showing change made to execution date. AM

At the request of Peter Thompson attached is an execution copy of the Fountain Valley GE/Facility Agreement along with a blackline showing the date of execution. Please contact Chris Cobb at (202) 662-3716 if you have any questions concerning this matter. <<CRO- GE Facility Agreement Versions 6 to 7.DOC>> <<Fountain Valley GE/Turbine Agreement - Version 7.DOC>> (See attached file: CRO- GE Facility Agreement Versions 6 to 7.DOC) (See attached file: Turbine

Agreement - Version 7.DOC)

- FountainValleyGE Breakout with CO included\_executioncopy\_011901.doc

Message 251 of 371

| enovate, LLC |                                                          |
|--------------|----------------------------------------------------------|
| Sender       | kay.mann@enron.com                                       |
| Recipients   | ['Kay Mann/Corp/Enron@Enron', 'jeffrey.hodge@enron.com'] |
| File         | mann-k/discussion_threads/3094.                          |

----- Forwarded by Kay Mann/Corp/Enron on 04/03/2001 12:58

PM ----- From: Travis McCullough@ECT on 04/03/2001 12:52 PM To: Gregg Penman/Corp/Enron@Enron cc: Kay Mann/Corp/Enron@Enron

Subject: enovate, LLC

Gregg:

Here is a very brief summary of my review of the LLC Agreement. It appears that the only thing we really need in order for Enron to more actively manage enovate's funds is a resolution by enovate's Board of Managers approving Enron Corp.'s investment of enovate's funds according to a policy that mirror's Enron's investment policy. This would enable our treasury group to invest enovate's funds in the same manner that they invest Enron's. I believe the following provisions of the LLC Agreement already contemplate such an arrangement:

enovate is managed by the Board of Managers, which delegates its management rights to the Managing Member (which is an Enron entity) (Section 6.1). The Board adopts various policies and guidelines for certain activities of enovate, and enovate has apparently already adopted Enron Corp.'s risk procedures and control guidelines (see def'n of Risk Procedures and Control Guidelines). The mechanism is already in place for enovate to adopt Enron's investment policies. The Managing Member has the express authority under Section 6.1.2, subject to the risk guidelines, to (among other things) open and maintain bank and investment accounts (Section 6.1.2(c) and invest Company funds in the name and on behalf of the Company (Section 6.1.2(j)). The Managing Member is also required to establish and maintain certain accounts for the Company (Section 10.4). The Managing Member has the obligation to provide reports to the Board of Managers, which will enable the Board of Managers to ensure that Enron is complying with the investment policy. The LLC agreement does prohibit the Managing Member from commingling enovate's funds with those of any other member. Our treasury group has confirmed that any investment of enovate's funds by Enron will be as agent for enovate and investments will be held in enovate's name. Enron's treasury group already provides a similar function to several other entities with third party investors in which we are the managing member. I am certain that they would be happy to answer any questions that Peoples may have about how the investment program would be implemented and conducted.

Therefore, I think that the LLC agreement already provides the basic authorization for Enron to invest enovate's funds; in fact, Enron could really just go ahead and start an investment program without any action by the members whatsoever -- adopting an investment policy and investing funds is clearly within the authority already granted to the Managing Member. Obviously, though, it is in our best interests to make sure that Peoples is comfortable with what we are doing, We could probably also "customize" the resolutions authorizing Enron to provide this service to address any concerns that Peoples may have; however, I think it would be best if we did not substantially depart from the existing Enron guidelines, as it may make it more difficult for the treasury group to manage the funds if they are required to operate by different rules.

Feel free to pass this message on to Peoples, and feel free to call if you have any questions before our Thursday call.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3893 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490



Message 252 of 371

**Re: IL Power Projects - Water Issues**

|                   |                                                                                                     |
|-------------------|-----------------------------------------------------------------------------------------------------|
| <b>Sender</b>     | fred.mitro@enron.com                                                                                |
| <b>Recipients</b> | ['ben.jacoby@enron.com', 'rusty.stevens@enron.com', 'sheila.tweed@enron.com', 'kay.mann@enron.com'] |
| <b>File</b>       | mann-k/all_documents/1736.                                                                          |

Sheila:

Thanks for the article. Water is definately a hot topic in the Chicago area. Our existing facility (Lincoln Energy Center) in Manhattan is in pretty good shape with the GE Dry Low NOx burners. At peak usage times the plant requires a peak water usage of around 125 gallons per minute (gpm) or 120,000 gallons per day based on a 16-hour run schedule. This is probably one of the lowest water consumption levels of any power plant in Illinois.

The two other sites (Plano and Pontiac) which we have permitted this year required significant discussion on the water usage issue. In our local zoning discussions/meetings we presented information that the proposed facility would have an estimated maximum water usage of 1000 gpm (this equates to approximately 1,000,000 gallons per day on a 16-hr basis). This was based on an equipment configuration of 10 LM 6000 units, which we felt was a fairly conservative water use estimate.

Our Kendall County Special Use Permit for the Plano site has a specific condition on water usage which limits the maximum draw from on-site wells to 1000 gpm based on a 24-hour average. I believe that this translates into a instantaneous maximum of approximately 1350 gpm. This amount was determined by an ENSR study of the amount of water that could be withdrawn from the deep acquifer without impacting the overall levels of the acquifer. The City of Yorkville Annexation Agreement on the Plano site does not impose a maximum water usage quantity.

The attached article suggest that some water use limitations may be imposed by the State of Illinois. I will check with our Chicago council to determine if such limitations would override zoning permits which have been already validly issued. My suspicion is that the State limitations would govern given that such limits are being designed specifically for peaker plants. I will let you know.

Fred

From: Sheila Tweed on 11/01/2000 06:53 PM To: Ben Jacoby/HOU/ECT@ECT, Fred Mitro/HOU/ECT@ECT cc: Subject: IL Power Projects - Water Issues-----FYI.

----- Forwarded by Sheila Tweed/HOU/ECT on 11/01/2000 06:52 PM -----

jforrester@mayerbrown.com (J. Paul Forrester) 11/01/2000 01:01 PM

To: undisclosed-recipients;; cc: Subject: IL Power Projects - Water Issues

FYI, I attach a recent report regarding water issues that are affecting power projects being developed in Illinois. We had previously raised a similar concern with you.

Regards, Paul. J. Paul Forrester Mayer, Brown & Platt 190 South LaSalle Street Chicago, Illinois 60603-3441 DID: (312) 701-7366 Fax: (312) 701-7711 jforrester@mayerbrown.com

\*\*\*\*\* NOTICE This e-mail message and any attachment is intended only for the use of the individual or entity to which it is addressed and may contain information that is privileged, confidential and exempt from disclosure under applicable law. If the reader of this message is not the intended recipient, or the authorized employee or agent responsible for the delivery of this message to the intended recipient, you are hereby notified that any review, retransmission, conversion to hard copy, dissemination, distribution or copying of this communication is strictly prohibited. If you have received this communication in error, please notify us by reply and delete this message from your computer without retaining a copy thereof. Please note that if this message is forwarded or a reply to a prior message, some or all of the attachments and other contents may not have been produced by Mayer, Brown & Platt. Thank you. - water.pdf

Message 253 of 371

**RE: Confidentiality Agreements regarding enovate**

|            |                            |
|------------|----------------------------|
| Sender     | gregg.penman@enron.com     |
| Recipients | ['kay.mann@enron.com']     |
| File       | mann-k/all_documents/4921. |

Kay - where does this stand? Enron accounting was notified on Wednesday that the audit would be taking place. We need this in place prior to the start of the audit.

Also, what about the individual CA's.

Thanks - Gregg ----- Forwarded by Gregg Penman/Corp/Enron on 04/20/2001 09:47 AM -----

j.nassos@pecorp.com 04/17/2001 07:12 PM

To: Kay.Mann@enron.com cc: Gregg.Penman@enron.com, j.pokorny@pecorp.com, b.kowalski@pecorp.com, f.jacobsen@pecorp.com Subject: RE: Confidentiality Agreements regarding enovate

Hi Kay -

You may recall that back in February, we almost finalized two confidentiality agreements related to enovate L.L.C. activities. Our auditors will be sending to enovate shortly a letter indicating they would like to review various books and records of enovate and ENA as its activities relate to enovate. In connection with the review, we need to finalize those confidentiality agreements.

I have made the change you requested in the attached e-mail to both of the agreements (PEC and enovate) and have attached below an execution copy of the agreements for ENA to date and send to PEC and enovate for signature. Assuming the attached copies are acceptable, please have ENA sign two originals of each agreement and send them to me. I'll arrange for Bill Morrow to sign the PEC agreement and work with Greg Penmen to have enovate sign the other agreement.

If you have any questions, please call. Thanks for your assistance.

John G. Nassos Asst. General Counsel Peoples Energy Corporation 130 East Randolph Drive Chicago, IL 60601 Tel (312) 240-4413 Fax (312) 240-4486 j.nassos@pecorp.com

<<Conf Ag enovate - ENA (evaluation of enovate) exec.doc>> <<Conf Ag Peoples Energy Corp. - ENA (evaluation of enovate) exec.doc>>

----- From: Kay.Mann@enron.com[SMTP:Kay.Mann@enron.com] Sent: Thursday, February 08, 2001 3:42 PM To: j.nassos@pecorp.com Cc: Gregg.Penman@enron.com Subject: Re: Confidentiality Agreements regarding enovate Hi John, The enovate version looks fine. I suggest this change to the Peoples version: iv) is required to be disclosed to comply with any applicable law, order, regulation or ruling or to enforce enovate's or PMW's rights in court or in an arbitration proceeding in connection with the Limited Liability Company Agreement of enovate dated April 26, 2000, as amended, modified, and supplemented from time to time (the "LLC Agreement"). If PEC is requested or required (by oral question, interrogatories, requests for information or documents, subpoena, civil investigative demand or similar process) to disclose any Confidential Information, PEC will promptly notify ENA of such request or requirement so that ENA may seek an appropriate protective order or waiver in compliance with provisions of this Agreement. If PEC and ENA are both parties to the proceeding, PEC will agree to an appropriate protective order. Thanks, Kay

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- Conf Ag enovate - ENA (evaluation of enovate) exec.doc - Conf Ag Peoples Energy Corp. - ENA (evaluation of enovate) exec.doc

Message 254 of 371

**ENA Merchant Assets in Condor (Project Velocity) a/k/a Trutta (for**

|                   |                                                                                         |
|-------------------|-----------------------------------------------------------------------------------------|
| <b>Sender</b>     | kay.mann@enron.com                                                                      |
| <b>Recipients</b> | [carlos.sole@enron.com', 'Brian', 'Donna Lowry/HOU/ECT@ECT', 'Hope Vargas/HOU/ECT@ECT'] |
| <b>File</b>       | mann-k/sent/2822.                                                                       |

Pop quiz to follow... ----- Forwarded by Kay Mann/Corp/Enron on 02/20/2001 04:08 PM -----

Lisa Mellencamp@ECT 02/20/2001 04:05 PM Sent by: Linda J Simmons@ECT To: Lance Schuler-Legal/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Eddy Daniels/NA/Enron@Enron, Angela Davis/NA/Enron@Enron, Robert H George/NA/Enron@Enron, Sheila Tweed/HOU/ECT@ECT, Kay Mann/Corp/Enron@Enron, Bob Carter/HOU/ECT@ECT, Barton Clark/HOU/ECT@ECT, Teresa G Bushman/HOU/ECT@ECT, Nancy Corbet/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Peter del Vecchio/HOU/ECT@ECT, Lou Stoler/HOU/ECT@ECT, James Grace/Corp/Enron@ENRON, Barbara N Gray/HOU/ECT@ECT, Anne C Koehler/HOU/ECT@ECT, Dan Lyons/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Steve Van Hooser/HOU/ECT@ECT, Stuart Zisman/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Deb Korkmas/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT cc: Donna Lowry/HOU/ECT@ECT, Hope Vargas/HOU/ECT@ECT, Brian Schwertner/NA/Enron@Enron, Chris Herron/Enron@EnronXGate, Gordon McKillop/NA/Enron@ENRON, Joel Ephross/Enron@EnronXGate, Stacy Hardy/Corp/Enron@ENRON, L'Sheryl Hudson/HOU/ECT@ECT

Subject: ENA Merchant Assets in Condor (Project Velocity) a/k/a Trutta (for those of you who do not know, trutta is a kind of trout)

this is going out to a broad group and may not be relevant to some, but please be aware that other ENA assets may go into the velocity/condor structure at a couple points this year. also we can all pray (i think it is ok to use this word in the current political climate and in a secular sense, as i think our interests are aligned on this) that the ENE stock price goes up and for more room in the raptor vehicle so we may see more raptor hedges.

1.. as most of you are aware, the majority of ENA's merchant assets are in our project velocity structure. just to make sure that we confuse everyone, we use condor/whitewing/velocity/trutta names interchangeably although occasionally there are some distinctions (which i won't bore you with the details about so you can disavow all knowledge if you have/need/want to). just so you get the right lingo, trutta is the name of the ENA subsidiary where these assets now have a home. ENA, under a servicing agreement, is the servicer of the assets. i am attaching for your information the servicing guidelines in the agreement. the major restriction is that ENA cannot sell assets for less than the contributed value into the structure. any EARLY warning of a potential sale of any of these assets would be greatly appreciated so we can check whether any restrictions apply and be ready, as there are some logistics involved. an email to donna lowry, mary heinitz and myself would be wonderful. if you do not do this, you may get on donna's list. of course i can't speak for her as to the repercussions envisioned, but let me suffice it to say that i am glad i am not on her list. at least that i know of.

2. a number of these assets also have raptor hedges in place in addition to being in the velocity structure. only the portion of the investment that was on ENA's balance sheet was hedged. if an asset is sold that has been "raptorized", the swap will need to be promptly terminated/notional amounts adjusted etc. again, give us as much notice as you can.

3. we also need notice (AHEAD OF TIME) of any follow on investments in the same merchant assets, exchanges of our interest or further fundings because STUFF will have to be done. i will not bore you with the details, but this STUFF cannot be done in ONE MINUTE contrary to the popular opinion of some business types whose names i will not mention here. we also are obligated to provide quarterly reports of the investments which describe any modifications to the investments during that calendar quarter. the first report is due april 11, 2001 for the first quarter of this year. we will be asking for your input with respect to your investments at the end of march.

4. lists of assets currently in velocity and in raptor are attached fyi.

Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com

---

Message 255 of 371

**RE: Settlement agreement**

|                   |                              |
|-------------------|------------------------------|
| <b>Sender</b>     | kay.mann@enron.com           |
| <b>Recipients</b> | [ann.davis@swpc.siemens.com] |
| <b>File</b>       | mann-k/westinghouse/103.     |

Hi Ann,

Thank you for your response. I wanted to propose some different language for your consideration:

WHEREAS, the Gleason Project sustained damage to its exhaust stacks and alleged that Siemens Westinghouse was responsible for such damage because (i) of its failure to, among other things, provide drawings with adequate directions for the welding of those stacks and (ii) excessive vibrations at the Gleason Plant were a contributing factor to such damage. As a result, Enron presented a breach of warranty claim to Siemens Westinghouse, in May of 2001, under the Contract in the amount of Four Hundred Nine Thousand, Six Hundred Sixty-Six Dollars (\$409,666.00) for repair work performed on two of the stacks ("Warranty Issue").

I hope this gets us there.

Thanks,

Kay

-----Original Message-----

From: Davis Ann E [mailto:Ann.Davis@swpc.siemens.com] Sent: Thursday, October 04, 2001 8:05 AM To: Mann, Kay  
Subject: RE: Settlement agreement

Kay:

We are in receipt of Enron's proposed changes to the Settlement Agreement and Release on the Gleason Project. Unfortunately, it appears that the intent of the Settlement Agreement has strayed away from initial discussions between our respective business representatives. In past discussions with Enron regarding its claim for costs associated with reconstruction of the Gleason CT exhaust stacks, Enron tied its local low frequency noise concerns to the stack reconstruction issue. Although the causes for reconstruction of the stacks were beyond SWPC responsibilities, SWPC agreed that in the interest of continued customer relations, we would be willing to make a business policy concession to Enron on the reconstruction costs in exchange for indemnification on future stack and noise issues.

The latest revisions to the Settlement Agreement deletes any references to the noise issues in the warranty definition, thereby eliminating any coverage for indemnification for future claims which may arise on that issue from the Settlement Agreement. This elimination substantially erodes the value of Enron's indemnification, and the settlement overall. As modified, the deal is no longer palatable to SWPC, and it is in our best interest not to enter into the Agreement as proposed by Enron. Should Enron be willing to re-insert the language struck from the third WHEREAS paragraph, SWPC would be willing to sign on to the deal.

Please contact me directly if you wish to discuss this further. SWPC would like to resolve all outstanding issues with Enron, but we will not make payment on a claim for an issue which we believe we bear no responsibility unless such payment is part of a more global settlement.

Regards,

Ann Davis Counsel Siemens Westinghouse Power Corporation 4400 Alafaya Trail, MC Q2-480 Orlando, FL 32826 direct: (407) 736-2017 fax: (407) 736-5034

-----Original Message-----

From: Mann, Kay [mailto:Kay.Mann@enron.com] Sent: Monday, October 01, 2001 5:57 PM To: ann.davis@swpc.siemens.com Subject: Settlement agreement

Hi Ann,

I'm attaching a redline with just a couple of changes to the draft you sent. Hopefully, we can wrap this up.

Thanks,

Kay

<<EnrGleasonStackSettle 10-1redline against 10-1.doc>>

ps, here's the clean copy:

<<EnrGleasonStackSettle 10-1.doc>>

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Message 256 of 371

## RE: Signatures for Certain Documents

|            |                                                   |
|------------|---------------------------------------------------|
| Sender     | kay.mann@enron.com                                |
| Recipients | ['lee.johnson@ps.ge.com', 'eric.booth@enron.com'] |
| File       | mann-k/_sent_mail/451.                            |

Lee,

I'll rev up the Austin facility agreement again. Eric tells me that we are= =20 fine with adding the additional TD of I to the facility agreement with a=20 scope/price change.

Ignore the insurance certificate question. My bad.

I've heard that the LOC made it, so GE should be receiving payment in full= =20 today. =20

LV Co Gen is still moving. There are some of the TurboPark stuff which was= =20 in the agreed form of override letter. It is being actively worked right n= ow.

Sorry about your trip.

Kay

lee.johnson@ps.ge.com on 05/02/2001 09:25:33 AM To: Kay.Mann@enron.com cc: =20

Subject: RE: Signatures for Certain Documents

Kay,

I don't know the answer to your 1st question since I don't recall ever having to have insurance certificates on any of the other Facility Agreements. Maybe we did, but I just forgot that detail. Jaap/Kent? do yo= u know?

The Retention LC was faxed this am to Greg Lang and Isabell Parker. Jaap's Admin Asst can fax you a copy (Carla Corly) if you wish.



(See attached file: ge\_conse.pdf) (See attached file: salmon\_d.pdf)

Message 257 of 371

## Re: E-Next Generation Assignment Documents and Schedule V

|            |                             |
|------------|-----------------------------|
| Sender     | kay.mann@enron.com          |
| Recipients | ['suzanne.adams@enron.com'] |
| File       | mann-k/all_documents/2563.  |

Lisa is a real hoot. Smart, tough as nails. She pulls no punches.

Michael seems to feel better, but he has terrible circle under this eyes. I'm going to insist that the doctor give him 3 rounds of antibiotics. Being a boy, it isn't so bad. I just know that the strep is hiding in his sinuses, so a week after he gets off the antibiotics he gets sick again.

He slept until 800 today, and hour and a half later than usual. I think that must be his body healing.

He is so excited that 6 flakes of snow might fall tonight.

Paige wrote me today, said she is freezing (she's north of Austin).

Kay

From: Suzanne Adams@ECT on 12/12/2000 10:05 AM To: Kay Mann/Corp/Enron@ENRON cc:

Subject: Re: E-Next Generation Assignment Documents and Schedule V

I just love Lisa, she's a little bulldog isn't she.

How is Michael feeling? It's cold outside!

Kay Mann@ENRON 12/12/2000 09:29 AM

To: Suzanne Adams/HOU/ECT@ECT cc: Subject: Re: E-Next Generation Assignment Documents and Schedule V

Hi Suz,

Please print the exhibits and fax to me it home.

I thought you might enjoy this one.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 12/12/2000 09:26 AM -----

Lisa Bills 12/11/2000 11:16 PM To: "Bunk, Sean" <seanbunk@akllp.com> cc: <lisa.bills@enron.com>, <catherine.clark@enron.com>, <kay.mann@enron.com>, <sheila.tweed@enron.com>, <roseann.engeldorf@enron.com>, <mgocker@enron.com>, <sarah.wesner@enron.com>, <toxley@winston.com>, <mmckay@velaw.com>, "Taylor, Rob" <robtaylor@akllp.com>, "Popplewell, Tom" <tompopplewell@akllp.com>

Subject: Re: E-Next Generation Assignment Documents and Schedule V

why does LM6000 contract still have brackets around the number of turbines to be assigned to WestLB? Why does it still ignore the change orders rose asked you to include?

why does schedule v to PA still ignore the change orders to the various documents?

Please correct or advise why requests for changes are NOT being made.

As you know, these documents are deliverables on Wednesday. Blue Dog had comments from the other side today. Why haven't I seen a revision or been asked if I agree with their comments?

Please do not operate in a vacuum without consulting me or Roseon questionable issues.

Regards, Lisa



"Bunk, Sean" <seanbunk@akllp.com> on 12/11/2000 07:46:53 PM To: <lisa.bills@enron.com>, <catherine.clark@enron.com>, <kay.mann@enron.com>, <sheila.tweed@enron.com>, <roseann.engeldorf@enron.com>, <mgocker@enron.com>, <sarah.wesner@enron.com>, <toxley@winston.com>, <mmckay@velaw.com> cc: "Taylor, Rob" <robtaylor@akllp.com>, "Poppewell, Tom" <tompoppewell@akllp.com>

Subject: E-Next Generation Assignment Documents and Schedule V

Attached please find revised drafts of the following documents:

1. Purchase Option Assignment and Assumption Agreement (LM6000)
2. Purchase Option Assignment and Assumption Agreement (Pastoria)
3. Schedule V to Participation Agreement

Both a clean copy and a copy blacklined to show the changes from the prior version are included for each of these documents.

Please feel free to call me if you have any questions or comments.

~~~~~ Sean Bunk Andrews & Kurth L.L.P. 600 Travis St., Suite 4200 Houston, Texas 77002 Tel.: 713.220.4427 Fax.: 713.238.7252 e-mail: seanbunk@andrews-kurth.com

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<<Blackline 593717v3 to v2 (Pastoria Assignment).DOC>> <<Purchase Option Assignment and Assumption Agreement - Pastoria.DOC>> <<Blackline 593834v4 to v3 (LM6000 Assignment - N.A.).DOC>> <<Purchase Option Assignment and Assumption Agreement (Turbopark - LM6000).DOC>> <<Schedule V to Participation Agreement (TurboPark).DOC>> <<Blackline 597234v2 to v1 (Sched. V - Turbo Park).DOC>> - Blackline 593717v3 to v2 (Pastoria Assignment).DOC - Purchase Option Assignment and Assumption Agreement - Pastoria.DOC - Blackline 593834v4 to v3 (LM6000 Assignment - N.A.).DOC - Purchase Option Assignment and Assumption Agreement (Turbopark - LM6000).DOC - Schedule V to Participation Agreement (TurboPark).DOC - Blackline 597234v2 to v1 (Sched. V - Turbo Park).DOC

Message 258 of 371

Re: Organizational Announcement - Introducing Enron Engineering and

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['john.schwartzburg@enron.com', 'carlos.sole@enron.com'] |
| File | mann-k/sent/3177. |

Gee, I was kinda hoping we would have the opportunity to dump stuff on EEOS= ,=20 not the other way around. =20 ckm

John Schwartzburg@ENRON_DEVELOPMENT 03/19/2001 08:54 AM To: Carlos Sole/NA/Enron@ENRON cc: Kay Mann/Corp/Enron@ENRON=20

Subject: Re: Organizational Announcement - Introducing Enron Engineering an= d=20 Operational Services =20

With the exception of Tex-Mex. You get Tex Mess, right? JWVS

=09Carlos Sole@ENRON =0903/19/2001 08:52 AM =09=09 =09=09 To: John Schwartzburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT =09=09 cc: Carlos Sole/NA/Enron@Enron@ENRON_DEVELOPMENT, Kay=20 Mann/Corp/Enron@ENRON@ENRON_DEVELOPMENT =09=09 Subject: Re: Organizational Announcement - Introducing Enron Enginee= ring and=20 Operational Services

By no means, should this reorg be interpreted as meaning that I get Kay's= =20 Mexico's work again. She has specifically told me that she wants it back a= nd=20 this provides the perfect opportunity.

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361

(713) 345-8191 (phone) 713 646-3393 (fax)

=09John Schwartzenburg@ENRON_DEVELOPMENT =0903/19/2001 07:31 AM =09=09 =09=09 To: Kay Mann/Corp/Enron@ENRON =09=09 cc: Carlos Sole/NA/Enron@Enron =09=09 Subject: Re: Organizational Announcement - Introducing Enron Engineer= ring and=20 Operational Services

Yep, uh-huh. EWA'll have a real first class operation. Uh-huh.

JWVS

=09Kay Mann@ENRON =0903/19/2001 07:12 AM =09=09=20 =09=09 To: John Schwartzenburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT =09=09 cc: Carlos Sole/NA/Enron@Enron =09=09 Subject: Organizational Announcement - Introducing Enron Engineering= and=20 Operational Services

Hi John,

Sounds like we are now reunited in the same legal group, EWS. True? =20

Kay ----- Forwarded by Kay Mann/Corp/Enron on 03/19/2001 07:09= =20 AM ----- =20 =09 =09 =09From: Mark Frevert & Dave Delainey 03/16/2001= =20 08:55 PM =09

Sent by: Enron Announcements To: All Enron Worldwide cc: =20

Subject: Organizational Announcement - Introducing Enron Engineering and=20 Operational Services

In order to better align our engineering and operations capabilities with t= he=20 commercial businesses they support, we are pleased to announce the followin= g=20 organizational change will be effective immediately. A new business unit,= =20 Enron Engineering and Operational Services (EEOS), is being formed which wi= ll=20 include our existing operations in Enron Engineering and Construction Compa= ny=20 (EE&CC), Operational Energy Corporation (OEC), and National Energy Producti= on=20 Corporation (NEPCO).

Brian Stanley, as President and Chief Executive Officer, and Keith Dodson, = as=20 Chief Operating Officer will provide the leadership for this new=20 organization, reporting to the Office of the Chairman of Enron Wholesale=20 Services. NEPCO will continue to operate as a stand-alone business under= =20 John Gillis, President.

With the majority of EE&CC and OEC=01,s activities focused on assets and=20 projects which are in Wholesale Services, this will better align the effort= s=20 of EEOS with the commercial businesses it supports. While EEOS will be a= =20 stand-alone unit within Enron Wholesale Services it will work very closely= =20 with and have direct accountability to the business units it supports.

This realignment also centralizes our engineering and operations capabiliti= es=20 in a single business segment and should ensure that innovation and best=20 practices are shared and implemented across our many operations and will al= so=20 allow for better identification of priorities and more effective allocation= =20 of resources to these projects. Consistent with this approach, Development= =20 Engineering will have dual reporting to both EEOS and the business units=20 which they support. =20

With an extensive and varied portfolio of assets around the world and a wid= e=20 variety of new development opportunities available to Enron, it is critical= =20 that we continue to maintain the best in class capability to design,=20 construct, commission, and effectively manage and operate Enron=01,s assets= on a=20 global basis.

This new global business unit should insure that we will continue to enhanc= e=20 these demonstrated capabilities and provide us with a sustainable advantage= =20 as we advance our business strategy around the world.

Please join us in congratulating Brian and Keith on their new assignments.

Mark Frevert & Dave Delainey

*Message 259 of 371***RE: Confidentiality Agreements regarding enovate**

| | |
|-------------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['kathleen.carnahan@enron.com'] |
| File | mann-k/sent/3730. |

Can you help me with these? I need to get them fixed up today.

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 04/20/2001 10:00 AM ----- From: Gregg Penman on 04/18/2001 01:10 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: RE: Confidentiality Agreements regarding enovate

I am not sure if any additional items are necessary. However, the following jumped to mind, and I am guessing there may be others: 1-Required Disclosure - what if disclosure is required by a legal proceeding? 2-Remedies - what, if any, remedies do we have for disclosure

My other quick thoughts are: 1-I agree that solicitation does not belong 2-Enron should be changed to enovate and we also need to cover affiliates, i.e. - the rest of Enron and Peoples.

That is all I can think of at the moment. Let me know your thoughts.

Thanks - Gregg

Kay Mann 04/18/2001 06:47 AM

To: Gregg Penman/Corp/Enron@Enron cc: Subject: RE: Confidentiality Agreements regarding enovate

Good timing.

You mentioned that there were a couple of things you thought should be added to the "employee/consultant" form. Could you email me the topics so that I can take a look and make changes. Once again I expect to be on an endless conference call, but I can work while I talk.

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 04/18/2001 06:45 AM -----

j.nassos@pecorp.com on 04/17/2001 07:12:57 PM To: Kay.Mann@enron.com cc: Gregg.Penman@enron.com, j.pokorny@pecorp.com, b.kowalski@pecorp.com, f.jacobsen@pecorp.com

Subject: RE: Confidentiality Agreements regarding enovate

Hi Kay -

You may recall that back in February, we almost finalized two confidentiality agreements related to enovate L.L.C. activities. Our auditors will be sending to enovate shortly a letter indicating they would like to review various books and records of enovate and ENA as its activities relate to enovate. In connection with the review, we need to finalize those confidentiality agreements.

I have made the change you requested in the attached e-mail to both of the agreements (PEC and enovate) and have attached below an execution copy of the agreements for ENA to date and send to PEC and enovate for signature. Assuming the attached copies are acceptable, please have ENA sign two originals of each agreement and send them to me. I'll arrange for Bill Morrow to sign the PEC agreement and work with Greg Penman to have enovate sign the other agreement.

If you have any questions, please call. Thanks for your assistance.

John G. Nassos Asst. General Counsel Peoples Energy Corporation 130 East Randolph Drive Chicago, IL 60601 Tel (312) 240-4413 Fax (312) 240-4486 j.nassos@pecorp.com

<<Conf Ag enovate - ENA (evaluation of enovate) exec.doc>> <<Conf Ag Peoples Energy Corp. - ENA (evaluation of enovate) exec.doc>>

----- From: Kay.Mann@enron.com[SMTP:Kay.Mann@enron.com] Sent: Thursday, February 08, 2001 3:42 PM To: j.nassos@pecorp.com Cc: Gregg.Penman@enron.com Subject: Re: Confidentiality Agreements regarding enovate Hi John, The enovate version looks fine. I suggest this change to the Peoples version: iv) is required to be disclosed to comply with any applicable law, order, regulation or ruling or to enforce enovate's or PMW's rights in court or in an arbitration proceeding in connection with the Limited Liability Company Agreement of envovate dated April 26, 2000, as amended, modified, and supplemented from time to time (the "LLC Agreement"). If PEC is requested or required (by oral question, interrogatories, requests for information or documents, subpoena, civil investigative demand or similar process) to disclose any Confidential Information, PEC will promptly notify ENA of such request or requirement so that ENA may seek an appropriate protective order or waiver in compliance with provisions of this Agreement. If PEC and ENA are both parties to the proceeding, PEC will agree to an appropriate protective order. Thanks, Kay

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- Conf Ag enovate - ENA (evaluation of enovate) exec.doc - Conf Ag Peoples Energy Corp. - ENA (evaluation of enovate) exec.doc

Message 260 of 371

Michael Update

| | |
|------------|---|
| Sender | bob.joyce@kvaerner.com |
| Recipients | ['bpwallin@townisp.com', 'lberzins@compuserve.com', 'bdrobish@pacbell.net'] |
| File | mann-k/discussion_threads/4256. |

Michael had his transplant Monday, and is doing "as well as can be expected." He's still feeling the effects (nausea, etc.) of the chemo he received last week and is anxious about possible side effects and whether the transplant will, in fact, work. He'll be in isolation until his white blood cells are such that he'll be able to fight off germs, then perhaps in the hospital in non-isolation for a while, then into an apartment near the hospital for 3 months or so in order to be able to get back there ASAP should problems develop. Set out below is a copy of an article from a web site about bone marrow transplants that I should have sent out a while ago. I'll keep you posted on Michael's progress. Bob

Bone marrow transplant Description: Bone marrow is a soft fatty tissue found inside bones. It produces blood cells (red blood cells, platelets </conditions/ency/article/003647.htm> , and white blood cells). When the patient develops disease of the blood cells (anemias </conditions/ency/article/000560.htm> , leukemias, or lymphomas) or when cancer </conditions/ency/article/001289.htm> treatment (chemotherapy </conditions/ency/article/002324.htm> and radiation therapy </conditions/ency/article/001918.htm>) damages or destroys the bone marrow, a transplant with healthy bone marrow can save the patient's life. Patients need bone marrow transplants because they have dangerously low white blood cells (which are needed to fight infection) as a result of cancer treatments or have cancer of the blood cells.

Bone marrow transplant patients are usually treated in specialized centers and the patient stays in a special nursing unit (bone marrow transplant unit: BMT) to limit exposure to infections.

Donated bone marrow must match the patient's tissue type. It can be taken from the patient, a living relative (usually a brother or a sister: allogeneic), or from an unrelated donor (found through the national marrow donor program which lists more than 700,000 potential donors). Donors are matched through special blood tests called HLA tissue typing (see HLA antigens </conditions/ency/article/003550.htm>).

Bone marrow is taken from the donor in the operating room while the patient is deep asleep and pain-free (under general anesthesia). Some of patient's bone marrow is removed from the top of the hip bone (iliac crest). The bone marrow is filtered, treated, and transplanted immediately or frozen and stored for later use. Bone marrow transplant is transfused into the patient through a vein (IV line) and is naturally transported back into the bone cavities where it grows quickly to replace the old bone marrow.

What to Expect After: Bone marrow transplant prolongs the life of a patient who would otherwise die. Relatively normal activities can be resumed as soon as the patient feels well enough and after consulting with the doctor.

The other significant problems with a bone marrow transplant are those of all major organ transplants--finding a donor and the cost of the surgery. The donor is usually a sibling with compatible tissue. The more siblings the patient has the more chances to find the right donor.

Convalescence: The hospitalization period is from 4 to 6 weeks, during which time the patient is isolated and under strict monitoring because of the increased risk of infection. The patient will require attentive follow-up care for 2 to 3 months after discharge from the hospital. It may take 6 months to a year for the immune system to fully recover from this procedure.

Risks: The major problem with bone marrow transplants (allogeneic type) is graft-versus-host disease </conditions/ency/article/001309.htm> ; the opposite of the graft rejection </conditions/ency/article/000815.htm> problems seen in other transplants (transplant rejection </conditions/ency/article/000815.htm>). The transplanted healthy bone marrow cells tend to attack the patient's (host) cells as though they were foreign organisms. In this case, drugs to suppress the immune system (immunosuppression </conditions/ency/article/000818.htm> medications) must be taken indefinitely, weakening the body's ability to fight infections.

Bob Joyce Kvaerner Process 7909 Parkwood Circle Drive Houston, TX 77036 (713) 995-2137 (713) 270-3652 -- Fax bob.joyce@kvaerner.com <mailto:bob.joyce@kvaerner.com>

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Message 261 of 371

RE: Fehr Option Agreement

| | |
|------------|--|
| Sender | karen.way@piperrudnick.com |
| Recipients | ['mark.gershon@piperrudnick.com', 'rusty.stevens@enron.com', 'fred.mitro@enron.com', 'donald.shindler@piperrud...] |
| File | mann-k/discussion_threads/703. |

I spoke to Don Shindler about your comments. We will hold the contract and any discussions with the Seller's attorney pending your approval following discussions with your Accounting Department. As per Rusty's email, we will provide for a 12 month post-expiration/termination extended triggering period. As to the specific performance issue, we have agreed to this in the past after the exercise of the option in the event the ENA entity was in default of its obligation to acquire the property. The alternative seems to be to provide for some additional payment as liquidated damages for a failure to close over and above the option consideration. Re: the zoning issue. Fred: if there is any thought to using the Fehr property as a laydown construction site or other use, we will need to address this issue. Let's discuss. Please let us know how you would like us to handle this. To discuss, please call me or Don. Thanks.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

-----Original Message----- From: Kay.Mann@enron.com [SMTP:Kay.Mann@enron.com] Sent: Monday, September 18, 2000 3:50 PM To: Rusty.Stevens@enron.com Cc: karen.way@piperrudnick.com; Fred.Mitro@enron.com Subject: Re: Fehr Option Agreement Here are my observations: I agree with Rusty re: the put option complicating things for us. Second, there has to be an absolute end to this agreement at some point. If we want to have an automatic extension by commencing construction, there still needs to be a date certain after which we can go forward without them no matter what. In other words, if we want to add the language Rusty suggested, it should be limited to x months after the expiration of the option agreement. We'll need to run this back through Accounting. I really don't like the inclusion of the language in paragraph 5. If we add the language requested in paragraph 5, we need to run this agreement back through Accounting, and we may need to add some other additional language. I don't know if Rusty and Fred think we may need a zoning change for this parcel. Kay Rusty Stevens 09/14/2000 04:45 PM To: karen.way@piperrudnick.com, Kay Mann/Corp/Enron@Enron cc: Fred Mitro/HOU/ECT@ECT Subject: Fehr Option Agreement I am in receipt of the Fehr's comments to our option agreement. In reviewing them, I have the following comments: The paragraph (2) change that says they can compel us to buy their land upon a Triggering Event occurring is not going to work, because this is a put option on their part which hurts our hard cost avoidance issues. We carefully reworded previous put option language to avoid this. Also, how can we be bound to a deal when the agreement has expired ? I think we would need to say that "if we decide to build the plant after the option period expires, then that would serve to extend the term of this agreement, however, if the option agreement expires unexercised for a one year period then we won't be bound to the deal. If the provisions of his comment (5) are indeed parallel to another similar paragraph in the document I don't have a problem with it, but "specific performance" scares me in general. Your (collective) call. Lets wrap this one up fast. I want to resolve it soon so I can use it as leverage with Ledford and not have him influence them. He picked a good to go on vacation, but is back in on Monday. I also told the Fehr's that if we could do this before the 15th I would go for \$185,000 vs. \$175,000. Since we were about five days longer than promised, I can justify the delay to end of next week, but I don't want them to think I was just blowing smoke on the extra \$10,000. Fred : Refresh my memory on who I need to go to for the option payment check ?

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

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Message 262 of 371

livingston county proposed conditions to special use

| | |
|------------|--|
| Sender | karen.way@piperrudnick.com |
| Recipients | ['mark.gershon@piperrudnick.com', 'rusty.stevens@enron.com', 'fred.mitro@enron.com', 'kay.mann@enron.com'] |
| File | mann-k/all_documents/1101. |

Following are the proposed conditions to special use which we will be submitting to the County for their review and attachment to the final zoning approvals. Please review and discuss any comments with me or Mark Gershon.

PROPOSED CONDITIONS TO SPECIAL USE FOR LIVINGSTON ENERGY CENTER (the "Facility") TITAN LAND DEVELOPMENT CO., L.L.C. ("Titan") SOUTHEAST INTERSECTION OF 1400 N. AND 1700 E. ROADS (the "Property")

1. The operation of the Facility shall satisfy all Illinois Environmental Protection Agency noise pollution requirements.
2. Titan shall enter into a roadway agreement with the County and Township Highway Commissioners which assigns responsibility for repair of, maintenance of, and debris removal on Township and County roadways during construction of the Facility.
3. Contingent upon all property owners' written approval being secured, Titan shall have installed at most four monitoring wells on at most four properties within one and one-half miles surrounding the Property. One monitoring well each shall be

installed on a property to the north, south, east, and west. Titan shall monitor well levels on each of the properties on a quarterly basis and shall make such monitoring information available to the County Engineer at his request for five years following issuance of the final Certificate of Occupancy. If no adverse impact due to the operation of the Facility is found during the first five year monitoring period, then Titan shall monitor well levels for each of the properties two (2) times per year and shall make such monitoring information available to the County Engineer upon his request for the life of the Facility.

4. The maximum number of power generating units shall be limited to a maximum of ten (10).

5. Titan shall have repaired or replaced any drainage tile broken on the Property during construction and operation of the Facility that would adversely impact any surrounding property owner.

6. The site plan for the Facility shall allow no greater than forty percent (40%) of the site's total acreage to be developed with non-landscaped areas, open space, or agricultural uses

7. Upon permanent cessation of use of the Facility as an electric generation facility, Titan shall remove all above ground buildings, equipment, footings, appurtenances and structures, including accessory buildings and equipment.

8. Titan shall make those stormwater improvements identified on the attached Stormwater Management Plan. Additionally, a) upon adoption by Pontiac Township and Eppards Point Township of the Area-wide Stormwater Management study prepared by Farnsworth & Wylie (the "Study") for the Property and the surrounding area and b) upon written agreement to proceed with the stormwater management improvements identified in the Study by those property owners whose properties are identified by the Study as requiring stormwater management improvements, Titan shall commit to make those stormwater management improvements identified in the Study for the Property. Titan shall provide a corporate guaranty to the County in the amount of fifty-five thousand dollars (\$55,000) with a C.P.I. as security for making those stormwater management improvements identified in the Study for the Property. Titan shall construct such improvements contemporaneously with other such improvements being completed in the Study area.

9. Construction of each phase of the Facility from initiation to completion is estimated to require from six (6) to twelve (12) months subject to weather constraints, acts of God, materials availability, strikes and other labor issues, changes in regulations affecting development and construction, and other constraints not within the control of Titan. Within twelve months following issuance of the final Certificate of Occupancy all improvements shall be completed and all construction equipment and trailers shall be removed.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

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Message 263 of 371

| Non-Compete Provision Binding Affiliates | |
|--|---|
| Sender | carlos.sole@enron.com |
| Recipients | ['ben.jacoby@enron.com', 'fred.mitro@enron.com', 'kay.mann@enron.com', 'jeffrey.hodge@enron.com'] |
| File | mann-k/all_documents/4416. |

Jeff, I am working on the divestiture of a project company that had been developing a power plant site in Illinois and as part of our proposed purchase and sale agreement, the purchaser has requested a non-compete obligation of 2.5 years with respect to the project and project company that we are selling that would bind both ENA and its Affiliates. I recall that previously there was a policy which required certain approvals (including Mark Metts of Corporate Development) for non-compete agreements that were binding on other entities beyond the immediate business unit involved in the transaction. Could you help us out and let us know whom we need to contact. Thanks.

PS I am working on a legal risk memo for this transaction and will forward it to you a draft later today or early tomorrow as we are hoping to DASH and close on it by the end of this week.

Section 7.9 Due Diligence; Competitive Activities. (a) NOTWITHSTANDING ANYTHING STATED IN THIS PURCHASE AGREEMENT TO THE CONTRARY, PURCHASER AGREES THAT (A) SELLER RELATED PARTIES HAVE MADE NO REPRESENTATIONS, WARRANTIES, COVENANTS OR AGREEMENTS TO OR WITH PURCHASER RELATED PARTIES RELATING TO THE TRANSACTIONS CONTEMPLATED HEREBY, OTHER THAN THOSE EXPRESSLY SET FORTH IN THIS PURCHASE AGREEMENT AND (B) PURCHASER RELATED PARTIES HAVE NOT RELIED UPON ANY REPRESENTATIONS, WARRANTIES, COVENANTS OR AGREEMENTS RELATING TO THE TRANSACTIONS CONTEMPLATED HEREBY, OTHER THAN THOSE EXPRESSLY SET FORTH IN THIS PURCHASE AGREEMENT. PURCHASER ADDITIONALLY ACKNOWLEDGES THAT IT HAS CONDUCTED ITS OWN EVALUATION OF ALL ASPECTS (INCLUDING, WITHOUT LIMITATION, ENGINEERING, ENVIRONMENTAL, TRANSMISSION, ACCOUNTING, REGULATORY AND LEGAL) OF THE COMPANY AND THE PROJECT, AND IS RELYING SOLELY ON SUCH INVESTIGATION AND EVALUATION OF SUCH MATTERS IN DETERMINING WHETHER OR NOT TO ACQUIRE THE INTERESTS. ADDITIONALLY, PURCHASER HAS INDEPENDENTLY EVALUATED THE RISKS ASSOCIATED WITH THE DEVELOPMENT OF THE PROJECT AND THE PROSPECTS RELATING TO OBTAINING REQUIRED PERMITS, CONTRACTS, AGREEMENTS, AND ARRANGEMENTS NECESSARY FOR THE SUCCESSFUL DEVELOPMENT AND OPERATION THEREOF AND IS RELYING SOLELY ON SUCH INVESTIGATION AND EVALUATION OF SUCH MATTERS IN DETERMINING WHETHER OR NOT TO ACQUIRE THE INTERESTS. PURCHASER ACKNOWLEDGES THAT THE KENDALL PROJECT DOCUMENTS DO NOT REPRESENT OR PROVIDE FOR ALL OF THE ASSETS, PERMITS, CONTRACTS, AND AGREEMENTS NECESSARY FOR THE PROJECT, AND, EXCEPT AS OTHERWISE EXPRESSLY PROVIDED IN THIS PURCHASE AGREEMENT, SELLER MAKES NO REPRESENTATION OR WARRANTY AS TO THE ABILITY OF PURCHASER OR THE COMPANY TO OBTAIN THE SAME OR ANY OF THE TERMS THEREOF, OR AS TO THE ABILITY OR LIKELIHOOD THAT ANY OF THE OTHER PARTIES TO ANY OF SUCH DOCUMENTS SHALL PERFORM IN ACCORDANCE WITH THE TERMS THEREOF. (b) SELLER HEREBY AGREES THAT FOR A PERIOD OF ONE YEAR [THIRTY MONTHS] FOLLOWING THE CLOSING, SELLER WILL NOT DIRECTLY OPPOSE ANY ACTION BY PURCHASER OR THE COMPANY BEFORE THE CITY OF YORKVILLE OR KENDALL COUNTY AUTHORITIES IN CONNECTION WITH THE DEVELOPMENT OF THE PROJECT NO SELLER RELATED PARTY SHALL (i) TAKE OR SUPPORT ANY ACTION INTENDED BY SUCH SELLER RELATED PARTY TO (A) IMPEDE THE COMPANY'S ABILITY TO DEVELOP THE PROJECT IN THE MANNER CONTEMPLATED BY THE KENDALL PROJECT DOCUMENTS, (B) DELAY COMPLETION OF THE PROJECT BY THE COMPANY, OR (C) MATERIALLY INCREASE THE COMPANY'S COST TO COMPLETE THE PROJECT, OR (ii) TAKE OR SUPPORT ANY POSITION IN ANY PROCEEDING BEFORE ANY GOVERNMENTAL AUTHORITY DIRECTLY RELATING TO THE PROJECT THAT (A) CONTESTS OR SEEKS TO CONDITION THE ISSUANCE OF ANY AUTHORIZATION, APPROVAL OR CONSENT SOUGHT BY THE COMPANY OR PURCHASER, (B) CHALLENGES THE VALIDITY OF ANY AUTHORIZATION, APPROVAL OR CONSENT OBTAINED BY THE COMPANY OR PURCHASER OR (C) IS IN OPPOSITION TO THAT ASSERTED BY PURCHASER. EXCEPT AS OTHERWISE PROVIDED IN THIS SECTION 7.9(b) AND SUBJECT TO COMPLIANCE BY SELLER WITH ITS OTHER EXPRESS OBLIGATIONS IN THIS PURCHASE AGREEMENT, (i) EACH OF THE SELLER RELATED PARTIES MAY ENGAGE IN WHATEVER ACTIVITIES IT CHOOSES (INCLUDING DEVELOPMENT ACTIVITIES OR POWER PROJECTS) REGARDLESS OF WHETHER THE SAME ARE COMPETITIVE WITH THE PURCHASER OR THE COMPANY, WITHOUT HAVING OR INCURRING ANY OBLIGATION TO DISCLOSE SUCH ACTIVITIES TO PURCHASER OR THE COMPANY OR TO OFFER TO PURCHASER OR THE COMPANY ANY INTEREST IN SUCH ACTIVITIES AND (ii) NEITHER THIS PURCHASE AGREEMENT NOR ANY ACTIVITY UNDERTAKEN PURSUANT HERETO SHALL PREVENT SELLER

=20 RELATED PARTIES FROM ENGAGING IN SUCH ACTIVITIES, OR REQUIRE SELLER RELATED= =20 PARTIES TO DISCLOSE SUCH PARTICIPATION TO PURCHASER OR THE COMPANY, AND AS = A=20 MATERIAL PART OF THE CONSIDERATION FOR THE EXECUTION OF THIS PURCHASE=20 AGREEMENT BY SELLER, PURCHASER HEREBY WAIVES, RELINQUISHES, AND RENOUNCES A= NY=20 SUCH RIGHT OR CLAIM OF NOTICE OR PARTICIPATION IN SUCH ACTIVITIES.

Carlos Sole' Senior Counsel Enron North America Corp. 1400 Smith Street Houston, Texas 77002-7361
(713) 345-8191 (phone) 713 646-3393 (fax)

Message 264 of 371

Re: livingston county proposed conditions to special use

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['rusty.stevens@enron.com', 'fred.mitro@enron.com', 'karen.way@piperrudnick.com'] |
| File | mann-k/sent/879. |

Karen,

Could we have the option of using a letter of credit versus a corporate guaranty? (8)

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 09/21/2000 05:15:36 PM To: "'rusty.stevens@enron.com'" <rusty.stevens@enron.com>, "'fred.mitro@enron.com'" <fred.mitro@enron.com>, "'kay.mann@enron.com'" <kay.mann@enron.com> cc: "Gershon, Mark A. - CHI" <Mark.Gershon@piperrudnick.com>

Subject: livingston county proposed conditions to special use

Following are the proposed conditions to special use which we will be submitting to the County for their review and attachment to the final zoning approvals. Please review and discuss any comments with me or Mark Gershon.

PROPOSED CONDITIONS TO SPECIAL USE FOR LIVINGSTON ENERGY CENTER (the "Facility") TITAN LAND DEVELOPMENT CO., L.L.C. ("Titan") SOUTHEAST INTERSECTION OF 1400 N. AND 1700 E. ROADS (the "Property")

1. The operation of the Facility shall satisfy all Illinois Environmental Protection Agency noise pollution requirements.
2. Titan shall enter into a roadway agreement with the County and Township Highway Commissioners which assigns responsibility for repair of, maintenance of, and debris removal on Township and County roadways during construction of the Facility.
3. Contingent upon all property owners' written approval being secured, Titan shall have installed at most four monitoring wells on at most four properties within one and one-half miles surrounding the Property. One monitoring well each shall be installed on a property to the north, south, east, and west. Titan shall monitor well levels on each of the properties on a quarterly basis and shall make such monitoring information available to the County Engineer at his request for five years following issuance of the final Certificate of Occupancy. If no adverse impact due to the operation of the Facility is found during the first five year monitoring period, then Titan shall monitor well levels for each of the properties two (2) times per year and shall make such monitoring information available to the County Engineer upon his request for the life of the Facility.
4. The maximum number of power generating units shall be limited to a maximum of ten (10).
5. Titan shall have repaired or replaced any drainage tile broken on the Property during construction and operation of the Facility that would adversely impact any surrounding property owner.
6. The site plan for the Facility shall allow no greater than forty percent (40%) of the site's total acreage to be developed with non-landscaped areas, open space, or agricultural uses
7. Upon permanent cessation of use of the Facility as an electric generation facility, Titan shall remove all above ground buildings, equipment, footings, appurtenances and structures, including accessory buildings and equipment.

8. Titan shall make those stormwater improvements identified on the attached Stormwater Management Plan. Additionally, a) upon adoption by Pontiac Township and Eppards Point Township of the Area-wide Stormwater Management study prepared by Farnsworth & Wylie (the "Study") for the Property and the surrounding area and b) upon written agreement to proceed with the stormwater management improvements identified in the Study by those property owners whose properties are identified by the Study as requiring stormwater management improvements, Titan shall commit to make those stormwater management improvements identified in the Study for the Property. Titan shall provide a corporate guaranty to the County in the amount of fifty-five thousand dollars (\$55,000) with a C.P.I. as security for making those stormwater management improvements identified in the Study for the Property. Titan shall construct such improvements contemporaneously with other such improvements being completed in the Study area.

9. Construction of each phase of the Facility from initiation to completion is estimated to require from six (6) to twelve (12) months subject to weather constraints, acts of God, materials availability, strikes and other labor issues, changes in regulations affecting development and construction, and other constraints not within the control of Titan. Within twelve months following issuance of the final Certificate of Occupancy all improvements shall be completed and all construction equipment and trailers shall be removed.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

The information contained in this communication may be confidential, is intended only for the use of the recipient named above, and may be legally privileged. If the reader of this message is not the intended recipient, you are hereby notified that any dissemination, distribution, or copying of this communication, or any of its contents, is strictly prohibited. If you have received this communication in error, please re-send this communication to the sender and delete the original message and any copy of it from your computer system. Thank you.

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Message 265 of 371

| Re: livingston county proposed conditions to special use | |
|--|--|
| Sender | fred.mitro@enron.com |
| Recipients | ['mark.gershon@piperrudnick.com', 'rusty.stevens@enron.com', 'kay.mann@enron.com', 'karen.way@piperrudnick.com...] |
| File | mann-k/all_documents/1102. |

See my comments [in red] below.

Fred

"Way, Karen S. - CHI" <karen.way@piperrudnick.com> on 09/21/2000 05:15:36 PM To: "rusty.stevens@enron.com" <rusty.stevens@enron.com>, "fred.mitro@enron.com" <fred.mitro@enron.com>, "kay.mann@enron.com" <kay.mann@enron.com> cc: "Gershon, Mark A. - CHI" <Mark.Gershon@piperrudnick.com> Subject: livingston county proposed conditions to special use

Following are the proposed conditions to special use which we will be submitting to the County for their review and attachment to the final zoning approvals. Please review and discuss any comments with me or Mark Gershon.

PROPOSED CONDITIONS TO SPECIAL USE FOR LIVINGSTON ENERGY CENTER (the "Facility") TITAN LAND DEVELOPMENT CO., L.L.C. ("Titan") SOUTHEAST INTERSECTION OF 1400 N. AND 1700 E. ROADS (the "Property")

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3. Contingent upon all property owners' written approval being secured, Titan shall have installed at most four monitoring wells on at most four properties within one and one-half miles surrounding the Property. One monitoring well each shall be installed on a property to the north, south, east, and west. Titan shall monitor well levels on each of the properties on a quarterly basis and shall make such monitoring information available to the County Engineer at his request for five years following issuance of the final Certificate of Occupancy. If no adverse impact due to the operation of the Facility is found during the first five year monitoring period, then Titan shall monitor well levels for each of the properties two (2) times per year and shall make such monitoring information available to the County Engineer upon his request for the life of the Facility.
4. The [delete maximum] number of power generating units shall be limited to a maximum of ten (10).
5. Titan shall have repaired or replaced any drainage tile broken on the Property during construction and operation of the Facility that would adversely impact any surrounding property owner.
6. The site plan for the Facility shall allow no greater than forty percent (40%) of the site's total acreage to be developed with non-landscaped areas, open space, or agricultural uses [I don't think this is quite correct -let's discuss]
7. Upon permanent cessation of use of the Facility as an electric generation facility, Titan shall remove all above ground buildings, equipment, footings, appurtenances and structures, including accessory buildings and equipment.
8. Titan shall make those stormwater improvements identified on the attached Stormwater Management Plan. Additionally, a) upon adoption by Pontiac Township and Eppards Point Township of the Area-wide Stormwater Management study prepared by Farnsworth & Wylie (the "Study") for the Property and the surrounding area and b) upon written agreement to proceed with the stormwater management improvements identified in the Study by those property owners whose properties are identified by the Study as requiring stormwater management improvements, Titan shall commit to make those stormwater management improvements identified in the Study for the Property. Titan shall provide a corporate guaranty to the County in the amount of fifty-five thousand dollars (\$55,000) with a C.P.I. escalator as security for making those stormwater management improvements identified in the Study for the Property. Titan shall construct such improvements contemporaneously with other such improvements being completed in the Study area.
9. Construction of each phase of the Facility from initiation to completion is estimated to require from six (6) to twelve (12) months subject to weather constraints, acts of God, materials availability, strikes and other labor issues, changes in regulations affecting development and construction, and other constraints not within the control of Titan. Within twelve months following issuance of the final Certificate of Occupancy all improvements shall be completed and all construction equipment and trailers shall be removed.

Karen S. Way Piper Marbury Rudnick & Wolfe 203 N. LaSalle Chicago, Illinois 60601 email: karen.way@piperrudnick.com (ph) 312-368-2152 (fax) 312-630-6347

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

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Message 266 of 371

Individual.com - News From a Friend!

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['frank.sayre@enron.com', 'daniel.rogers@enron.com', '=20'] |
| File | mann-k/_sent_mail/1555. |

----- Forwarded by Kay Mann/Corp/Enron on 02/22/2001 10:26=

=20 AM -----

kathleen.carnahan@enron.com on 02/22/2001 10:23:42 AM Please respond to kathleen.carnahan@enron.com To: kay.mann@enron.com cc: =20

Subject: Individual.com - News From a Friend!

INDIVIDUAL.COM

Here's an article recommended by: Kathleen Carnahan and it comes to you via Individual.com, Inc.

The following message was attached: There is a reference to a name change. Perhaps "JoeCo"?

HERE IS THE STORY WE WERE REQUESTED TO SEND YOU

This story appeared on <http://www.individual.com> February 22, 2001

FilmWorld, Inc. Subsidiary SulphCo. Announces Joseph Sutton Retired Vice=20 Chairman of Enron Corp., to the Board of Directors

RENO, Feb. 21 /PRNewswire/ via NewsEdge Corporation --20 FilmWorld, Inc.'s (OTC Bulletin Board: FWLD) wholly owned subsidiary SulphCo. announced the Board of Directors appointment of Joseph Sutton, recently retired as Vice Chairman of Enron Corp. one of the world's leading energy and communications companies based in Houston, Texas, which owns or controls approximately \$60 billion in energy and communication assets; produces electricity and natural gas; develops, constructs and operates energy facilities worldwide; delivers physical commodities, financial and risk management services to customers around the world; and is developing a leading broadband services business.

Joseph Sutton as a member of the Office of the Chairman of Enron Corp. was responsible for oversight of Enron's retail business, Enron's full range international business, Enron Construction and Engineering Company, all of Enron's North America pipelines, Enron's Global E&P Business, Enron's Investment Partners, Enron Wind Company and a large portion of Enron's Wholesale Energy business. During his time as Vice Chairman, Enron formed its new Broadband Services business and introduced Enron Online.

His career began at Enron as Vice President of project development. After working on many successful development opportunities for Enron, he was promoted to Principal and then Managing Director for Enron Development Corp. He was the development leader on the Dabhol Power Project in India. Mr. Sutton was appointed President and Chief Operating Officer of Enron Development Corp. in 1995. With the consolidation of Enron's International activities into a single business unit in 1996, he was named President and COO of Enron International. May 1998, he was named President and CEO, and named Chairman and CEO, in March 1999 of Enron International, which was responsible for all of Enron's International business activities, finance, capital and trade activity, operating assets, telecommunication activities and joint venture management throughout developing markets worldwide. During his time with the International sector in Enron, the company enjoyed tremendous growth internationally. Mr. Sutton now owns and heads Sutton Ventures Group, LLC in Houston, Texas.

Prior to joining Enron, Joseph Sutton was a career officer in the U.S. Army and holds a B.B.A., M.S., and M.B.A. degrees from Ohio, Indiana and Long Island Universities. He currently serves on the US-India Business Council, EXIM Advisory Committee, and served on several Enron affiliate boards of directors throughout the world.

SulphCo. is a wholly owned subsidiary of FilmWorld, Inc. SulphCo.'s principal product is a self-contained petroleum desulfurization unit that removes sulfur from crude oils, lighter distillates and fuel oils. SulphCo. is marketing its products

and technology domestically and internationally to oil and petroleum refiners, crude oil products, fuel distributors and other strategic partners. The corporate name will be changed at the next annual meeting of stockholders to reflect accurately the corporation's business. The company is based in Reno, Nevada and is traded on the Nasdaq exchange under the symbol (FWLD).

From time to time the company may issue forward-looking statements which involve risks and uncertainties. This statement may contain forward-looking statements within the meaning of Section 27A of the Securities Act of 1933, as amended, and Section 21E of the Securities Exchange Act of 1934, as amended. Actual results could differ and any forward-looking statements should be considered accordingly.

For more information contact Public Relations, Eleanor Muth at 1-866-590-1311

FilmWorld Inc. web Site: <http://www.sulphco.com>

SOURCE FilmWorld, Inc.

CONTACT: Public Relations, Eleanor Muth, for FilmWorld Inc., 866-590-1311 Web site: <http://www.sulphco.com> (FWLD)

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Message 267 of 371

RE: Are we confusing scheduling services with QSE type stuff?

| | |
|------------|---------------------------|
| Sender | reagan.roschach@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/yazoo_city/110. |

Kay, lets couch it as below...or similar....what I did below is botchy.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Wednesday, May 30, 2001 10:52 AM To: Rorschach, Reagan Subject: Are we confusing scheduling services with QSE type stuff?

(20) If and when a new RTO begins operation, seek to [Rorschach, Reagan] comply with scheduling requirements and to satisfy [Rorschach, Reagan] such rules and protocols [Rorschach, Reagan] that are created in [Rorschach, Reagan] association therewith.

Message 268 of 371

RE: Yazoo City

| | |
|------------|----------------------------|
| Sender | reagan.roschach@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/all_documents/5701. |

Kay, I just spoke with Bob Priest. the contracting entity is as follows:

Public Service Commission of Yazoo City

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Tuesday, May 15, 2001 6:02 PM To: Rorschach, Reagan Subject: Yazoo City

Hi there,

We need the exact name of the YC entity which will be buying the gas. Is it Yazoo City or the YCPC, or what? Same info is required for Clarksdale, although not as urgently.

If you will email me the addresses of all who need to review this, the YC contract will be ready tomorrow.

Thanks,

Kay

Message 269 of 371

FW: Energy Management Agreement

| | |
|------------|---|
| Sender | reagan.roschach@enron.com |
| Recipients | ['keith.comeaux@enron.com', 'kayne.coulter@enron.com', 'corry.bentley@enron.com'] |
| File | mann-k/yazoo_city/285. |

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Thursday, May 31, 2001 4:04 PM To: Rorschach, Reagan; Fairley, David; Kroll, Heather Cc: drhunt@watervalley.net; gbojp@netdoor.com Subject: Energy Management Agreement

Good afternoon,

I am circulating a draft of the long term agreement for your review. There are still holes, but hopefully it sets out the basic commercial deal.

Please note that we are anticipating a Monday meeting. Therefore, we have sent this out without the usual internal review.

We hope to have a set of exhibits shortly.

Talk to you soon,

Kay

Message 270 of 371

FW: Energy Management Agreement

| | |
|------------|--|
| Sender | reagan.roschach@enron.com |
| Recipients | ['keith.comeaux@enron.com', 'drhunt@watervalley.net; gbojp@netdoor.com', 'corry.bentley@enron.com', 'kayne.cou...] |
| File | mann-k/yazoo_city/114. |

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Thursday, May 31, 2001 4:04 PM To: Rorschach, Reagan; Fairley, David; Kroll, Heather Cc: drhunt@watervalley.net; gbojp@netdoor.com Subject: Energy Management Agreement

Good afternoon,

I am circulating a draft of the long term agreement for your review. There are still holes, but hopefully it sets out the basic commercial deal.

Please note that we are anticipating a Monday meeting. Therefore, we have sent this out without the usual internal review.

We hope to have a set of exhibits shortly.

Talk to you soon,

Kay

Message 271 of 371

RE: Load forecasting model and load projection model

| | |
|------------|-------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['reagan.roschach@enron.com'] |
| File | mann-k/sent/4269. |

done

From: Reagan Rorschach/ENRON@enronXgate on 05/29/2001 12:02 PM To: Kay Mann/Corp/Enron@Enron, David Fairley/ENRON@enronXgate cc:

Subject: RE: Load forecasting model and load projection model

They are the same terms. Go with the one in the Definitions.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Tuesday, May 29, 2001 12:00 PM To: Rorschach, Reagan; Fairley, David Subject: Load forecasting model and load projection model

Both of these are capitalized terms in rev 23. Is there a difference? Load Projection Model is in definitions, but Load Forecasting Model is used quite a bit.

ckm

Message 272 of 371

RE: Clarification

| | |
|------------|--|
| Sender | reagan.roschach@enron.com |
| Recipients | ['heather.kroll@enron.com', 'david.fairley@enron.com', 'kay.mann@enron.com'] |
| File | mann-k/notes_inbox/317. |

I sent the draft ILA extension letter to Marvin and Bob. I will follow-up with them this afternoon to get any comments.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Tuesday, May 29, 2001 11:18 AM To: Rorschach, Reagan; Fairley, David; Kroll, Heather Subject: Clarification

I'm thinking my last email was unclear.

I assume that someone from the commercial team will send (or has sent) the extension letter to MDEA, YC, and Clarksdale's commercial reps for their review. I assume that the commercial reps with YC, MDEA, and Clarksdale will get whatever legal input they want from their own lawyers if they think it is necessary (may not), but as a courtesy, I sent drafts to the two lawyers I know about.

Kay

Message 273 of 371

CA Request for NJN

| | |
|------------|----------------------------|
| Sender | heather.kroll@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/all_documents/3161. |

Kay,

Ader and I met with NJ Natural Gas earlier this week to discuss fuel cell opportunities in NJ. As a gas supplier in NJ, these guys are very interested in developing some fuel cell projects as a means to increase throughput on their system. They also have a strong relationship with the state commission (called the Board of Public Utilities, I think) and there are green funds available to subsidize costs, etc. Sound familiar?

I need to get a CA to these guys and I am forwarding to you the one we signed with CRRA. I like this one because there is an exclusivity clause in it. NJN may not agree to exclusivity, but it doesn't hurt to ask.

Here's the contact:

Mr. Thomas J. Kononowitz Senior Vice President Marketing Services NJ Natural Gas 1415 Wyckoff Road P.O. Box 1464 Wall, NJ 07719

732.938.1134

Will you or someone in your cluster take care of this for me? Much thanks.

Heather

Message 274 of 371

Re: GE Form - Revisions as to Indemnity and LOL

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['sheila.tweed@enron.com', 'scott.dieball@enron.com', 'martin.penkwitz@enron.com'] |
| File | mann-k/_sent_mail/3761. |

I'm still not wild about 27.5, which says they have no liability for any advice they give us which is not required by the agreement. It seems that we could get into an argument about causation of a problem, and what was in/out of their scope under the agreement.

I don't know that I have any brilliant ideas about how to narrow this carve out. I guess we could say no liability so long as the advice is clearly outside the scope of work, and is given in good faith and in accordance with industry standards.

Martin W Penkwitz 08/21/2000 11:18 AM To: Scott Dieball/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Kay Mann/Corp/Enron@Enron, Sheila Tweed/HOU/ECT@ECT

Subject: GE Form - Revisions as to Indemnity and LOL

Scott:

Please see the attached redlined copy of the referenced provisions. Please review and give me a call with any questions you may have.

Marty

Martin Wm. Penkwitz Enron North America Corp. - Legal 1400 Smith St. Suite 3840 Houston, TX 77002 713.345-7101
Martin.W.Penkowitz@enron.com

Message 275 of 371

FW: Master Gas Agr. for Yazoo

| | |
|------------|----------------------------|
| Sender | reagan.rorschach@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/yazoo_city/259. |

Kay, the natives are getting restless. It looks like this master may need to take the lead in getting attention.

Thanks,

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Homco, Jim Sent: Tuesday, May 15, 2001 7:56 AM To: Rorschach, Reagan; Fairley, David; Will, Lloyd; Coulter, Kayne; Mann, Kay; Gilbert, Gerald Subject: Master Gas Agr. for Yazoo

We need the Master Gas Agreement between Yazoo and ENA executed ASAP !! In the last meeting, it was stated that for Clarksdale we would have the third party supplier invoice the Cities directly, however once the Yazoo rehab work was completed, ENA would be supplying and invoicing Yazoo. Yazoo is near completion on the work, and has already burned gas in their testing over the past weekend. I currently have an imbalance with the pipe which I need to repay ASAP. Also once the Yazoo unit is completed, I have NO MECHANISM to deliver the gas until we execute the Master Gas as was discussed two weeks ago.

Message 276 of 371

Pegasus - Closing Documents

| | |
|------------|--|
| Sender | isabel.parker@freshfields.com |
| Recipients | ['ccampbell@kslaw.com', 'kay.mann@enron.com', 'nicholas.vandusen@freshfields.com'] |
| File | mann-k/all_documents/6443. |

This e-mail is confidential and may well also be legally privileged. If you have received it in error, you are on notice of its status. Please notify us immediately by reply e-mail and then delete this message from your system. Please do not copy it or use it for any purposes, or disclose its contents to any other person: to do so could be a breach of confidence. Thank you for your co-operation. Please contact our IT Helpdesk on +44 (0) 20 7936 4000 Ext.2000 or email ITHelp@freshfields.com if you need assistance.

The lenders have informed us that they would also like to have at least one original of the GE Guaranty. Please let us know whether this will be possible.? In addition, could you please let us know how many originals of the Letter Agreement were signed?? The lenders also need an original of this document. ? Thank you in advance Isabel

Isabel Parker T? +1 212 277 4025 F? +1 212 277 4001 E? isabel.parker@freshfields.com 520 Madison Avenue 34th Floor New York, NY 10022 www.freshfields.com ? ?

Message 277 of 371

FW: Master Gas Agr. for Yazoo

| | |
|------------|---------------------------------|
| Sender | reagan.roschach@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/discussion_threads/4021. |

Kay, the natives are getting restless. It looks like this master may need to take the lead in getting attention.

Thanks,

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Homco, Jim Sent: Tuesday, May 15, 2001 7:56 AM To: Rorschach, Reagan; Fairley, David; Will, Lloyd; Coulter, Kayne; Mann, Kay; Gilbert, Gerald Subject: Master Gas Agr. for Yazoo

We need the Master Gas Agreement between Yazoo and ENA executed ASAP !! In the last meeting, it was stated that for Clarksdale we would have the third party supplier invoice the Cities directly, however once the Yazoo rehab work was completed, ENA would be supplying and invoicing Yazoo. Yazoo is near completion on the work, and has already burned gas in their testing over the past weekend. I currently have an imbalance with the pipe which I need to repay ASAP. Also once the Yazoo unit is completed, I have NO MECHANISM to deliver the gas until we execute the Master Gas as was discussed two weeks ago.

Message 278 of 371

RE: Are we confusing scheduling services with QSE type stuff?

| | |
|------------|--------------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['=20', 'reagan.roschach@enron.com'] |
| File | mann-k/all_documents/6238. |

What about this? Is this the QSE defn?

=01&Scheduling Entity=018 means an entity contemplated to be recognized by = SPP, and=20 fully qualified under SPP rules and regulations, to schedule the transmissi= on=20 of Energy, Capacity and Ancillary Services from the Facilities.

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 07:51 AM To: Kay Mann/Corp/Enron@Enron cc: =20

Subject: RE: Are we confusing scheduling services with QSE type stuff?

Kay, lets couch it as below...or similar....what I did below is botchy.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay =20 Sent: Wednesday, May 30, 2001 10:52 AM To: Rorschach, Reagan Subject: Are we confusing scheduling services with QSE type stuff?

(20) If and when a new RTO begins operation, seek to [Rorschach, Reagan] = =20 comply with scheduling requirements and to satisfy [Rorschach, Reagan] suc= h=20 rules and protocols [Rorschach, Reagan] that are created in [Rorschach,=20 Reagan] association therewith. =20

Message 279 of 371

Re: O & M agreement

| | |
|------------|--|
| Sender | martin.penkwitz@enron.com |
| Recipients | ['kay.mann@enron.com', 'andrew.ralston@enron.com'] |
| File | mann-k/all_documents/757. |

Andrew:

Kay forwarded this to me as "keeper of the O&M Form". The current form is attached. Please give me a call with any questions that you may have.

Marty

P.S. Does this now allow me to collect the lunch you referred to below?

Martin Wm. Penkwitz Enron North America Corp. - Legal 1400 Smith St. Suite 3840 Houston, TX 77002 713.345-7101
Martin.W.Penkwitz@enron.com

Kay Mann 08/30/2000 04:15 PM

To: Martin W Penkwitz/NA/Enron@Enron cc: Subject: O & M agreement

I got this request from a former EI colleague, now with EES. Do you have something he can look at?

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 08/30/2000 04:15 PM -----

Andrew Ralston@EES 08/30/2000 03:05 PM To: kay.mann@enron.com cc:

Subject:

How is everything going? Long time no see.

I have a favor to ask you. Do you happen to have with you a form of OM Agreement that EECC (or anyone else) used (favorable to the OM Provider) which could be used as a starting point.

We still need to get together for lunch and I still need to show you Reagan's baby picture.

Andrew

Message 280 of 371

GE Form - Revisions as to Indemnity and LOL

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['Sheila Tweed/HOU/ECT@ECT=20', 'Kay Mann/Corp/Enron@Enron', 'scott.dieball@enron.com'] |
| File | mann-k/_sent_mail/3759. |

27.5 Separate Advice or Assistance. If Seller furnishes Purchaser with=20 advice or assistance which is clearly not required by this Agreement, Selle= r=20 shall not be subject to any liability whether in contract, warranty, tort= =20 (including negligence or strict liability without regard to fault), indemni= ty=20 or otherwise in connection with Seller=01,s provision of such out of scope = of=20 service advice or assistance, so long as such advice or assistance is given= =20 in good faith and in accordance with industry standards. ----- Forwarded by Kay Mann/Corp/Enron on 08/21/2000 02:50= =20 PM -----

Martin W Penkwitz 08/21/2000 11:18 AM To: Scott Dieball/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Kay Mann/Corp/Enron@Enron, Sheila Tweed/HOU/ECT@ECT=20

Subject: GE Form - Revisions as to Indemnity and LOL

Scott:

Please see the attached redlined copy of the referenced provisions. Please= =20 review and give me a call with any questions you may have.

Marty

Martin Wm. Penkwitz Enron North America Corp. - Legal 1400 Smith St. Suite 3840 Houston, TX 77002 713.345-7101
Martin.W.Penkwitz@enron.com

Message 281 of 371

CRRA LOU

| | |
|------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['gloria.cruz@enron.com'] |
| File | mann-k/discussion_threads/1088. |

Please prepare a fed ex package to go out tonight, as described below. Also, please prepare a transmittal letter to Heather for me to sign.

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 10/24/2000 12:27 PM -----

Heather Kroll@ECT 10/24/2000 11:40 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: CRRA LOU

Kay,

As I said in my voice mail, please print out executable copies of the CRRA LOU with your CKM initial. We are going to see Bob Wright tomorrow and if he has no further changes we can get the documents signed.

Please FedEx them to our attorney's office in Hartford:

Heather Kroll/Jeff Ader c/o Paul McCary Murtha, Cullina, Richter and Pinney Cityplace I 185 Asylum Street Hartford, CT 06103-3469

860.240.6037

We'll be there by 11:00 (enough time to sleep in a little bit), so 10:00 delivery is perfect.

Also, if you will send the fuel cell document to swanita_99, I will make sure I download it and review before seeing Jerry tomorrow night.

Thanks! Call me on my cell if you need anything.

I'll let you know if anything interesting happens at The Mark Bar or on Channel 35 (gotta' love PBS).

Heather

Message 282 of 371

RE: Morris Letter

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['ron.tapscott@enron.com', 'ben.jacoby@enron.com', 'g..rigby@enron.com', 'stuart.zisman@enron.com'] |
| File | mann-k/sent_items/130. |

The lease is freely assignable. The lien rights are based not contractual, but exist in Texas law. I used to have some info on Texas lien law, don't remember if I still do. I haven't worked a warehouseman lien issue. However, in general it is one thing to have a lien, and another to be able to foreclose on it, especially that quickly. In short, I don't know if whatever Morris is saying they will do in the timeframe described is permissible.

Rigby, you have any info on warehouseman liens in Texas?

Still looking for a copy of the letter from Morris. My fax number is 63491 if someone has it handy.

Thanks,

Kay

-----Original Message-----

From: Zisman, Stuart Sent: Thursday, December 20, 2001 5:25 PM To: Leigh, Lorie; Tapscott, Ron; Jacoby, Ben; Mann, Kay; Schneider, Chip Subject: RE: Morris Letter

Please provide me with any comments to the letter. I can work with Lorie to get it revised and send it out once we receive a consensus.

-----Original Message-----

From: Leigh, Lorie Sent: Thursday, December 20, 2001 5:23 PM To: Tapscott, Ron; Jacoby, Ben; Mann, Kay; Zisman, Stuart; Schneider, Chip Subject: Morris Letter

<< File: morris_ltr_122001.pdf >>

Lorie Albrecht Senior Admin. Asst. Enron East Power Generation Development Office: 713-853-1696

Message 283 of 371

Pegasus Closing Sets

| | |
|------------|---|
| Sender | isabel.parker@freshfields.com |
| Recipients | ['lisa.obrien@freshfields.com', 'ccampbell@kslaw.com', 'kay.mann@enron.com', 'nicholas.vandusen@freshfields.co...'] |
| File | mann-k/notes_inbox/143. |

This e-mail is confidential and may well also be legally privileged. If you have received it in error, you are on notice of its status. Please notify us immediately by reply e-mail and then delete this message from your system. Please do not copy it or use it for any purposes, or disclose its contents to any other person: to do so could be a breach of confidence. Thank you for your co-operation. Please contact our IT Helpdesk on +44 (0) 20 7936 4000 Ext.2000 or email ITHelp@freshfields.com if you need assistance.

We are close to completing our closing sets but do not have originals of the GE Guarantee, legal opinion or acknowledgement of receipt of funds. We appreciate that it is logistically difficult to have GE re-execute documentation, but as the legal opinion and the receipt of funds are both addressed to the lenders, we ought really to have originals of these two documents. Could you please let me know where the originals of these documents were sent and whether it would be possible to have them re-directed to us or to have the documents re-executed? Thank you in advance Isabel

Isabel Parker T? +1 212 277 4025 F? +1 212 277 4001 E? isabel.parker@freshfields.com 520 Madison Avenue 34th Floor New York, NY 10022 www.freshfields.com ? ?

Message 284 of 371

Re: Confidentiality agreement

| | |
|------------|---|
| Sender | kathleen.carnahan@enron.com |
| Recipients | ['W David Duran/Enron@EnronXGate', 'Lance', 'kay.mann@enron.com', 'John Llodra/Corp/Enron@ENRON'] |
| File | mann-k/notes_inbox/558. |

Still pretty nasty language huh? How was your Mother's Day Mulching Party? Great day wasn't it?

K-

Kay Mann 05/14/2001 01:00 PM To: Mark Metts/Enron@EnronXGate, Timothy J Detmering/HOU/ECT cc: John Llodra/Corp/Enron@ENRON, W David Duran/Enron@EnronXGate, Lance Schuler-Legal/HOU/ECT@ECT (bcc: Kathleen Carnahan/NA/Enron)

Subject: Confidentiality agreement

Gentlemen,

I'm with EWS Legal, and I'm working with John Llodra (East Power origination) concerning a confidentiality agreement with Ameresco. The proposed transaction is described as follows:

A potential power plant site development and asset management services related to the Island End Generation Project, a nominal 365 MW combined cycle power generation facility, proposed to be located in Everett, Massachusetts.

The current draft of the CA contains this language:

From the time of the signing of this Agreement until October 1, 2001 neither Party shall pursue the Proposed Transaction without the participation of the other Party, unless the other Party consents in writing or notifies the other Party that it does not intend to pursue the Proposed Transaction.

In accordance with policy, this issue is being submitted to you for your review.

John can be contacted at 978 449 9936. My extension is 57566.

Thank you,

Kay

Here is the entire CA:

Message 285 of 371

| Re: CA request | |
|----------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['kathleen.carnahan@enron.com'] |
| File | mann-k/_sent_mail/2412. |

Good, I didn't want to ask Ed. He's very busy.

So which curse word did you use?

From: Kathleen Carnahan 12/13/2000 04:47 PM

To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: CA request

Yes.

Kay Mann 12/13/2000 04:45 PM To: Kathleen Carnahan/NA/Enron@Enron cc:

Subject: CA request

Can you get me a draft by Friday am?

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 12/13/2000 04:44 PM -----

Ray Hoppe 12/13/2000 04:40 PM To: Kay Mann/Corp/Enron@Enron cc: Gil Muhl/Corp/Enron@ENRON, Ozzie Pagan/HOU/ECT@ECT

Subject: CA request

Kay, I need another CA drafted for the City of Alexandria LA. We will be exchanging information on possibly managing their gas and electric portfolio for a 5 year term (maybe a little longer or shorter?) They have two working generators that we would manage, as well as possibly purchasing economic power off the market. They have an additional 33MW's that we would consider repowering. Along with that, we would be managing their natural gas needs to supply the generators and/or selling the gas in the market when their generation is not needed.

Here is their information: Attn: Mr. Gerard Alwell Alexandria, City of D. G. Hunter Generating Station 1011 North 3rd Street Alexandria LA 71301 318-473-1291

Message 286 of 371

| FW: Exxon/Mobil Master Agreemetns | |
|-----------------------------------|---------------------------------|
| Sender | reagan.roschach@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/discussion_threads/4305. |

Kay, not quite what I remember. Have a gander. Thanks.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Denton, Rhonda Sent: Tuesday, April 24, 2001 11:15 AM To: Rorschach, Reagan Subject: RE: Exxon/Mobil Master Agreemetns

I have called and left a message to see if this division's name changed. The contract is still active.

From: Reagan Rorschach/ENRON@enronXgate on 04/24/2001 11:00 AM To: Rhonda L Denton/HOU/ECT@ECT cc:
Subject: RE: Exxon/Mobil Master Agreemetns

Thanks for the info. Is there anyone Enron listed that can talk with to find out status/detail??

Thanks again,

Reagan

-----Original Message-----

From: Denton, Rhonda Sent: Tuesday, April 24, 2001 10:55 AM To: Rorschach, Reagan Subject: Re: Exxon/Mobil Master Agreemetns

We have a purchase agreement with Exxon Company USA under which we can purchase power from them. I don't know if this entity's name changed when they merged. The contract is dated 1997.

From: Reagan Rorschach/ENRON@enronXgate on 04/24/2001 10:20 AM To: Rhonda L Denton/HOU/ECT@ECT cc:
Subject: Exxon/Mobil Master Agreemetns

Rhonda-

Would you have a look in the contracts database to see what we have with Exxon/Mobil. I am hopeful that we have a Master Agreement to do power deals in the east.

I appreciate you help. Thanks,

Reagan Rorschach 5.3363

Message 287 of 371

Re: MDEA Agreement Scheduling

| | |
|------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['reagan.rorschach@enron.com'] |
| File | mann-k/discussion_threads/4546. |

I'm still waiting on David Hunt to send me some stuff, which would really help move the document along. I'll ask again if i can get it from him. There are still internal questions in it, which I have annotated. I'm happy for you to look at it fairly shortly, especially if you can give definitive commercial direction.

Do you feel that the commercial team is finished with the exhibits? I haven't worked on them, but I suspect the exhibits need work. I know the bogey calc doc is a bit rough.

Do you still owe me the emergency transmission cut stuff?

Early next week is better than later, and Thursday and Friday are huge problem days for me. When are you thinking of meeting with Beck? Anyway to combine the two at once, given the short timeframe?

Has Dave signed the extension, by the way?

Kay

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 09:59 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: MDEA Agreement Scheduling

Kay,

We are starting to run into some scheduling constraints for next week, at least with Bob Priest. I'd like to get together with Bob and Marvin early next week to discuss the agreement--moving toward finalizing before June 12. Bob is only available Monday. Bob and Marvin think it is a good ideal to then meet with RW Beck.

I'd like to email Marvin and Bob the next version sometime today?

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

Message 288 of 371

RE: Morris Letter

| | |
|------------|---|
| Sender | ron.tapscott@enron.com |
| Recipients | ['ben.jacoby@enron.com', 'g..rigby@enron.com', 'kay.mann@enron.com', 'stuart.zisman@enron.com'] |
| File | mann-k/inbox/178. |

Kay,

I sent you this info in an earlier e-mail at approx. noon on Thursday. Thanks, Ron.

-----Original Message-----

From: Mann, Kay Sent: Thu 12/20/2001 5:55 PM To: Zisman, Stuart; Tapscott, Ron; Jacoby, Ben; Schneider, Chip Cc: Rigby, John G. Subject: RE: Morris Letter

The lease is freely assignable. The lien rights are based not contractual, but exist in Texas law. I used to have some info on Texas lien law, don't remember if I still do. I haven't worked a warehouseman lien issue. However, in general it is one thing to have a lien, and another to be able to foreclose on it, especially that quickly. In short, I don't know if whatever Morris is saying they will do in the timeframe described is permissible.

Rigby, you have any info on warehouseman liens in Texas?

Still looking for a copy of the letter from Morris. My fax number is 63491 if someone has it handy.

Thanks,

Kay

-----Original Message-----

From: Zisman, Stuart Sent: Thursday, December 20, 2001 5:25 PM To: Leigh, Lorie; Tapscott, Ron; Jacoby, Ben; Mann, Kay; Schneider, Chip Subject: RE: Morris Letter

Please provide me with any comments to the letter. I can work with Lorie to get it revised and send it out once we receive a consensus.

-----Original Message-----

From: Leigh, Lorie Sent: Thursday, December 20, 2001 5:23 PM To: Tapscott, Ron; Jacoby, Ben; Mann, Kay; Zisman, Stuart; Schneider, Chip Subject: Morris Letter

<< File: morris_ltr_122001.pdf >>

Lorie Albrecht Senior Admin. Asst. Enron East Power Generation Development Office: 713-853-1696

Message 289 of 371

RE: Are we confusing scheduling services with QSE type stuff?

| | |
|------------|---------------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['=20', 'reagan.rorschach@enron.com'] |
| File | mann-k/discussion_threads/4557. |

That means it is recognized, not "contemplated to be recognized", then? Is there such a thing as a recognized scheduling entity, or do you just schedule on their behalf?

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 10:41 AM To: Kay Mann/Corp/Enron@Enron cc: =20

Subject: RE: Are we confusing scheduling services with QSE type stuff?

What about this? Is this the QSE defn? [Rorschach, Reagan] No, that would be Qualified Scheduling Entity that has a very lengthy ERCOT definition. This was greatly simplified to eliminate any confusion. I think it is OK as is.

=01&Scheduling Entity=018 means an entity contemplated to be recognized by SPP, and fully qualified under SPP rules and regulations, to schedule the transmission of Energy, Capacity and Ancillary Services from the Facilities.

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 07:51 AM To: Kay Mann/Corp/Enron@Enron cc: =20

Subject: RE: Are we confusing scheduling services with QSE type stuff?

Kay, lets couch it as below...or similar....what I did below is botchy.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay =20 Sent: Wednesday, May 30, 2001 10:52 AM To: Rorschach, Reagan Subject: Are we confusing scheduling services with QSE type stuff?

(20) If and when a new RTO begins operation, seek to [Rorschach, Reagan] =20 comply with scheduling requirements and to satisfy [Rorschach, Reagan] such rules and protocols [Rorschach, Reagan] that are created in [Rorschach, Reagan] association therewith. =20

Message 290 of 371

Comments to Turbine Purchase Documents

| | |
|------------|--|
| Sender | jeremiahdeberry@paulhastings.com |
| Recipients | ['jkeffer@kslaw.com', 'michael.young@northwestern.com', 'kay.mann@enron.com', 'margueritekahn@paulhastings.com...] |
| File | mann-k/all_documents/4595. |

We have forwarded to you via facsimile our comments to the Letter Agreement and the LLC Agreement. The majority of our comments, as you will note, are intended to clarify the understanding of the parties with respect to various matters set forth in such documents and are not intended to "change the deal". Except that, upon the advice of our tax counsel, we have adjusted the amounts of the promissory notes to be issued in connection with the transaction in order to maximize the LLC's basis in the Turbines. We believe this is consistent with your initial draft of the Letter Agreement.

Also, please note that we have included additional language in Section 6 of the Letter Agreement which provides NorthWestern with the opportunity to consult with GE on matters relating to the Turbines. This reflects our understanding of an agreement that had been reached among the parties.

With respect to the LLC Agreement, we would like to discuss with you the following: (i) the timing of the exercise of the Call Right and (ii) the intent of your proposed language in Section 7 relating to the rights of each Member to act in its own best interests with respect to the Call and Put Rights. To that end, we propose scheduling a conference call on Tuesday afternoon, April 11, 2001. Please contact me as soon as possible with a time that is convenient for your team.

We look forward to hearing from you.

Note: We will forward to you shortly, revised drafts of the documents for which we have drafting responsibility. =20
***** Jeremiah A. DeBerry, Esq. Paul Hastings Janofsky & Walker LLP 399 Park
Avenue New York, New York 10022 Phone: (212) 318-6458 Fax: (212) 319-4090 ? ?

Message 291 of 371

| Confidentiality agreement | |
|---------------------------|-----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['suzanne.adams@enron.com'] |
| File | mann-k/sent/4056. |

I've tried sending this 3 times. Please see if you can figure out the problem. I've used the autoaddressing and his long internet address. If all else fails, just print and have it delivered, I guess, or send it to his assistant.

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 05/14/2001 01:40 PM -----

Kay Mann 05/14/2001 01:03 PM To: timothy.j.detmering@enron.com cc:

Subject: Confidentiality agreement

I've received error notices, so I'm trying again.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 05/14/2001 01:02 PM -----

Kay Mann 05/14/2001 01:00 PM To: Mark Metts/Enron@EnronXGate, Timothy J Detmering/HOU/ECT cc: John Llodra/Corp/Enron@ENRON, W David Duran/Enron@EnronXGate, Lance Schuler-Legal/HOU/ECT@ECT

Subject: Confidentiality agreement

Gentlemen,

I'm with EWS Legal, and I'm working with John Llodra (East Power origination) concerning a confidentiality agreement with Ameresco. The proposed transaction is described as follows:

A potential power plant site development and asset management services related to the Island End Generation Project, a nominal 365 MW combined cycle power generation facility, proposed to be located in Everett, Massachusetts.

The current draft of the CA contains this language:

From the time of the signing of this Agreement until October 1, 2001 neither Party shall pursue the Proposed Transaction without the participation of the other Party, unless the other Party consents in writing or notifies the other Party that it does not intend to pursue the Proposed Transaction.

In accordance with policy, this issue is being submitted to you for your review.

John can be contacted at 978 449 9936. My extension is 57566.

Thank you,

Kay

Here is the entire CA:

Message 292 of 371

RE: Access to SPOTLIGHT database

| | |
|------------|-------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['reginald.yancey@enron.com'] |
| File | mann-k/general_stuff/206. |

kmann

Hope that looks right!

-----Original Message-----

From: Yancey, Reginald Sent: Friday, September 07, 2001 2:27 PM To: Mann, Kay Subject: RE: Access to SPOTLIGHT database

I am referring to the userid you use when you log on the system each morning.

Thanks, RY

-----Original Message-----

From: Mann, Kay Sent: Friday, September 07, 2001 1:05 PM To: Yancey, Reginald Subject: RE: Access to SPOTLIGHT database

Hi there.

What does a corp used ID look like? I get confused with the various id's we have at Enron.

Thanks,

Kay

-----Original Message-----

From: Yancey, Reginald Sent: Friday, September 07, 2001 10:27 AM To: Cooper, Tracy J. (EBS); Hester, Sheila Cc: Mann, Kay; St. Clair, Carol; Haldeman, Sandy; Schuler, Lance (Legal); Henry, Joseph; Mellencamp, Lisa Subject: RE: Access to SPOTLIGHT database

Hello Tracy,

I will need you to provide each of these person's corp user ID. Once I have that, I will get this request taken care of.

Please let me know if you have any questions.

Thanks, RY

-----Original Message-----

From: Cooper, Tracy J. (EBS) Sent: Thursday, September 06, 2001 2:17 PM To: Yancey, Reginald; Hester, Sheila Cc: Mann, Kay; St. Clair, Carol; Haldeman, Sandy; Schuler, Lance (Legal); Henry, Joseph; Mellencamp, Lisa Subject: Access to SPOTLIGHT database

Hi Reggie and Sheila

Per our conversation this afternoon would you please access the following individuals to Spotlight?

Kay Mann Joseph Henry Lance Schuler Sandy Haldeman Carol St. Clair Lisa Mellencamp

Sheila -- thanks for agreeing to do an "Intro to Spotlight" session-- we really appreciate this -- please let me know when your schedule is free and we can coordinate.

Thanks again.

Tracy

Tracy J. Cooper Legal Specialist Enron Broadband Services Legal Department 1400 Smith Street - EB4541 Houston, Texas 77002 (713) 345-9534

Message 293 of 371

RE: Are we confusing scheduling services with QSE type stuff?

| | |
|------------|---|
| Sender | reagan.roschach@enron.com |
| Recipients | ['david.fairley@enron.com', 'kay.mann@enron.com'] |
| File | mann-k/yazoo_city/284. |

That means it is recognized, not "contemplated to be recognized", then? Is there such a thing as a recognized scheduling entity, or do you just schedule on their behalf? [Rorschach, Reagan] SPP does not have such an entity at this point. However, everyone expects this to happen sometime soon. If this is causing problems or commitments on our part because this is not even in existence, we should think about deleting reference to SPP rules and regs. Once the scope of an SPP defined scheduling entity is preferred, we can discuss any additional efforts required on our part to meet and be in compliance with that scope.

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 10:41 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: RE: Are we confusing scheduling services with QSE type stuff?

What about this? Is this the QSE defn? [Rorschach, Reagan] No, that would be Qualified Scheduling Entity that has a very lengthy ERCOT definition. This was greatly simplified to eliminate any confusion. I think it is OK as is.

"Scheduling Entity" means an entity contemplated to be recognized by SPP, and fully qualified under SPP rules and regulations, to schedule the transmission of Energy, Capacity and Ancillary Services from the Facilities.

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 07:51 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: RE: Are we confusing scheduling services with QSE type stuff?

Kay, lets couch it as below...or similar....what I did below is botchy.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Wednesday, May 30, 2001 10:52 AM To: Rorschach, Reagan Subject: Are we confusing scheduling services with QSE type stuff?

(20) If and when a new RTO begins operation, seek to [Rorschach, Reagan] comply with scheduling requirements and to satisfy [Rorschach, Reagan] such rules and protocols [Rorschach, Reagan] that are created in [Rorschach, Reagan] association therewith.

Message 294 of 371

RE: Are we confusing scheduling services with QSE type stuff?

| | |
|------------|--|
| Sender | reagan.roschach@enron.com |
| Recipients | ['david.fairley@enron.com', '=20', 'kay.mann@enron.com'] |
| File | mann-k/all_documents/6249. |

That means it is recognized, not "contemplated to be recognized", then? Is there such a thing as a recognized scheduling entity, or do you just schedule on their behalf? [Rorschach, Reagan] SPP does not have such an entity at this point. However, everyone expects this to happen sometime soon. If this is causing problems or commitments on our part because this is not even in existence, we should think about deleting reference to SPP

rules and regs. = 20 Once the scope of an SPP defined scheduling entity is proffered, we can=20 discuss any additional efforts required on our part to meet and be in=20 compliance with that scope.

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 10:41 AM To: Kay Mann/Corp/Enron@Enron cc: =20

Subject: RE: Are we confusing scheduling services with QSE type stuff?

What about this? Is this the QSE defn? [Rorschach, Reagan] No, that would= 20 be Qualified Scheduling Entity that has a very lengthy ERCOT definition. = 20 This was greatly simplified to eliminate any confusion. I think it is OK a= s=20 is.=20

=01&Scheduling Entity=018 means an entity contemplated to be recognized by = SPP, and=20 fully qualified under SPP rules and regulations, to schedule the transmissi= on=20 of Energy, Capacity and Ancillary Services from the Facilities.

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 07:51 AM To: Kay Mann/Corp/Enron@Enron cc: =20

Subject: RE: Are we confusing scheduling services with QSE type stuff?

Kay, lets couch it as below...or similar....what I did below is botchy.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay =20 Sent: Wednesday, May 30, 2001 10:52 AM To: Rorschach, Reagan Subject: Are we confusing scheduling services with QSE type stuff?

(20) If and when a new RTO begins operation, seek to [Rorschach, Reagan] = 20 comply with scheduling requirements and to satisfy [Rorschach, Reagan] suc= h=20 rules and protocols [Rorschach, Reagan] that are created in [Rorschach,=20 Reagan] association therewith. =20

Message 295 of 371

Austin - S&S Contract

| | |
|------------|----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | [pthompson@akllp.com] |
| File | mann-k/all_documents/3478. |

Hi there,

Did I ever send this to you? This one is back on the radar screen.

Thanks,

Kay

----- Forwarded by Kay Mann/Corp/Enron on 02/06/2001 12:39

PM ----- From: Eric Booth@ENRON_DEVELOPMENT on 11/28/2000 06:01 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Austin - S&S Contract

----- Forwarded by Eric Booth/ENRON_DEVELOPMENT on

11/28/2000 06:00 PM -----

Enron Engineering & Construction Company From: Eric Booth 11/28/2000 04:52 PM

To: Eric Boyt/Corp/Enron@Enron cc: Jeffrey M Keenan@ECT, Terri Austin/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Kathleen Clark/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Kay Mann@ENRON

Subject: Austin - S&S Contract

Eric-

I revised the contract you sent me to make it site specific. Those changes are redlined. Please note that I have reinserted sections 10.4.1 and 10.4.3 as well as the defined terms that go with them. These were related to exhaust temperature and energy. I know this is a simple cycle plant and they typically aren't required, but I wanted to see if GE would guarantee it anyway. It maybe helpful in the future if Austin Energy goes combined cycle. If for some reason GE's lawyers specifically want to leave that out, then they will probably also want to delete sections 10.4.2 and 10.4.4 (and their defined terms) since those also talk about specific exhaust guarantees. Let me know what they decide.

Exhibit A (site basis conditions) which I also revised was not attached to your file. (It's right behind the sign-off pages in my hard copy.) I therefor hand marked up a copy and scanned it. It is now attached as a separate word file.

Exhibit F is "boiler plate" and shouldn't change. Exhibit "U" is not in my hard copy. My copy only goes up to Exhibit "T." If you get something from GE on Exhibit "U", send it to me and I will be glad to review it.

If you have questions, give me a call. (67550) I will be in Ausitn Wednesday and Thursday, but will be available by cell phone (713) 412-6873.

Thanks, Eric Booth

Message 296 of 371

Lay's plans - so why announce today?

| | |
|------------|---------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['carlos.sole@enron.com'] |
| File | mann-k/_sent_mail/2428. |

Enron's Lay: "Categorically" Not Taking Job In Cabinet=20

Updated: Wednesday, December 13, 2000 11:43 AM?ET=20

?Email this article to a friend!=20 ?Printer-friendly version=20 ?

NEW YORK (Dow Jones)--Enron Corp's (ENE, news, msgs) current chief executiv= e=20 and chairman, Kenneth Lay, said Wednesday that he categorically won't be=20 taking a job in a new presidential administration.=20 Lay, a strong supporter of Texas Gov. George W. Bush, has been rumored to b= e=20 a potential candidate for a cabinet position in the event of a Bush=20 administration. Those rumors were further fueled Wednesday when Enron=20 announced that Lay would be stepping down as chief executive of the company= =20 effective Feb. 12, though the company said Lay would remain chairman of the= =20 board.=20

?Stock Insight

?Symbol Last Change

?ENE 76.87 -0.31?

?Index

?Dow Jones 10842.22 +73.95?

?NASDAQ 2897.79 -33.98?

?

?More Analysis =01=07? See Analyst Ratings=20 =01=07? Compare Growth Trends=20 =01=07? Get One-Click Scorecard=20

?

?

"I have no plans to go to Washington, and no plans to leave Houston or Enron. I can say categorically that I won't be taking a job in a Bush cabinet," Lay said in an interview. Lay also put to rest rumors that the company has made enormous unexpected profits this quarter trading natural gas in the western U.S. "We've done well there, but it's been a good quarter for us in all our area across the country. We are happy with the 35-cents estimate for the quarter that Wall Street has at the current time," Lay said. Some gas traders have said that Enron has been the biggest beneficiary of the sharp rise in gas prices in the West the past three months. Spot prices for natural gas in California peaked at \$67 per million British Thermal Units Monday, about 20 times the spot price a year ago. Jeffrey K. Skilling, currently Enron's president and chief operating officer, will replace Lay as chief executive and retain his current titles. -By Mark Golden, Dow Jones Newswires; 201-938-4604; mark.golden@dowjones.com

Message 297 of 371

Re: Confidentiality agreement

| | |
|------------|---------------------------------|
| Sender | kathleen.carnahan@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/discussion_threads/3988. |

Oh yeah, I was outside all weekend. Yesterday I painted one of my birdbaths (it was pretty ugly - just grey concrete), now the bath part is blue with a yellow center (its a flower bath) and I will have to paint the base next weekend. No kayaking though. Ole Norm partied just a little too hard on Saturday night and had to fly out to Midland yesterday afternoon.

I think my eggplant died. I must have planted it on the new, worthless dirt side.

K-

Kay Mann 05/14/2001 01:18 PM To: Kathleen Carnahan/NA/Enron@Enron cc:

Subject: Re: Confidentiality agreement

I thought of you yesterday. I planted an eggplant plant and a pepper plant. What a great weekend - I lived outside. What about you?

ckm

From: Kathleen Carnahan 05/14/2001 01:17 PM

To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: Confidentiality agreement

Still pretty nasty language huh? How was your Mother's Day Mulching Party? Great day wasn't it?

K-

Kay Mann 05/14/2001 01:00 PM To: Mark Metts/Enron@EnronXGate, Timothy J Detmering/HOU/ECT cc: John Llodra/Corp/Enron@ENRON, W David Duran/Enron@EnronXGate, Lance Schuler-Legal/HOU/ECT@ECT (bcc: Kathleen Carnahan/NA/Enron)

Subject: Confidentiality agreement

Gentlemen,

I'm with EWS Legal, and I'm working with John Llodra (East Power origination) concerning a confidentiality agreement with Ameresco. The proposed transaction is described as follows:

A potential power plant site development and asset management services related to the Island End Generation Project, a nominal 365 MW combined cycle power generation facility, proposed to be located in Everett, Massachusetts.

The current draft of the CA contains this language:

From the time of the signing of this Agreement until October 1, 2001 neither Party shall pursue the Proposed Transaction without the participation of the other Party, unless the other Party consents in writing or notifies the other Party that it does not intend to pursue the Proposed Transaction.

In accordance with policy, this issue is being submitted to you for your review.

John can be contacted at 978 449 9936. My extension is 57566.

Thank you,

Kay

Here is the entire CA:

Message 298 of 371

| Austin - S&S Contract | |
|-----------------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['eric.booth@enron.com', 'pthompson@akllp.com'] |
| File | mann-k/discussion_threads/3885. |

Hi Pete,

We will want to get the CofA contract fixed up shortly. I don't remember if we have addressed these issues. I do think that GE may resist the combined cycle language, and I don't suggest including it. Eric, can you still live with that?

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 05/09/2001 08:21 AM ----- From: Eric Booth@ENRON_DEVELOPMENT on 11/28/2000 06:01 PM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Austin - S&S Contract

----- Forwarded by Eric Booth/ENRON_DEVELOPMENT on 11/28/2000 06:00 PM -----

Enron Engineering & Construction Company From: Eric Booth 11/28/2000 04:52 PM

To: Eric Boyt/Corp/Enron@Enron cc: Jeffrey M Keenan@ECT, Terri Austin/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Kathleen Clark/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Kay Mann@ENRON

Subject: Austin - S&S Contract

Eric-

I revised the contract you sent me to make it site specific. Those changes are redlined. Please note that I have reinserted sections 10.4.1 and 10.4.3 as well as the defined terms that go with them. These were related to exhaust temperature and energy. I know this is a simple cycle plant and they typically aren't required, but I wanted to see if GE would guarantee it anyway. It maybe helpful in the future if Austin Energy goes combined cycle. If for some reason GE's lawyers specifically want to leave that out, then they will probably also want to delete sections 10.4.2 and 10.4.4 (and their defined terms) since those also talk about specific exhaust guarantees. Let me know what they decide.

Exhibit A (site basis conditions) which I also revised was not attached to your file. (It's right behind the sign-off pages in my hard copy.) I therefor hand marked up a copy and scanned it. It is now attached as a separate word file.

Exhibit F is "boiler plate" and shouldn't change. Exhibit "U" is not in my hard copy. My copy only goes up to Exhibit "T." If you get something from GE on Exhibit "U", send it to me and I will be glad to review it.

If you have questions, give me a call. (67550) I will be in Ausitn Wednesday and Thursday, but will be available by cell phone (713) 412-6873.

Thanks, Eric Booth

Message 299 of 371

Proposed letter to FPL for further project development work for a

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['roseann.engeldorf@enron.com', 'lisa.bills@enron.com', 'ben.jacoby@enron.com', 'greg.krause@enron.com'] |
| File | mann-k/discussion_threads/4509. |

Lisa/Rose,

Attached is a brief letter which has been approved by Herman, and which is= =20 now presented for your review and approval. Greg Krause is the commercial= =20 lead, currently in Florida. His cell phone number is 713 857 0369.

Kay

Mr. Alberto Gonzalez Transmission Business Manager 4200 West Flagler Street Miami, Florida 33134

Re: Letter of Agreement Regarding Interconnection Development Services for= =20 the Midway Development Company, L.L.C.

Dear Mr. Gonzalez:

Consistent with the results of the Feasibility and Facilities Studies and= =20 discussions that have been held to date between Florida Power & Light Compa= ny=20 (=01&FPL=018) and Midway Development Company, L.L.C and its designees refer= red to=20 as =01&MDC=018, by this letter MDC authorizes FPL to perform the necessary = studies,=20 analysis and other activities required to develop and support a schedule th= e=20 necessary for a potential power project to interconnect with FPL=01,s=20 transmission grid system and receive back-feed by March 15, 2002.=20

MDC authorizes FPL to utilize the one hundred twenty-two thousand dollars= =20 (\$122,000.00) currently on deposit with FPL for Feasibility and Facility=20 Studies to cover the cost of this work

The scope of this work will be determined by MDC and FPL based on ongoing= =20 discussions and may be altered or modified by mutual consent from time to= =20 time. =20

FPL will inform MDC periodically of their progress and if additional funds= =20 are required to finance this work. =20

Please acknowledge concurrence to the above between FPL and MDC by executin= g=20 duplicate originals of this Letter of Agreement prior to returning to FPL f= or=20 final execution.

Sincerely,

Ben Jacoby Director Enron North America AGREED AND ACCEPTED: Florida Power & Light Company

C. M. Mennes Vice President, Transmission Operations & Planning

----- Forwarded by Kay Mann/Corp/Enron on 05/30/2001 04:58=

=20 PM ----- From: Greg Krause/ENRON@enronXgate on 05/25/2001 01:06 PM To: Herman Manis/ENRON@enronXgate cc: Kay Mann/Corp/Enron@Enron=20

Subject: Proposed letter to FPL for further project development work for a= =20 project in florida

Herman,

please see attached for your comments and approval. Does this fit the bill= ?

*Message 300 of 371***Re: SPA: Illinois Project Entities**

| | |
|-------------------|-------------------------|
| Sender | kay.mann@enron.com |
| Recipients | [fred.mitro@enron.com] |
| File | mann-k/_sent_mail/1882. |

I'm all for getting as much booked in Q1 as possible.

Fred Mitro@ECT 01/24/2001 06:07 PM To: Kay Mann/Corp/Enron@ENRON cc:

Subject: Re: SPA: Illinois Project Entities

thanks. velocity of profits is my new mantra!!

Fred

Kay Mann@ENRON 01/24/2001 05:31 PM To: Fred Mitro/HOU/ECT@ECT cc: Rusty Stevens/Corp/Enron@ENRON, Ben Jacoby/HOU/ECT@ECT Subject: Re: SPA: Illinois Project Entities

No TurboPark? No GE or ABB issues? I feel like I'm missing something....

I'll get up to speed asap.

Kay

Fred Mitro@ECT 01/24/2001 05:26 PM To: Kay Mann/Corp/Enron@Enron cc: Rusty Stevens/Corp/Enron@ENRON, Ben Jacoby/HOU/ECT@ECT

Subject: SPA: Illinois Project Entities

Kay:

As we discussed, I have been working with a counterparty interested in purchasing one or both of ENA's Illinois development project LLC's. The counterparty is listed below: PSEG Americas Development Company, L.L.C. 35 Waterview Blvd. Parsippany, NJ 94105

The key points of the proposed transaction are:

1. The transaction would be an outright purchase of 100% of the member interests in one or both of the following project entities:

Kendall New Century Development, L.L.C. Titan Land Development Company, L.L.C.

2. The purchase price of 100% of the member interests would be:

Kendall New Century Development, L.L.C.: \$3,000,000.00 Titan Land Development Company, L.L.C.: \$6,000,000.00

Lisa Mellancamp was the ENA attorney who handled the CA between ENA and PSEG before Christmas. At the end of November, Lisa engaged Corey Brown at Bracewell & Patterson to handle the preparation of a draft Securities Purchase Agreement in conjunction with our discussions with Coastal Power. Corey prepared a draft SPA based upon an option to purchase structure, but Coastal Power backed away from the transaction in early December.

I have received a letter from PSEG Power LLC indicating their interest in proceeding with a transaction in the near future. I will forward you a copy of this letter for your records. They have verbally indicated that the Purchase Price(s) of \$3 MM and \$6 MM respectively, are acceptable to them.

I believe that this is the appropriate time to bring you into the process and transfer things from Lisa to yourself. Please call me to discuss the SPA once you have reviewed the appropriate documents. I will be in Chicago tomorrow. I can be reached by cell at (713) 412-4612 or leave me a voicemail. I will be in the Houston office by noon on Friday.

Thanks, Fred

Message 301 of 371

RE: Open items for MDEA

| | |
|------------|--|
| Sender | reagan.roschach@enron.com |
| Recipients | ['jeffrey.miller@enron.com', 'kay.mann@enron.com', 'tom.may@enron.com', 'kayne.coulter@enron.com'] |
| File | mann-k/yazoo_city/272. |

Kay, see attached. The monthly fee should be \$13,003. I took the \$300k we have all been discussing and backed out the \$12,500 they paid under the ILA terms.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Thursday, May 24, 2001 11:35 AM To: Mann, Kay Cc: Rorschach, Reagan; Kroll, Heather; Fairley, David; May, Tom Subject: Re: Open items for MDEA

More:

We need internal agreement on the cancellation fee schedule, to be included as an exhibit.

What is the status of the Yazoo City master gas agreement? Do we still want a master gas agreement for Clarksdale, also? Do we want it now?

Thanks,

Kay

Kay Mann 05/23/2001 05:05 PM To: Reagan Rorschach/Enron@EnronXGate, Heather Kroll/Enron@EnronXGate, David Fairley/Enron@EnronXGate, Tom May/Enron@EnronXGate cc:

Subject: Open items for MDEA

Here are issues which I'm unclear about, all of which impact the drafting of the agreement:

How are we setting the heat rate? Do we have the GADS (?)? Is it a daily average, weekly average? Flat rate? Adjusted? If so, how often?

Are we comfortable that there are no permit restrictions?

We have determined that we won't deal with fuel oil, right?

We aren't making money on gas, right?

Do we have a defn of costs that we like yet, and if so, how does it fit in to the picture?

Is there an up-to-date set of exhibits?

It would help if the commercial part of the team could send me the following, in words and/or formulae:

The defn and method of establishing the bogey (target production cost) formula can be an exhibit, which would be great for the commercial team to work on. Are we determined how we should deal with imbalances (part of cost of power)? How are we setting the bogey? Formula? Subject to audit? Two bogeys or one (gas and oil)?

What is defn of profit? I think I have the general idea, but a sentence or two would be helpful as a reality check. What costs are included on the buy and sell side?

Re stack model: a sentence or two describing what it is and how it is used.

Updated exhibit on facilities, contracted resources, operating limits.

What information does MDEA need for us to provide in order to split costs/profits? Are we clear that Cities buy gas, MDEA buys/sells power?

It would be great if I could get one set of answers to these questions/issues, which has commercial buy in all around.

Thanks,

Kay

<Embedded Picture (Device Independent Bitmap)>

Message 302 of 371

RE: MDEA Agreement Scheduling

| | |
|------------|----------------------------|
| Sender | reagan.rorschach@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/yazoo_city/282. |

I'm still waiting on David Hunt to send me some stuff, which would really help move the document along. I'll ask again if i can get it from him. There are still internal questions in it, which I have annotated. I'm happy for you to look at it fairly shortly, especially if you can give definitive commercial direction.

Do you feel that the commercial team is finished with the exhibits? I haven't worked on them, but I suspect the exhibits need work. I know the bogey calc doc is a bit rough. [Rorschach, Reagan] Exhibits are rough. I need to make a list of Exhibits called out in the current doc version, pull them all together, and clean them up.

Do you still owe me the emergency transmission cut stuff? [Rorschach, Reagan] Yes. I am not exactly sure of the context....but try this on for size: Clarksdale is subject to an Entergy transmission constraint that from time to time results in a transmission cut and mandates Clarksdale dispatching their generation assets to serve Clarksdale Native Load. Dispatching Clarksdale assets under these circumstances is known as the first contingency must run condition. During first contingency must run conditions, EPMI will document the production costs, megawatts generated, duration of the event, and lost opportunity cost of buying from the market. Clarksdale is due reimbursement from Entergy for extra costs incurred during such events.

Early next week is better than later, and Thursday and Friday are huge problem days for me. When are you thinking of meeting with Beck? Anyway to combine the two at once, given the short timeframe? [Rorschach, Reagan] I think we could get everyone together at the same time as soon as Monday. I want them to have the time to study the document so we can get it all done at once.

Has Dave signed the extension, by the way? [Rorschach, Reagan] done, fedex'ing to MDEA. Will have faxed copy today.

Kay

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 09:59 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: MDEA Agreement Scheduling

Kay,

We are starting to run into some scheduling constraints for next week, at least with Bob Priest. I'd like to get together with Bob and Marvin early next week to discuss the agreement--moving toward finalizing before June 12. Bob is only available Monday. Bob and Marvin think it is a good ideal to then meet with RW Beck.

I'd like to email Marvin and Bob the next version sometime today?

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

Message 303 of 371

Format - Enron Draft MOU

| | |
|------------|------------------------|
| Sender | ben.jacoby@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/midway/1. |

----- Forwarded by Ben Jacoby/HOU/ECT on 01/05/2001 01:56 PM

Mike J Miller 01/05/2001 02:57 PM To: Lisa Bills/Corp/Enron, Ben Jacoby/HOU/ECT@ECT, Ozzie Pagan/HOU/ECT@ECT, Christopher F Calger/PDX/ECT@ECT cc: Subject: Format - Enron Draft MOU

Attached below is the standard form GE Term Sheet. Certain items have been left blank, including price and shipment dates. GE told me that the \$39,970,000 per turbine set number is still the notional price based on the GenPower Dell scope. This aforementioned scope means that we will need to purchase an extra static starter (\$900,000) and a water wash skid (\$150,000) to take two sets of two turbines and split them up into three projects (Longview, Ft Pierce, Fla Peaker). As usual, things like dual fuel (\$2 MM), peaker stacks (\$1.5-2MM) and inlet cooling options are scope additions and are not included in the MSRP. Please get me your comments as soon as possible to keep the process moving. We can use this term sheet with business points discussed with GE to get the DASH process moving. Shipment dates are still uncertain. GE will try and accommodate us with turbines that will work for combined cycle as well as peakers for summer 2003 start dates. We will not know what (if any) turbines that we will get until GE goes into their DASH process next week.

Thanks,

Mike J Miller ----- Forwarded by Mike J Miller/HOU/ECT on 01/05/2001 02:39 PM -----

john.schroeder@ps.ge.com on 01/05/2001 01:01:05 PM To: Mike.J.Miller@enron.com cc: scott.terhune@ps.ge.com
Subject: Format - Enron Draft MOU

Dear Mike Here the format of an MOU for units, however this is not an offer to sell.

The potential ready to ship dates and pricing have been deleted.

Best Regards John John H Schroeder, Jr. GE Power Systems Account Mgr. 2707 North Loop West, 9th Floor Houston, Texas 77008 (713) 803-0525 Fax - 0567

-----Original Message----- From: Swift, Stephen L (PS, CommOps) Sent: Friday, January 05, 2001 10:37 AM To: Schroeder, John H Jr (PS, Sales) Subject: Enron Draft MOU John, Attached is a typical MOU that we would use with Enron. We are not authorized to make any offers to customers until after Tuesday 1/9/01 if any units are made available to us. We can circulate this for Enron to begin a preliminary review with the understanding this is not an offer to sell. Let me know if you have any questions. Steve Swift <<TPA Rev Draft.doc>>

- TPA Rev Draft.doc

Message 304 of 371

RE: MDEA Agreement Scheduling

| | |
|------------|---------------------------------|
| Sender | reagan.rorschach@enron.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/discussion_threads/4554. |

I'm still waiting on David Hunt to send me some stuff, which would really help move the document along. I'll ask again if i can get it from him. There are still internal questions in it, which I have annotated. I'm happy for you to look at it fairly shortly, especially if you can give definitive commercial direction.

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Kay

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 09:59 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: MDEA Agreement Scheduling

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I'd like to email Marvin and Bob the next version sometime today?

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

Message 305 of 371

RE:

| | |
|------------|---|
| Sender | tconstan@llgm.com |
| Recipients | ['bill.williams@enron.com', 'kay.mann@enron.com', 'dale.rasmussen@enron.com'] |
| File | mann-k/discussion_threads/3746. |

Kay: The issue has arisen as to whether the current draft of the GE contract incorporated comments of Rose Engeldorf and Lisa Bills. I want to make sure that Rose and Lisa have the current draft, and for that reason have asked Peter to send it out. The plan is for Peter to maintain control of the document as he has in the past and to re-issue a draft that incorporates the comments.

Tom Constantine

Thomas B. Constantine LeBoeuf, Lamb, Greene & MacRae, L.L.P. 50 N. Laura Street, Suite 2800 Jacksonville, FL 32202
904-630-5376 tconstan@llgm.com

"Mann, Kay" <Kay.Mann@ENRON.com> 05/01/01 12:48PM >>>

I know that GE recently had a small comment, technical or scope related, but I don't recall if it was before or after the 24th. I was unaware of Tom's involvement, so I want to make sure the comment was addressed.

I'm happy to hand the reins over to someone else to handle signature. I suspect I'm creating confusion as well.

Kay

From: Bill Williams/ENRON@enronXgate on 05/01/2001 11:44 AM To: Kay Mann/Corp/Enron@Enron cc: "Tom Constantine (E-mail)" <TCONSTAN@LLGM.COM>@SMTP@enronXgate, Dale Rasmussen/HOU/ECT@ECT

Subject: RE:

Yes Kay. It should be the last version from Peter Thompson of AK sent April 24th. Tom Constantine and I just left Peter a voice mail to ask him to resend to Tom for a double check. I will ask Tom to forward it to you. I have nothing to add to these contracts, and want to get out of the loop to eliminate confusion.

This does not mean I will not help or answer any questions, just that Dale has asked Tom to act in Dale's place on this, and I don't want to screw things up....

TOM - when received or confirmed from Peter, would you please send a copy to Kay Mann as well (as requested below).

-----Original Message-----

From: Mann, Kay Sent: Tuesday, May 01, 2001 9:34 AM To: Williams, Bill Subject:

Could you email me the last version of the turbine contract?

thanks,

Kay

This e-mail, including attachments, contains information that is confidential and may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments, and notify me. The unauthorized use, dissemination, distribution or reproduction of this e-mail, including attachments, is prohibited and may be unlawful.

Message 306 of 371

CRRRA Request to Reopen

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['Suzanne Adams/HOU/ECT@ECT', 'jklauber@llgm.com'] |
| File | mann-k/_sent_mail/2866. |

Hi John,

Thanks for your call the other day. The team is currently focused on getting the funding approved, as you can see from the attached. Also, we have had some discussions with Fuel Cells about the contract to purchase the equipment. I expect to forward a draft to you soon for a sanity check. It may be a Connecticut law contract due to the State's involvement. The next big item will be the project development agreement. The tax credit monetization is still on the horizon, and if the funding approval is granted, we will want to talk about your sense of how that might work.

Again, thanks for checking in.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 11/13/2000 12:05 PM -----

Heather Kroll@ECT 11/13/2000 09:42 AM To: Kay Mann/Corp/Enron@Enron cc: Suzanne Adams/HOU/ECT@ECT

Subject: CRRRA Request to Reopen

----- Forwarded by Heather Kroll/HOU/ECT on 11/13/2000 09:42

AM -----

"Cheryl Levick" <clevick@murthalaw.com> on 11/09/2000 01:28:52 PM To: <pcorey@brfg.com>, <daniel.allegretti@enron.com>, <heather.kroll@enron.com>, <jader@enron.com> cc: "Paul McCary" <pmccary@murthalaw.com>, "Sandra Fischer" <sfischer@murthalaw.com> Subject: CRRRA Request to Reopen

Attached you will find a redlined version reflecting changes made since the last version we provided you all. Also attached are a "clean" version incorporating the changes, a motion for protective order, exhibits and pre-filed testimony.

If you have any questions, please contact Sandra at 240-6071.

Cheryl L. Levick Murtha Cullina LLP 185 Asylum Street, 29th Floor Hartford, CT 06103 (860) 240-6000 x2072
clevick@murthalaw.com

This message originates from the law firm of Murtha Cullina LLP. The information contained in this e-mail and any files transmitted with it may be a confidential attorney-client communication or may otherwise be privileged and confidential. If the reader of this message, regardless of the address or routing, is not an intended recipient, you are hereby notified that you have received this transmittal in error and any review, use, distribution, dissemination or copying is strictly prohibited. If you have received this message in error, please delete this e-mail and all files transmitted with it from your system and immediately notify Murtha Cullina LLP by sending a reply e-mail to the sender of this message. Thank you.
clevick@murthalaw.com

- Hartford_506961_1.DOC - Hartford_506961_2.DOC - Hartford_507618_1.XLS - Hartford_506308_1.DOC - Hartford_506399_1.DOC - Hartford_506792_1.DOC - FUELCELL2.JPG - FUELCELL1.JPG

Message 307 of 371

| FW: MDEA/Clarksdale/Yazoo City | |
|--------------------------------|------------------------|
| Sender | kay.mann@enron.com |
| Recipients | [t.hodge@enron.com] |
| File | mann-k/yazoo_city/304. |

Jeff,

Looks like we may actually close this week. We need the two gas agreements to get it all nailed down. Can you give me some guidance on how to get this wrapped up on the gas side?

Thanks,

Kay -----Original Message----- From: Rorschach, Reagan Sent: Monday, July 02, 2001 3:54 PM To: Mann, Kay Subject: FW: MDEA/Clarksdale/Yazoo City Importance: High

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Thursday, June 28, 2001 9:16 AM To: Hodge, Jeffrey T.; Portz, David; Perlingiere, Debra; Sager, Elizabeth Cc: Rorschach, Reagan; Fairley, David; Kroll, Heather Subject: MDEA/Clarksdale/Yazoo City Importance: High

I finally got comments back from the customer on the asset management, gas and power contracts. I'm writing to pass along the comments which pertain to all three contracts:

Governing law must be Mississippi.

Confidentiality is limited under Mississippi law since these are governmental entities. We are addressing it in the Energy Management Services Agreement, so it could be deleted from the Masters, or I can supercede what's in the Masters in the EMSA, or we can use the language from the EMSA in the Masters.

Limits of liability/waivers of consequential/waivers of implied warranties. None of this is permitted under Mississippi law, in some cases because it is never permitted, in some cases because these are governmental entities. I want it in the EMSA anyway, just in case the law gets better. I'll have language for this shortly. Basically, it is "if and to the extent [Party

B] is permitted to do so under applicable law...

Arbitration. Arbitration must be pursuant to Section 11-15-1 et seq of the Mississippi Code Annotated (1972). In case this doesn't work they have agreed to venue in the Federal District Court in Jackson Mississippi.

Business Day should exclude State holidays in Mississippi.

Performance Assurance needs to have "as may be permissible under applicable law", as Mississippi law restricts what they can give.

Payment: governmental entities can't be charged interest until 45 days after they receive the invoice. Also, invoices have to go on a claims docket, so the earliest they can pay is within 5 days after the first meeting of the governing board after receipt of the invoice.

Security interest. They can't grant a security interest.

They've called a special session of the governing board to approve the documents tomorrow afternoon, so I would appreciate your input on how to handle the integration of these issues into the masters.

I expect to have the risk memo tomorrow morning.

Kay

Message 308 of 371

RE: Open items for MDEA

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['jeffrey.miller@enron.com', 'reagan.rorschach@enron.com', 'tom.may@enron.com', 'kayne.coulter@enron.com'] |
| File | mann-k/discussion_threads/4330. |

Schedule reflects amount due for cancellation on or before the stated dates?

From: Reagan Rorschach/ENRON@enronXgate on 05/24/2001 01:19 PM To: Kay Mann/Corp/Enron@Enron cc: Kayne Coulter/ENRON@enronXgate, Tom May/ENRON@enronXgate, Jeffrey Miller/ENRON@enronXgate, David Fairley/ENRON@enronXgate

Subject: RE: Open items for MDEA

Kay, see attached. The monthly fee should be \$13,003. I took the \$300k we have all been discussing and backed out the \$12,500 they paid under the ILA terms.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Thursday, May 24, 2001 11:35 AM To: Mann, Kay Cc: Rorschach, Reagan; Kroll, Heather; Fairley, David; May, Tom Subject: Re: Open items for MDEA

More:

We need internal agreement on the cancellation fee schedule, to be included as an exhibit.

What is the status of the Yazoo City master gas agreement? Do we still want a master gas agreement for Clarksdale, also? Do we want it now?

Thanks,

Kay

Kay Mann 05/23/2001 05:05 PM To: Reagan Rorschach/Enron@EnronXGate, Heather Kroll/Enron@EnronXGate, David Fairley/Enron@EnronXGate, Tom May/Enron@EnronXGate cc:

Subject: Open items for MDEA

Here are issues which I'm unclear about, all of which impact the drafting of the agreement:

How are we setting the heat rate? Do we have the GADS (?)? Is it a daily average, weekly average? Flat rate? Adjusted? If so, how often?

Are we comfortable that there are no permit restrictions?

We have determined that we won't deal with fuel oil, right?

We aren't making money on gas, right?

Do we have a defn of costs that we like yet, and if so, how does it fit in to the picture?

Is there an up-to-date set of exhibits?

It would help if the commercial part of the team could send me the following, in words and/or formulae:

The defn and method of establishing the bogey (target production cost) formula can be an exhibit, which would be great for the commercial team to work on. Are we determined how we should deal with imbalances (part of cost of power)? How are we setting the bogey? Formula? Subject to audit? Two bogeys or one (gas and oil)?

What is defn of profit? I think I have the general idea, but a sentence or two would be helpful as a reality check. What costs are included on the buy and sell side?

Re stack model: a sentence or two describing what it is and how it is used.

Updated exhibit on facilities, contracted resources, operating limits.

What information does MDEA need for us to provide in order to split costs/profits? Are we clear that Cities buy gas, MDEA buys/sells power?

It would be great if I could get one set of answers to these questions/issues, which has commercial buy in all around.

Thanks,

Kay

Message 309 of 371

FW: NLR & Benton Purchase Power RFP

| | |
|------------|---|
| Sender | reagan.roschach@enron.com |
| Recipients | ['heather.kroll@enron.com', 'rudy.acevedo@enron.com', 'kay.mann@enron.com'] |
| File | mann-k/inbox/291. |

Kay, attached is the letter from NLR regarding our proposal.

Summary of the Cities of NLR and Benton, Arkansas deal:

assist Cities with network transmission service agreements with Entergy assist with initialization of OASIS, TSIN, and JTSIN transmission reservation accounts telemetering load from NLR SCADA and Benton's meters to Enron control room perform load forecasting manage NLR's Murray Hydro facility to serve NLR load deliver wholesale energy to match NLR and Benton loads inclusive of losses as an "into Entergy" product deliver wholesale energy such that network transmission can be used to sink energy to NLR and Benton native loads provide real time, day ahead, and term trading; scheduling and transmission reservations/services; volume management; settlements; and control room services arrange for ancillary services related to native load including Entergy OATT Schedules 1 through 6 provide NLR and Benton with a fixed price for energy and ancillary services through the life of contract provide NLR and Benton with option to extend agreement for 3 additional years.

NLR Issues with Enron Proposal:

Your price is greater than 15% from the best price offer. A substantial improvement in price would be necessary to receive further consideration. You have identified no resources inside of Entergy's control area. If you can point to resources inside of Entergy's control area you may improve your position. You did not utilize dynamic scheduling for the scheduling of generation to match load. You may improve your position by offering dynamic scheduling. The Cities desire a fixed cost over the term of the contract. You may improve your position by including any increases in the Cities' cost for Network Transmission Service over the term of the contract in your costs. The Negotiation Committees are alarmed by the recent developments concerning Enron's losses and the downgrading of Enron's securities. Significant financial assurance would be required before the Negotiating Committee's would further consider Enron.

What We'd Like to Do With Dynegy:

Provided we can win the project, we'd like to do the following:

name generation to satisfy point #2 use Dynegy base load generation assets to dynamically schedule the NLR and Benton loads name Dynegy assets as network resources

Note that we have not talked with Dynegy about any of this and any deal would be subject to mutual agreement and negotiation.

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Gertsch, Joe [mailto:JGertsch@nlrelectric.com] Sent: Monday, November 12, 2001 5:10 PM To: Rorschach, Reagan Subject: NLR & Benton Purchase Power RFP

Reagan:

Attached is the letter I promised regarding Enron's position relative to the other proposals.

Joe Gertsch

<<Enron LTR.doc>>

Message 310 of 371

RE: MDEA Agreement Scheduling

| | |
|------------|---------------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['=20', 'reagan.rorschach@enron.com'] |
| File | mann-k/sent/4307. |

Please fill in the blank: =01&First Contingency Transmission Outage=018 means

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 10:37 AM To: Kay Mann/Corp/Enron@Enron cc: =20

Subject: RE: MDEA Agreement Scheduling

I'm still waiting on David Hunt to send me some stuff, which would really= =20 help move the document along. I'll ask again if i can get it from him. The= re=20 are still internal questions in it, which I have annotated. I'm happy for y= ou=20 to look at it fairly shortly, especially if you can give definitive=20 commercial direction.

Do you feel that the commercial team is finished with the exhibits? I=20 haven't worked on them, but I suspect the exhibits need work. I know the= =20 bogey calc doc is a bit rough. [Rorschach, Reagan] Exhibits are rough. I= =20 need to make a list of Exhibits called out in the current doc version, pull= =20 them all together, and clean them up.=20

Do you still owe me the emergency transmission cut stuff? [Rorschach, Reaga= n]=20 Yes. I am not exactly sure of the context....but try this on for size: = =20 Clarksdale is subject to an Entergy transmission constraint that from time = to=20

time results in a transmission cut and mandates Clarksdale dispatching their generation assets to serve Clarksdale Native Load. Dispatching Clarksdale assets under these circumstances is known as the first contingency must run condition. During first contingency must run conditions, EPMI will document the production costs, megawatts generated, duration of the event, and lost opportunity cost of buying from the market. Clarksdale is due reimbursement from Entergy for extra costs incurred during such events.

Early next week is better than later, and Thursday and Friday are huge problem days for me. When are you thinking of meeting with Beck? Anyway combine the two at once, given the short timeframe? [Rorschach, Reagan] I think we could get everyone together at the same time as soon as Monday. I want them to have the time to study the document so we can get it all done once.

Has Dave signed the extension, by the way? [Rorschach, Reagan] done, fedex'ing to MDEA. Will have faxed copy today.

Kay

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 09:59 AM To: Kay Mann/Corp/Enron@Enron cc: 20

Subject: MDEA Agreement Scheduling

Kay,

We are starting to run into some scheduling constraints for next week, at least with Bob Priest. I'd like to get together with Bob and Marvin early next week to discuss the agreement--moving toward finalizing before June 12. Bob is only available Monday. Bob and Marvin think it is a good idea then meet with RW Beck.

I'd like to email Marvin and Bob the next version sometime today?

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

Message 311 of 371

| RE: | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['tconstan@llgm.com', 'Bill.Williams@enron.com', 'dale.rasmussen@enron.com'] |
| File | mann-k/discussion_threads/3747. |

One comment which was taken related to the applicable change in law date.

"THOMAS CONSTANTINE" <TCONSTAN@LLGM.COM> on 05/01/2001 11:54:18 AM To: Kay.Mann@enron.com cc: Bill.Williams@enron.com, dale.rasmussen@enron.com

Subject: RE:

Kay: The issue has arisen as to whether the current draft of the GE contract incorporated comments of Rose Engeldorf and Lisa Bills. I want to make sure that Rose and Lisa have the current draft, and for that reason have asked Peter to send it out. The plan is for Peter to maintain control of the document as he has in the past and to re-issue a draft that incorporates the comments.

Tom Constantine

Thomas B. Constantine LeBoeuf, Lamb, Greene & MacRae, L.L.P. 50 N. Laura Street, Suite 2800 Jacksonville, FL 32202 904-630-5376 tconstan@llgm.com

"Mann, Kay" <Kay.Mann@ENRON.com> 05/01/01 12:48PM >>>

I know that GE recently had a small comment, technical or scope related, but I don't recall if it was before or after the 24th. I was unaware of Tom's involvement, so I want to make sure the comment was addressed.

I'm happy to hand the reins over to someone else to handle signature. I suspect I'm creating confusion as well.

Kay

From: Bill Williams/ENRON@enronXgate on 05/01/2001 11:44 AM To: Kay Mann/Corp/Enron@Enron cc: "Tom Constantine (E-mail)" <TCONSTAN@LLGM.COM>@SMTP@enronXgate, Dale Rasmussen/HOU/ECT@ECT

Subject: RE:

Yes Kay. It should be the last version from Peter Thompson of AK sent April 24th. Tom Constantine and I just left Peter a voice mail to ask him to resend to Tom for a double check. I will ask Tom to forward it to you. I have nothing to add to these contracts, and want to get out of the loop to eliminate confusion.

This does not mean I will not help or answer any questions, just that Dale has asked Tom to act in Dale's place on this, and I don't want to screw things up....

TOM - when received or confirmed from Peter, would you please send a copy to Kay Mann as well (as requested below).

-----Original Message-----

From: Mann, Kay Sent: Tuesday, May 01, 2001 9:34 AM To: Williams, Bill Subject:

Could you email me the last version of the turbine contract?

thanks,

Kay

This e-mail, including attachments, contains information that is confidential and may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments, and notify me. The unauthorized use, dissemination, distribution or reproduction of this e-mail, including attachments, is prohibited and may be unlawful.

Message 312 of 371

Re: GE Turbines

| | |
|------------|---|
| Sender | ben.jacoby@enron.com |
| Recipients | ['kathleen.carnahan@enron.com', 'kay.mann@enron.com'] |
| File | mann-k/discussion_threads/3850. |

Kay:

FYI, I was contacted by this guy who claims to have a client that is interested in selling three GE7FAs that were delivered into storage last month. I told him that we are interested, and asked about the process. He told me that "bids" are due this Friday. Based on input from Duran and Calger, we plan to provide a non-binding expression of interest at \$44 million per unit.

Do we have any boilerplate forms we can use for this? If not, I can draft a letter and send it to you.

I asked about how the client intends to deal with GE, and was told that after a winning bidder is selected, they intend to seek GE's consent. The only other tid bit I have is that I called Schroeder to ask if any units were coming available, and he swore up and down that he did not know of any.

By the way, on Blue Dog / Northwestern, we deducted about \$500k from our recent invoices. Attached is the letter we sent to Darst. I'll let you know if I hear any complaints.

Regards,

Ben

----- Forwarded by Ben Jacoby/HOU/ECT on 05/07/2001 08:51 PM

MKolman@rcgroup.com on 05/07/2001 10:29:50 AM To: Ben.F.Jacoby@enron.com cc: Subject: Re: GE Turbines

Ben:

I will be executing the CA.

Michael Kolman Principal Navigant Consulting, Inc. 200 Wheeler Road Suite 400 Burlington, MA 01803

Please let me know if you have any questions.

Michael A. Kolman Principal Navigant Capital (781) 564-9774 (direct)

Ben.F.Jacoby@

enron.com To: mkolman@navigantconsulting.com Sent by: cc: Ben.Jacoby@en Subject: GE Turbines

ron.com

05/07/2001

11:28 AM

Mike:

Please send me the name and address of the company and individual that will be executing the CA. I will have a CA sent to you promptly.

Regards,

Ben Jacoby

Message 313 of 371

FW: Assignment and Assumption Agreement re: E-Next B/O Contract w /

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['bill.williams@enron.com', 'kent.shoemaker@ae.ge.com', 'dale.rasmussen@enron.com'] |
| File | mann-k/_sent_mail/541. |

This is none of my business, but the turbines are owned by ENext. Hows does the LLC give the assignment? Should the turbine contract be in the name of the LLC, because it isn't at this moment. Maybe I messed up.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 04/26/2001 06:24 PM -----

lee.johnson@ps.ge.com on 04/26/2001 04:09:13 PM To: kay.mann@enron.com, dale.rasmussen@enron.com cc: kent.shoemaker@ae.ge.com, bill.williams@enron.com

Subject: FW: Assignment and Assumption Agreement re: E-Next B/O Contract w / GE for MCS as EPC for LVCII.

Kay/Bill,

Bill says he agrees and accepts our comments to the A&A.

One change required to the Rev 5 document. In Exhibit B, Add item "27)One additional Human Machine Interface (HMI) per Unit (desktop PC type)"

Include these changes and we can get this done tomorrow.

Thanks,

Lee -----Original Message----- From: Shoemaker, Kent (GEAE) Sent: Thursday, April 26, 2001 12:06 PM To: Johnson, Lee L (PS, GE AEP); 'bill.williams@enron.com' Cc: 'dale.rasmussen@enron.com' Subject: RE: Assignment and Assumption

Agreement re: E-Next B/O Contract w/ GE for MCS as EPC for LVCII.

Here are my comments.

Kent

-----Original Message-----

From: Johnson, Lee L (PS, GE AEP) Sent: Wednesday, April 25, 2001 8:15 AM To: Shoemaker, Kent Subject: FW: Assignment and Assumption Agreement re: E-Next B/O Contract w/ GE for MCS as EPC for LVCII. Importance: High

Kent,

Please review and note that this needs to be completed by week's end. Closing date is 5/1 and I'm out rest of week 5/2-6. We may need some of Kay's help if we don't like what we see. But let's try to work it out with Dale Rasmussen first (Enron Portland office).

Lee

-----Original Message-----

From: Bill.Williams@enron.com [mailto:Bill.Williams@enron.com] Sent: Tuesday, April 24, 2001 3:58 PM To: Johnson, Lee L (PS, GE AEP) Cc: THOMAS CONSTANTINE; Dale.Rasmussen@enron.com; Jody.Blackburn@enron.com Subject: Assignment and Assumption Agreement re: E-Next B/O Contract w/ GE for MCS as EPC for LVCII.

Hello Lee. (I know your thinking - What now!)

As I'm sure you know, we are fast approaching a full notice to proceed on the LVCII project. One item that we have as part of our EPC contract with Modern Continental South, is an Assignment and Assumption Agreement whereby MCS will assume certain responsibilities for (owner), and abide by the conditions set forth in that agreement. We will ask GE to participate in that Agreement. I have attached that agreement to this e mail for your review. Current plans are for a full NTP (Notice To Proceed) to begin construction on May 1, and we are working hard to be ready for that key milestone to occur. Your review and concurrence on the draft document attached below is appreciated.

Please review and contact me should you have any questions.

Sincerely

W. J. (Bill) Williams Jr Director, Technical Services Enron North America (503) 464-8958

(See attached file: GE ASSIGNMENT 173951 CLEAN 0417.doc)

- GE ASSIGNMENT 173951 CLEAN 04171.doc

Message 314 of 371

RE: Open items for MDEA

| | |
|------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | [reagan.rorschach@enron.com] |
| File | mann-k/discussion_threads/4382. |

I don't understand the last sentence.

From: Reagan Rorschach/ENRON@enronXgate on 05/25/2001 09:31 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: RE: Open items for MDEA

The value in the table is the beginning balance for each month. So if they cancel in the middle of the month, they should pay the balance at the beginning of that month and no prorated minimum monthly fee. If you prorate it on both ends, you end up getting the total balance shown at the beginning of the month.

-----Original Message-----

From: Mann, Kay Sent: Friday, May 25, 2001 9:08 AM To: Rorschach, Reagan Cc: Coulter, Kayne; May, Tom; Miller, Jeffrey; Fairley, David Subject: RE: Open items for MDEA

Schedule reflects amount due for cancellation on or before the stated dates?

From: Reagan Rorschach/ENRON@enronXgate on 05/24/2001 01:19 PM To: Kay Mann/Corp/Enron@Enron cc: Kayne Coulter/ENRON@enronXgate, Tom May/ENRON@enronXgate, Jeffrey Miller/ENRON@enronXgate, David Fairley/ENRON@enronXgate

Subject: RE: Open items for MDEA

Kay, see attached. The monthly fee should be \$13,003. I took the \$300k we have all been discussing and backed out the \$12,500 they paid under the ILA terms.

<< File: Cancellation Fee Schedule.doc >>

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Mann, Kay Sent: Thursday, May 24, 2001 11:35 AM To: Mann, Kay Cc: Rorschach, Reagan; Kroll, Heather; Fairley, David; May, Tom Subject: Re: Open items for MDEA

More:

We need internal agreement on the cancellation fee schedule, to be included as an exhibit.

What is the status of the Yazoo City master gas agreement? Do we still want a master gas agreement for Clarksdale, also? Do we want it now?

Thanks,

Kay

<< OLE Object: Picture (Device Independent Bitmap) >> Kay Mann 05/23/2001 05:05 PM To: Reagan Rorschach/Enron@EnronXGate, Heather Kroll/Enron@EnronXGate, David Fairley/Enron@EnronXGate, Tom May/Enron@EnronXGate cc:

Subject: Open items for MDEA

Here are issues which I'm unclear about, all of which impact the drafting of the agreement:

How are we setting the heat rate? Do we have the GADS (?)? Is it a daily average, weekly average? Flat rate? Adjusted? If so, how often?

Are we comfortable that there are no permit restrictions?

We have determined that we won't deal with fuel oil, right?

We aren't making money on gas, right?

Do we have a defn of costs that we like yet, and if so, how does it fit in to the picture?

Is there an up-to-date set of exhibits?

It would help if the commercial part of the team could send me the following, in words and/or formulae:

The defn and method of establishing the bogey (target production cost) formula can be an exhibit, which would be great for the commercial team to work on. Are we determined how we should deal with imbalances (part of cost of power)? How are we setting the bogey? Formula? Subject to audit? Two bogeys or one (gas and oil)?

What is defn of profit? I think I have the general idea, but a sentence or two would be helpful as a reality check. What costs are included on the buy and sell side?

Re stack model: a sentence or two describing what it is and how it is used.

Updated exhibit on facilities, contracted resources, operating limits.

What information does MDEA need for us to provide in order to split costs/profits? Are we clear that Cities buy gas, MDEA buys/sells power?

It would be great if I could get one set of answers to these questions/issues, which has commercial buy in all around.

Thanks,

Kay

Message 315 of 371

Re: FW: Assignment and Assumption Agreement re: E-Next B/O Contract

| | |
|-------------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['bill.williams@enron.com', 'dale.rasmussen@enron.com'] |
| File | mann-k/all_documents/5208. |

Fine by me.

Bill Williams@ECT 04/27/2001 03:50 PM To: Kay Mann/Corp/Enron@ENRON cc: Dale Rasmussen/HOU/ECT@ECT

Subject: Re: FW: Assignment and Assumption Agreement re: E-Next B/O Contract w / GE for MCS as EPC for LVCII.

Kay, was Dale to make the change Lee has listed below. If yes, it was not Done. Tom Constantine has been working the drafts for Dale. Can I get Tom to make the change, resend back out as the final and get to Lee Johnson as well as Rose Engeldorf?

Kay Mann@ENRON 04/27/2001 01:14 PM To: Dale Rasmussen/HOU/ECT@ECT, Bill Williams/PDX/ECT@ECT cc:

Subject: FW: Assignment and Assumption Agreement re: E-Next B/O Contract w / GE for MCS as EPC for LVCII.

Lee johnson just called to see when he can sign the agreement. I told him I would ask you guys.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 04/27/2001 03:13 PM -----

lee.johnson@ps.ge.com on 04/26/2001 04:09:13 PM To: kay.mann@enron.com, dale.rasmussen@enron.com cc: kent.shoemaker@ae.ge.com, bill.williams@enron.com

Subject: FW: Assignment and Assumption Agreement re: E-Next B/O Contract w / GE for MCS as EPC for LVCII.

Kay/Bill,

Bill says he agrees and accepts our comments to the A&A.

One change required to the Rev 5 document. In Exhibit B, Add item "27)One additional Human Machine Interface (HMI) per Unit (desktop PC type)"

Include these changes and we can get this done tomorrow.

Thanks,

Lee -----Original Message----- From: Shoemaker, Kent (GEAE) Sent: Thursday, April 26, 2001 12:06 PM To: Johnson, Lee L (PS, GE AEP); 'bill.williams@enron.com' Cc: 'dale.rasmussen@enron.com' Subject: RE: Assignment and Assumption Agreement re: E-Next B/O Contract w/ GE for MCS as EPC for LVCII.

Here are my comments.

Kent

-----Original Message-----

From: Johnson, Lee L (PS, GE AEP) Sent: Wednesday, April 25, 2001 8:15 AM To: Shoemaker, Kent Subject: FW: Assignment and Assumption Agreement re: E-Next B/O Contract w/ GE for MCS as EPC for LVCII. Importance: High

Kent,

Please review and note that this needs to be completed by week's end. Closing date is 5/1 and I'm out rest of week 5/2-6. We may need some of Kay's help if we don't like what we see. But let's try to work it out with Dale Rasmussen first (Enron Portland office).

Lee

-----Original Message-----

From: Bill.Williams@enron.com [mailto:Bill.Williams@enron.com] Sent: Tuesday, April 24, 2001 3:58 PM To: Johnson, Lee L (PS, GE AEP) Cc: THOMAS CONSTANTINE; Dale.Rasmussen@enron.com; Jody.Blackburn@enron.com Subject: Assignment and Assumption Agreement re: E-Next B/O Contract w/ GE for MCS as EPC for LVCII.

Hello Lee. (I know your thinking - What now!)

As I'm sure you know, we are fast approaching a full notice to proceed on the LVCII project. One item that we have as part of our EPC contract with Modern Continental South, is an Assignment and Assumption Agreement whereby MCS will assume certain responsibilities for (owner), and abide by the conditions set forth in that agreement. We will ask GE to participate in that Agreement. I have attached that agreement to this e mail for your review. Current plans are for a full NTP (Notice To Proceed) to begin construction on May 1, and we are working hard to be ready for that key milestone to occur. Your review and concurrence on the draft document attached below is appreciated.

Please review and contact me should you have any questions.

Sincerely

W. J. (Bill) Williams Jr Director, Technical Services Enron North America (503) 464-8958

(See attached file: GE ASSIGNMENT 173951 CLEAN 0417.doc)

- GE ASSIGNMENT 173951 CLEAN 04171.doc

Message 316 of 371

RE: MDEA Agreement Scheduling

| | |
|------------|---------------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['=20', 'reagan.rorschach@enron.com'] |
| File | mann-k/sent/4309. |

You're killing me. We have no definition for first contingency must run. Is= =20 this the same as First Contingency Emergency Dispatch?

HELPPPPPP. =20

ckm

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 11:08 AM To: Kay Mann/Corp/Enron@Enron, David Fairley/ENRON@enronXgate cc: =20

Subject: RE: MDEA Agreement Scheduling

Please fill in the blank: =01&First Contingency Transmission Outage=018 means [Rorschach, Reagan] an= Entergy=20 transmission constraint that from time to time results in a transmission cu= t=20 and mandates Clarksdale dispatching their generation assets to serve=20 Clarksdale Native Load. Our obligation during such an event: During first contingency must run=20 conditions, EPMI will document the production costs, megawatts generated,= =20 duration of the event, and lost opportunity costs. =20

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 10:37 AM To: Kay Mann/Corp/Enron@Enron cc: =20

Subject: RE: MDEA Agreement Scheduling

I'm still waiting on David Hunt to send me some stuff, which would really help move the document along. I'll ask again if i can get it from him. The re are still internal questions in it, which I have annotated. I'm happy for you to look at it fairly shortly, especially if you can give definitive commercial direction.

Do you feel that the commercial team is finished with the exhibits? I haven't worked on them, but I suspect the exhibits need work. I know the bogey calc doc is a bit rough. [Rorschach, Reagan] Exhibits are rough. I need to make a list of Exhibits called out in the current doc version, pull them all together, and clean them up.

Do you still owe me the emergency transmission cut stuff? [Rorschach, Reagan] Yes. I am not exactly sure of the context....but try this on for size: Clarksdale is subject to an Entergy transmission constraint that from time to time results in a transmission cut and mandates Clarksdale dispatching their generation assets to serve Clarksdale Native Load. Dispatching Clarksdale assets under these circumstances is known as the first contingency must run condition. During first contingency must run conditions, EPMI will document the production costs, megawatts generated, duration of the event, and lost opportunity cost of buying from the market. Clarksdale is due reimbursement from Entergy for extra costs incurred during such events.

Early next week is better than later, and Thursday and Friday are huge problem days for me. When are you thinking of meeting with Beck? Anyway to combine the two at once, given the short timeframe? [Rorschach, Reagan] I think we could get everyone together at the same time as soon as Monday. I want them to have the time to study the document so we can get it all done at once.

Has Dave signed the extension, by the way? [Rorschach, Reagan] done, fedex'ing to MDEA. Will have faxed copy today.

Kay

From: Reagan Rorschach/ENRON@enronXgate on 05/31/2001 09:59 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: MDEA Agreement Scheduling

Kay,

We are starting to run into some scheduling constraints for next week, at least with Bob Priest. I'd like to get together with Bob and Marvin early next week to discuss the agreement--moving toward finalizing before June 12. Bob is only available Monday. Bob and Marvin think it is a good idea to then meet with RW Beck.

I'd like to email Marvin and Bob the next version sometime today?

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

Message 317 of 371

RE: CA for Blue Ridge

| | |
|------------|---|
| Sender | rahil.jafry@enron.com |
| Recipients | ['kathleen.carnahan@enron.com', 'kay.mann@enron.com'] |
| File | mann-k/inbox/194. |

Good question - oops! Just left a message for the head of Blue Ridge. Will get back to you as soon as he gets back to me.

- R

-----Original Message-----

From: Mann, Kay Sent: Monday, October 22, 2001 1:17 PM To: Jafry, Rahil; Carnahan, Kathleen Subject: RE: CA for Blue Ridge

It is unclear to me that the coop has the authority to bind the members. What do we know about that?

ckm

-----Original Message-----

From: Jafry, Rahil Sent: Monday, October 22, 2001 1:15 PM To: Mann, Kay; Carnahan, Kathleen Subject: RE: CA for Blue Ridge Importance: High

I appreciate your concern about the lack of timing, but this one went from 0-60 in 5 secs flat as their board meeting is this Wednesday and they have it only once a month. I will def. be more sensitive to allowing some more lead time going forward.

Blue Ridge is a Coop which consists of the members listed below. I believe we can sign one CA which binds Blue Ridge and all its affiliates, but when it comes to signing final deal documents, we'd have to do it via individual towns.

Regards, - R

-----Original Message-----

From: Mann, Kay Sent: Monday, October 22, 2001 12:30 PM To: Carnahan, Kathleen Cc: Jafry, Rahil Subject: RE: CA for Blue Ridge

I'm in, but with lots going on.

What is the Blue Ridge Power Agency, as in what type of legal entity is it? It sounds like it isn't one, if we would be signing CA's with each member. Sounds like we may need CA's for each one of them.

Rahil, it would be very helpful if you could give us a bit more lead time next time around. We want to do the best job possible for you!

Thanks,

Kay

-----Original Message-----

From: Carnahan, Kathleen Sent: Monday, October 22, 2001 11:59 AM To: Mann, Kay Subject: FW: CA for Blue Ridge Importance: High

Rahil needs this by tomorrow. Are you in today?

Kathleen

-----Original Message-----

From: Jafry, Rahil Sent: Monday, October 22, 2001 10:55 AM To: Carnahan, Kathleen Cc: Emmons, Suzette Subject: CA for Blue Ridge Importance: High

Kathleen,

As discussed, here're the details surrounding our deal discussions with Blue Ridge Power Agency. To date, we've had a preliminary meeting with them, in which they expressed interest in Enron serving their Members' load on an "All Requirements" basis (similar to our potential deal with CVEC). Blue Ridge Members are:

Cities of Bedford, Bristol, Danville, Martinsville, Radford, Salem Towns of Richlands, Virginia Tech Central Virginia Co-Op (CVEC) & Craig-Botetourt Electric Co-Op

Following our meeting with Blue Ridge, they have sent us some load data and have chatted with us re. the types of deal-structures they would prefer. We are expected to provide them with an indicative feedback on potential structures and prices by tomorrow (10/23/01).

Ideally, I'd like for the information we provide them (and hence to their consultants and their members) to be protected by the CA. As and when a deal comes to fruition, we will probably be signing contracts with each one of the members individually.

Thanks again for your help. Feel free to give me a call if you have any further questions.

Regards, Rahil Ext. 3-3206

Name/Address: Blue Ridge Power Agency 5656 US Hwy. 29, Suite B-1, Blairs, VA 24527 USA

Phone: (434) 836-8375

Representative Name: Duane Dahlquist General Manager

Term of Confidentiality: October 22, 2001 - October 21, 2002 (or, other standard timelines)

Potential Deal Structure: Enron will sell to the members of Blue Ridge, firm, fixed price energy to meet its load obligation. Energy will be delivered at the Borders of AEP, Cinergy, and VEPCO systems, and Blue Ridge's existing transmission agreements will be used to deliver the energy.

Enron will be responsible for all the ancillary and load following services Enron will be charging a fixed price per MWh to reflect the energy and services provided to Blue Ridge Enron will have access to Blue Ridge's peak-shaving and demand side resources to serve Blue Ridge's load

Message 318 of 371

RE: LV Cogen ABB Agreement

| | |
|------------|---|
| Sender | tconstan@llgm.com |
| Recipients | ['dale.rasmussen@enron.com', 'don.hammond@enron.com', 'bill.williams@enron.com', 'pthompson@akllp.com'] |
| File | mann-k/discussion_threads/3588. |

Peter: I have attached the version of the ABB agreement that was attached as Exhibit N-4 of the EPC Contract for the LVCII project.

Thomas B. Constantine LeBoeuf, Lamb, Greene & MacRae, L.L.P. 50 N. Laura Street, Suite 2800 Jacksonville, FL 32202
904-630-5376 tconstan@llgm.com

"Thompson, Peter J." <pthompson@akllp.com> 04/26/01 02:18PM >>>

I have not circulated a copy of the LV Cogen/ABB Agreement since January 8, 2001. I have not seen a 3/27/01 version. I had previously sent an e-mail to Dale indicating that the contractor's comments to the ABB Agreement were not made to the Exhibit B-1 of the LV Cogen/ABB Agreement that I have. What I currently have as Exhibit B-1 is what Dale had sent to me on January 5, 2001 as incorporating Don Hammond's comments. The current contractor comments contain many discrepancies (in addition to those that are shown as a redline). Please let me know if I should only incorporate the contractor's redlined changes, or should I conform Exhibit B-1 to mirror what is in the contractor's comments? Perhaps if I could go through the contractor's comments with one of you, we could resolve what should and should not be in Exhibit B-1 of the agreement.

-----Original Message-----

From: Don.Hammond@enron.com [mailto:Don.Hammond@enron.com] Sent: Thursday, April 26, 2001 1:30 PM To: Bill.Williams@enron.com Cc: THOMAS CONSTANTINE; Thompson, Peter J. Subject: Re: LV Cogen ABB Agreement

Exhibit A of the ABB breakout agreement does not need to be revised to show losses. Losses are specified in Exhibit B-1, Section 10.0. These are the latest revised loss values as provided by ABB.

I have a draft of that agreement dated 3/27/01. That draft contains the revisions proposed by MCS. As I indicated to you earlier, I don't have issue with those changes. My only other comment in looking through the agreement one more time is that the final two pages in Exhibit B-1 (in my copy pages 44 and 45) are performance specification sheets from ABB for an earlier design. The ratings, loss values, and dimensions on these sheets are not current. I suggest these pages be removed.

To: Don Hammond/PDX/ECT@ECT cc: "THOMAS CONSTANTINE" <TCONSTAN@LLGM.COM> Subject: LV Cogen ABB Agreement

This also is an issue I need your help on. Please review and respond to Peter, copy Tom Constantine. (or copy me and I will forward to Tom.) ----- Forwarded by Bill Williams/PDX/ECT on 04/25/2001 08:23 AM -----

(Embedded Enron Capital & Trade Resources Corp. image moved to file: From: "Thompson, Peter J." pic28301.pcx)
<pthompson@akllp.com> 04/25/2001 06:24 AM

To: "Kay Mann (E-mail)" <kay.mann@enron.com>, "Dale Rasmussen (E-mail)" <Dale.Rasmussen@enron.com>, "Bill Williams (E-mail)" <Bill.Williams@enron.com> cc: Subject: LV Cogen ABB Agreement

As I indicated in my January 8, 2001 e-mail containing the first draft of the LV Cogen/ABB Transformer Agreement, to complete the agreement we will need to amend Exhibit A to show the electrical losses guarantee as well as the base load for the units. In prior deals we had one of the technical folks look at this. In addition, please let me know which of the contractor's changes, if any, I should make to the agreement. As I had mentioned in my earlier e-mail, it appears that the contractor's comments were made on an Exhibit B-1 other than the Exhibit B-1 attached to the LV Cogen Agreement as many of the numbers do not match up.

This e-mail, including attachments, contains information that is confidential and may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments, and notify me. The unauthorized use, dissemination, distribution or reproduction of this e-mail, including attachments, is prohibited and may be unlawful.

- Ex N-4 ABB 0323.doc

Message 319 of 371

Electricity Risk Management 101 Workshop and Portfolio Valuation

| | |
|-------------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['ben.jacoby@enron.com', '=20'] |
| File | mann-k/discussion_threads/4099. |

fyi. Don't know if any of your folks ever attend this kind of thing.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 05/16/2001 02:35= =20 PM ----- From:
Barbara N Gray@ECT on 05/15/2001 07:35 PM To: Ann Elizabeth White/HOU/ECT@ECT, Kay
Mann/Corp/Enron@Enron, Carlos=20 Sole/NA/Enron@Enron, Steve Van Hooser/HOU/ECT@ECT cc: =20

Subject: Electricity Risk Management 101 Workshop and Portfolio Valuation a= nd=20 Optimization Conference, June 19-22, 2001, Washington, D.C.

At the bottom of this announcement there are several listings for "short=20 courses". Please consider whether it would be helpful for you to attend o= ne=20 of them bng ----- Forwarded by Barbara N Gray/HOU/ECT on 05/15/2001 07:32 PM -----

=09"Laxmi Mrig" <lmrig@qwest.net> =0905/15/2001 05:47 PM =09=09=20 =09=09 To: "Undisclosed-Recipient" <>
=09=09 cc:=20 =09=09 Subject: Electricity Risk Management 101 Workshop and Portfolio Valu= ation=20 and
Optimization Conference, June 19-22, 2001, Washington, D.C.

Electricity Risk Management 101 Workshop, and Portfolio Valuation and=20 Optimization Conference=20

June 19-22, 2001, Washington, D.C.

?Overview

In the current environment of volatile energy prices and deregulation, it= =20 has become increasingly more important for the electricity industry to lea= rn=20 how to manage price risk. EUCI presents a two part Workshop/Conference=20 formatted for the beginner to expert in price risk management. The first= =20 Workshop is designed for the beginner with

no prior experience in risk management and introduces the basic vocabulary and concepts in a concise and easily understandable format which forms the foundation for the more advanced concepts applied in the Conference.

To view the details for these events, please visit:

Electricity Risk Management 101 Workshop <http://www.euci.com/Conferences/ermjun01.htm> Portfolio Valuation and Optimization?Conference <http://www.euci.com/Conferences/pvojun01.htm>

?List of Other Upcoming Events

Transmission Grid Expansion and System Reliability Conferences Conference 1: Focus on Regulation (Regulatory, Legislative Update, and Incentives for Transmission Grid Expansion and System Reliability), May 21-22, Denver, CO

??????? <http://www.euci.com/Conferences/formay01.htm>

Conference 2: Focus on Pricing (Pricing and Incentives for Transmission Grid Expansion and System Reliability), May 23-24, Denver, CO

????????? <http://www.euci.com/Conferences/fopmay01.htm>

Market Based Planning for Transmission Capacity Expansion, May 25, Denver, CO

<http://www.euci.com/Conferences/mbtmay01.htm>

Short Courses

Engineering and Planning for Aging T&D Infrastructures , June 20-22, Washington, D.C.???

????????? <http://www.euci.com/Conferences/eapjun01.htm>

What Generation Developers Need to Know About Transmission , June 20-22, Washington, D.C.

<http://www.euci.com/Conferences/wgdjun01.htm>

?Distributed Generation Conferences

?Distributed Generation (1) Basics of Evaluation and Selection, August 7, 2001. Denver, Colorado.

<http://www.euci.com/Conferences/dgbaug01.htm>

?Distributed Generation Conference, August 8-9, 2001. Denver, Colorado.

<http://www.euci.com/Conferences/dgcaug01.htm>

?Distributed Generation Power Quality Solutions, August 10, 2001. Denver, Colorado.

<http://www.euci.com/Conferences/dgpaug01.htm>

?Distributed Generation Interconnection Challenges, August 10, 2001. Denver, Colorado.

<http://www.euci.com/Conferences/dgiaug01.htm>

?After you click any of these event titles, you will see links for program agenda, registration information, and online registration on the right hand column. Depending upon your browser and monitor, you may need to maximize the page to see these links.

We have just published conference proceedings on recently held Ancillary Services Conference and associated pre-and post conference Workshops. The table of contents for these can be seen by clicking to our proceedings page <http://www.euci.com/proceedings.htm>

Kindly forward this announcement to your colleagues who might benefit from attending these conferences/workshops/courses.

Best Regards,

L. Mrig Electric Utility Consultants, Inc. (EUCI) 5555 Preserve Drive Greenwood Village CO 80121 (303) 770-8800
Lmrig@euci.com

Send us a note if you do not wish to receive these announcements.

?

Message 320 of 371

FW: LC's and Collateral

| | |
|-------------------|-----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['heather.kroll@enron.com'] |
| File | mann-k/sent_items/82. |

I may have sent this to you before.

-----Original Message-----

From: St. Clair, Carol Sent: Tuesday, December 11, 2001 3:16 PM To: Mann, Kay; Murphy, Harlan; Moore, Janet H.; Portz, David; Nettelton, Marcus; Sager, Elizabeth Subject: FW: LC's and Collateral

This information may be useful in connection with the in-the-money power positions that we are looking to do something with.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Brackett, Debbie R. Sent: Monday, December 10, 2001 4:38 PM To: St. Clair, Carol Subject: RE: LC's and Collateral

Carol,

This file represents in and out collateral, cash, LC, sureties and securities. The Onicas are still trying to reconcile the cash position with acctng and is subject to correction. I've sent you a margin report via interoffice mail....the downloaded file is pretty messy.

Let me know if you need anything else.

Thanks

-----Original Message-----

From: St. Clair, Carol Sent: Monday, December 10, 2001 10:53 AM To: Brackett, Debbie R.; Rohauer, Tanya Cc: Shackleton, Sara; Panus, Stephanie; Bailey, Susan Subject: LC's and Collateral

Debbie and/or Tanya: Could you please send me an updated list of LC's that we have posted and that have been posted to us. Also, could you please send me a margin report that sets forth margin posted to and from our trading counterparties? We will be beginning the process of responding to termination letters and this information will be helpful to us. Thanks.

Susan and Stephanie: For the global chart please set up a column for margin as we need to track margin that we have posted and margin that has been posted to us. Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

*Message 321 of 371***FW: USTeleNet Transaction**

| | |
|-------------------|---------------------------|
| Sender | kay.mann@enron.com |
| Recipients | [tammy.brennig@enron.com] |
| File | mann-k/sent_items/168. |

-----Original Message-----

From: Rimmer, Todd Sent: Tuesday, October 23, 2001 4:20 PM To: Raab, Eric Cc: Mann, Kay Subject: RE: USTeleNet Transaction

If we purchased the switch from an outside party and then leased it to USTeleNet under a capital lease, the asset would still be booked on UST's books at its FMV. There would be no associated gain as the asset was never theirs (the third party would get the gain on sale). Bullets 3 and 4 would be basically the same, except for the cash going to a third party.

Todd Rimmer Director - EWS Transaction Support Phone - 713-345-2803 Fax - 713-646-3347 Cell - 713-560-6493

-----Original Message-----

From: Raab, Eric Sent: Tuesday, October 23, 2001 3:02 PM To: Rimmer, Todd Cc: Mann, Kay Subject: RE: USTeleNet Transaction

What if we purchase the switch from a 3rd party, i.e. CES? How would that affect your 1st 2 bullets?

-----Original Message-----

From: Rimmer, Todd Sent: Tuesday, October 23, 2001 2:59 PM To: Mann, Kay; Raab, Eric Subject: USTeleNet Transaction

Just to follow-up on our discussion yesterday regarding the accounting treatment assuming that USTeleNet owns the switch and that we purchase the switch and lease it back to them under a "capital" lease, the following would occur:

The asset would stay on their books (however it would be "marked-up" to FMV as evidenced by the purchase price) They would defer the gain, if any, over the asset's life. They would record a payable on their balance sheet and recognize interest expense in their P&L as payments are made We would record the payment of cash to them and book a receivable and deferred interest income (to be recognized over the lease term)

Essentially we are lending them money equal to the FMV of their asset and receiving interest payments in return (i.e. direct financing lease)

I would be happy to go into more detail at your request. Please let me know as issues develop and I will assist as necessary.

Regards,

Todd Rimmer Director - EWS Transaction Support Phone - 713-345-2803 Fax - 713-646-3347 Cell - 713-560-6493

*Message 322 of 371***FW: Enron - Livingston County PRIVILEGED AND CONFIDENTIAL**

| | |
|-------------------|--|
| Sender | mark.gershon@piperrudnick.com |
| Recipients | [rtlott@enron.com', 'fred.mitro@enron.com', 'karen.way@piperrudnick.com', 'rsteven@enron.com', 'wschick@enro...] |
| File | mann-k/all_documents/1149. |

Pursuant to Robert Tilotta's phone message, attached is a copy of the e-mail distributed yesterday. If at all possible, we would like to discuss this with you tomorrow morning. If you have any questions, you can call me today in my car at (847)

867-1307.

Mark A. Gershon Piper Marbury Rudnick & Wolfe Phone: (312) 368-2127 Fax: (312) 630-5338
Mark.Gershon@PiperRudnick.com

-----Original Message-----

From: Gershon, Mark A. - CHI Sent: Monday, September 25, 2000 4:07 PM To: Jeff Martin (E-mail); Brian P. O'Neil (E-mail); Phil Houser (E-mail); Brian Fisher (E-mail); Ronald R. Pollina Ph. D. (E-mail); Fred J. Mitro (E-mail); Rusty Stevens (E-mail); Jennifer Walker (E-mail); Kay Mann (E-mail); Townsend, Christopher J. - CHI; Elam, Michael H. - CHI; Nooney, Kathleen L. - CHI; Way, Karen S. - CHI Cc: Farrell, Eileen - CHI Subject: Enron - Livingston County PRIVILEGED AND CONFIDENTIAL

As many of you know, we have received a number of written questions from Livingston County which were presented to them by residents. Enron and our firm have prepared and attached an initial draft response to those questions. Copies are provided in Word Perfect and Word for your convenience. Certain of the responses deal with specific areas for which each of you are responsible. While we have attempted to utilize the information that you have previously prepared, it is critical that you approve the responses. Please review the proposed responses and fax me any changes or call me by noon tomorrow. While I'm quite interested in any comments you may have on any of the responses, please be prepare to specifically approve or modify the following questions:

1. Pollina - Questions 1 - 7;
2. Farnsworth & Wylie - Questions A and B;
3. ENSR - Questions 8, 9, A and B; and
4. Everyone else - Everything.

I hope to speak to each of you, but if you cannot reach me please call Karen Way at 312-368-2152.

<<Enron Livingston Draft Response to Questions.WPD>> <<Enron Livingston Draft Responses (WORD 97).DOC>>

Mark A. Gershon Piper Marbury Rudnick & Wolfe Phone: (312) 368-2127 Fax: (312) 630-5338
Mark.Gershon@PiperRudnick.com <mailto:Mark.Gershon@PiperRudnick.com>

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

The information contained in this communication may be confidential, is intended only for the use of the recipient named above, and may be legally privileged. If the reader of this message is not the intended recipient, you are hereby notified that any dissemination, distribution, or copying of this communication, or any of its contents, is strictly prohibited. If you have received this communication in error, please re-send this communication to the sender and delete the original message and any copy of it from your computer system. Thank you.

For more information about Piper Marbury Rudnick & Wolfe, please visit us at <http://www.piperrudnick.com/>

- Enron Livingston Draft Response to Questions.WPD - Enron Livingston Draft Responses (WORD 97).DOC

Message 323 of 371

RE: Revised 7EA Turbine Letter Agreement

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['carlos.sole@enron.com', 'ccampbell@kslaw.com', 'jkeffer@kslaw.com'] |
| File | mann-k/_sent_mail/1532. |

My memory has failed me once again!

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 02/26/2001 12:44:58 PM To: "Kay.Mann@enron.com" <Kay.Mann@enron.com> cc: Carlos.Sole@enron.com, "Keffer, John" <JKeffer@KSLAW.com>=20

Subject: RE: Revised 7EA Turbine Letter Agreement

Kay:

My notes indicate that the promissory note structure was used not due to HS= R concerns, but rather, in order to avoid issues associated with disproportionate distributions resulting from the contribution of funds as capital. I believe that the use of an LLC as the subject entity eliminated the HSR issues. Of course, the higher HSR threshold is also now effective.=20

Carolyn M. Campbell King=01;& Spalding=20 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com>=20 =01;

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Monday, February 26, 2001 11:37 AM To: Campbell, Carolyn Cc: Carlos.Sole@enron.com; jkeffer@kslaw.com Subject: RE: Revised 7EA Turbine Letter Agreement

Carloyn,

Is the promissory note structure still necessary, given the increase in the HSR threshold?

ckm

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 02/22/2001 05:59:49 PM

To: "Kay.Mann@enron.com" <Kay.Mann@enron.com> cc: Carlos.Sole@enron.com

Subject: RE: Revised 7EA Turbine Letter Agreement

Kay:

Yes, the 1/11 draft (v4) is the current draft.

Carolyn M. Campbell King=01;& Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com>

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Thursday, February 22, 2001 4:10 PM To: ccampbell@kslaw.com Cc: Carlos.Sole@enron.com Subject: Revised 7EA Turbine Letter Agreement

Hi Carolyn,

Is this the most current version?

Thanks,

Kay ----- Forwarded by Kay Mann/Corp/Enron on 02/22/2001 04:08 PM -----

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 01/11/2001 06:29:24 PM

To: "kay.mann@enron.com" <kay.mann@enron.com> cc: "ben.f.jacoby@enron.com" <ben.f.jacoby@enron.com>, "fred.mitro@enron.com" <fred.mitro@enron.com>

Subject: Revised 7EA Turbine Letter Agreement

<<2RZ504!.DOC>> <<2RZ5RED.DOC>>

Kay:

We have enclosed clean and marked copies of a revised draft of the 7EA turbine letter agreement reflecting revisions from the draft previously distributed on January 8, 2001. Please review and advise of any comments. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com

Enclosures: 129569v4 129569vR4/3

(See attached file: 2RZ504!.DOC) (See attached file: 2RZ5RED.DOC)

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Message 324 of 371

RE: Delta Documents

| | |
|------------|---------------------------------|
| Sender | ccampbell@kslaw.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/discussion_threads/3669. |

Kay:

The original membership certificate needs to be in the lender's hands (i.e., Isabel Parker's office) on Wednesday in order to release escrow. If you have the original to me by Tuesday, I can forward it to Isabel by overnight delivery for Wednesday. It must be an original, in that the lender's lien on the membership interest is not perfected without possession of the original certificate. With respect to the remaining documents, fax copies of signature pages on the closing date should be sufficient.

Carolyn M. Campbell King?& Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Monday, April 30, 2001 11:20 AM To: Campbell, Carolyn Subject: RE: Delta Documents

The problem is in getting the original in their hands (where?) by tomorrow. Does it have to be an original?

Kay

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/30/2001 11:04:21 AM

To: "'Kay.Mann@enron.com'" <Kay.Mann@enron.com> cc:

Subject: RE: Delta Documents

Kay:

Can we at least get the membership certificates signed by Tuesday? This seems to be the only document required in advance of closing. If we can't get the 80% membership interest certificate in the lender's possession on the closing date, then there is a lien perfection issue for them to deal with, and I thought we could accommodate their request and avoid the problem altogether. Please advise, as Greg and Isabel will be calling within an hour or so to finalize the mechanics on this. Thanks.

Carolyn M. Campbell King?& Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Monday, April 30, 2001 10:40 AM To: Campbell, Carolyn Subject: Re: Delta Documents

I've asked GE for the LOC by Wednesday, but I haven't gotten a response.

I'll have difficulty getting executed docs by Tuesday, since sigs are coming from Portland. I'll have to check to see what can be done.

Kay

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/30/2001 10:02:44 AM

To: "'kay.mann@enron.com'" <kay.mann@enron.com> cc:

Subject: Delta Documents

Kay:

Can you get executed documents back to me on Tuesday? Greg has requested that we send the original membership certificate representing the 80% interest to the collateral agent Tuesday night by overnight delivery to hold in escrow until closing, in order that the collateral agent is in possession of the certificate (for purposes of legal opinions) upon closing on Wednesday. Greg is planning to fax signature pages of all of their closing documents later today. (I will be out of the office at a meeting with another client most of the afternoon today).

There is one last question with GE dealing with the letter of credit for the retention amount, as this affects our disbursement instruction letter. I advised Greg that GE's normal practice was to send the retention L/C after receipt of payment. He is considering this, but may want to talk to GE about the ability to present the L/C at closing. Do you have any thoughts on this?

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

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Message 325 of 371

Re: Blue Dog Max, comments on draft CO # 1

| | |
|------------|---|
| Sender | eric.booth@enron.com |
| Recipients | ['renee.alfaro@enron.com', 'matthew.tezyk@enron.com'] |
| File | mann-k/blue_dog/22. |

Renee-

I understand your need to incorporate the actual changes into the change order itself as opposed to an attachment. After reading GE's (Jeff Darst's) document, I can't easily extract from it what you need. I need to write something from scratch. Instead of trading several emails with yourself and Jeff Darst, it would be more efficient for me to give Jeff a call myself to come up with something acceptable to the both of us which also meets your requirements below. (I'm thinking that the actual scope items should be in your change order and GE's requirements/recommendations for the future modifications can be attached -- Much the same way their standard specs are attached to a purchase contract.)

I'm in Austin today and tomorrow (Thursday) and will be back in the office on Friday. If you can't wait, or need to talk to me before that, give me a call on my cell phone (713) 412-6873.

Hope this helps. Eric

Renee Alfaro 02/14/2001 07:19 AM To: Eric Booth/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Matthew Tezyk/ENRON_DEVELOPMENT@Enron_Development, Kay Mann/Corp/Enron@Enron

Subject: Blue Dog Max, comments on draft CO # 1

Eric,

I need to incorporate the essential parts of what Jeff Darst refers to as Attachment 2 below (91209_14 Jul 2000_Chiller Provisions.doc) into the Change Order, not as an attachment. This Attachment contains specifications as to what they are providing as well as stipulations as to how we are to install the inlet chillers. I need to know which are the specifications as to what they are providing and how the scope is being changed. I'm not concerned with their recommendations of how we are to install the inlet chillers since that is our scope and our liability/warranty.

Please separate out the scope items that need to be included in the Change Order and provide me with the wording so that I may get another draft of this Change Order out for review.

If you want to get together to discuss, please give me a call.

Thanks Renee Alfaro Phone: 713-646-7281 Fax: 713-646-6158 Email: ralfaro@enron.com

jeffrey.darst@ps.ge.com 02/13/2001 11:03 AM

To: bbarto@enron.com cc: chasecl@pssch.ps.ge.com Subject: Blue Dog Max, comments on draft CO # 1

Brian,

Attached are our comments to your draft of CO #1. Our proposed attachment 2 is attached (this is from my e-mail to Eric dated July 14, 2000).

We are still looking for a copy of the Consent to Assignment.

<<Chgs. to draft CO#1,rev.7, 2-12-01.doc>> <<91209_14 Jul 2000_Chiller Provisions.doc>>

Thanks,

Jeff Global Power Plant Systems 518-385-0663 518-381-1513 (fax)

- Chgs. to draft CO#1,rev.7, 2-12-01.doc - 91209_14 Jul 2000_Chiller Provisions.doc

Message 326 of 371

Re: ENA/PPL Escrow Agreement

| | |
|-------------------|------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['jkeffer@kslaw.com'] |
| File | mann-k/_sent_mail/546. |

John,

Just wanted you to be aware. No action required - water under the bridge.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 04/26/2001 01:23 PM -----

Jake Thomas@ECT 04/26/2001 09:15 AM To: Kay Mann/Corp/Enron@ENRON, Stephen Thome/HOU/ECT@ECT cc:

Subject: Re: ENA/PPL Escrow Agreement

I thought that I was very clear about the deadline of 10AM Eastern time. Tell Carolyn to wake up. Carolyn has set an expectation that is totally unexceptable and unfortunately to late to change. I do not think that anyone external to Enron takes this timeing issue seriously. This delay has cost Enron \$15,000. Every day that goes by and this deal does not close costs Enron \$15,000 -

PS - voice mail in portland is down today - it would appear that PGE contracts to fix this stuff during working hours - no wonder we can't sell this company.

Jake

Kay Mann@ENRON 04/25/2001 09:35 PM To: Stephen Thome/HOU/ECT@ECT, Jake Thomas/HOU/ECT@ECT cc:

Subject: ENA/PPL Escrow Agreement

The fun never ends. ----- Forwarded by Kay Mann/Corp/Enron on 04/25/2001 11:35 PM -----

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/25/2001 10:04:52 PM To: "'estelle.a.lawrence@citi.com'" <estelle.a.lawrence@citi.com>, "'barbara.bennett@citi.com'" <barbara.bennett@citi.com> cc: "'gregorylang@paulhastings.com'" <gregorylang@paulhastings.com>, "'iparker@freshfields.com'" <iparker@freshfields.com>, "'kay.mann@enron.com'" <kay.mann@enron.com>

Subject: ENA/PPL Escrow Agreement

Estelle and Barbara:

PPL's lenders have requested two items relating to the escrow prior to funding:

1. Fax copy of the Escrow Agreement signed by Citibank; and 2. E-mail confirmation that the escrow account has been opened.

Can you please furnish these items as early as possible on Thursday morning. The parties intend to fund the escrow before 10:00 central time. The money needs to make one stop before it gets to you, so the earlier it can get started the better. Please furnish these items to the following individuals:

1. Carolyn M. Campbell (fax 713-751-3280) (ccampbell@kslaw.com) 2. Greg Lang (fax 203-674-7646) (gregorylang@paulhastings.com) 3. Isabel Parker (fax 212-277-4001) (iparker@freshfields.com)

Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com>

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immediately by e-mail and delete all copies of the message.

Message 327 of 371

Re: Request for PSA and TL for EDSA on Deerfield Beach Peaker

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['john.schwartzburg@enron.com', 'steven.rose@enron.com', 'ann.white@enron.com', 'renee.alfaro@enron.com'] |
| File | mann-k/sent/3079. |

John,

I would hesitate to give up the option to TurboPark this project, unless the commercial team commits that there is no way Enron will ever want to progress with the site beyond permitting. As you know, there is no going back once we give up that optionality.

Good catch, Renee.

Kay

John Schwartzburg@ENRON_DEVELOPMENT 03/13/2001 08:04 AM To: Renee Alfaro/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Ann Elizabeth White/HOU/ECT@ECT, Steven Rose/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Kay Mann@ENRON, Barton Clark@ECT, Randy Pais@Enron

Subject: Re: Request for PSA and TL for EDSA on Deerfield Beach Peaker Project - Broward County, FL

Right, Renee. We don't want to do something that might inadvertently bust any eventual off-balance sheet treatment that might apply.

Hey, Ann. FYI, our usual form of PSA and Tasking Letter didn't fit these off balance structures on Mr. Clark's Ft. Pierce job. There was something of a controversy as a result and they had to be re-worked. We don't want to go there again.

Kay, Ann, and Steve, do you know if this project is to be Turbo-Parked and if so is the work that you need the PSA and TL hard cost or soft cost? If it's to be Turbo Parked, let's work from the forms Bart developed for Ft. Pierce. Renee, please copy Ann on each draft you turn out, including before you launch to the other side.

I am out of the office this week, but checking e-mail and voice mail about once a day. Please leave a voice mail for me at 713-646-6309 if you need me.

Thanks.

JWVS

Renee Alfaro 03/12/2001 12:47 PM

To: John Schwartzburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Ann Elizabeth White/HOU/ECT@ECT, Steven Rose/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Request for PSA and TL for EDSA on Deerfield Beach Peaker Project - Broward County, FL

John,

I have received the following request for a PSA and Tasking Letter between ENA and EDSA from Steve Rose. I want to make sure that the Deerfield Project, part of the Florida Greenfield Projects, is not being done through Off-Balance Sheet Financing, as this would preclude us from using the PSA form of contract. To this end, I am copying Ann Elizabeth White, the ENA attorney on the Florida Greenfield Projects.

Once it is determined whether a PSA and Tasking Letter is acceptable for the work, I will proceed accordingly.

If the Florida Greenfields are being financed through Turbo Park, I believe Bart Clark has a Turbo Park form for the landscape artitecture firm being used on the Ft. Pierce Project and I could try getting a copy of that from him.

Thanks Renee Alfaro Phone: 713-646-7281 Fax: 713-646-6158 Email: ralfaro@enron.com ----- Forwarded by Renee Alfaro/ENRON_DEVELOPMENT on 03/12/2001 12:42 PM -----

Steven Rose 03/12/2001 12:38 PM

To: Renee Alfaro/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Subject: Request for PSA and TL for EDSA on Deerfield Beach Peaker Project - Broward County, FL

Renee,

I let you a voice mail message about this on Friday. We have up until now been using the landscape architecture firm of Curtis-Rogers, working under a subcontract with Parsons Brinckerhoff, on the Deerfield Beach and South Dade sites. Steve Krinsky has decided that he wants to use EDSA (another landscape architecture firm we've used on Pompano Beach) to complete the landscaping design work on Deerfield Beach, and to have them work directly for ENA rather than as a sub to PB. I've already discussed this at length with Doug Smith, one of the principals at EDSA, and have e-mailed him a large quantity of design information and got EDSA kicked off to do the work. Doug is supposed to send me a summary of EDSA's NTE costs for the tasks I identified to him, which I will forward to you as soon as I get it.

EDSA is now working on the Deerfield Beach landscaping on the basis of my conversation and e-mail, and their preliminary deliverables are due Friday March 16 (i.e., the end of this week). We need to get a PSA and TL set up between ENA and EDSA to formalize this arrangement. I would like you to draft these two documents ASAP so that we can get the proper contract documents in place as quickly as possible.

I will forward to you via separate e-mails the various documentation you will need to help put this together.

I'm working at home today (typical ENA vacation day!), so you can reach me on my cell or at home if you want to talk about this.

My numbers are:

Cell: 713-854-4971 Home: 281-655-0185

Thanks in advance for your help with this task.

Regards,

Steve

Message 328 of 371

Re: CRRA

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['kay.young@enron.com', 'peter.vecchio@enron.com'] |
| File | mann-k/_sent_mail/1557. |

Alas I've been caught. I am working on a CRRA deal re fuel cells.

ckm

Kay Young@ECT 02/22/2001 08:49 AM To: Kay Mann/Corp/Enron@Enron cc: Peter del Vecchio/HOU/ECT@ECT

Subject: Re: CRRA

Kay : Are you the reigning fuel cell person? Might you know if there is any interest in a project with Connecticut Resources Recovery Authority? Have a request for a c.a. for a new recycling project (pulp and paper I think) with them and have an existing agreement re fuel cells done by Chris Gaffney last spring.

Kay C. Young Legal Specialist Enron North America Corp. 713-853-6794 Phone 713-646-3393 Fax
kay.young@enron.com

----- Forwarded by Kay Young/HOU/ECT on 02/22/2001 08:47 AM -----

Kay Young 02/22/2001 08:47 AM

To: Jay Boudreaux/Enron@EnronXGate cc: Peter del Vecchio/HOU/ECT@ECT Subject: Re: CRRA

I'll check with Peter. Were you aware there is an existing agreement re a fuel cell project with CRRA? Do you know of any continuing interest in that project? I'll check as well. We may want to amend that one or terminate it if that project is dead, to avoid any confusion.

Kay C. Young Legal Specialist Enron North America Corp. 713-853-6794 Phone 713-646-3393 Fax
kay.young@enron.com

Jay Boudreaux 02/21/2001 06:34 PM

To: Kay Young/HOU/ECT@ECT cc: Subject: CRRA

What is the status of the CA for CRRA?

JBB

Message 329 of 371

Re: Requests from the Office

| | |
|------------|-------------------------|
| Sender | kay.mann@enron.com |
| Recipients | [joya.davis@enron.com] |
| File | mann-k/_sent_mail/3937. |

Well, there's your summo wrestler, a fan, wasabi peas, and I think a sea shell.

Joya Davis@ECT 07/25/2000 08:04 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: Requests from the Office

PLEASE SEE E-MAILS BELOW. CAN YOU HELP HIM OUT? I TOLD HIM NOT TO WORRY ABOUT IT.

Joya' F. Davis Sr. Admin. Assistant ENA Legal Department EB3855A joya.davis@enron.com (713) 853-9559 DID (713) 646-4842 FAX

----- Forwarded by Joya Davis/HOU/ECT on 07/25/2000 08:03 AM -----

John Viverito@ENRON 07/25/2000 01:37 AM

To: Joya Davis/HOU/ECT@ECT cc: Subject: Re: Requests from the Office

Hi Joya-

Please see if Kay Mann can help putting the list together.

I am a bad shopper, but I will try!

Cheers,

John

Joya Davis@ECT 07/24/2000 10:52 AM

To: John Viverito/Corp/Enron@ENRON cc: Subject: Re: Requests from the Office

WE ERASED THE BOARD! SO I GUESS YOU ARE OFF THE HOOK. EVERYONE JUST WANTS YOU TO HURRY UP & COME BACK :)

Joya' F. Davis Sr. Admin. Assistant ENA Legal Department EB3855A joya.davis@enron.com (713) 853-9559 DID (713) 646-4842 FAX

John Viverito@ENRON 07/22/2000 09:20 PM

To: Joya Davis/HOU/ECT@ECT cc: Subject: Requests from the Office

Joya-

Please send me the list of the things people had requested on the board of my office, as I will be able to send things back with Alan. As your gift me be a bit difficult to send back now, think about something else and tell me!!

Thanks,

John

Message 330 of 371

FW: Ces lease/USTELENET DMS

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['tammy.brennig@enron.com', 'sharonward@akllp.com'] |
| File | mann-k/sent_items/174. |

Here's what I got from Eric on the lease. The numbers don't seem to match, but we won't worry about that now.

The Nortel RTU info is supposed to be here by Wednesday.

Sherry, please make the few changes to the draft equipment lease Tammy previously prepared to incorporate the new terms. To the extent necessary, just bracket any questions you have, especially commercial questions. We won't tackle the security agreement or the license agreement yet. Just send the revised lease to me (not Eric yet).

Please see if you can find the bankruptcy proceeding. If the docs aren't available on line, please get back to me before incurring any additional expense. I don't want to spend a lot of money on this until things become a bit more clear.

Thanks,

Kay

-----Original Message-----

From: Raab, Eric Sent: Friday, November 02, 2001 10:01 AM To: Mann, Kay Subject: FW: Ces lease/USTELENET DMS

Here it is. As mentioned, I have not seen an executed copy, and there may not be one.

TPC is a Delaware corp. HQ'd in Danbury, CT. Would that mean the Ch. 11 was filed in Delaware?

Eric

-----Original Message-----

From: Patrick Dessein Sent: Mon 10/22/2001 9:40 PM To: Raab, Eric Cc: Subject: Fw: Ces lease/USTELENET DMS

Patrick Dessein COO UsteleNet Tel : (203) 341 0620 Cel : (516) 241 7858 ----- Original Message ----- From: Patrick <mailto:pdessein@ustelenet.com> Dessein To: eric.raab@eron.com Sent: Monday, October 22, 2001 6:23 PM Subject: Ces lease/USTELENET DMS

Eric,

See attached. Switch description will follow tonight . Best Regards Patrick Dessein COO UsteleNet Tel : (203) 341 0620 Cel : (516) 241 7858

Message 331 of 371

FW: John Hancock Letter Agreement

| | |
|-------------------|--|
| Sender | ccampbell@kslaw.com |
| Recipients | ['PARKER', 'kay.mann@enron.com', 'Isabel'] |
| File | mann-k/all_documents/5092. |

Carolyn M. Campbell King?& Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

-----Original Message-----

From: VAN DUSEN, Nicholas [mailto:nicholas.vandusen@freshfields.com] Sent: Wednesday, April 25, 2001 11:38 AM To: 'ccampbell@kslaw.com'; 'gregorylang@paulhastings.com' Cc: PARKER, Isabel Subject: John Hancock Letter Agreement

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Please find the attached signed document sent on behalf of our clients.

Regards, Nick Van Dusen

Nicholas Van Dusen Freshfields Bruckhaus Deringer LLP Tel: 212-284-4984 FAX: 212-277-4001
nicholas.vandusen@freshfields.com

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- john_han.pdf

Message 332 of 371

FW: UCCs for Salmon Energy LLC as Debtor

| | |
|-------------------|---|
| Sender | ccampbell@kslaw.com |
| Recipients | ['Isabel', 'Lisa; PARKER', 'kay.mann@enron.com', 'O'BRIEN'] |
| File | mann-k/all_documents/4884. |

FYI

Carolyn M. Campbell King?& Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

-----Original Message-----

From: VAN DUSEN, Nicholas [mailto:nicholas.vandusen@freshfields.com] Sent: Thursday, April 19, 2001 2:49 PM To: 'ccampbell@kslaw.com'; 'gregorylang@paulhastings.com' Cc: O'BRIEN, Lisa; PARKER, Isabel Subject: UCCs for Salmon Energy LLC as Debtor

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Attached please find the UCC1s and continuation statement naming Salmon Energy LLC as Debtor that we plan to file in conjunction with this transaction. These documents are being provided to you now in order to allow you time to review them but they remain subject to our internal review and change.

Best Regards, Nick Van Dusen

Tel: 212-284-4984 FAX: 212-277-4001 nicholas.vandusen@freshfields.com

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- salmon_u.pdf

Message 333 of 371

FW: Documents for Signature

| | |
|------------|--|
| Sender | ccampbell@kslaw.com |
| Recipients | [' kay.mann@enron.com '] |
| File | mann-k/discussion_threads/3627 . |

Kay:

The minute book with the certificates just arrived, so I have retrieved my package will send it off as soon as we complete the membership certificates. Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<<mailto:ccampbell@kslaw.com>>

-----Original Message----- From: Campbell, Carolyn Sent: Friday, April 27, 2001 2:12 PM To: 'kay.mann@enron.com' Subject: Documents for Signature Kay: 1. I am now sending over a package with documents for execution by ENA or the LLC. I believe that everything is included except for the membership certificates. 2. Greg Lang advised this morning that the PPL membership certificate will need to be in the possession of the collateral agent on the closing date, and asked if we would agree on an understanding to have the certificate delivered in escrow to the collateral agent the night before closing. I said we could accommodate his request. We will need to get the membership certificates signed early next week. 3. Greg asked whether ENA made the timing on its notices etc. to close on Wednesday, May 2. Please advise. 4. Greg also wants ENA to discuss with GE the timing on the delivery of the L/C. This may affect the wording in the escrow disbursement instruction letter, but it will not affect the signature page. Thanks. Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <<mailto:ccampbell@kslaw.com>>

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Message 334 of 371

FW: CA Energy Development

| | |
|------------|--|
| Sender | ccampbell@kslaw.com |
| Recipients | ['John', 'kay.mann@enron.com', 'Keffer'] |
| File | mann-k/inbox/306. |

Kay:

The original documents are attached. Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3290 (fax) ccampbell@kslaw.com

-----Original Message-----

From: Campbell, Carolyn Sent: Thursday, October 04, 2001 9:28 AM To: 'kay.mann@enron.com' Cc: Keffer, John
Subject: CA Energy Development

Kay:

Per your request, we have reviewed the applicable provisions governing exercise of the put option and believe that the following documents are required:

1. Notice of Exercise; 2. Assignment of Limited Liability Company Interest; 3. Resignation of Director; and 4. Membership Certificate with Stock Power completed on reverse.

Initial drafts of the first three items listed above are enclosed for your review. Once we have your comments, we will make the necessary changes and prepare corresponding documents for CA Energy Development II, LLC.

We note that the put option is exercisable (a) after Commercial Operation or (b) at any time IF (unless SEL waives this requirement) GE acknowledges and confirms that the transfer of the ENA Interest will not prejudice the LLC's rights under the Facility Agreement. We are unsure whether commercial operation has been achieved. Accordingly, we have included in the Notice of Exercise a waiver by SEL of the requirement for a confirmation and acknowledgement from GE. Please review the enclosed and advise of any comments at your convenience. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) <mailto:ccampbell@kslaw.com>
ccampbell@kslaw.com

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Message 335 of 371

FW: Citibank's Standard Escrow documentation

| | |
|------------|---|
| Sender | ccampbell@kslaw.com |
| Recipients | ['jkeffer@kslaw.com', 'kay.mann@enron.com', 'gregorylang@paulhastings.com'] |
| File | mann-k/panda/40. |

Kay and Greg:

Please see the attached information from Citibank. The form escrow agreement attached below is the document that our escrow agreement is based from, so we can ignore the blank form for now. The remaining documents are items required for a Citibank escrow, namely an incumbency certificate from each party and a fee schedule. Also included are money market investment options. It seems that finance input from the clients may be desirable at this point with respect to the

escrow agreement and related documents.

At Citibank's request, I furnished them a copy of the letter agreement calling for the establishment of the escrow arrangement. Once we are in agreement on the form of the escrow agreement and the disbursement instructions, we need to forward those items to Citibank as well for their review. Please advise. Thank you.

Carolyn M. Campbell King?& Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

-----Original Message-----

From: Maher, Andrea M [mailto:andrea.m.maher@citi.com] Sent: Tuesday, April 10, 2001 5:05 PM To: 'ccampbell@kslaw.com' Subject: Citibank's Standard Escrow documentation

Caroline,

As per our conversation please find attached the following documents:

* Citibank's Standard Escrow Agreement * W-9 Tax forms * Incumbency Certificate * Money Market Investment Options * Fee Schedule

Please provide me with a copy of the Underlying Agreement for this transaction as soon as is convenient. You can provide your comments on the escrow agreement to Estelle Lawrence via email when you are ready.

Call me with any questions, Andrea

<<Escrow.doc>> <<Form-W-9-2000.pdf>> <<INCUMB1.DOC>> <<Immf25.doc>> <<Enron-F6.doc>>

Andrea M. Maher Citibank Agency & Trust Services Tel: 212-657-1007 Fax: 212-657-4009 andrea.m.maher@citi.com

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- Escrow.doc - Form-W-9-2000.pdf - INCUMB1.DOC - Immf25.doc - Enron-F6.doc

Message 336 of 371

| RE: Conference Call | |
|---------------------|-------------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['=20', 'stephen.thorne@enron.com'] |
| File | mann-k/_sent_mail/855. |

Want to join me? ----- Forwarded by Kay Mann/Corp/Enron on 04/11/2001 02:48= =20 PM

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/11/2001 02:45:17 PM To: "'Kay.Mann@enron.com'" <Kay.Mann@enron.com> cc: =20

Subject: RE: Conference Call

Kay:

That's fine. I'll let Greg know.

Carolyn M. Campbell King=01;& Spalding=20 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>=20 =01;

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Wednesday, April 11, 2001 2:46 PM To: Campbell, Carolyn Subject: Re: Conference Call

Thanks for writing - I deleted your message and then hopped on another conference call. How about 330?

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/11/2001 02:38:35 PM

To: "'kay.mann@enron.com'" <kay.mann@enron.com>, "'carlos.sole@enron.com'" <carlos.sole@enron.com> cc: "Keffer, John" <JKeffer@KSLAW.com>

Subject: Conference Call

Kay:

Per my voice mail, Greg Lang wanted to schedule a call for 3:00 central time today to raise something that the lenders brought up. Please advise if you are available, or if not, what time would be convenient later today. Greg says it should be a 15 minute call. Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

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Message 337 of 371

RE: CA Energy Development

| | |
|------------|---|
| Sender | ccampbell@kslaw.com |
| Recipients | ['jkeffer@kslaw.com', 'kay.mann@enron.com'] |
| File | mann-k/all_documents/5448. |

Kay:

Can you send over signed copies of the Assignment and Assumption Agreements and the Bills of Sale? I do not have signed copies. Thank you.

Carolyn M. Campbell King?& Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Tuesday, May 08, 2001 8:51 AM To: Campbell, Carolyn Cc: Keffer, John Subject: Re: CA Energy Development

Sounds fine.

Kay

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 05/07/2001 03:49:07 PM

To: "'kay.mann@enron.com'" <kay.mann@enron.com> cc: "Keffer, John" <JKeffer@KSLAW.com>

Subject: CA Energy Development

Kay:

George Kutzschbach of Fulbright called this afternoon to request copies of the executed Assignment and Assumption Agreements and Bills of Sale for the turbine/transformer transaction between ENA and Sweetgum Energy LP. George has unsigned copies of these documents. Our closing volumes also contain only unsigned copies of these documents.

George is asking for the documents with respect to both the turbines and the transformer, but is needing them specifically for the transformer. Apparently, CA-II is planning to sell the transformer, and he is gathering up the documents that would show title to the transformer in CA-II.

I have reviewed the documents, and do not see any reason why we should not deliver them. Can you provide signed copies of these documents? Thanks.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<<mailto:ccampbell@kslaw.com>>

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Message 338 of 371

Re: Rockets Vs. San Antonio Spurs

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | [janette.elbertson@enron.com] |
| File | mann-k/sent/3160. |

I figured it was a long shot. Have a great weekend.

Janette Elbertson@ECT 03/16/2001 04:09 PM To: Kay Mann/Corp/Enron@ENRON cc:

Subject: Re: Rockets Vs. San Antonio Spurs

I am sorry, but they are already gone.

Janette Elbertson Enron North America Corp. Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com

Kay Mann@ENRON 03/16/2001 03:11 PM

To: Janette Elbertson/HOU/ECT@ECT cc: Subject: Re: Rockets Vs. San Antonio Spurs

Hi Janette,

If the tickets are still available, I would love to have them. I realize I was a little slow on the draw this time!

Thanks,

Kay

Janette Elbertson@ECT 03/16/2001 02:36 PM To: Alan Aronowitz/HOU/ECT@ECT, Peggy Banczak/HOU/ECT@ECT, Sandi M Braband/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Teresa G Bushman/HOU/ECT@ECT, Bob Carter/HOU/ECT@ECT, Michelle Cash/HOU/ECT@ECT, Barton Clark/HOU/ECT@ECT, Harry M Collins/HOU/ECT@ECT, Nancy Corbet/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Ned E Crady/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Eddy Daniels/NA/Enron@Enron, Angela Davis/NA/Enron@Enron, Peter del Vecchio/HOU/ECT@ECT, Stacy E Dickson/HOU/ECT@ECT, Andrew Edison/NA/Enron@Enron, Shawna Flynn/HOU/ECT@ECT, Robert H George/NA/Enron@Enron, Barbara N Gray/HOU/ECT@ECT, James Grace/Corp/Enron@ENRON, Mark Greenberg/NA/Enron@ENRON, Wayne Gresham/HOU/ECT@ECT, Leslie Hansen/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Dan J Hyvl/HOU/ECT@ECT, Anne C Koehler/HOU/ECT@ECT, Dan Lyons/HOU/ECT@ECT, Kay Mann/Corp/Enron@Enron, Travis McCullough/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT, Janet H Moore/HOU/ECT@ECT, Janice R Moore/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT, Cheryl Nelson/NA/Enron@Enron, Gerald Nemec/HOU/ECT@ECT, Marcus Nettelton/NA/Enron@ENRON, Francisco Pinto Leite/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, David Portz/HOU/ECT@ECT, Coralina Rivera/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Michael A Robison/HOU/ECT@ECT, Daniel R Rogers/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Elizabeth Sager/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Lance Schuler-Legal/HOU/ECT@ECT, Sara Shackleton/HOU/ECT@ECT, Carlos Sole/NA/Enron@Enron, Carol St Clair/HOU/ECT@ECT, Lou Stoler/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Sheila Tweed/HOU/ECT@ECT, Steve Van Hooser/HOU/ECT@ECT, John Viverito/Corp/Enron@Enron, Ann Elizabeth White/HOU/ECT@ECT, Stuart Zisman/HOU/ECT@ECT cc:

Subject: Rockets Vs. San Antonio Spurs

Mark Haedicke has four tickets to the game on Saturday, March 17. The tickets will be given away on a first-come, first-served basis. Please reply by e-mail.

Janette Elbertson Enron North America Corp. Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com

Message 339 of 371

FW: ENA Consent

| | |
|------------|---------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['carlos.sole@enron.com'] |
| File | mann-k/_sent_mail/750. |

Is this ok? ----- Forwarded by Kay Mann/Corp/Enron on 04/18/2001 10:47 AM -----

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/18/2001 10:37:00 AM To: "'kay.mann@enron.com'" <kay.mann@enron.com> cc:

Subject: FW: ENA Consent

Kay:

The enclosed ENA Consent looks fine to me, but you may wish to run this by Sheila Tweed, as she had a specific request on the NY court jurisdiction language. We initially advised Isabel Parker that Enron would accept NY federal court jurisdiction but not jurisdiction of NY state courts. She did not take our comment, and Enron subsequently said it would accept jurisdiction of commercial courts in Manhattan, but not state courts generally (language suggested by Sheila Tweed through Carlos Sole). Isabel has drafted the revised version to delete reference to NY state courts altogether and to limit the federal courts reference to those located in the borough of Manhattan. Please review and advise.

Carolyn M. Campbell King?& Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

-----Original Message-----

From: VAN DUSEN, Nicholas [mailto:nicholas.vandusen@freshfields.com] Sent: Wednesday, April 18, 2001 9:24 AM To: 'gregorylang@paulhastings.com'; 'ccampbell@kslaw.com' Cc: PARKER, Isabel; O'BRIEN, Lisa Subject: ENA Consent

This e-mail is confidential and may well also be legally privileged. If you have received it in error, you are on notice of its status. Please notify us immediately by reply e-mail and then delete this message from your system. Please do not copy it or use it for any purposes, or disclose its contents to any other person: to do so could be a breach of confidence. Thank you for your co-operation. Please contact our IT Helpdesk on +44 (0) 20 7936 4000 Ext.2000 or email ITHelp@freshfields.com if you need assistance.

Attached please find a clean and blacklined version with the most recent changes to this document. We now believe that the document should be in final form but please let us know if you have further comments.

Regards, Nick Van Dusen

Tel: 212-284-4984 FAX: 212-277-4001 nicholas.vandusen@freshfields.com

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- COMPARE001.DOC - NY003699617.DOC

Message 340 of 371

Re: FW: Amendment No. to 1 Letter Agreement

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['jkeffer@kslaw.com', 'ccampbell@kslaw.com'] |
| File | mann-k/_sent_mail/2181. |

I'm checking.

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 01/03/2001 04:37:22 PM To: "'kay.mann@enron.com'" <kay.mann@enron.com> cc: "Keffer, John" <JKeffer@KSLAW.com>=20

Subject: FW: Amendment No. to 1 Letter Agreement

Kay:

Please see George Kutzschbach's comments to the amendment below. I would accept his comment #2. What is ENA's reaction to comment #1? Please advise. Thank you. =20

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com> =20 =01;

-----Original Message-----

From: George Kutzschbach [mailto:gkutzschbach@fulbright.com]=20 Sent: Wednesday, January 03, 2001 3:55 PM To: Campbell, Carolyn Cc: DPedigo@INTERGEN.com; jjones@INTERGEN.com Subject: Re: Amendment No. to 1 Letter Agreement

Carolyn,=20

In addition to Doug's comments regarding the Amendment, the second sentence of Section 2 of the Original Agreement which is in quotation marks in paragraph 1 of your draft of the Amendment should be revised in the following respects:

- 1) The outside closing date of "January 15, 2001" should be changed to "January 22, 2001" to give sufficient time for the Facility Agreement to be signed after the funding of the escrow; and
- 2) The reference to "the Original Agreement" should be to "this Agreement" since this sentence is being inserted in the Original Agreement.

George

"Campbell, Carolyn" <CCampbell@KSLAW.com> 01/02/01 05:39PM >>>

<<2SX801!.DOC>>=20

George:

We have enclosed for your review the initial draft of an amendment to the letter agreement pertaining to CA Energy Development I LLC. Similar amendments will be prepared for the other two letter agreements.=20 Please review and advise of any comments at your earliest convenience. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>=20

Enclosure: 130796v1

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Message 341 of 371

RE: ENA Agreement as to Forms of Agreements

| | |
|------------|--|
| Sender | ccampbell@kslaw.com |
| Recipients | ['kay.mann@enron.com\' <kay.mann@enron.com', 'kay.mann@enron.com', 'Keffer', 'John'] |
| File | mann-k/panda/67. |

Kay:

We need agreement on the escrow disbursement letter (which Delta still needs to comment on). Per the letter agreement, we already have agreement on the form of Amended and Restated LLC Agreement; however, the outstanding issue with respect to requiring unanimous member consent for sale of all or substantially all of the assets of the LLC is still on the table.

Isabel Parker called and reminded me that the ENA Consent and Agreement is to be signed tomorrow, Friday 4/20, contemporaneously with the funding of the escrow account, rather than upon closing. She is happy with the letter if we drop its references to the ENA Consent and Agreement.

I am now worried about the ability to have an escrow funded by tomorrow, given that we still haven't let the escrow agent in on this structure. Greg called about an hour ago and said he was working on comments to the escrow agreement.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Thursday, April 19, 2001 3:23 PM To: Campbell, Carolyn Subject: Re: ENA Agreement as to Forms of Agreements

Is there anything we need to get them to consent to?

Kay

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/19/2001 02:17:42 PM

To: "gregorylang@paulhastings.com" <gregorylang@paulhastings.com>, "iparker@freshfields.com" <iparker@freshfields.com> cc: "kay.mann@enron.com" <kay.mann@enron.com>, "Keffer, John" <JKeffer@KSLAW.com>

Subject: ENA Agreement as to Forms of Agreements

<<30b202!.DOC>>

Greg and Isabel:

Enclosed is the initial draft of a letter agreement by ENA consenting to the form of the ENA Consent, the Promissory Note, the Security Agreement and the Financing Statement, prepared along the same lines as the GE consent. Please review and advise of any comments. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

Enclosure 140366v2

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(See attached file: 30b202!.DOC)

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Message 342 of 371

RE: Delta Documents

| | |
|------------|----------------------------|
| Sender | ccampbell@kslaw.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/all_documents/5247. |

Kay:

Can we at least get the membership certificates signed by Tuesday? This seems to be the only document required in advance of closing. If we can't get the 80% membership interest certificate in the lender's possession on the closing date, then there is a lien perfection issue for them to deal with, and I thought we could accommodate their request and avoid the problem altogether. Please advise, as Greg and Isabel will be calling within an hour or so to finalize the mechanics on this. Thanks.

Carolyn M. Campbell King?& Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Monday, April 30, 2001 10:40 AM To: Campbell, Carolyn Subject: Re: Delta Documents

I've asked GE for the LOC by Wednesday, but I haven't gotten a response.

I'll have difficulty getting executed docs by Tuesday, since sigs are coming from Portland. I'll have to check to see what can be done.

Kay

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/30/2001 10:02:44 AM

To: "'kay.mann@enron.com'" <kay.mann@enron.com> cc:

Subject: Delta Documents

Kay:

Can you get executed documents back to me on Tuesday? Greg has requested that we send the original membership certificate representing the 80% interest to the collateral agent Tuesday night by overnight delivery to hold in escrow until closing, in order that the collateral agent is in possession of the certificate (for purposes of legal opinions) upon closing on Wednesday. Greg is planning to fax signature pages of all of their closing documents later today. (I will be out of the office at a meeting with another client most of the afternoon today).

There is one last question with GE dealing with the letter of credit for the retention amount, as this affects our disbursement instruction letter. I advised Greg that GE's normal practice was to send the retention L/C after receipt of payment. He is considering this, but may want to talk to GE about the ability to present the L/C at closing. Do you have any thoughts on this?

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

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Message 343 of 371

Re: ENA Request for Instruction from PPL

| | |
|------------|--------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['=20', 'ccampbell@kslaw.com'] |
| File | mann-k/_sent_mail/704. |

Good idea. I wouldn't mind something that says that funding of the escrow = is=20 tantamount to closing of the financing under the letter agreement, so that= =20 the financing condition is satisfied. Something to that effect. It will= =20 calm

Jake down considerably.

Kay

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/19/2001 04:07:07 PM To: "Kay.Mann@enron.com" <Kay.Mann@enron.com> cc: =20

Subject: ENA Request for Instruction from PPL

Kay:

Another thought: It seems that perhaps we should require a letter from PPL instructing ENA that the attached forms of Promissory Note, Security Agreement and Financing Statement are the forms desired, negotiated and approved by PPL for purposes of obtaining its financing, and acknowledging that PPL indemnifies ENA from and against, and that ENA shall have no liability or responsibility, whether pursuant to the letter agreement or as sole member or otherwise for, the substance or content of the Promissory Note, Security Agreement and Financing Statement. What do you think?

Carolyn M. Campbell King=01;& Spalding=20 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com>=20 =01;

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Thursday, April 19, 2001 3:23 PM To: Campbell, Carolyn Subject: Re: ENA Agreement as to Forms of Agreements

Is there anything we need to get them to consent to?

Kay

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/19/2001 02:17:42 PM

To: "gregorylang@paulhastings.com" <gregorylang@paulhastings.com>, "jparker@freshfields.com" <jparker@freshfields.com> cc: "kay.mann@enron.com" <kay.mann@enron.com>, "Keffer, John" <JKeffer@KSLAW.com>

Subject: ENA Agreement as to Forms of Agreements

<<30b202!.DOC>>

Greg and Isabel:

Enclosed is the initial draft of a letter agreement by ENA consenting to the form of the ENA Consent, the Promissory Note, the Security Agreement and the Financing Statement, prepared along the same lines as the GE consent. Please review and advise of any comments. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com>

Enclosure 140366v2

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(See attached file: 30b202!.DOC)

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Message 344 of 371

RE: ENA Agreement as to Forms of Agreements

| | |
|-------------------|--------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['=20', 'ccampbell@kslaw.com'] |
| File | mann-k/sent/3710. |

I'm not betting the farm on the escrow funding tomorrow. I'll manage=20 expectations on this end. I don't want to let up on Delta, however.

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/19/2001 03:48:56 PM To: ""Kay.Mann@enron.com"" <Kay.Mann@enron.com> cc: =20

Subject: RE: ENA Agreement as to Forms of Agreements

Kay:

We need agreement on the escrow disbursement letter (which Delta still need= s to comment on). Per the letter agreement, we already have agreement on the form of Amended and Restated LLC Agreement; however, the outstanding issue with respect to requiring unanimous member consent for sale of all or substantially all of the assets of the LLC is still on the table. =20

Isabel Parker called and reminded me that the ENA Consent and Agreement is to be signed tomorrow, Friday 4/20, contemporaneously with the funding of the escrow account, rather than upon closing. She is happy with the letter if we drop its references to the ENA Consent and Agreement.

I am now worried about the ability to have an escrow funded by tomorrow, given that we still haven't let the escrow agent in on this structure. Gre= g called about an hour ago and said he was working on comments to the escrow agreement.

Carolyn M. Campbell King=01;& Spalding=20 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com>=20 =01;

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Thursday, April 19, 2001 3:23 PM To: Campbell, Carolyn Subject: Re: ENA Agreement as to Forms of Agreements

Is there anything we need to get them to consent to?

Kay

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/19/2001 02:17:42 PM

To: "gregorylang@paulhastings.com" <gregorylang@paulhastings.com>, "iparker@freshfields.com" <iparker@freshfields.com> cc: "kay.mann@enron.com" <kay.mann@enron.com>, "Keffer, John" <JKeffer@KSLAW.com>

Subject: ENA Agreement as to Forms of Agreements

<<30b202!.DOC>>

Greg and Isabel:

Enclosed is the initial draft of a letter agreement by ENA consenting to the form of the ENA Consent, the Promissory Note, the Security Agreement and the Financing Statement, prepared along the same lines as the GE consent. Please review and advise of any comments. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com>

Enclosure 140366v2

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(See attached file: 30b202!.DOC)

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Message 345 of 371

RE: Delta Documents

| | |
|------------|--------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['=20', 'ccampbell@kslaw.com'] |
| File | mann-k/sent/3926. |

The problem is in getting the original in their hands (where?) by tomorrow. Does it have to be an original?

Kay

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/30/2001 11:04:21 AM To: "Kay.Mann@enron.com" <Kay.Mann@enron.com> cc: =20

Subject: RE: Delta Documents

Kay:

Can we at least get the membership certificates signed by Tuesday? This seems to be the only document required in advance of closing. If we can't get the 80% membership interest certificate in the lender's possession on the closing date, then there is a lien perfection issue for them to deal with, and I thought we could accommodate their request and avoid the problem altogether. Please advise, as Greg and Isabel will be calling within an hour or so to finalize the mechanics on this. Thanks.

Carolyn M. Campbell King=01;& Spalding=20 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com <mailto:ccampbell@kslaw.com>=20 =01;

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Monday, April 30, 2001 10:40 AM To: Campbell, Carolyn Subject: Re: Delta Documents

I've asked GE for the LOC by Wednesday, but I haven't gotten a response.

I'll have difficulty getting executed docs by Tuesday, since sigs are coming from Portland. I'll have to check to see what can be done.

Kay

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 04/30/2001 10:02:44 AM

To: "kay.mann@enron.com" <kay.mann@enron.com> cc:

Subject: Delta Documents

Kay:

Can you get executed documents back to me on Tuesday? Greg has requested that we send the original membership certificate representing the 80% interest to the collateral agent Tuesday night by overnight delivery to hold in escrow until closing, in order that the collateral agent is in possession of the certificate (for purposes of legal opinions) upon closing on Wednesday. Greg is planning to fax signature pages of all of their closing documents later today. (I will be out of the office at a meeting with another client most of the afternoon today).

There is one last question with GE dealing with the letter of credit for the retention amount, as this affects our disbursement instruction letter. I advised Greg that GE's normal practice was to send the retention L/C after receipt of payment. He is considering this, but may want to talk to GE about the ability to present the L/C at closing. Do you have any thoughts on this?

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

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Message 346 of 371

Re: FW: Amendment No. to 1 Letter Agreement

| | |
|-------------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['ben.jacoby@enron.com', 'Fred Mitro/HOU/ECT@ECT=20'] |
| File | mann-k/all_documents/2956. |

They still have to fund at the same time.

From: Ben F Jacoby @ ECT 01/04/2001 09:05 AM

Sent by: Ben Jacoby@ECT To: Kay Mann/Corp/Enron@ENRON cc: Fred Mitro/HOU/ECT@ECT=20

Subject: Re: FW: Amendment No. to 1 Letter Agreement

As long as we do not dilute their funding obligation. It seems that it would be a good idea.

Ben

Kay Mann@ENRON 01/03/2001 04:45 PM To: Ben Jacoby/HOU/ECT@ECT, Fred Mitro/HOU/ECT@ECT cc: =20
Subject: FW: Amendment No. to 1 Letter Agreement

Any interest in extending it to Jan 22? ----- Forwarded by Kay Mann/Corp/Enron on 01/03/2001 04:44 PM -----

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 01/03/2001 04:37:22 PM To: "kay.mann@enron.com"
<kay.mann@enron.com> cc: "Keffer, John" <JKeffer@KSLAW.com>=20

Subject: FW: Amendment No. to 1 Letter Agreement

Kay:

Please see George Kutzschbach's comments to the amendment below. I would accept his comment #2. What is ENA's reaction to comment #1? Please advise. Thank you. =20

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com> =20 =01;

-----Original Message-----

From: George Kutzschbach [mailto:gkutzschbach@fulbright.com]=20 Sent: Wednesday, January 03, 2001 3:55 PM To: Campbell, Carolyn Cc: DPedigo@INTERGEN.com; jjones@INTERGEN.com Subject: Re: Amendment No. to 1 Letter Agreement

Carolyn,=20

In addition to Doug's comments regarding the Amendment, the second sentence of Section 2 of the Original Agreement which is in quotation marks in paragraph 1 of your draft of the Amendment should be revised in the following respects:

- 1) The outside closing date of "January 15, 2001" should be changed to "January 22, 2001" to give sufficient time for the Facility Agreement to be signed after the funding of the escrow; and
- 2) The reference to "the Original Agreement" should be to "this Agreement" since this sentence is being inserted in the Original Agreement.

George

"Campbell, Carolyn" <CCampbell@KSLAW.com> 01/02/01 05:39PM >>>

<<2SX801!.DOC>>=20

George:

We have enclosed for your review the initial draft of an amendment to the letter agreement pertaining to CA Energy Development I LLC. Similar amendments will be prepared for the other two letter agreements.=20 Please review and advise of any comments at your earliest convenience. Thank you.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>=20

Enclosure: 130796v1

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*Message 347 of 371***ComEd legal contact - Interconnect LOI's**

| | |
|-------------------|---|
| Sender | fred.mitro@enron.com |
| Recipients | ['ben.jacoby@enron.com', 'rusty.stevens@enron.com', 'kay.mann@enron.com'] |
| File | mann-k/chicago/35. |

Kay:

The legal person responsible for the ComEd LOI's is:

Carter Culver Senior Counsel Commonwealth Edison Company phone: (312) 394-2754 fax: (312) 394-3950 e-mail: carter.c.culver@ucm.com

I will fax you my comments on the LOI's (Kendall New Century and Titan Land) this evening from my hotel (10 pm). Please review the documents and incorporate our desired legal and commercial changes. Call me on my cell tomorrow to discuss (713-412-4612). If you wish to talk to Carter directly, give him a call or email him (see above). We should be in a position to have these LOI's initialed by Wednesday at noon.

Thanks, Fred

*Message 348 of 371***Re: CO#6 for Fountain Valley**

| | |
|-------------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['mtezyk@enron.com', 'lee.johnson@ss.ps.ge.com', 'michael.storm@ss.ps.ge.com', 'ed.dannhaus@enron.com'] |
| File | mann-k/sent/1894. |

Gentlemen,

Since we are moving the equipment from WestLB and into TurboPark, and since we are just about there with the breakout contracts, we need to process this as change order #1 to the Fountain Valley contract. I also believe we need the site specific stuff for this project.

Kay

michael.storm@ss.ps.ge.com on 12/11/2000 03:17:27 PM To: Kay.Mann@enron.com, Ed.Dannhaus@enron.com, mtezyk@enron.com cc: lee.johnson@ss.ps.ge.com

Subject: CO#6 for Fountain Valley

All,

Attachment contains latest revision reflecting order for two additional stacks, six power stabilizers and moving cost for the Fountain Valley Project. Please review and let me know if additional changes are required or recommended.

<<changeorder#6rev2.doc>> Please note new contact information below:

Mike Storm

g GE Aero Energy Products

A GE Power Systems Business Michael E. Storm Projects Phone: (281) 864-2601 Dial Com 8*326-2601 Fax: (281) 864-2116, Pager 888 487 5741

- changeorder#6rev2.doc

*Message 349 of 371***Re: Signed Change Notice - LM6000 Contract**

| | |
|-------------------|------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['rebecca.walker@enron.com'] |
| File | mann-k/_sent_mail/2339. |

I know Ben wants us to substitute the one signed by the other guy. I'll take care of it.

From: Rebecca Walker 12/19/2000 09:17 AM

To: Kay Mann/Corp/Enron@Enron cc:

Subject: Signed Change Notice - LM6000 Contract

Kay

Can you please fax Karla Hesketh at ABB a copy of the signed change order? I have a copy of the change order with Mike Sandridge's signature on it, but I'm not sure which signature page we're using as the final official document and therefore which version I should fax to Karla.

Thanks, Rebecca ----- Forwarded by Rebecca Walker/NA/Enron on 12/19/2000 09:11 AM

karla.hesketh@ustra.mail.abb.com on 12/19/2000 08:14:22 AM To: rebecca.walker@enron.com cc:
michael.o.sandridge@ustra.mail.abb.com

Subject: Signed Change Notice - LM6000 Contract

Hi Rebecca,

By any chance did Ben leave a copy of the signed contract change order with you? If so could you fax a copy to me at 713-821-3526.

Thank you, Karla

Karla Hesketh\ABB Ph: 713-821-4016, Fx: 713-821-3526

*Message 350 of 371***Re: LM 6000 LOCs**

| | |
|-------------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['roseann.engeldorf@enron.com', 'rebecca.walker@enron.com', 'lisa.bills@enron.com'] |
| File | mann-k/sent/2610. |

Hi Rebecca,

Have they issued the news one yet? If not, I would add the following language:

February 2, 2001

The Chase Manhattan Bank Documentary Division 717 Travis Street Houston, Texas 77002-8300

GE Packaged Power 16415 Jacintoport Blvd. Houston, Texas 77015

To Whom It May Concern:

Enron North America Corp., as Agent for E-Next Generation, L.L.C. hereby requests that Chase Manhattan Bank cancel the following letters of credit (which have previously been returned to GE) upon issuance of corresponding letters of credit

for CA Energy Development I, CA Energy Development II, and (who did the last one go to?)

L/C No.: D-209349 Original Issue Date: January 10, 2001 Amount: \$4,289,200 Beneficiary: E-Next Generation, L.L.C.

L/C No.: D-209350 Original Issue Date: January 10, 2001 Amount: \$717,600 Beneficiary: E-Next Generation, L.L.C.

L/C No: D-209351 Original Issue Date: January 10, 2001 Amount: \$717,600 Beneficiary: E-Next Generation, L.L.C.

Thank you for your assistance in this matter.

Sincerely,

Ben Jacoby Attorney-in-Fact Enron North America Corp.

Message 351 of 371

Continental Airlines - Elite Upgrade

| | |
|------------|------------------------|
| Sender | eua@coair.com |
| Recipients | ['kay.mann@enron.com'] |
| File | mann-k/inbox/189. |

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: U13JPV Flight Number: 772 Date: October 25, 2001 Origination: IAH Destination: YYZ Seat: 02B*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 2 hours prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS E-MAIL. UNFORTUNATELY E-MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED. PLEASE DIRECT ALL INQUIRIES TO THE ELITE PRIORITY LINE, WHICH CAN BE FOUND ON YOUR ELITE CARD.

To make changes to your e-mail address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

To unsubscribe from OnePass Elite upgrade e-mail notification, please visit <http://onepass.continental.com/emailupgrades>

Thank you for choosing Continental Airlines.

Message 352 of 371

Continental Airlines - Elite Upgrade

| | |
|------------|--------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['nmann@erac.com'] |
| File | mann-k/sent/3344. |

is this your flight? Have you seen your ticket? It isn't in my name, is it? ----- Forwarded by Kay Mann/Corp/Enron on 04/02/2001 08:53 AM -----

<EUA@coair.com> on 04/02/2001 01:01:02 AM To: <kay.mann@enron.com> cc:

Subject: Continental Airlines - Elite Upgrade

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: J76ZJX Flight Number: 1504 Date: April 05, 2001 Origination: IAH Destination: MCO Seat: 05F*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 1 hour prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS EMAIL. UNFORTUNATELY MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED.

To make changes to your email address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

Thank you for choosing Continental Airlines.

Message 353 of 371

Re: Officers Meeting

| | |
|------------|--------------------|
| Sender | kay.mann@enron.com |
| Recipients | [nmann@erac.com] |
| File | mann-k/sent/548. |

I hope to go, at least Friday/Saturday, assuming we have a sitter for Michael, of course.

I met Mrs. Kerekarto yesterday.

Chris Duerr (duerrc@spring-branch.isd.tenet.edu/). Maybe you should ask to visit which ever classroom Chris thinks Michael would be in assuming he started at VO on September 5. Just a suggestion. Or maybe you can visit more than one class. You might want to ask to visit a class during an academic time (as opposed to when the kids are in centers).

"Neil Mann" <nmann@erac.com> on 08/24/2000 08:08:02 AM Please respond to <nmann@erac.com> To: "C. Kay Mann (E-mail)" <Kay.Mann@Enron.com> cc:

Subject: Officers Meeting

I know a lot can happen in 60 days but what do you think the chances are you will go today? I will not send anything to Rose Mary yet. NM

TEXAS CURRENT MESSAGES CCMS01-F To: MANN*NEIL* 06031 06 To: From: JOSEPH*ROSE MARY* 01087 77 CC: 90327 Subject: Officer Mtg. Attendance Std Dist: 00 00 00 00 00 Select "X" one or multiple options: Emp List: FM Delete Forward Print Save ECARS Recall date: 0/00/00 Page: 01 of 01 8/23 14:14 TO; Fall Officer Meeting Attendees

If your spouse will not be attending the meeting this October, please let me know as soon as you can. We need this information to maintain an accurate headcount for seating at meals, the speaker session, etc.

Thanks!

Rose Mary

LAST PAGE Cmd1=Choose Msg Cmd3=Exit Cmd5=View Addressees

Message 354 of 371

Re: Coral closing Schedule - Part II

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['ben.f.jacoby@enron.com', 'jkeffer@kslaw.com', 'ccampbell@kslaw.com'] |
| File | mann-k/sent/2006. |

Not exactly a "yes, we can close on Wednesday".

"Campbell, Carolyn" <CCampbell@KSLAW.com> on 12/15/2000 06:00:44 PM To: "Kay.Mann@enron.com" <Kay.Mann@enron.com> cc: "Ben.F.Jacoby@enron.com" <Ben.F.Jacoby@enron.com>, "Keffer, John" <JKeffer@KSLAW.com>

Subject: Coral closing Schedule - Part II

George called back to let me know that Coral/Tejas is now out and Interger is taking over. George forwarded current drafts of the documents to John Jones of Interger. George has told John that Enron is interested in closing on Wednesday, and John was to review the documents over the weekend. George believes he has conveyed to John that the documents have been negotiated on the buyer's behalf, but George is uncertain whether Interger will find it necessary to negotiate additional or other issues. (It is George's understanding that John Jones is in the legal department). I tried to contact John Jones directly (phone 713-374-3919), but as of late Friday, he has not returned my call.

Carolyn M. Campbell King & Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<mailto:ccampbell@kslaw.com>

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Message 355 of 371

FW: Revised Lease Model

| | |
|------------|-----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['jeffrey.hodge@enron.com'] |
| File | mann-k/_sent_mail/926. |

This is a BIG deal! ----- Forwarded by Kay Mann/Corp/Enron on 04/09/2001 01:16 PM -----
From: Herman Manis/ENRON@enronXgate on 04/09/2001 01:14 PM To: Sheila Tweed/HOU/ECT@ECT, Barbara N Gray/HOU/ECT@ECT, Barton Clark/HOU/ECT@ECT, Kay Mann/Corp/Enron@Enron, ann.elizabeth.white@enron.com@SMTP@enronXgate, Carlos Sole/NA/Enron@Enron, Karen E Jones/HOU/ECT@ECT, Dale Rasmussen/HOU/ECT@ECT cc:

Subject: FW: Revised Lease Model

Current negotiations with AALLP has provided us "a new look" at the current lease model. It has loosened up somewhat to our benefit. AALLP has agreed to a "two bucket" approach as indicated on the attached matrix. Note that we may operate under this model until the EITF provides definitive guidance which is expected in December 2001.

We should now focus on the O&M aspect of an existing or development project.

If we pass bucket one as it relates to O&M and offtake limits of 95% or less, we will not be in a lease and do not proceed to bucket 2. Bucket two is essentially where we have been up to now.

In a nutshell, if Enron does not operate, does not have the ability to hire and fire the operator (must have less than 50% voting on this), does not set or approve operating policies and procedures and takes 95% or less of the offtake, we should not be in a lease and we stop there. If we supply the fuel and take 95% or less of the offtake and pass O&M criteria, the fuel supply agreement must have significant LD's. See specifics for Bucket 1 on the attached.

NOTE: Please keep us in the loop on new deals as we roll out this new model. We still need to scrub the deals in order to keep AALLP informed.

Please distribute to those I have missed.

R. Herman Manis

work 713 853 1779 home 713 977 6057 cell 713 870 0708

Message 356 of 371

| RE: Escalade | |
|--------------|---------------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['nmann@erac.com'] |
| File | mann-k/discussion_threads/2702. |

fyi. Comment? ----- Forwarded by Kay Mann/Corp/Enron on 03/06/2001 08:47 AM -----

"Leatha Brown" <lbrown1@erac.com> on 03/05/2001 05:37:50 PM Please respond to <lbrown1@erac.com> To: <Kay.Mann@enron.com> cc:

Subject: RE: Escalade

Kay, The dealership will not come down on the price for the gold and wood trim. I have an aftermarket company that can do both for \$550.00. Here is a 36 month quote for the Cadillac including the gold and wood. Please review and let me know if you have any questions.

EQUITY LEASE FOR TERM OF 36 MONTHS

\$ 39976.38 Cost of vehicle 2498.52*Sales tax 161.00*Registration 7500.00*Cost reduction

\$ 39976.38 Delivered price

\$ 568.33 monthly depreciation 187.81 Monthly lease charge

\$ 756.14 Monthly rental

\$ 12016.15 Termination value @ 48 months

*to be billed on delivery

Let me know what you think.

Leatha

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Saturday, March 03, 2001 5:05 PM To: lbrown1@erac.com Cc: nmann@erac.com Subject: Escalade

Hi Leatha,

Neil and I went to D Taylor and looked at an Escalade. We liked it, however, we want to price it with a couple of extra features. I like the extra wood package, and Neil likes it with the gold trim package. When we asked for a price, it added around \$1700, which I thought was ridiculous. They offered to discount it by \$200, which I again thought was ridiculous. When we priced these options at McGinniss, the price was less (\$600 for the wood package instead of \$995, for instance),

and they offered to discount the options by a third. So, we can get the deal done if they will get reasonable over these options. The sales guy (Nathaniel) was going to "work on it". The fellow you had told us to ask for wasn't in, by the way.

I will be out of town on Monday, but Neil will be in, and will have my Lexus.

Thanks,

Kay

Message 357 of 371

RE: Continental Airlines - Elite Upgrade

| | |
|------------|----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['nmann@erac.com'] |
| File | mann-k/all_documents/4393. |

That's my One Pass number.

ckm

"Neil Mann" <nmann@erac.com> on 04/02/2001 09:23:53 AM Please respond to <nmann@erac.com> To: <Kay.Mann@enron.com> cc:

Subject: RE: Continental Airlines - Elite Upgrade

This is my flight and the ticket is in my name. The travel agt said I was also a OnePass Elite (#COHG770475) and that there might be an auto upgrade two days prior to the flight at no charge.

Just getting out of our Monday meeting. The building has yet to turn on the a/c and it's hot in here!

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Monday, April 02, 2001 8:54 AM To: nmann@erac.com Subject: Continental Airlines - Elite Upgrade

is this your flight? Have you seen your ticket? It isn't in my name, is it? ----- Forwarded by Kay Mann/Corp/Enron on 04/02/2001 08:53 AM -----

<EUA@coair.com> on 04/02/2001 01:01:02 AM

To: <kay.mann@enron.com> cc:

Subject: Continental Airlines - Elite Upgrade

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: J76ZJX Flight Number: 1504 Date: April 05, 2001 Origination: IAH Destination: MCO Seat: 05F*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 1 hour prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS EMAIL. UNFORTUNATELY MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED.

To make changes to your email address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

Thank you for choosing Continental Airlines.

Message 358 of 371

| Re: Signature Pages and Wire | |
|------------------------------|---|
| Sender | ben.jacoby@enron.com |
| Recipients | ['jkeffer@kslaw.com', 'jeremiahdeberry@paulhastings.com', 'kay.mann@enron.com'] |
| File | mann-k/all_documents/5137. |

All:

On the Enron commercial side, Rebecca Walker will be coordinating any needs and info on the closing (i.e. our receipt of FedRef #s) as Chris Booth is out of the office. Please contact her with any questions, and with the wire information. Her phone number is 713-345-7968, and her e-mail is rebecca.walker@enron.com. Please also include her on any additional e-mails.

Thanks much.

Ben

"Keffer, John" <JKeffer@KSLAW.com> on 04/26/2001 09:38:25 AM To: "Jeremiah A. DeBerry (E-mail)" <JeremiahDeberry@paulhastings.com> cc: "C. Kay Mann (E-mail)" <Kay.Mann@enron.com>, "Michael Young (E-mail)" <Michael.Young@northwestern.com>, "Ben F. Jacoby (E-mail)" <Ben.F.Jacoby@enron.com>, "Reuter, Marisa" <MReuter@KSLAW.com> Subject: Signature Pages and Wire

Jerry-as we discussed, here are PDF files containing Enron's signature pages to the Letter Agreement and the two Change Orders. As soon as you receive these, you will send to Ben, Kay and me your client's signature pages to the Letter Agreement and Guarantee, and Mike will begin the wire transfer of \$3 million. Mike will also send to Ben, Kay and me the Fed reference number as soon as he gets it. Finally, as agreed, Paul Hastings will assemble the documents for distribution to the parties. To that end, Kay, please send the 6 originals of the signature pages by overnight delivery to Jerry.

Regards

John L. Keffer King & Spalding 713 751 3255 713 751 3280 (fax) jkeffer@kslaw.com <<NW_ltr_agmt.pdf>> <<co1.pdf>> <<co2.pdf>>

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- NW_ltr_agmt.pdf - co1.pdf - co2.pdf

Message 359 of 371

| RE: Escalade | |
|--------------|----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['lbrown1@erac.com'] |
| File | mann-k/all_documents/3891. |

Leatha,

I have a couple of questions. Do your numbers assume \$7500 down (in addition to the tax etc), and is the term 36 months or 48? Both time frames are mentioned in your explanation.

Have we heard anything on the remarketing of my Lexus? Does the cost include the tax trade on the Lexus?

Thanks for your help,

Kay

"Leatha Brown" <lbrown1@erac.com> on 03/05/2001 05:37:50 PM Please respond to <lbrown1@erac.com> To: <Kay.Mann@enron.com> cc:

Subject: RE: Escalade

Kay, The dealership will not come down on the price for the gold and wood trim. I have an aftermarket company that can do both for \$550.00. Here is a 36 month quote for the Cadillac including the gold and wood. Please review and let me know if you have any questions.

EQUITY LEASE FOR TERM OF 36 MONTHS

\$ 39976.38 Cost of vehicle 2498.52*Sales tax 161.00*Registration 7500.00*Cost reduction

\$ 39976.38 Delivered price

\$ 568.33 monthly depreciation 187.81 Monthly lease charge

\$ 756.14 Monthly rental

\$ 12016.15 Termination value @ 48 months

*to be billed on delivery

Let me know what you think.

Leatha

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Saturday, March 03, 2001 5:05 PM To: lbrown1@erac.com Cc: nmann@erac.com Subject: Escalade

Hi Leatha,

Neil and I went to D Taylor and looked at an Escalade. We liked it, however, we want to price it with a couple of extra features. I like the extra wood package, and Neil likes it with the gold trim package. When we asked for a price, it added around \$1700, which I thought was ridiculous. They offered to discount it by \$200, which I again thought was ridiculous. When we priced these options at McGinniss, the price was less (\$600 for the wood package instead of \$995, for instance), and they offered to discount the options by a third. So, we can get the deal done if they will get reasonable over these options. The sales guy (Nathaniel) was going to "work on it". The fellow you had told us to ask for wasn't in, by the way.

I will be out of town on Monday, but Neil will be in, and will have my Lexus.

Thanks,

Kay

Message 360 of 371

Re: CO#6 for Fountain Valley

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['michael.storm@ss.ps.ge.com@ENRON', 'sheila.tweed@enron.com', 'Ed.Dannhaus@enron.com@ENRON'] |
| File | mann-k/discussion_threads/1796. |

I'm thinking this is a good one to ignore. ----- Forwarded by Kay Mann/Corp/Enron on 12/11/2000 04:31 PM -----

Ed Dannhaus@ENRON_DEVELOPMENT 12/11/2000 04:15 PM To: Kay Mann/Corp/Enron@ENRON cc: michael.storm@ss.ps.ge.com@ENRON, Ed.Dannhaus@enron.com@ENRON, mtezyk@enron.com@ENRON, lee.johnson@ss.ps.ge.com@ENRON, Ben Jacoby/HOU/ECT@ECT@ENRON, Alan Larsen/PDX/ECT@ECT@ENRON, Lisa Bills/Corp/Enron@ENRON, Roseann Engeldorf/Corp/Enron@ENRON

Subject: Re: CO#6 for Fountain Valley

Kay - is there a contract in place between Turbo Park and GE or has the West LB contract and all of the change orders been assigned to GE? If it has been assigned then the change order sequential numbers must remain in Place. If you have a new contract in Place then the Change order could be number One. Who is maintaining the change order log. What do you mean by site specific stuff? Who has a copy of the new contract?

Kay Mann@ENRON 12/11/2000 03:37 PM To: michael.storm@ss.ps.ge.com cc: Ed.Dannhaus@enron.com, mtezyk@enron.com, lee.johnson@ss.ps.ge.com, Ben Jacoby/HOU/ECT@ECT, Alan Larsen/PDX/ECT@ECT, Lisa Bills/Corp/Enron@ENRON, Roseann Engeldorf/Corp/Enron@ENRON Subject: Re: CO#6 for Fountain Valley

Gentlemen,

Since we are moving the equipment from WestLB and into TurboPark, and since we are just about there with the breakout contracts, we need to process this as change order #1 to the Fountain Valley contract. I also believe we need the site specific stuff for this project.

Kay

michael.storm@ss.ps.ge.com on 12/11/2000 03:17:27 PM To: Kay.Mann@enron.com, Ed.Dannhaus@enron.com, mtezyk@enron.com cc: lee.johnson@ss.ps.ge.com

Subject: CO#6 for Fountain Valley

All,

Attachment contains latest revision reflecting order for two additional stacks, six power stabilizers and moving cost for the Fountain Valley Project. Please review and let me know if additional changes are required or recommended.

<<changeorder#6rev2.doc>> Please note new contact information below:

Mike Storm

g GE Aero Energy Products

A GE Power Systems Business Michael E. Storm Projects Phone: (281) 864-2601 Dial Com 8*326-2601 Fax: (281) 864-2116, Pager 888 487 5741

- changeorder#6rev2.doc

Message 361 of 371

RE: Continental Airlines - Elite Upgrade

| | |
|------------|----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | [nmann@erac.com] |
| File | mann-k/all_documents/4395. |

I wouldn't call them until after you've taken the flight!

"Neil Mann" <nmann@erac.com> on 04/02/2001 09:50:14 AM Please respond to <nmann@erac.com> To: <Kay.Mann@enron.com> cc:

Subject: RE: Continental Airlines - Elite Upgrade

I will call our travel agt to see what's up. Sorry. Hope this hasn't caused you any problems.

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Monday, April 02, 2001 9:34 AM To: nmann@erac.com Subject: RE: Continental Airlines - Elite Upgrade

That's my One Pass number.

ckm

"Neil Mann" <nmann@erac.com> on 04/02/2001 09:23:53 AM

Please respond to <nmann@erac.com>

To: <Kay.Mann@enron.com> cc:

Subject: RE: Continental Airlines - Elite Upgrade

This is my flight and the ticket is in my name. The travel agt said I was also a OnePass Elite (#COHG770475) and that there might be an auto upgrade two days prior to the flight at no charge.

Just getting out of our Monday meeting. The building has yet to turn on the a/c and it's hot in here!

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Monday, April 02, 2001 8:54 AM To: nmann@erac.com Subject: Continental Airlines - Elite Upgrade

is this your flight? Have you seen your ticket? It isn't in my name, is it? ----- Forwarded by Kay Mann/Corp/Enron on 04/02/2001 08:53 AM -----

<EUA@coair.com> on 04/02/2001 01:01:02 AM

To: <kay.mann@enron.com> cc:

Subject: Continental Airlines - Elite Upgrade

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: J76ZJX Flight Number: 1504 Date: April 05, 2001 Origination: IAH Destination: MCO Seat: 05F*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 1 hour prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

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For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

Thank you for choosing Continental Airlines.

Message 362 of 371

FW: Pegasus - GE Consent and Letter Agreement

| | |
|------------|---|
| Sender | ccampbell@kslaw.com |
| Recipients | ["Gregory F. Lang (E-mail); O'BRIEN", 'Lisa', 'kay.mann@enron.com'] |
| File | mann-k/panda/53. |

Kay:

The enclosed documents provided by Isabel Parker appear to be consistent with the discussions in our conference call yesterday and are fine with me. Per Isabel's request, you may wish to quickly review these documents to ensure that they are in accord with Enron's discussions with GE. Isabel advises that she has not yet forwarded these documents to GE.

Carolyn M. Campbell King?& Spalding 713-276-7307 (phone) 713-751-3280 (fax) ccampbell@kslaw.com
<<mailto:ccampbell@kslaw.com>>

-----Original Message-----

From: PARKER, Isabel [<mailto:isabel.parker@freshfields.com>] Sent: Tuesday, April 17, 2001 6:10 PM To: Carolyn Campbell (E-mail) Cc: Gregory F. Lang (E-mail); O'BRIEN, Lisa Subject: Pegasus - GE Consent and Letter Agreement

This e-mail is confidential and may well also be legally privileged. If you have received it in error, you are on notice of its status. Please notify us immediately by reply e-mail and then delete this message from your system. Please do not copy it or use it for any purposes, or disclose its contents to any other person: to do so could be a breach of confidence. Thank you for your co-operation. Please contact our IT Helpdesk on +44 (0) 20 7936 4000 Ext.2000 or email ITHelp@freshfields.com if you need assistance.

Carolyn

As discussed, we attach for your comments a clean and blacklined copy of the GE consent, showing the changes from the version last circulated, and a draft of the letter agreement to be signed by GE, to which the agreed forms of the GE documents will be annexed. We have not yet sent these documents to GE. We would be grateful if you could confirm that the timing contemplated in the GE letter agreement is in line with Enron's agreement with GE.

With respect to the ENA Consent, I would be very grateful if, to save time, you could send me a mark-up of the language Enron proposes relating to submission to jurisdiction.

Please call me with any questions (212 277 4025)

Kind regards Isabel

Confidentiality Notice This message is being sent by or on behalf of a lawyer. It is intended exclusively for the individual or entity to which it is addressed. This communication may contain information that is proprietary, privileged or confidential or otherwise legally exempt from disclosure. If you are not the named addressee, you are not authorized to read, print, retain, copy or disseminate this message or any part of it. If you have received this message in error, please notify the sender immediately by e-mail and delete all copies of the message.

- COMPARE001.DOC - NY003699615.DOC - NY003700961.DOC

Message 363 of 371

FW: Maine Standard Offer Solicitation

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['Ward', 'Stephen G', 'alice.wright@enron.com'] |
| File | mann-k/sent_items/248. |

Please print email and attachments. Thanks! -----Original Message----- From: Llodra, John Sent: Monday, November 26, 2001 2:26 PM To: Mann, Kay Subject: FW: Maine Standard Offer Solicitation

some background mat'ls. i'll call you in a few minutes to discuss

regards john

-----Original Message-----

From: Huntington, Faith Sent: Thu 11/15/2001 7:38 AM To: Cc: Ward, Stephen G Subject: Maine Standard Offer Solicitation

(I sent this out yesterday. Yours appeared to be undeliverable, so here it is again. My apologies if you have already received it. Faith)

November 14, 2001

TO: INTERESTED POWER SUPPLIERS AND MARKETERS

RE: REQUEST FOR RETAIL PROPOSALS - MAINE STANDARD OFFER SERVICE

The Maine Public Utilities Commission is soliciting proposals from interested power suppliers and marketers to supply retail standard offer service to commercial and industrial customers of Maine's two largest electric utilities, Central Maine Power Company and Bangor Hydro-Electric Company. The total annual electricity sales to these customers is about 6.8 million MWh, of which 30% currently receives standard offer service.

The standard offer suppliers will provide service beginning March 1, 2002. At your option, bids may be submitted for one, two or three year terms. Service will be provided directly by suppliers to customers at retail, although the utility will handle billing and collection on the standard offer supplier's behalf.

Concurrent with the Commission's solicitation for retail standard offer service, Central Maine Power Company and Bangor Hydro-Electric Company will be seeking proposals for wholesale standard offer supply. The concurrent solicitations will allow the Commission to evaluate all options simultaneously and sufficiently in advance of March 1. You may participate in both the retail and wholesale processes. Initial bids for all of these solicitations will be due on December 4, 2001.

The RFPs for the retail solicitation are available at www.state.me.us/mpuc. Please note that there are separate RFPs for each utility. The RFPs contain detailed information about Maine's standard offer and instructions on how to participate. To obtain the RFPs by mail or email, please contact Tammy French (at 207-287-6075 or tammy.french@state.me.us <<mailto:tammy.french@state.me.us>>>) For additional information, please contact Faith Huntington (at faith.huntington@state.me.us <<mailto:faith.huntington@state.me.us>>> or 207-287-1373) or Mitch Tannenbaum (at 207-287-1391 or mitchell.tannenbaum@state.me.us <<mailto:mitchell.tannenbaum@state.me.us>>>).

Message 364 of 371

RE: Escalade

| | |
|------------|--------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['nmann@erac.com'] |
| File | mann-k/sent/2961. |

----- Forwarded by Kay Mann/Corp/Enron on 03/06/2001 01:31

PM -----

"Leatha Brown" <lbrown1@erac.com> on 03/06/2001 01:08:09 PM Please respond to <lbrown1@erac.com> To: <Kay.Mann@enron.com> cc:

Subject: RE: Escalade

The last quote I sent over was for 36 months and I haven't taken into consideration the price/tax savings of the Lexus. I contacted our remarketing department and they are still working on getting #'s.

I'll let you know soon!!!

Leatha

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Tuesday, March 06, 2001 12:49 PM To: lbrown1@erac.com Subject: RE: Escalade

Leatha,

I have a couple of questions. Do your numbers assume \$7500 down (in addition to the tax etc), and is the term 36 months or 48? Both time frames are mentioned in your explanation.

Have we heard anything on the remarketing of my Lexus? Does the cost include the tax trade on the Lexus?

Thanks for your help,

Kay

"Leatha Brown" <lbrown1@erac.com> on 03/05/2001 05:37:50 PM

Please respond to <lbrown1@erac.com>

To: <Kay.Mann@enron.com> cc:

Subject: RE: Escalade

Kay, The dealership will not come down on the price for the gold and wood trim. I have an aftermarket company that can do both for \$550.00. Here is a 36 month quote for the Cadillac including the gold and wood. Please review and let me know if you have any questions.

EQUITY LEASE FOR TERM OF 36 MONTHS

\$ 39976.38 Cost of vehicle 2498.52*Sales tax 161.00*Registration 7500.00*Cost reduction

\$ 39976.38 Delivered price

\$ 568.33 monthly depreciation 187.81 Monthly lease charge

\$ 756.14 Monthly rental

\$ 12016.15 Termination value @ 48 months

*to be billed on delivery

Let me know what you think.

Leatha

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Saturday, March 03, 2001 5:05 PM To: lbrown1@erac.com Cc: nmann@erac.com Subject: Escalade

Hi Leatha,

Neil and I went to D Taylor and looked at an Escalade. We liked it, however, we want to price it with a couple of extra features. I like the extra wood package, and Neil likes it with the gold trim package. When we asked for a price, it added around \$1700, which I thought was ridiculous. They offered to discount it by \$200, which I again thought was ridiculous. When we priced these options at McGinniss, the price was less (\$600 for the wood package instead of \$995, for instance), and they offered to discount the options by a third. So, we can get the deal done if they will get reasonable over these options. The sales guy (Nathaniel) was going to "work on it". The fellow you had told us to ask for wasn't in, by the way.

I will be out of town on Monday, but Neil will be in, and will have my Lexus.

Thanks,

Kay

Message 365 of 371

FW: ESCROW AGREEMENT

| | |
|------------|--|
| Sender | mreuter@kslaw.com |
| Recipients | ['chris.booth@enron.com', 'jkeffer@kslaw.com', 'kay.mann@enron.com'] |
| File | mann-k/discussion_threads/3977. |

Chris:

Since the 30-day window for setting up the escrow account on Project Blue Dog is nearing its term, I wanted to check in. As I recall, Kathleen Carnahan had prepared the Incumbency Certificate required by Citibank. In addition, Carolyn Campbell indicated to me that Andrea Mahar was her contact at Citibank on the Delta deal. Andrea's number is 212-657-1007, and she will likely ask regarding the nature/timing/amounts of the disbursements. In past deals, Citibank has provided us with a fee schedule and a list of money market investment options, so I imagine we will need to ask Andrea for copies of the same. According to Carolyn, Andrea might refer you to a woman named Estelle Lawrence at 212-657-2076, but the initial contact needs to be with Andrea. Finally, an electronic copy of the negotiated Escrow Agreement is attached. We will need to have Citibank sign off on this document as soon as possible.

Please call me if I can help out in any way. My direct dial is 713-751-3244.

Regards,

Marisa

-----Original Message-----

From: DeBerry, Jeremiah A. [mailto:JeremiahDeBerry@paulhastings.com] Sent: Monday, May 14, 2001 10:15 AM To: 'mreuter@kslaw.com' Subject: ESCROW AGREEMENT

"paulhastings.com" made the following annotations on 05/14/01 11:14:47

-- NEW E-MAIL ADDRESSES AT PAUL, HASTINGS, JANOFSKY & WALKER LLP

We have changed our e-mail address. Our new domain name is paulhastings.com. In most cases, our address is composed of conventional first name and last name plus @paulhastings.com. Here are two examples: janesmith@paulhastings.com and danjones@paulhastings.com. If you have any questions, please contact us at noc@paulhastings.com.

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Content-Transfer-Encoding: 7bit To: Subject: Date: Mon, 14 May 2001 12:15:29 -0400 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-Type: multipart/mixed ; boundary="----_=_NextPart_002_01C0DC90.646B5150"
- ATT112968.txt - ATT112969.htm - 757N03!.DOC

Message 366 of 371

| Re: FW: Escalade | |
|------------------|-------------------------|
| Sender | kay.mann@enron.com |
| Recipients | [nmann@erac.com] |
| File | mann-k/_sent_mail/1446. |

You know so much!!!!

"Neil Mann" <nmann@erac.com> on 03/06/2001 10:35:00 AM Please respond to <nmann@erac.com> To: "C. Kay Mann (E-mail)" <Kay.Mann@Enron.com> cc:

Subject: FW: Escalade

This came back to me as undeliverable so I'll try again. NM

-----Original Message-----

From: Neil Mann [mailto:nmann@erac.com] Sent: Tuesday, March 06, 2001 10:01 AM To: Kay.Mann@enron.com
Subject: RE: Escalade

We need to verify this is a 36 mos lease because the term value says 48 mos. I had said we wanted to see a rate at 36 mos with 10K down. I assume she used the 10K as total out of pocket expenses at time of delivery and that's why the cost reduction is 7500. The mo payment is about the same as the Lexus. As for the two additions, the aftermarket folks do good work so that should not be a concern. Shoot, some dealerships may even use the same folks to do the work for them and then mark it up. Bottom line, it's your call. If you choose to walk away, I'm ok with it. If you do, what do you want to do going forward. Look at something else? Go back to McGinnis? NM

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Tuesday, March 06, 2001 8:42 AM To: nmann@erac.com
Subject: RE: Escalade

fyi. Comment? ----- Forwarded by Kay Mann/Corp/Enron on 03/06/2001 08:47 AM -----

"Leatha Brown" <lbrown1@erac.com> on 03/05/2001 05:37:50 PM

Please respond to <lbrown1@erac.com>

To: <Kay.Mann@enron.com> cc:

Subject: RE: Escalade

Kay, The dealership will not come down on the price for the gold and wood trim. I have an aftermarket company that can do both for \$550.00. Here is a 36 month quote for the Cadillac including the gold and wood. Please review and let me know if you have any questions.

EQUITY LEASE FOR TERM OF 36 MONTHS

\$ 39976.38 Cost of vehicle 2498.52*Sales tax 161.00*Registration 7500.00*Cost reduction

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\$ 756.14 Monthly rental

\$ 12016.15 Termination value @ 48 months

*to be billed on delivery

Let me know what you think.

Leatha

-----Original Message-----

From: Kay.Mann@enron.com [mailto:Kay.Mann@enron.com] Sent: Saturday, March 03, 2001 5:05 PM To: lbrown1@erac.com Cc: nmann@erac.com Subject: Escalade

Hi Leatha,

Neil and I went to D Taylor and looked at an Escalade. We liked it, however, we want to price it with a couple of extra features. I like the extra wood package, and Neil likes it with the gold trim package. When we asked for a price, it added around \$1700, which I thought was ridiculous. They offered to discount it by \$200, which I again thought was ridiculous. When we priced these options at McGinniss, the price was less (\$600 for the wood package instead of \$995, for instance), and they offered to discount the options by a third. So, we can get the deal done if they will get reasonable over these options. The sales guy (Nathaniel) was going to "work on it". The fellow you had told us to ask for wasn't in, by the way.

I will be out of town on Monday, but Neil will be in, and will have my Lexus.

Thanks,

Kay

Message 367 of 371

SIEMENS WESTINGHOUSE MEETING -- WEDNESDAY the 21ST

| | |
|------------|-----------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['suzanne.adams@enron.com'] |
| File | mann-k/_sent_mail/1590. |

----- Forwarded by Kay Mann/Corp/Enron on 02/16/2001 03:05

PM -----

Lorie Leigh @ ECT 02/16/2001 02:43 PM

To: Ben F Jacoby/HOU/ECT@ECT, Chris Booth/NA/Enron@Enron, Fred L Kelly/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Kay Mann/Corp/Enron@Enron, Mike Coleman/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, John G Rigby@ENRON_DEVELOPMENT, Ron Tapscott/HOU/ECT@ECT cc:

Subject: SIEMENS WESTINGHOUSE MEETING -- WEDNESDAY the 21ST

A Siemens Westinghouse Meeting has been scheduled.

the date: Wednesday, February 21st, 2001 the place: EB3143B the time: 3:00 PM - 4:30 PM CST the subject: Siemens Westinghouse Points of Contractor- Generator Inspection

If you have any problems or questions, please feel free to call me at 713-853-1696.

Thank you, Lorie Leigh

----- Forwarded by Ben Jacoby/HOU/ECT on 02/14/2001 10:45 PM

From: John G Rigby@ENRON_DEVELOPMENT on 02/14/2001 07:46 AM To: Ben F Jacoby/HOU/ECT@ECT cc: Ben Jacoby/HOU/ECT@ECT, Chris Booth/NA/Enron@Enron, Fred L Kelly/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Kay Mann/Corp/Enron@Enron, Mike Coleman/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Ron Tapscott@ECT Subject: Re: Siemens Westinghouse Points of Contractor- Generator Inspection

Rigby is available-please advise final time and location

Ben F Jacoby@ECT Sent by: Ben Jacoby@ECT 02/13/2001 02:54 PM

To: John G Rigby/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Fred Kelly cc: Mike Coleman, Ron Tapscot, Chris Booth, Kay Mann Subject: Re: Siemens Westinghouse Points of Contractor- Generator Inspection

John and Fred:

I'd like to get together with you guys next week to discuss the status of the unit and what we do from here on out. The deal with Calpine is not proceeding, and we need to communicate to ENA management exactly what the overall status is of the unit including the generator, and what our action plan is to resolve issues with SW and dispose of the unit.

Are you two available Wednesday 3 PM next week? Please advise.

Mike, Ron, Chris, Kay, please advise of your availability as well.

Thanks much,

Ben

From: John G Rigby@ENRON_DEVELOPMENT on 02/13/2001 12:13 PM To: James P Studdert@ECT cc: Ben F Jacoby@ECT, Chris Booth@ENRON, Scott Laidlaw/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Matthew Tezyk/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Fred L Kelly/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Siemens Westinhouse Points of Contractor- Generator Inspection

James

I received call from Mart T of SW. Following are two names with telephone numbers of SW people in Houston who can arrange a time and access for the insurance adjustor to see the wet SW generator.

POC's

Willie Smith

281-604-5240

and

Andy Kemsley

281-604-5237

I would appreciate it if you would let me know when the inspection is arranged and when it to occur. (A telephone call would work best). I think it makes sense for us to have an Enron project management/ technical representative present.- Will you have someone from your office present- it might make sense given the history on this- your call as to the present of an Enron RM person being present. I assume we would have to inform the SW point of contact the names of the Enron people.

Message 368 of 371

Re: Lake Austin Spa Resort

| | |
|------------|---------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['cindyv@lakeaustin.com'] |
| File | mann-k/sent/2974. |

Cindy,

How long would we have until we need to release the rooms to avoid the charge? I think your suggestion will work.

Kay

"Cindy Viator" <cindyv@lakeaustin.com> on 03/06/2001 12:05:28 PM To: <Kay.Mann@enron.com> cc:

Subject: Re: Lake Austin Spa Resort

Hi Kay,

I'm so happy that you guys are coming to visit us. May 4 - 7, 2001 are great dates for your group to come, however I can not block rooms due to our availability at this time. . The only way I can guarantee the rooms is to get a \$3000 pre-payment to hold the rooms. If you would like to hold that on your credit card until they call with their own, I can do that. I will keep an eye on it for you and if you just want to have everyone call me as soon as they can or I can call them.

Just let me know how I can make this easiest for you. Do you know if your group wants signature or premier rooms?

See you soon. Cindy Viator Sales/Marketing Lake Austin Spa Resort (800) 847-5637 (512) 372-7366
cindyv@lakeaustin.com www.lakeaustin.com

-----Original Message-----

From: Kay.Mann@enron.com <Kay.Mann@enron.com> To: Cindy Viator <cindyv@lakeaustin.com> Date: Tuesday, March 06, 2001 8:55 AM Subject: Re: Lake Austin Spa Resort

Hi Cindy,

Would it be possible to block some rooms for a couple of weeks while people make their reservations? I'm thinking maybe ten rooms for May 4, 5, and 6, out on the 7th? I would like it best if the individuals could call you directly to make the reservation. How does that work for you?

Thanks,

Kay

"Cindy Viator" <cindyv@lakeaustin.com> on 02/23/2001 02:33:04 PM

To: <kay.mann@enron.com> cc:

Subject: Lake Austin Spa Resort

Contact: Kay Mann

email: kay.mann@encore.com

Getaway package May 4, 2001

Includes six (6) private signature or premier room. Three healthy gourmet meals daily, unlimited fitness classes, activities and discovery programs. Spa services and personal fitness instructions are available a la carte.

Two Nights, Private Accommodations:

Signature Room \$720* per person

Premier Room \$820* per person

Three Nights, Private Accommodations:

Signature Room \$1,080* per person

Premier Room \$1,230* per person

*rates do not include 6% tax and 18% service charge and is non-commissionable. These rates will only apply to a group of six or more people visiting during the dates listed above.

Private activities such as boat cruises, hikes, yoga classes or kayak outing are also available at additional charges.

Deposit:

A \$500 per person pre-payment is due at the time of booking. Payments can be made by persona, corporate, or cashiers check, Visa, Mastercard, Discover, Diners Club or American Express.

Cancellations:

Cancellations made 45 days or more in advance will receive a full refund of the pre-payment. Reservations cancelled 44 - 15 days or less prior to arrival will be non-refundable but we will hold the pre-payment amount for up to one year to be used at a later date. Reservations cancelled 14 days or less prior to arrival will forfeit the entire pre-payment amount.

Please review this proposal and call me at your earliest convenience with any questions and/or comments. I will be happy to help customize a package to fit the particular needs of your guests.

Sincerely,

Cindy Viator

Sales/Marketing

cindyv@lakeaustin.com

800-847-5637

[IMAGE] (See attached file: lasr.jpg)

Message 369 of 371

Enron - Livingston County PRIVILEGED AND CONFIDENTIAL

| | |
|------------|---|
| Sender | kay.mann@enron.com |
| Recipients | ['Eileen - CHI' <eileen.farrell@piperrudnick.com>, 'rusty.stevens@enron.com', 'fred.mitro@enron.com', 'Farrell... |
| File | mann-k/discussion_threads/794. |

Matt, Since so much of this related to tax, I thought you should have a look at it.

Rusty/Fred, I'm not sure of the context of the presentation of the information. Is this something which is going to the public, or to the governmental entity involved? If there is something which will be distributed to the public, then we should consider having Enron's PR group bless it.

Kay ----- Forwarded by Kay Mann/Corp/Enron on 09/25/2000 06:19 PM -----

"Gershon, Mark A. - CHI" <Mark.Gershon@piperrudnick.com> on 09/25/2000 04:07:00 PM To: "Jeff Martin (E-mail)" <jmartin@teskaassociates.com>, "Brian P. O'Neil (E-mail)" <boneil@ensr.com>, "Phil Houser (E-mail)" <phouser@f-w.com>, "Brian Fisher (E-mail)" <bfisher@f-w.com>, "Ronald R. Pollina Ph. D. (E-mail)" <rrp@pollina.com>, "Fred J. Mitro (E-mail)" <fred.mitro@enron.com>, "Rusty Stevens (E-mail)" <rsteven@enron.com>, "Jennifer Walker (E-mail)" <Jennifer.Walker@enron.com>, "Kay Mann (E-mail)" <kay.mann@enron.com>, "Townsend, Christopher J. - CHI" <chris.townsend@piperrudnick.com>, "Elam, Michael H. - CHI" <Michael.Elam@piperrudnick.com>, "Nooney, Kathleen L. - CHI" <Kathleen.Nooney@piperrudnick.com>, "Way, Karen S. - CHI" <karen.way@piperrudnick.com> cc: "Farrell, Eileen - CHI" <eileen.farrell@piperrudnick.com>

Subject: Enron - Livingston County PRIVILEGED AND CONFIDENTIAL

As many of you know, we have received a number of written questions from Livingston County which were presented to them by residents. Enron and our firm have prepared and attached an initial draft response to those questions. Copies are provided in Word Perfect and Word for your convenience. Certain of the responses deal with specific areas for which each of you are responsible. While we have attempted to utilize the information that you have previously prepared, it is critical that you approve the responses. Please review the proposed responses and fax me any changes or call me by noon tomorrow. While I'm quite interested in any comments you may have on any of the responses, please be prepare to specifically approve or modify the following questions:

1. Pollina - Questions 1 - 7;
2. Farnsworth & Wylie - Questions A and B;
3. ENSR - Questions 8, 9, A and B; and
4. Everyone else - Everything.

I hope to speak to each of you, but if you cannot reach me please call Karen Way at 312-368-2152.

<<Enron Livingston Draft Response to Questions.WPD>> <<Enron Livingston Draft Responses (WORD 97).DOC>>

Mark A. Gershon Piper Marbury Rudnick & Wolfe Phone: (312) 368-2127 Fax: (312) 630-5338
Mark.Gershon@PiperRudnick.com

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

The information contained in this communication may be confidential, is intended only for the use of the recipient named above, and may be legally privileged. If the reader of this message is not the intended recipient, you are hereby notified that any dissemination, distribution, or copying of this communication, or any of its contents, is strictly prohibited. If you have received this communication in error, please re-send this communication to the sender and delete the original message and any copy of it from your computer system. Thank you.

For more information about Piper Marbury Rudnick & Wolfe, please visit us at <http://www.piperrudnick.com/>

- Enron Livingston Draft Response to Questions.WPD - Enron Livingston Draft Responses (WORD 97).DOC

Message 370 of 371

Re: CO for Fountain Valley

| | |
|------------|---------------------------|
| Sender | kay.mann@enron.com |
| Recipients | ['alan.larsen@enron.com'] |
| File | mann-k/sent/1927. |

I used to work at EECC, so I know that noone controls that group!

There is a place in the agreement for a contract number. I think we ought to use the same contract number as before, but add a distinguishing number or letter- like FV or LVCG. How does that sound?

Kay

Alan Larsen@ECT 12/12/2000 10:49 AM To: Kay Mann/Corp/Enron@Enron cc:

Subject: Re: CO for Fountain Valley

Kay--I left you a voice mail apologizing for your being bombarded with general questions about the C.O.s for Fountain Valley. My intention was that EE&CC would get the CO into final shape, and just pass it on to you at the point it was ready for GE signature. I do have one question though, in light of Dale's note below: how we want to identify the Fountain Valley

breakout, as opposed to the previous GE master agreement. Thanks. Al Larsen ----- Forwarded by Alan Larsen/PDX/ECT on 12/12/2000 08:37 AM -----

Dale Rasmussen 12/11/2000 07:30 PM To: Alan Larsen/PDX/ECT@ECT cc:

Subject: Re: CO#6 for Fountain Valley

The way the process works as I understand it, is this:

Last week we developed forms of breakout contracts for each of the turbine "groups" (1 for LV, 1 for Fountain Valley, etc.).

In order to accomplish changes to the individual breakout contracts reflecting changes to project-specific turbines, it was decided that rather than issue any additional change orders under the master (24 unit) contract, either (a) the individual breakout contracts would be modified prior to execution to reflect the changed information; or (b) change orders would be issued under the individual breakout contract.

I worked with the crew last week on the form of breakout contract for the LV turbines. I haven't done any change orders under that contract.

As I interpret the attachment below, the required modification is to change the reference from CO#6 to the master contract to CO #1 to the Fountain Valley breakout contract. Of course, I may be missing something here.

I did an earlier change order to the master contract that I could forward, if that would help.

Alan Larsen 12/11/2000 04:43 PM To: Dale Rasmussen/HOU/ECT@ECT cc: Subject: Re: CO#6 for Fountain Valley

Dale--I understand that you have done Ge change orders breaking out the LV Cogen equip. Could you send me a copy of your breakout C.O.? Thanks. Al ----- Forwarded by Alan Larsen/PDX/ECT on 12/11/2000 04:33 PM -----

Kay Mann@ENRON 12/11/2000 03:37 PM To: michael.storm@ss.ps.ge.com cc: Ed.Dannhaus@enron.com, mtezyk@enron.com, lee.johnson@ss.ps.ge.com, Ben Jacoby/HOU/ECT@ECT, Alan Larsen/PDX/ECT@ECT, Lisa Bills/Corp/Enron@ENRON, Roseann Engeldorf/Corp/Enron@ENRON

Subject: Re: CO#6 for Fountain Valley

Gentlemen,

Since we are moving the equipment from WestLB and into TurboPark, and since we are just about there with the breakout contracts, we need to process this as change order #1 to the Fountain Valley contract. I also believe we need the site specific stuff for this project.

Kay

michael.storm@ss.ps.ge.com on 12/11/2000 03:17:27 PM To: Kay.Mann@enron.com, Ed.Dannhaus@enron.com, mtezyk@enron.com cc: lee.johnson@ss.ps.ge.com

Subject: CO#6 for Fountain Valley

All,

Attachment contains latest revision reflecting order for two additional stacks, six power stabilizers and moving cost for the Fountain Valley Project. Please review and let me know if additional changes are required or recommended.

<<changeorder#6rev2.doc>> Please note new contact information below:

Mike Storm

g GE Aero Energy Products

A GE Power Systems Business Michael E. Storm Projects Phone: (281) 864-2601 Dial Com 8*326-2601 Fax: (281) 864-2116, Pager 888 487 5741

- changeorder#6rev2.doc

Message 371 of 371

FW: Genuity Buy and Corp Sell (Back to Back)

| | |
|------------|--|
| Sender | kay.mann@enron.com |
| Recipients | ['Jane', 'bryan.garrett@enron.com', 'Wilhite'] |
| File | mann-k/sent_items/198. |

-----Original Message-----

From: Wilhite, Jane Sent: Tuesday, September 04, 2001 9:55 AM To: Mann, Kay; Schuler, Lance (Legal) Subject: RE: Genuity Buy and Corp Sell (Back to Back)

Kay,

We need to incorporate the following components into the Genuity Solutions Inc. Master Agreement:

We need a parent guarantee from Genuity Inc. (\$10MM) and are willing to reciprocate (Enron Corp. \$10MM). We need to insert Events of Default with respect to guarantor. (Credit Support Annex section 4 and 5 from our MSA) We need to insert netting (MSA section 6.4) and close-out setoff (MSA section 5.7). We need to insert the ability to request financial statements from the Guarantor if they are not publicly available (MSA section 8). The assignment language needs to be re-amended. Both parties can only assign to an affiliate that is at least as creditworthy as the existing - i.e. we need to maintain the parent guarantee. (MSA section 10.4). The current amendment is unclear whether or not Genuity is the only party allowed to assign to an affiliate. We need a bilateral bankruptcy event of default. (MSA section 5.1(iv)). There is no clause regarding disputes of invoices. We can use our standard language from the MSA.(Section 6.3). Do we need to state that we are a forward contract merchant?

Please let me know if you have any questions.

Thanks,

Jane Wilhite ext. 35063

-----Original Message-----

From: Mann, Kay Sent: Sunday, September 02, 2001 10:42 AM To: Schuler, Lance (Legal) Cc: Wilhite, Jane Subject: RE: Genuity Buy and Corp Sell (Back to Back)

Sounds fine. I have a copy of what I believe to be the current master, and the confirm states that a revised master is anticipated, and if signed, may govern the transaction.

Kay

-----Original Message-----

From: Schuler, Lance (Legal) Sent: Sun 9/2/2001 10:13 AM To: Mann, Kay Cc: Wilhite, Jane Subject: FW: Genuity Buy and Corp Sell (Back to Back)

Kay, since you have been involved with Genuity, will you please followup on the proposals below. Thank you. Lance.

W. Lance Schuler Enron North America Corp. 1400 Smith Street Houston, Texas 77002 Phone: 713/853-5419 Fax: 281/664-4890 Email: lance.schuler-legal@enron.com

-----Original Message-----

From: Wilhite, Jane Sent: Friday, August 31, 2001 3:53 PM To: Sarkissian, Arshak; Lafuze, Molly Cc: Suarez, John; Racicot, Paul; Schuler, Lance (Legal) Subject: *RE: Genuity Buy and Corp Sell (Back to Back)

Arshak - We will approve this transaction with Genuity Solutions Inc.

Please note - before any additional transactions with Genuity Solutions or Genuity Telecom occur we must amend the Master Agreement. CRM does not approve of the form for the Master Agreement with Genuity Solutions, Inc. There are no

events of default with respect to EBS, we need to incorporate set-off language between the two affiliates and we need to push for a parent guarantee.

Molly - please attach these comments to the confirmation for the file.

Lance - Can we get somebody in legal assigned to help amend this agreement?

Thanks,

Jane Wilhite ext. 35063

-----Original Message-----

From: Sarkissian, Arshak Sent: Friday, August 31, 2001 3:44 PM To: Wilhite, Jane; Lafuze, Molly Cc: Suarez, John
Subject: RE: Genuity Buy and Corp Sell (Back to Back)

Genuity MtM~(\$60,928)

-----Original Message-----

From: Wilhite, Jane Sent: Friday, August 31, 2001 2:23 PM To: Sarkissian, Arshak; Lafuze, Molly Cc: Suarez, John; Edison, Susan; Racicot, Paul Subject: RE: Genuity Buy and Corp Sell (Back to Back)

What is the MTM for this deal?

-----Original Message-----

From: Sarkissian, Arshak Sent: Friday, August 31, 2001 2:18 PM To: Lafuze, Molly; Wilhite, Jane Cc: Suarez, John; Edison, Susan; Racicot, Paul Subject: Genuity Buy and Corp Sell (Back to Back)

Molly,

Please find the deal tickets attached. Lets try to get it out (at least the Genuity piece) today.

Thanks,

Arshak.

<< File: GENUITY-CORP-DEAL-TICKET-8-31-2001-AS.xls >> << File:
GENUITY-CORP-BUY-DS3-1400SMITH-8-31-2001-AS.xls >>
